

## **BOSNIA AND HERZEGOVINA:**

### **Broader and improved support for durable solutions required**

A profile of the internal displacement situation

28 August, 2008

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The Internal Displacement Monitoring Centre, established in 1998 by the Norwegian Refugee Council, is the leading international body monitoring conflict-induced internal displacement worldwide.

Through its work, the Centre contributes to improving national and international capacities to protect and assist the millions of people around the globe who have been displaced within their own country as a result of conflicts or human rights violations.

At the request of the United Nations, the Geneva-based Centre runs an online database providing comprehensive information and analysis on internal displacement in some 50 countries.

Based on its monitoring and data collection activities, the Centre advocates for durable solutions to the plight of the internally displaced in line with international standards.

The Internal Displacement Monitoring Centre also carries out training activities to enhance the capacity of local actors to respond to the needs of internally displaced people. In its work, the Centre cooperates with and provides support to local and national civil society initiatives.

For more information, visit the Internal Displacement Monitoring Centre website and the database at [www.internal-displacement.org](http://www.internal-displacement.org).

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## OVERVIEW

### Broader and improved support for durable solutions required (2008)

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*Twelve years after the war ended, the State Ministry for Human Rights and Refugees (MHRR) of Bosnia and Herzegovina estimated in June 2008 that some 125,000 registered internally displaced people (IDPs) remain. This figure is likely to remain stable in view of the limited number of returns over the past three years and the lack of support for other durable solutions. Given that possession of IDP status and an expressed intention to return is a precondition to apply for reconstruction assistance, it may not be incidental that the number of IDP families (40,000) corresponds to the number of applications for reconstruction assistance.*

*Government figures indicate that over one million IDPs and refugees have returned to their homes since the end of the conflict, but the extent to which the figure depicts long-term return is contested. The persistence of the ethnic divide in national political discourse and policies encourages IDPs to remain displaced within areas where they belong to a majority group. The lack of adequate support to return and the reluctance of national and international authorities to promote other durable solutions is preventing IDPs and returnees resuming their life in dignity. In view of the obstacles to return faced by many IDPs, and the difficult living conditions of those who remain displaced, the overwhelming focus on return and reconstruction is increasingly becoming questionable.*

### Background and main causes of displacement

Over one million people were internally displaced and as many again fled abroad during the violent conflict that erupted in Bosnia and Herzegovina (*Bosna i Hercegovina*, BiH) in 1992, after the collapse of the Socialist Federal Republic of Yugoslavia. In response to Bosnia's declaration of independence, Serb paramilitary units, militia and police forces began a campaign of ethnic cleansing throughout the country, supported by the predominantly Serb Yugoslav Army. Their aim was to create ethnic and territorial continuity between Serb-majority areas of Bosnia and Herzegovina and neighbouring Serbia, by expelling Bosnian Muslims (Bosniacs), Croats and other ethnic minorities. During the three years of the conflict, widespread violations of humanitarian and human rights law against the civilian population ranged from massacres and systematic rape to indiscriminate attacks and large-scale forced displacement. The Bosnian Croats, and to a lesser extent the Bosniacs, also attempted to create homogenous ethnic areas through the forced displacement of civilians.

The Dayton Peace Agreement (DPA) of December 1995 marked the end of the conflict and established BiH as a federal republic made up of two "entities": the (mainly Bosnian Serb) Republika Srpska (RS) and the (mainly Bosniac and Croat) Federation of Bosnia and Herzegovina (FBiH). Each entity had its own government, president, parliament and police, and until 2005, each had its own army. The north-eastern Brcko district is a self-governing administrative unit with territory in both FBiH and Republika Srpska, which remains under international supervision. FBiH is further divided into cantons, which are then subdivided into municipalities. RS is divided directly into municipalities.

Displacement continued after the DPA, with tens of thousands of people forcibly displaced from territories transferred between the two entities, to areas where their ethnicity constituted the majority.

In the aftermath of the war, the international community set out to establish a peaceful, multi-ethnic state, by stabilising the country militarily, by promoting the return of displaced people and by reforming national institutions. The DPA provided for a strong international presence including a NATO-led military force, and the Office of the High Representative to oversee the civil implementation of the DPA. Annex VII of the DPA, on refugees and internally displaced people, focused on the right of the displaced to return to their homes and reclaim their properties. It designated UNHCR as the lead implementing agency and provided for the creation of the Commission for Real Property Claims (taken over by the national government in 2004) to ensure the enforcement of property rights of the displaced.

More than a decade after the conflict, BiH has become relatively stable and safe. External military presence has diminished and the NATO and UN presence has been largely replaced by EU institutions. But while progress has been made in reforming institutions and prosecuting war criminals, BiH has as of 2008 still not managed to overcome its ethnic divisions. Designed primarily to end the conflict and associated atrocities, the DPA established a weak central state and two ethnically-based entities with considerable autonomy over their respective territories. By doing so, the DPA unintentionally contributed to consolidating ethnic division at the institutional level. The DPA is now proving to be an obstacle to further reconciliation and the building of a single state fit to develop and implement policies to benefit all citizens regardless of their ethnicity.

Generally speaking, authorities in Republika Srpska or Croat Cantons within the Federation favour a decentralised approach which they believe allows them to better defend the interest of their ethnic group and their autonomy. They therefore oppose any reinforcement of the central state power such as the reform of the constitution as shaped by the DPA, and harmonisation of certain national laws as required by the EU. As a result, constitutional reform and harmonisation of social legislation on education, health care and pension funds have so far failed, leading entitlements to services to vary according to people's place of residence. This has led displaced people to lose or gain entitlements upon their return.

The Office of the High Representative (OHR) is the strongest tool of external influence in BiH. In 1997, further to a conference of the Peace Implementation Council (PIC) held in Bonn, the OHR received binding powers to help overcome strong nationalist opposition to the implementation of the DPA. These powers included imposition of legislation and removal of elected officials. The use of the Bonn powers was essential in moving the return process forward. However, 12 years after the signature of the peace agreement, it is hardly compatible with the necessity to consolidate a democratic state fit to join the EU.

The failure of the OHR's attempts to avoid applying its executive powers and instead encourage national sovereignty have shown that Bosnia's politicians are still not ready to take full responsibility for the fate of their country (OSCE, 1 December 2006). National elections, both in 2002 and 2006, were dominated by ethnic considerations, and in 2006, the national parliament failed to enact a constitutional reform aimed at moving from a system based on ethnic representation to a system based on representation of citizens. The painful adoption of police reform in April 2008, required by the EU as a pre-condition to the signing of a Stabilisation and Association Agreement, illustrated the reluctance of the entities, in particular RS, to any transfer of responsibilities to the national government.

## **Displacement and return figures**

By June 2008, the number of IDPs estimated by UNHCR and the Ministry of Human Rights and Refugees (MHRR) had dropped from 1,200,000 to around 125,000 (UNHCR, June 2008 citing government figures), indicating that over one million refugees and IDPs had returned to their pre-war residence.

However, these figures are contested for various reasons. Many returns were assumed in cases where property was restituted to displaced owners. But many owners who repossessed their property did not return, and decided instead to rent or sell it. In addition, many returns were not sustainable and resulted in returnees going back to their place of displacement or relocating elsewhere, exercising their freedom of movement. These people are not deducted from the return figures. The absence of a thorough return monitoring process also adds to the difficulty of establishing accurate return figures. Exact figures for these movements would be extremely difficult to ascertain without a new census, the last one dating from 1991 (UNHCR, 17 December 2007).

The evolution of the situation is illustrated by government figures, which are used by UNHCR: Immediately after the end of the conflict there was a large-scale return of IDPs to areas where they constituted the ethnic majority. 164,700 IDPs returned during 1996 (UNHCR, 30 June 2008). As conditions were not conducive to the return of people to areas where their ethnic group was a minority, IDP returns slowed in 1997, as most majority returns had taken place. From 2000 to 2004, return figures increased dramatically following progress in property restitution and the improvement of security in return areas, before slowing to a residual flow averaging only 4,600 returns per year.

An IDP re-registration carried out in 2005 resulted in 180,000 applications for IDP status. This number was significantly lower than expected, partly because over 120,000 people who had either returned or integrated locally chose not to re-register (MHRR, fax May 2008; UNHCR, 15 April 2005). After processing IDP applications, the MHRR registered just under 125,000 IDPs from 40,600 families; 45 per cent were in FBiH, 54 per cent in RS and 1 per cent in Brcko District (MHRR, fax May 2008). Interestingly, most of those 40,600 families applied for reconstruction assistance, which is only provided to registered IDPs who have expressed their intention to return. However, it is difficult to gauge the extent to which applicants intend to return for the long term. Field monitoring by international agencies and civil society suggests that durable return will depend on greater efforts to put in place the conditions regarding livelihoods, access to social protection, unbiased education, and infrastructure to effectively lessen the impact of ethnic discrimination. Furthermore, the distribution of reconstruction assistance appears to not prioritise those most in need, in particular minority returnees (UNDP, July 2007; UNHCR, October 2007; UNHCR Sarajevo, email, May 2008).

By 2008, half of returnees had gone back to areas where they are in a minority situation, including a significant proportion to areas of RS and FBiH traditionally dominated by hardline nationalists, which were almost completely closed to return until 2002. In 2007 the highest number of minority returns took place in Prijedor, the Herzegovina-Neretva Canton and the Una-Sana Canton. Of the 4,500 returns in 2007, 3,900 were minority returns (UNHCR, 31 December 2007). However, most of these returns were to rural areas, where they hoped to sustain themselves off the land, and did not include the entire family. Many younger family members chose to remain in the towns and cities they had fled to, in large part due to the better economic and educational opportunities there (UNHCR, December 2007).

Most of the remaining registered IDPs have specific vulnerabilities due to their war experience or their current living conditions. Many would have to return to particularly difficult areas. For collective centre residents, elderly and sick people, female heads of household and traumatised individuals, return would need to be accompanied by specific support, ranging from

reconstruction, social and psychological assistance to income-generating activities, if their return were to be sustainable. For those who do not want to or cannot return, support to local integration in the place of displacement seems to be the most appropriate and durable solution.

Part of the displaced population is Roma, although it is not clear how many: there has never been a registration of Roma in BiH, nor of the Roma IDP population. The Roma population in general suffers from widespread discrimination in various sectors of public life. Their living conditions have deteriorated with displacement.

### **Obstacles to sustainable return**

The international response has focused almost exclusively on return and reconstruction in order to restore the multi-ethnic character of the country. This strategy has facilitated a significant number of returns to all areas of the country, but given the residual nature of the return process and the profile of those still displaced, other durable solutions such as local integration in the place of displacement and re-installation elsewhere should be considered.

The division of the populations has created an atmosphere by which many people report feeling more comfortable living among their ethnic group. The very difficult economic situation and high unemployment, which affect members of minority groups disproportionately (Vasa Prava, correspondence June 2008) make many returns unsustainable and force many returnees to leave again in search of better work opportunities, generally in towns and cities.

### **Differences in services and entitlements**

For people in displacement, having IDP status facilitates access to social services such as health care, pension and education. Since many returnees are pensioners, access to social services is essential. The lack of harmonised national legislation on social benefits such as health care, pensions, or compensation for civilian victims of war becomes a major obstacle to return if entitlements are lower in the area of return. This has convinced many IDPs not to return, while some of those who had returned chose to leave again. Others who did return have kept their registered residence in areas of displacement, in order to continue profiting from better social services, such as health care, education and pension funds, which are generally more advantageous in the FBiH than in RS.

### **Difficulties in rebuilding livelihoods**

Upon return, and after some initial assistance, people are left to their own devices and often struggle to make ends meet. As a result, most minority returnees live in rural areas where they barely make a subsistence living off the land. Limited access to employment has led many IDPs not to return to their pre-war community, and forced many returnees to go back to urban areas where they would belong to a majority group to find more job opportunities. Studies show that, while national unemployment is between 18 and 22 per cent, minority returnees are disproportionately affected with only ten per cent employed (Vasa Prava, correspondence June 2008). The situation is worse in rural areas where the official unemployment rate in rural areas was 40 per cent in 2007 and ethnic minorities complained of employment discrimination (USDOS, 11 March 2008). Laws aimed at increasing minority returnee representation in private and public sector employment are not being implemented (Vasa Prava, correspondence June 2007).

There are other disincentives to return. However, studies indicate that a considerable proportion of people, including minority returnees, feel relatively safe and consider the economic opportunities in an area more important than de-mining, police reform or persecution of war criminals (UNDP, 7 July 2007; ESI, 8 November 2007).

### **Ethnically-based differences in education**

Education remains a serious obstacle to minority returns. Numerous international organisations as well as the UN's Special Rapporteur on the Right to Education continue to express their concern about the fragmented education system, which promotes ethnic separation and fails to educate Bosnia's children in a spirit of nation-building and reconciliation (UNGA, 27 May 2008). According to OSCE, the education system is "in danger of becoming a security issue in itself because it is hindering the development of a stable and functional democratic state." (OSCE, cited in CoE, 20 February 2008).

Educational reforms, aiming at a stronger state involvement and a unified, egalitarian system, have met very strong resistance from the different constituent ethnicities. Attempts to harmonise curriculums nationally are still overshadowed by difficulties in implementation which continue to affect minority and displaced children. In practice, only a limited number of subjects such as maths and sciences are taught similarly throughout BiH. Subjects such as languages, history, geography and literature vary depending on the local ethnic majority, and the countries used as reference for such subjects are Croatia or Serbia rather than BiH. Textbooks on such subjects thus remain ethnically oriented (UNGA, 27 May 2008, pp. 63, 65). A 2002 "Interim Agreement on Accommodation of Specific Needs and Rights of Returnee Children" contributed in 2004 to increasing the number of minority returnee children attending school in their place of return. However, some parents prefer to send their children out of their catchment area to ensure that they follow a specific curriculum, and the practice of bussing children to majority areas has diminished but by no means disappeared (UNGA, 27 May 2008, para.68; Helsinki Monitor, February 2008). The phenomenon of "two schools under one roof" persists, by which children of different ethnicities share the same school but follow separate curriculums, with 54 such schools throughout the country.

### **Vulnerabilities of remaining IDPs**

The majority of remaining IDPs live in towns and cities. Some still live in government-funded or unofficial accommodation. According to the MHRR and national associations for refugees and IDPs, some 8,500 people or 3,100 families live in collective centres (MHRR, March 2008), enduring very difficult and inadequate living conditions and receiving only very limited social services. Because of the living conditions and the associated social isolation, many collective centre residents are affected by depression. Most of those IDPs are among the most vulnerable in BiH, and include female-headed households, elderly people, severely traumatised individuals such as witnesses to war crimes, and Roma people (CoE, 20 February 2008, par.64; MHRR, October 2007; UN CHR, 29 December 2005, par.30). This situation underlines the urgent need to develop a social protection system for all vulnerable people, including IDPs and returnees, to offer them decent living conditions (UNHCR, 17 December 2007).

Many of the remaining IDPs have also seen their return prospects hampered by the lack of reconstruction funds in specific areas, or by some level of government neglect (UNHCR, October 2007). Some people, especially members of female-headed households, widows and Roma, have never owned property or do not have the documents necessary to reclaim their property (UNCHR, 29 December 2005). UNHCR has, for the past years, increasingly focused on the most vulnerable, while at the same time seeing its operational capacities decrease despite its growing global responsibility to protect IDPs (UNHCR Appeal 2008-09, 1 December 2007). OHCHR closed its office in June 2007. With these developments indicating a reduced focus on IDP protection, a broader and more proactive approach towards residual displacement is needed.

### **National and international responses**

After years of supporting return through property restitution and reconstruction, a new focus of national and international response is needed if returns are to become sustainable and the needs of the remaining displaced population are to be addressed.

The response to internal displacement is based on Annex VII of the Dayton Peace Agreement (DPA), which focuses overwhelmingly on sustainable return and related rights such as property restitution or compensation. As for the international response, the DPA designates UNHCR as lead agency for the return of refugees and displaced people. At the national level, the Ministry for Human Rights and Refugees is responsible for coordinating return activities. Each entity has its own IDP-related ministry responsible for return and reintegration, while each of the ten cantons in the Federation and most of BiH's 164 municipalities have departments responsible for return.

A strategy to implement Annex VII was developed in 2003, focusing mainly on return and reconstruction, and the national and entity authorities officially took over the responsibility for return in 2004. As part of the strategy, a national return fund was established and the BiH State Commission for Refugees and Displaced Persons mandated to select return projects in municipalities, which the entities and the national government could finance.

By 2006 it became clear that the return process, although successful for a large majority of IDPs, was far from over. At the end of 2007 the MHRR, in collaboration with UNHCR and supported by the OHR, started to revise and update the strategy in a bid to end the outstanding problems of displacement. The new strategy, which is still being defined as of August 2008, aims to improve the situation of people still in displacement as well as the situation in return areas. Working groups considered for the first time the possibility of offering compensation for destroyed dwellings and resolving the housing situation, including through social housing, for vulnerable IDPs in collective centres who are unable or unwilling to return.

The mechanisms for compensation claims, while provided for in the Dayton Agreement, have never been functional because of the tremendous resources required and the fear of bringing a premature end to returns, thus consolidating the ethnic separation created by the war. For the same reasons, local integration is a very sensitive topic which explains why the various initiatives supporting solutions in the place of displacement for vulnerable groups are not given a high profile. In contrast, some nationalist political parties, particularly in RS and in the Croat part of FBiH, have supported the local integration of displaced people to limit their return and maintain their local ethnic majority. Large numbers of people have thus received land and construction assistance, particularly in Serb and Croat majority areas..

The strategy's revision process acknowledges that solutions other than return will need to be sought, in particular for vulnerable IDPs residing in collective centres, while returnees need more sustained support than they have thus far received. The working groups have covered the main obstacles to return or alternative solutions, including reconstruction of housing for return, restitution, infrastructure in return areas, health, social protection, education, security and economic opportunities. The reports are to be incorporated into a draft strategy to be presented, by Summer 2008, to the Council of Ministers, the Presidency and the Parliamentary Assembly of BiH for consideration and adoption (MHRR, October 2007; UNHCR, correspondence 2 May 2008).

In practice, the bulk of resources allocated to IDPs goes to support return (and reconstruction) to the detriment of other durable solutions. In 2008 the MHRR received \$25 million from the national government (its largest budget to date) and while a large proportion of these funds has been allocated for housing reconstruction, for the first time, funds have also been allocated to projects aiming at supporting sustainable return (MHRR, October 2007; Osblodenje, 15 April 2008).

In view of the obstacles to return faced by many IDPs, the difficult living conditions of those still displaced and the limited desire of many to return, the overwhelming focus on reconstruction is increasingly recognised as an incomplete approach to return, which requires a broader range of sustainability measures, as well as to securing solutions for those who cannot or do not want to return. More than 12 years after the war, it has become evident that the ethnic repartition resulting from the war cannot be completely undone. Many IDPs cannot or do not want to return and they should be able to make a free choice between returning, integrating locally or building new lives elsewhere, and receive support whatever their choice is. Such support is particularly needed in the case of IDPs living in collective centres, since they are the most vulnerable group for whom return is more difficult to envisage. Those people need tailored assistance to facilitate durable solutions.

Parallel to the revision of the Annex VII implementation, BiH authorities made a greater effort to improve the living conditions of the Roma population, which is still discriminated against on several levels, and which is assumed to constitute part of the remaining displaced population. Within the political system, several Roma focal points now exist, such as the Council for National Minorities within the Parliamentary Assembly of BiH, the Roma Council, and the Board for Roma within the Council of Ministers of BiH. In addition, there is a Roma NGO network, consisting of more than 40 NGOs. These organisations make different assessments of the number of Roma in BiH. Depending on the source, the Roma population varies between 40,000 and 80,000 (UNDP, 26 June 2006). In 2007, MHRR, in cooperation with the Roma Council and international organisations, developed action plans for employment, health and housing. Action plans were adopted by the BiH Council of Ministers in June 2008, which could pave the way for BiH's application to the "Decade of Roma Programme 2005-2015", aiming at improving the socio-economic status and social inclusion of Central and South-Eastern Europe's Roma populations, and facilitate access to EU pre-association funds for Roma issues (OSCE, 8 April 2008, [www.romadecade.org](http://www.romadecade.org)).

Despite the increasing financial engagement of EU institutions, international interest in BiH has generally been declining since 2000, and a certain "Balkan fatigue" appears to manifest itself among key states (Security Council Monitor, May 2008 update). But although the security in BiH has improved, the country is not yet stable, nor are all the needs of the returnees and displaced persons met. Ethnic radicalisation has not abated and is increasing in some areas, and the fact that it still stands in the way of necessary reforms indicates that international disengagement may still be premature (Security Council Monitor, May 2008 update).

As the Representative of the UN Secretary-General on the Human Rights of IDPs underlined during his visit to BiH in June 2008, there is a need for donors and international organisations to "address the persistent humanitarian needs of the displaced population, and the challenges of making return sustainable" (UN, press release, 20 June 2008). This supposes that targeted assistance is provided to the most vulnerable individuals who cannot or do not want to return and that reconstruction assistance for return is combined with projects supporting self-reliance of returnees.

Without this, indirect and low-lying discrimination and difficulties in accessing economic and social rights will continue to limit the sustainability of return. For the remaining displaced people, it could mean continued displacement and increased marginalisation. Therefore a broader analysis and understanding of the existing ethnic divide in BiH, including a review of the Annex VII goals, is necessary. A continuing focus on return as the only solution for the remaining vulnerable IDP population will only delay the moment when they can resume a life in dignity.



## CAUSES AND BACKGROUND

### Causes of displacement

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#### Displacement during the armed conflict (1992-1995)

- The most ethnically mixed country of former Yugoslavia was the worse affected by the break up of the Former Republic of Yugoslavia
- Most of current displaced and refugee population forced to leave in early months of the war (1992) by the Bosnian Serb forces
- In 1993, a new round of ethnic cleansing starts in Central Bosnia when Bosnian Croats turn against the Bosniaks (Muslims)
- At the end of the war 1.300 000 million persons were internally displaced by the conflict
- The pattern of systematic human rights abuses and displacement of minority population gave rise to a new concept: "ethnic cleansing"

#### UNHCR, 2001, p.218-219:

"The violent break-up of the Socialist Federal Republic of Yugoslavia, which began in June 1991 when Slovenia and Croatia both declared independence, resulted in the largest refugee crisis in Europe since the Second World War. [...] In 1992, the war spread to neighbouring Bosnia and Herzegovina, with even more devastating consequences. Bosnia and Herzegovina was the most ethnically mixed of all the republics of the former Yugoslavia. According to a 1991 Yugoslav population census, the three main groups in Bosnia and Herzegovina were Muslims (44 per cent) Serbs (31 per cent) and Croats (17 per cent). When Bosnia and Herzegovina declared its independence in March 1992, the government of Serbia, led by President Slobodan Milosevic, vowed to fight on behalf of the Serb minority population there.

Within days, Serbian paramilitary forces moved into the eastern part of the republic and began killing or expelling Muslim and Croat residents. At about the same time, Serb forces from the Yugoslav army took to the hills surrounding the Bosnian capital Sarajevo and began attacking it with artillery. By the end of April 1992, 95 per cent of the Muslim and Croat populations in the major towns and cities of eastern Bosnia had been forced from their homes and Sarajevo was under daily bombardment. By mid-June, Serb forces controlled two-thirds of Bosnia and Herzegovina and approximately one million people had fled their homes.

In the early stages of the war, Muslims and Croats in Bosnia and Herzegovina fought together against the Bosnian Serbs, but in early 1993, fighting broke out between Bosnian Croats and Bosnian Muslims. Another round of 'ethnic cleansing' began, this time in central Bosnia. Bosnian Croat forces, backed by Croatia, attempted to create an ethnically pure swathe of territory adjoining Croatia. Although tensions between them continued, fighting between Bosnian Croat forces and the mainly Muslim Bosnian government forces came to an end in March 1994, with the signing of the Washington Agreement and the creation of a Muslim–Croat Federation.

By the time the war ended in December 1995, over half the 4.4 million people of Bosnia and Herzegovina were displaced. An estimated 1.3 million were internally displaced and some 500,000 were refugees in neighbouring countries. In addition, around 700,000 had become refugees in Western Europe, of whom some 345,000 were in the Federal Republic of Germany."

**AI 19 March 1997, Part I:**

"The armed conflict in Bosnia-Herzegovina was characterized by gross human rights abuses as armed forces led by one nationality attempted to force other nationalities out of the disputed territory. Bosnian Serb and Yugoslav National Army (JNA) forces (early in the conflict) were responsible for most abuses, but Bosnian Croat forces, the Croatian Army which fought with them, and to a lesser extent, forces of the mainly Muslim Bosnian Army also perpetrated abuses. While there were both regional and chronological variations in the pattern of events, analysis of the abuses reveals deliberate policies of killing, physically expelling or causing "unwanted" civilian populations to leave.

Some of those people were taken away at gunpoint, but most fled to escape the gross human rights abuses which were being perpetrated around them. Many of those who left were forced to sign documents transferring their property to the municipality."

**AI 19 March 1997, Part I:**

"Early in the conflict the Bosnian Serb forces, Serbian paramilitaries and the JNA units that became the Bosnian Serb Army (VRS) typically used overwhelming military force to crush resistance and round up the civilian population. Tens of thousands of people were detained in concentration camps and mass prison compounds where torture and deliberate and arbitrary killings were everyday occurrences. Thousands of these detainees are still "missing". Many of those who survived detention were not allowed to return to their homes, but were handed over in prisoner exchanges. Civilians were often detained as hostages to be traded for prisoners of war or the bodies of dead soldiers.

Thousands of women were raped or sexually abused as part of the pattern of abuses aimed at expelling civilian populations. [...] The incidence of male rape is also under-reported because of the stigmatization which results from such violations. The large waves of expulsions and departures in the early months of the war were followed by a continual hemorrhage of the remaining minorities particularly from the Bosnian Serb-controlled region of northwest Bosnia. In many areas, members of minority nationalities had been reduced to a residual core long before the cease-fire of October 1995."

**Ethnic cleansing confronts humanitarian assistance to serious dilemma**

- Further to the request of the UN Secretary General, UNHCR accepts for the first time to assist IDPs in the midst of war.
- The absence of any strong political intervention of the international community to stop the conflict reduces humanitarian assistance to a "fig leaf" creating several dilemmas
- The "safe areas" which became open detention centres instead of safe haven illustrates the dramatic failure of the international community to act in a decisive way
- UN military forces were not given the adequate mandate nor logistic to make the "safe areas" secure
- In the absence of efficient demilitarization, the "safe areas" harboured national military forces which made them target of war
- Bosnian Serbs forces overran Srebrenica and Zepa in 1995 killing and displacing thousands of civilian IDPs. NATO reacted with a two week air campaign

**UNHCR, 2001, pp. 219-225:**

"These massive population movements and the extensive media coverage of the horrors of the war prompted one of the largest international relief operations ever mounted. In October 1991, in the midst of the population displacement taking place in Croatia, the Yugoslav authorities requested UNHCR's assistance. Then, in November, UN Secretary-General Javier Pérez de Cuéllar formally requested High Commissioner Sadako Ogata to consider lending her 'good offices' to bring relief to needy internally displaced people affected by the conflict and to coordinate humanitarian action in the region.[...] Following an investigative mission to the region, UNHCR accepted the role and officially took the lead in coordinating the humanitarian assistance of the UN system in the region in November 1991.[...] UNHCR set up relief operations in all the republics of the former Yugoslavia, but the organization faced its greatest challenges in Bosnia and Herzegovina. For the first time in its history, UNHCR coordinated—in the midst of an ongoing war—a large-scale relief operation to assist not only refugees and internally displaced people, but also hundreds of thousands of other war-affected civilians.[...]

Unable to agree on how to end the conflict, the international community focused much of its energy on supporting the humanitarian relief operation led by UNHCR. Governments offered large amounts of funding for the relief operation, but were able to find a consensus on little else. The humanitarian operation increasingly became a 'fig leaf' and the only visible response of the international community to the war. [...]

Another difficult choice which UNHCR had to make was whether or not to assist in evacuating vulnerable civilians. Initially, UNHCR resisted evacuating civilians, but as it became apparent that the alternative for many was detention camps where they were often beaten, raped, tortured or killed, the organization began evacuating civilians whose lives were under threat. Such evacuations, however, led to an outpouring of criticism that UNHCR was facilitating 'ethnic cleansing'.

In November 1992, High Commissioner Ogata described the predicament as follows: "In the context of a conflict which has as its very objective the displacement of people, we find ourselves confronted with a major dilemma. To what extent do we persuade people to remain where they are, when that could well jeopardize their lives and liberties? On the other hand, if we help them to move, do we not become an accomplice to 'ethnic cleansing'?"

The UNHCR Special Envoy for the former Yugoslavia, José-Maria Mendiluce, was even more blunt: 'We denounce ethnic cleansing', he said, 'but with thousands of women and children at risk who want desperately to be evacuated, it is my responsibility to help them, to save their lives. I cannot enter any philosophical or theoretical debate now . . .'

As 'ethnic cleansing' continued to produce waves of refugees and internally displaced people, the international community looked for new ways of protecting civilians to avoid the outflows. At the beginning of 1993, a critical situation developed in eastern

Bosnia, which had largely been emptied of non-Serbs, except for three small pockets of territory around Srebrenica, Zepa and Gorazde. These enclaves were crowded with Muslims, many of whom had fled there from the surrounding countryside. They were defended by poorly armed Bosnian government soldiers and surrounded by Bosnian Serb forces.[...] In April 1993 "after Bosnian Serb shelling had killed 56 people during a UNHCR-organized evacuation from Srebrenica, the Security Council adopted Resolution 819, declaring the enclave to be a UN-protected 'safe area' and, amongst other things, calling on UNPROFOR to increase its presence there. Three weeks later, the Security Council adopted Resolution 824, also declaring Sarajevo, Tuzla, Zepa, Gorazde and Bihac to be safe areas.

The safe areas were established without the consent of the parties to the conflict and without the provision of any credible military deterrent. Although the UN Secretary-General had warned that an additional 34,000 troops would be required 'to obtain deterrence through strength',

governments were not willing to provide this number of troops and the Security Council therefore adopted an alternative 'light option' in which only 7,500 peacekeepers were to be deployed for this task. UNPROFOR troops were permitted to use force only in self-defence, and not in defence of the civilians they had been sent to protect. This was eventually to prove entirely inadequate. As UN Secretary-General Kofi Annan later acknowledged, the areas designated by the UN Security Council as safe areas were in fact 'neither protected areas nor safe havens in the sense of international humanitarian law, nor safe areas in any militarily meaningful sense'.[...]

Since the safe areas contained not only civilians but also Bosnian government troops, the Bosnian Serb forces considered them to be legitimate targets in the war. They often shelled them and subjected them to sniper fire. On many occasions, attacks carried out by Bosnian Serb forces were in response to attacks made out of the safe areas by Bosnian government troops. The Bosnian Serb authorities denied the people living in the safe areas freedom of movement through Serb-controlled territory, and frequently prevented humanitarian organizations such as UNHCR from reaching them. The safe areas became crowded—predominantly Muslim—ghettos. While they provided some refuge for vulnerable civilians, they also became areas of confinement where civilians were trapped: in essence, open detention centres. Meanwhile, as the international community focused on the safe areas, little attention was given to the plight of any remaining non-Serbs living in Serb-held territory. As a result these people became even more vulnerable to 'ethnic cleansing'.[...]

On 11 July 1995, the Bosnian Serb army overran Srebrenica, taking hundreds of Dutch peacekeepers hostage and forcing some 40,000 people to flee. Meanwhile some 7,000 people, virtually all of them men or boys and virtually all Muslims, were killed by Bosnian Serb forces in the largest massacre in Europe since the Second World War. [...] Days after the fall of Srebrenica, Serb forces overran Zepa, another so-called safe area."

**UNHCR 1995a, Box 3.5:**

"After an intense round of diplomatic negotiations, NATO announced that it would launch intensive air strikes against the Bosnian Serb forces, should they advance upon the remaining safe areas, particularly Gorazde in the east of the country.

As the Secretary-General has acknowledged, the safe areas in Bosnia and Herzegovina are not only dangerous, but have also been drawn into the deadly logic of the war. 'What is happening now,' he observed in May 1995, 'is that certain safe areas are used by the two parties to the conflict to sustain their confrontation.' Established without the consent of the Bosnian Serbs, and used as military bases by the Bosnian government forces, the safe areas could even be said to provoke attacks on the residents and relief personnel they are intended to protect."

***For more information, see also:***

· ***"Final periodic report on the situation of human rights in the territory of the former Yugoslavia submitted by Mr. Tadeusz Mazowiecki, Special Rapporteur of the Commission on Human Rights, pursuant to paragraph 42 of Commission resolution 1995/89", 22 August 1995, paras. 67-93 [Internet]***

**More population displacement in 1996**

- Transfer of territory between the Muslim-Croat Federation and the Republika Srpska (mainly in Sarajevo) forced about 60,000 Serbs to leave for the Yugoslav Republic or various destinations in the Republika Srpska

- Remaining minorities evicted particularly in the Republika Srpska and in Croat-held areas

**USCR 1997, p. 170:**

"With the signing of the Dayton Peace Accords on December 14, 1995, the stage was set for the monumental task of implementing the agreement's provisions in Bosnia and Hercegovina [...] during 1996. By March, the North Atlantic Treaty Organization (NATO) had deployed most of its 60,000-troop "Implementation Force" (IFOR), which successfully separated the warring parties and began to provide the necessary security to edge the Bosnian cease-fire toward peace. On September 14, Bosnians went to the polls and elected national representatives without any major security incidents reported. Notwithstanding these noteworthy accomplishments, the implementation of major aspects of the peace agreement lagged far behind in 1996. Rather than uprooted persons being able to return to their original homes – a fundamental principle of the Dayton Peace Accords – displacements and "ethnic cleansing" continued during the year, accentuating the trend toward ethnic separation and away from the ideal of a single, multi-ethnic state enshrined in the Dayton Peace Accords."

More displacement induced by transfer of territory

**USCR 1997, pp. 172-173:**

"The transfer of territory between the Muslim-Croat Federation and the Republika Srpska and the ability of Muslims and Croats to govern jointly within the Federation posed the first critical challenges to the Dayton Peace Accords during 1996. Both issues came to a head in the cities of Sarajevo and Mostar between January and March.

Among the most contentious of the land transfers mandated by the Dayton Peace Accords was the return of five Serb-held suburbs around Sarajevo to Federation control by mid-March 1996. The Bosnian Serb authorities relinquished control of Grbavica, the last of the five suburbs, on March 19. But by the time of Sarajevo's reunification, some 62,000 Serb residents had left those suburbs for the Federal Republic of Yugoslavia and various destinations in the Republika Srpska. These included Srebrenica, Bratunac, Zvornik, Visegrad, and Rogatica – areas which had Muslim majorities before the war but since had been "ethnically cleansed." Only about 8,000 Serbs chose to remain in the five formerly Serb-held suburbs after they reverted to the control of the Bosnian government.

In the weeks and days preceding and directly following its transfer, Serb-held Sarajevo degenerated into a state of lawlessness, characterized by widespread terror, looting, and arson. Serbs who decided to remain in their Sarajevo homes were subject to systematic intimidation, first from Serb nationalists determined to prevent peaceful coexistence between Bosnia's ethnic groups, and second by extremists among the Muslim returnees to the suburbs who harassed them and looted their houses with impunity once the Bosnian government authorities had resumed control. These events, said NATO's Secretary General, Javier Solana, represented a 'terrible blow to our vision of a multi-ethnic Bosnia.'

[...]

Displacements resulting from the transfer of territory elsewhere in Bosnia foreshadowed the considerably larger exodus of Sarajevo's Serb communities. In January, some 7,000 Bosnian Serbs abandoned their homes in and around Odzak in northern Bosnia before the area reverted to Federation control. An additional 2,500 Serb residents of the south-central Bosnian town of Borci left their homes for Visegrad in the Republika Srpska. As in Sarajevo, widespread looting and burning took place in these and other areas that were transferred from one side to the other."

Continued Ethnic Cleansing

**USCR 1997, p. 174:**

"As members of Bosnia's rival groups strongly, and sometimes violently, opposed the return of minority refugees and internally displaced persons in 1996, so too were they intolerant of minorities who remained in their midst. Extremists and advocates of ethnic purity, particularly in the Republika Srpska and Croat-held territory, continued to "cleanse" their communities of undesired minorities who remained."

## **Background**

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### **The Dayton Agreement consolidates the cease-fire, September-December 1995**

- In 1995, a new wave of ethnic cleansing, massacre and changes on the military ground led to a peace treaty: the Dayton peace agreement
- Bosnia and Herzegovina continued as a sovereign state comprising two entities: The Federation of Bosnia-Herzegovina (a Bosniac -Croat Federation) and the Republika Srpska (Serbian Republic)
- Agreement provided for a strong NATO peace implementation force (IFOR) (later the peace stabilization force (SFOR)), together with a civilian office of the high representative (OHR).

**UNHCR, 2001, pp.228-229:**

"In early 1995, there was a new wave of 'ethnic cleansing' by the Bosnian Serbs in western Bosnia, particularly in the Banja Luka area, which the UNHCR spokesman at the time labelled the Bosnian 'heart of darkness'. In May, the United Nations' credibility in Bosnia and Herzegovina was further tarnished when hundreds of UNPROFOR soldiers were taken hostage by the Bosnian Serbs following airstrikes carried out by NATO at UNPROFOR's request. Some of the hostages were chained by the Bosnian Serbs to potential air-strike targets as 'human shields', and television images of them were broadcast across the world. Then in mid-1995 a number of events dramatically changed the dynamics of the war. In July, the Bosnian Serb army overran the safe areas of Srebrenica and Zepa. In early August, the Croatian army launched 'Operation Storm', a massive military offensive involving more than 100,000 troops, in which it overran all Serb-controlled areas in the western and southern Krajina region of Croatia. As a result, some 200,000 Serb civilians fled, the majority of them going to the Federal Republic of Yugoslavia, while smaller numbers remained in Serb-controlled parts of Bosnia and Herzegovina. Then, on 28 August 1995, Bosnian Serb forces fired a shell into a busy market place in Sarajevo, killing 37 people and injuring dozens more.

NATO responded by launching a two-week intensive air campaign against Bosnian Serb targets. Bolstered by the air strikes, Croatian and Bosnian government forces mounted a joint offensive in Bosnia and Herzegovina to recapture Serb-held territory, taking back a third of the territory held by Bosnian Serb forces. Aware that they were losing territory by the day, Bosnian Serb officials accepted a ceasefire and agreed to attend peace talks in Dayton, Ohio. The Dayton Peace Agreement which resulted from these talks was signed in Paris on 14 December 1995 by the presidents of the Republic of Bosnia and Herzegovina, the Republic of Croatia, and the Federal Republic of Yugoslavia."

**Stubbs 1998, p. 192:**

"A cease-fire was called in September 1995. A general framework agreement (the 'Dayton Agreement') was signed in Dayton, USA on 21 November 1995 and subsequently in Paris, France by the presidents of Bosnia-Herzegovina, Croatia and Serbia.

The Dayton Agreement secured the continuation of Bosnia-Herzegovina as a sovereign state within internationally recognized borders, but gave this state and its revolving presidency only limited powers. De facto, most power resides in the two entities that make up the state: the Federation of Bosnia-Herzegovina, which controls 51 per cent of the territory, effectively a Bosniac–Croat federation that is further divided along ethnic lines at the cantonal and municipal levels; and Republika Srpska (the Serbian Republic), which controls 49 per cent, itself increasingly split between the western part loyal to Republika Srpska President Plavsic, and the eastern part loyal to Bosnian presidency member Krajišnik and, ultimately, to indicted war criminal Karadzic. The two entities are divided by an inter-entity boundary line (IEBL), which, on the whole, runs along the cease-fire line. In places, this is a highly visible line with the Dayton Agreement securing demilitarized 'zones of separation'; in others it is virtually invisible. Two significant territorial exchanges were agreed: Sarajevo became reunified within the federation, and Mrkonjic Grad and its surrounding areas were handed over to Republika Srpska. The strategically important town of Brcko remained Serb-held pending final arbitration [...]. The Dayton Agreement provided for a strong NATO peace implementation force (IFOR), which later became the peace stabilization force (SFOR), together with a civilian office of the high representative (OHR)."

***For the full text of the Dayton Agreement, see "[General Framework Agreement for Peace](#)" (Office of the High Representative Website) [Internet].***

### **The paradoxical role of the High Representative (2008)**

- · The High Representative is an unelected representative of the international community who has derogative powers over national decisions
- · Since the 1997 Bonn Conference, the High Representative has the power to impose compelling decisions and to remove persons from office in order to facilitate the implementation of the Dayton Agreement
- · At the same time, the High Representative should promote democratic values and the political independence of BiH

**OHR, 13 May 2008:**

#### **XIX Future of OHR**

74. [...] The 26-27 February [2008] meeting of the Peace Implementation Council's Steering Board determined that OHR should remain in place and continue to carry out its mandate under the Dayton Peace Agreement until such time as the domestic authorities fulfill five specific objectives and two general conditions prevail. (See Annex below) This shift to an objective-driven road map towards OHR's closure should accelerate the reform process, inculcate domestic ownership, and diminish uncertainty about the future. OHR can and will close as soon as these benchmarks and conditions are met.

The five objectives are:

- Resolution of State Property
- Resolution of Defence Property
- Completion of the Brcko Final Award
- Fiscal Sustainability of the State

- Entrenchment of the Rule of Law

In addition, the two conditions are that:

- The SAA must be signed
- There must be a positive assessment of the situation in BiH by the PIC.

***The Mandate of the OHR (OHR Website):***

***[http://www.ohr.int/ohr-info/gen-info/default.asp?content\\_id=38612](http://www.ohr.int/ohr-info/gen-info/default.asp?content_id=38612)***

***The Dayton Peace Agreement (DPA) provides for the post of a High Representative (Annex X). The High Representative is responsible for the civilian implementation of the DPA.***

**OHR, General information, December 2004:**

Among the most important milestones in the peace implementation process was the PIC Conference in Bonn in December 1997. Elaborating on Annex 10 of the Dayton Peace Agreement, the PIC requested the High Representative to remove from office public officials who violate legal commitments and the Dayton Peace Agreement, and to impose laws as he sees fit if Bosnia and Herzegovina's legislative bodies fail to do so.

Nonetheless, the governing principle of the OHR's engagement in Bosnia and Herzegovina is the concept of domestic responsibility. This concept calls on the officials and citizens of Bosnia and Herzegovina to take responsibility for the peace process and the problems that their country faces.

In February 2002, the European Union's General Affairs Council (GAC) appointed the High Representative the EU's Special Representative in BiH. The High Representative maintains an overview of the whole range of activities in the field of the Rule of Law, including the EUPM, the IPTF follow on mission. In this context, the High Representative provides advice to the EU Secretary General/High Representative and the Commission itself.

**Marianne Ducasse-Rogier, Helsinki Monitor, December 2004:**

The ambiguity enshrined in the Dayton agreement, coupled with the complex institutional structure described above, fed an ever-growing dependency towards international organizations. [...]. However, the dependency syndrome that subsequently materialized was probably not foreseen at the time of the Dayton negotiations and resulted more from the subsequent inability of local actors to implement the reforms that would ensure Bosnia's stability and prosperity. [...] This local obstructionism compelled international actors to become always more involved in Bosnia in order to compensate for the national authorities' inaction. This in turn would lead to sustained dependency as local leaders became used to resting on the shoulders of international staff, while they would themselves spend most of their time criticizing the international community or reviving nationalism.

**Christophe Solioz, HM, January 2003:**

The problem in Bosnia and Herzegovina is the simultaneous intervention of the international community and the affirmation of a new state. It is, in effect, not one of the slightest paradoxes in the transition process in Bosnia and Herzegovina that outside intervention, which has as its declared objective the establishment of an autonomous state, is also simultaneously the origin of reforms, with the negative consequence of limiting or marginalizing the sovereignty of the state and the responsibility of the politicians of the designated state. [...]. [T]he future of this country



lies in its capacity to adapt the transition and democratization processes (in some respects, both of which are already well on their way), the central aims being the restoration of the state and the reinforcement of its institutions. [...]

While [the High Representative] must check that the entities act in the interests of the country and that they fulfil their obligations and commitments, he must at the same time, progressively strengthen the state-controlled institutions in order to counter centrifugal forces, to reinforce the official recognition of the state and most importantly, to carry out his primary duty to establish a viable state.

***The Office of the High Representative has the paradoxical task to enforce Dayton through the use of extended coercive powers while at the same time trying to promote ownership of reforms with Bosnian authorities and people. The new role of the High Representative as EU Special Representative (EUSR) provides him with a critical role in the strengthening process of the state required by the EU for future accession.***

### **The former High Representative promised to reduce the use of Bonn powers (2006)**

- Christian Schwarz-Schilling announces phasing out of OHR
- Use of Bonn powers will be limited to maintain peace and cooperation with the ICTY
- Non intervention of the High Representative will allow Bosnian authorities to take full responsibilities for their decisions

***Christian Schwarz-Schilling succeeded to Paddy Ashdown on 31 January 2006 as High Representative***

#### **OHR, 16 March 2006:**

“Role of the OHR

The political and administrative strategy for phasing out the OHR is now moving to a timely conclusion. Four years ago the organization had more than 800 members of staff. Today that number is just over 300. Four years ago the use of the Bonn Powers was still generally viewed as an integral and indispensable element in the effort to make the BiH political system work. This is manifestly no longer the case.

I have made it clear that I will use the Bonn Powers without hesitation should this be necessary to maintain peace and stability or to further BiH's cooperation with the ICTY.

I have made it equally clear that I will not use the Bonn Powers for anything else.

Let me take this opportunity to reiterate this commitment. The days when OHR micromanaged the political process in BiH by using – or simply by threatening to use – the Bonn Powers are over.”

#### **OHR, 24 May 2006:**

“It is an honour to be here to build on the work of my distinguished predecessors. But they were working in different times, with different circumstances and different challenges. Now we have reached a new phase of transition and ownership. And so my job today, as High Representative and EU Special Representative, must reflect that.

I made it clear on day one when I addressed the citizens of Bosnia and Herzegovina that I have come to assist, advise and advocate. I have kept that promise.

I will not take decisions for those who do not have the courage to take them – this is a democracy, and Parliament must make up its own mind;  
I will not intervene every time the authorities fail to take up their responsibilities;  
In short, I will not do the jobs that the institutions and elected leaders of this country must do.  
Transition and ownership means the transfer of full responsibilities to the institutions of this country. This will enable Bosnia and Herzegovina to become a 'normal' European country. What does that mean in practice? It means that we, in the International Community, will engage actively and assist constructively. But we will not intervene when there are mistakes, and we will not run this country for you. And it means that you, the people and politicians of Bosnia and Herzegovina, must decide on the path you want to take to a better future."

**OHR, 18 April 2006:**

"In the general elections in October, the Bosnian people will for the first time vote for leaders who will have full responsibility for governing their own country. There will in future be no safety net from the International Community to step in when there are problems. This is how democracy gives ownership to the voters of Bosnia and Herzegovina."

**OHR, 16 March 2006:**

"The electorate will no longer have the option of calculating that, for example, this candidate is known to me, through TV or perhaps even in person; I don't have complete confidence in the candidate's integrity or competence, but I like the style – and if there is any misbehavior in office, well the foreigners will make sure that the damage is limited."

***On the Bonn powers and the development of a functioning state:***

***Bosnia, 10 years after, Transitions online, 22 November 2005***

***On the closure of the Office of the High Representative:***

***Bosnian peace overseer post to close in mid-2007, Reuters Foundation, 23 June 2006***

***Weekly column by Christian Schwarz-Schilling, High Representative for BiH, "Less is more", OHR, 21 July 2006***

**Nationalist obstruction lead successive High Representatives to make strong interventions on the political scene, 1999-2002**

- Nationalistic forces dominated the political scene until the General Elections of November 2000 requiring frequent use by the High Representative of the "Bonn powers" to protect the implementation of the Dayton peace agreement
- The victory of moderate parties in the 2000 elections raised hopes that Bosnian authorities were ready to assume stronger ownership in political affairs
- BiH's is established as a state, with normalised relations with neighbouring countries, and membership of the Council of Europe as of April 2002.
- Threats against Dayton continue with the establishment of an agreement between Republika Srpska and the Former Republic of Yugoslavia (FRY), and attempts by Bosnian Croats to create a third entity.
- October 2002 general elections show mixed results
- The votes of returnees and potential returnees, voting in absentia, have begun to affect politics locally

***In 1997 the Peace Implementation Council (PIC) meeting for its annual meeting in Bonn, requested the High Representative to take decisive action in order to overcome obstruction to the implementation of Dayton. According to these new "Bonn powers", the High Representative could impose compelling decisions and remove from public office officials violating legal commitments and Dayton (even in the case of elected officials).***

***Assessment of political developments by the High Representative (August 1999-May 2002)  
OHR 14 May 2002, sect. II:***

"In general, I would divide my three-year term as High Representative into two parts. The first part, which lasted for about a year and a half, was marked by robust, intensive, and above all, direct engagement in all aspects of political life in BiH. During that period, I had to remove –under my GFAP Annex 10 powers- around 70 politicians, among them the Croat member of the BiH Presidency, a cantonal governor, several ministers and a number of mayors, for obstruction of the peace implementation process. Because of persistent nationalist obstruction of essential legislation in the BiH Parliament, I had to impose laws on a wide range of issues, necessary for strengthening the State institutions, sustaining returns and reforming the economy.

The second part of my term was marked by efforts to establish partnership with the non-nationalist forces that came to power after the elections of November 2000, and to show them that they, too, are responsible for the future of BiH. During this second phase, BiH made significant strides towards a progressive transfer of ownership to its citizens and institutions. Politicians in BiH are now more capable of independent problem-solving and decision-making, as demonstrated by the passage of the Election Law in August 2001 and, above all, the negotiations on Entity constitutional reform which culminated in the 27 March 2002 Mrakovica-Sarajevo Agreement. [...] The Council of Europe (CoE) provided important recognition of BiH's progress when it granted the country full membership on 24 April 2002.

Developments such as CoE accession highlight the fact that BiH statehood is no longer at issue. Although its citizens sometimes still have difficulty viewing their country with pride and confidence, this will change as the IC's institution-building efforts begin to bear fruit and the State begins to deliver benefits. Also, since the establishment of democratic regimes in Croatia and the Federal Republic of Yugoslavia (FRY), the country is no longer under any serious external political or military threat. In this regard, the last year has been characterized by a series of events including the exchange of ambassadors between BiH and FRY and a number of high-level parliamentary visits from both FRY and Croatia.

As said in my 19th Report, the Republika Srpska (RS) and FRY signed an Agreement on Special Parallel Relations (SPR) on 5 March 2001. Although the concept of "special" relations between an Entity and a neighboring country is an outdated concept, such an agreement is a right of the Entities, in conformity with the General Framework Agreement for Peace in BiH (GFAP). Nevertheless, I ensured that the agreement's text and spirit fully respect BiH's sovereignty and territorial integrity. My Office has a supervisory role in the agreement's implementation and is involved in the drafting of its annexes. Moreover, I insist with the governments of neighbouring countries -and with those in BiH at State and Entity level- to concentrate on state-to-state relations.

The overall positive developments in the region influenced the results of the November 2000 Elections and had major impact on the nationalist parties of BiH. Still, during my mandate it was necessary to face down religious and nationalist intolerance, most blatantly over the Croat declaration of 'self-rule' on 3 March 2001. [...] Because of this declaration, I had to remove Ante Jelavic, the Croat member of the BiH Presidency and President of the nationalist HDZ party, from his positions, for personally leading this violation of the constitutional order. In April that same year, I appointed a Provisional Administrator for Hercegovacka Banka, which acted as the

financial backbone of the HDZ-led illegal parallel structures. The investigation into this bank is continuing and, in April 2002, I decided to extend the term of the Provisional Administrator for another year.

The hard-line leadership's failure to establish the Third Entity has led to a crisis in the HDZ. At first, Jelavic and his cohorts refused to step down from their leadership positions in the party, even though that meant they could not register for the 5 October 2002 elections. But, as of 4 May, Jelavic and his associates resigned. Although I welcome the resignations as a sign that the majority of HDZ members realize that the pursuit of a Third Entity is a dead-end, it is too early to say whether or not the party will undergo a true process of democratization.

Change is also taking place among the nationalist elements in the RS. Although the Serb members of the BiH Parliamentary Assembly still often obstruct legislation and slow down efforts to strengthen the State and enhance its competencies, there have been some welcome signs of shifting attitudes. On 12 December 2000, in my presence, the SDS leadership endorsed Dayton, along with all previous PIC Declarations, and committed the party to full cooperation with the IC. Although they have not fulfilled all these commitments, there has been significant improvement, and in December 2001 they barred indicted war criminals from membership in the party. They also participated actively in the 2002 constitutional reform process, and accepted the Mrakovica-Sarajevo Agreement, including the provision that positions in the RS government, legislature, and judiciary must be given to Bosniacs and Croats. Such a development would have been difficult to imagine when I took on the role of High Representative in August 1999."

**UNHCR 28 February 2001, p. 4:**

"Nationalist local officials have continually set up obstacles to the return of the displaced since the signing of the Dayton Peace Agreement in 1995. The appointment of the new moderate government has been hailed by international observers as a development which should contribute to the country's progress in accelerating the return of refugees and displaced people."

**Results of the October 2002 general elections (2002)**

- Nationalist parties gain in strength, although not as strongly as the media generally suggest
- Low voter turnout is "as much a vote against politics-as-normal as for nationalism"

***On 5 October 2002, general elections awarded four-year mandates to the Presidency of BiH, the House of Representatives of the Parliamentary Assembly of BiH, the House of Representatives of the Parliament of the Federation of BiH (Federation), the President and Vice Presidents of the Republika Srpska (RS), the National Assembly of the RS, and ten Cantonal Assemblies in the Federation, as well as a two-year mandate for the Municipal Council of I epce. Representatives of the nationalist SDA, SDS, and the HDZ, won the Bosniac, Serb, and Croat seats in the three-member BiH Presidency. At the State level, and in the elections for the Entity parliaments, the HDZ and SDS saw their vote drop slightly, while the SDA increased its vote by five percentage points. The SDP, which was the central party in the Alliance that had governed at State and Federation level, lost the biggest share of votes when it dropped from 27.3% to 16.2%.***

**ICG 13 December 2002, executive summary:**

"[The results of Bosnia's fourth post-war general elections on 5 October 2002] were widely interpreted by the international media and some of the domestic press as an unalloyed victory for the nationalist parties that made and fought the war – and had done their worst since to preserve its spoils, including the homogenisation achieved by 'ethnic cleansing'. The outcome was seen as

an ominous setback for efforts to put the complex multinational state recreated in Dayton on the path to stability, legitimacy, prosperity and European integration.

The Cassandras overlooked several factors. Not only did support for two of the three nationalist parties, the Croatian Democratic Union (HDZ) and Serb Democratic Party (SDS), decline, but the latter faced its most serious challenge to date from the moderate Alliance of Independent Social Democrats (SNSD). This was sufficient to undermine its longstanding claim to be the natural party of government in 'its' entity, Republika Srpska (RS). Moreover, the votes of returnees and potential returnees, voting in absentia, have begun to affect politics, permitting Federation-based parties to claim 17 per cent of the seats in the RS National Assembly in the October elections.

The media also failed to consider that the biggest losers, the multinational Social Democratic Party (SDP) that had led the 'Alliance for Change' in the Federation and on the state level, may have done most to contrive their own defeat. In any case, the low turnout (55 per cent) was as much a vote against politics-as-normal as for nationalism."

#### **Political crisis in RS as a result of High Representative's plan to strengthen BiH's security institutions and to address RS's lack of cooperation with the ICTY (2004)**

- NATO's refusal to admit BiH in the Alliance's Partnership for Peace because of RS's lack of cooperation with the ICTY triggers strong reaction from the High Representative
- The High Representative removes 9 RS officials believed to have supported war criminals
- RS Prime Minister is instructed to study the documentation produced by the Srebrenica commission to identify and sanction those involved in the events
- Entity Ministry of Defense (MoD) must transfer its competence to the State MoD
- HR decision provokes a series of resignations in the RS and a debate on Dayton's institutions

#### **OHR, 16 December 2004:**

"The High Representative today announced the start of a process designed to address the systemic weaknesses in BiH's law enforcement and security institutions. This follows last week's announcement by NATO foreign ministers that for the second time running BiH has failed to make progress in its efforts to join the Alliance's Partnership for Peace as a result of the continued failure of Republika Srpska's authorities to comply fully with the ICTY.

We are here today because yet again NATO has given this country a "No" to [Partnership for Peace] PFP membership because of its continued lack of co-operation with The Hague," said the High Representative. The recent press reports of the RS Army continuing to employ Ratko Mladic until 2002, and VRS soldiers harbouring him in Han Pijesak in June-July 2004 were "shocking examples of the RS's institutional complicity in the evasion of justice of ICTY fugitives." He explained that today's measures will remove individuals involved with helping war criminals and their networks, and begin to address the systemic weaknesses of the RS's security institutions. This process will run into the spring of next year.

The measures include:

- The removal of 9 officials believed to have helped war criminals and their networks.
- The blocking of bank accounts of individuals for the same reasons.
- An instruction to RS Prime Minister Dragan Mikerevic to set up a group under the supervision of the EU Police Mission to study documentation produced by the Srebrenica Commission and identify those officials whose names appear in connection to the events of July 1995. The work of this commission should be complete by the end of February 2005 when a

decision will be taken on further action, including if needed criminal prosecutions and suspensions.

- A request to BiH Defence Minister Radovanovic to investigate the assistance given by some in the RS Army to fugitives at large and to suggest concrete measures to prevent this happening again.

- An acceleration of Defence Reform. Functions currently carried out by the Entity Ministry of Defence's (MoD) must be transferred to the State MoD, and the Entity MoD's closed down. This process should be complete by the autumn of next year.

- The creation of a single system of policing as recommended by the Police Restructuring Commission, in accordance with the EC criteria laid out in its Feasibility Study. These reforms should also be adopted early next year.

- An amendment of the RS Law on Auditing to the payment provisions in the RS Law on Auditing and Public Sector of Republika Srpska to ensure tht it will be possible to fund special audits of key companies in coming months and years. Six companies have already been identified. These are RS Telekom, RS Post, Elektroprivreda RS, RS Railways, Oil Refinery Brod, RS Post and Srpske Sume.

- An amendment to the BiH and Entity Criminal Codes to require all family members except the spouses, parents and children of the accused to co-operate with police investigations and to give evidence in war crimes trials.

If BiH fails to qualify for a third time for PFP then the High Representative said that he will not hesitate to take further measures that deal "directly and powerfully" with the assets and institutions of the RS. "I can tell you now, no options are currently ruled out if it comes to this," said the High Representative."

#### **CoE, 4 February 2005, par.5:**

"[Further to the High Representative's decision, a] cascade of resignations followed in the second half of December 2004 by Bosnian Serb political leaders and members of the PDP, including the RS Prime Minister and the BiH Minister of Foreign Affairs; Mr Pero Bukejlovic was nominated RS-Premier designate on 8 January 2005 and given 40 days to form a government."

#### **CoE, 4 February 2005 par.43:**

"These measures by the High Representative were the subject of very strong reactions by the highest officials in the Republic of Serbia (President, Prime Minister and Parliament Speaker) who warned against the risk to jeopardise the political stability in BiH and in the entire region. However, during his official visit to Belgrade in early January 2005, the High Representative received assurances from the Prime Minister of Serbia that he would actively and energetically support Banja Luka in the process of cooperating with The Hague and meet its international obligations. Serbian President Boris Tadic and the High Representative agreed that the issue of co-operation with The Hague was holding up the European future of countries throughout the region and that in this sense intensive and concrete co-operation was needed. They also agreed that it was unacceptable to change the Dayton Agreement and the constitutional arrangements of BiH without the consensus of all three constituent peoples/nationalities."

**Parliament and Presidency elections October 2006: consolidation of ethnic divide, which may consolidate in 2008 (2008)**

- The 2006 elections were the first ones fully under the responsibility of the BiH authorities. While international aid was important during and directly after the war, it has created dependency in BiH.
- Ethnic considerations prevailed again in electoral campaign and the choice of representatives and the three Presidents.
- Municipal elections in October 2008 may consolidate the new ethnic map of the country, as people may choose not to cast their ballots in their original place of residence where they use to be minorities.

#### **CoE, 7 February 2007:**

20. As outlined above, the Parliament and Presidency Elections of 1 October 2006 were the first to be organised under the full responsibility of the BiH authorities and were marked by the absence of violence and/or disorder. In a widely publicised statement, the joint PACE/ODIHR election monitoring mission declared that *“the manner in which the elections were held generally is in accordance with international standards”*, paid tribute to the BiH authorities and in particular to the Central Election Commission, but recalled that in some important aspects the elections themselves violated Protocol No. 12 of the ECHR.

21. However, some concerns for future elections remain. The communication infrastructure between the Local, Regional and Central Electoral Commissions needs to be modernised, in order to allow for publication of the final election results within a few days. The heavy slant of the Electoral Commissions, at all levels, towards political partisanship needs to be revised, notably by including more professional politically non-aligned persons.

#### **OSCE, 1 December 2006:**

One reason for this slowing pace over the past year may well have been the looming possibility of both a change in governments and in political power in the country. On October 1, Bosnia and Herzegovina held general elections. Their results have at a minimum left some foreign observers – or at least the author of this report – with a somewhat obscured view of the present political landscape. Although the traditional governing parties of the post-war era – generally if somewhat inaccurately described as “nationalist parties” – did not fare particularly well, the political campaign nevertheless focused on the same issues as previous campaigns had done – that is, on the “national” issues of Bosnia and Herzegovina’s three “constituent peoples” and on who could best defend them. The beneficiaries this time around were parties not so long ago considered “moderate,” such as Alliance of Independent Social Democrats and the Party for Bosnia and Herzegovina. But moderation may not be exactly the right term to characterize the campaign that preceded the vote.

The Prime Minister of the Republika Srpska, Milorad Dodik, who is also the president of the Alliance of Independent Social Democrats, set the tone for the election campaign from the outset. (He and his party had replaced the Serbian Democratic Party-led government in the Republika Srpska at the beginning of the year.) Dodik repeatedly raised the possibility of a referendum on the secession of the Republika Srpska. He and his supporters claimed they were simply responding to calls from others, and especially from the Party for Bosnia and Herzegovina, for the abolition of the entities created under the Dayton Agreement. (It is perhaps one of the small ironies of Bosnia and Herzegovina’s post-war history that the greatest detractors of the Dayton Agreement when it was first signed – in the main, Serbs – are now its greatest defenders.) The campaign revealed, if nothing else, the power, for better or worse, of elections to shape or reshape the political agenda of the day. The effects linger on long after the polls have closed.

The elections themselves, however, went well. The Election Observation Mission of the OSCE’s Office for Democratic Institutions and Human Rights described them as “generally in line with

international standards and democratic elections.” More than fifty-four percent of registered voters went to the polls, an increase over the last, municipal elections in 2004. The steady decline in voter participation since the first post-war elections seemed to have – for the moment at least – been stemmed.

Among the office-holders chosen were Bosnia and Herzegovina’s three presidents. (The presidency rotates every eight months among them.)

**OHR, 13 May 2008:**

8. With the police reform laws adopted and the SAA due to be signed in fairly short order, a key factor will be the degree to which the SAA will improve the political atmosphere and re-start reforms. But inter-party and inter-communal tensions remain fraught, especially as 2008 is an election year. The run-up to the municipal elections in October will spotlight the extent to which the effects of wartime “ethnic cleansing” endure. The likelihood that ever fewer voters will choose to cast their ballots in the towns and villages in which they lived before the war also means that fewer members of “minority” communities will win seats on municipal councils. Given its moral and symbolic significance for Bosniaks, Srebrenica will be a particular flashpoint. Demands are already being heard that the town should have a special electoral regime that would guarantee seats and a share in power for Bosniak councillors.

**Beyond Dayton: Reinforce state-level institutions to go beyond the ethnically based entities created by the agreement, 2008**

- Dayton agreement reached its main goal which was to put an end to the conflict
- The Constitution included in the agreement reflected the weak consensus over a BiH state and the strength of the partisans of ethnic division
- Dayton created a state with weak competencies and gave wide powers to two entities divided along ethnic lines
- Strong opposition to Dayton and the reform process lead the High Representative to increase its involvement in several areas of political and civil life
- The international community is now trying to reinforce state competencies to counter-balance the nationalist influence of the entities and prepare its exit strategy
- The period after the 2006 elections is marked by political stalemate regarding the restructuring of state institutions, with no common vision on how to move forward

**RFE/RL, 17 October 2004**

The Dayton agreement unquestionably served its immediate purpose of ending the fighting in Bosnia-Herzegovina and preventing a resumption of hostilities. In the past few years, however, a debate has ensued both in Bosnia and abroad over the allegedly dysfunctional nature of the constitutional system set down in the treaty.

It provided for a loose central authority over two separate “entities,” the Muslim-Croat Federation and the Republika Srpska. The federation is further divided into 10 cantons, which are more or less ethnically based. In addition to the two entities there is the internationally run district of Brcko, which was the one part of Bosnia that proved impossible for all concerned to agree on at the Dayton conference or even later.

Throughout Bosnia, political power at most all levels is carefully divided according to ethnic criteria. This nationally oriented approach is reinforced by the fact that most elected officials, at



least since the 2002 general elections, come primarily, if not exclusively, from the three main nationalist parties. They are the Muslim Party of Democratic Action (SDA), which was long linked to the name of the late President Alija Izetbegovic; the Serbian Democratic Party (SDS), which was formerly headed by wartime leader and indicted war criminal Radovan Karadzic; and the Croatian Democratic Community (HDZ), which was an offshoot of the Croatian party of the same name, particularly until the death of President Franjo Tudjman in late 1999.

**Helsinki Monitor, December 2004:**

[T]he problematic “divided” nature of the Bosnian state does not refer to the mere existence of two entities, but to the ethno-territorial principle which is at the basis of that division. By “ethno-territorialism” is meant the establishment of a link between a given community (or “ethnic group”) and a specific territory. That linkage, which is unprecedented in Bosnia and Herzegovina’s history, is the direct translation into political terms of the results of ethnic cleansing carried out during the conflict. But ethno-territorialism is also enshrined in the Dayton agreement and derives in particular from two aspects of the Constitution: the perpetuation of the name “Republika Srpska” for one of the entities and the political representation system adopted for the Presidency and the House of Peoples of Bosnia and Herzegovina. (...) Moreover, that principle also implicitly innervates other provisions, such as those granting state-like prerogatives to the entities.

**CoE, 4 February 2005, par.13:**

“Preparation of a future Stabilisation and Association Agreement (SAA) with the EU remains a political priority for BiH and the prospect of further European integration continues to be the strongest incentive to accelerate reforms in the country. However, the consensus on further European integration does not always translate into political action.”

**CoE, 4 February 2005, par.16:**

“The consolidation of the State-level institutions and implementation capacity cannot be totally dissociated from a reflection on the evolution of the present constitutional system. However, as mentioned in previous reports, there is still no consensus on the content of such a reform. There is only one agreed basic principle: it should be the result of the decision of all citizens and parties of BiH and not be imposed by the international community. The CoE, in particular its Venice Commission, stands ready to provide advice and assistance whenever there is an agreement on the revision of the present constitutional arrangements. In this respect, it is worth recalling that, following the PACE’s request in Resolution 1384(2004)m, the Venice Commission is preparing an Opinion on three related issues: (a) the efficiency and rationality of the constitutional arrangements in BiH; (b) the compatibility of the BiH Constitution with the ECHR and the European Charter of Local Self-Government and (c) the compatibility of the powers of the High Representatives with CoE standards, mainly the ECHR.”

**Open Democracy, 18 December 2007**

To date, six successive High Representatives have struggled with recalcitrant nationalist officials on all sides, and made precious little headway towards the goals of [creating the new state of Bosnia & Herzegovina, and to help the country find its way towards membership of the European Union]. Bosnian leaders would like to “go to Europe”, but on their own terms; most Bosnian Serb and Croat politicians insist on the maintenance of separate territories where they can control their own ethnically homogenised constituencies. Only the Bosniak (Bosnian Muslim) leaders call for a political reunification of the country, but most often on terms that their nationalist counterparts reject as too extreme.

The Dayton arrangement has ultimately worked as a straitjacket, legalising ethnic division. With time, the more extreme wartime leaders have given way to “moderate” politicians whose work differs from that of their predecessors more in style than substance. Leaders such as the powerful prime minister of the Serb-controlled entity, Milorad Dodik, publicly swear by the inviolability of Dayton, but their messages to their constituencies constantly exploit left-over wartime fears.

In this context the international community and the OHR have tried all manner of strategies to strengthen the weak central government of the Bosnian state, a multi-ethnic institution that the entity governments are, for the most part, able to ignore as they continue to implement their ethnic policies. To date, the primary success in the centralisation drive has been the unification of the three armies that had been left in place after the war; now there is one Bosnian army, which functions in a reasonably cooperative way.

The international community would like to see Bosnia's governmental institutions simplify and unite, so that the agencies of the international protectorate can dissolve and go home. This would enable Bosnia, on its own feet, to join the European Union. Anything less than this will be a continued guarantee of instability in the region, with the possibility of war always looming in the background. There is a particular feeling of urgency to make progress in the process of accession to the EU, because all of the surrounding states are ahead of Bosnia in that process.

#### **UNDP Early Warning System III Quarterly Report 2007, Executive Summary:**

The third quarter of 2007 was marked by political intransigence. Although the formation of the final cantonal administration was completed, in general, the stagnation that has resulted from the aftermath of the 2006 elections has continued. Overall, institutional stalemate continued, in particular between the leaders of the Serb and Bosniak political establishments. The explicit cause of the stalemate was police reform, but it rests on broader concerns on how political power is to be exercised in the country and how politics as a process will be defined and managed, in particular the continuing role of the international community (i.e. the role of the High Representative and the EU Special Representative in particular, but not exclusively).

One result is that, with the exception of higher education, all reform processes are currently on hold. Differences over the issue of political centralisation led to a general stalemate in many areas of government, although some work took place at entity level. This stalemate has contributed to the fact that the signing of the Stabilisation and Association Agreement with the EU has been postponed indefinitely”

#### **Constitutional Reform remains an urgent issue (2007)**

- The Dayton peace agreement's objective was to make peace not to establish a functioning state
- The ultimate objective of a constitutional reform is to move from a system based on ethnic representation to a system based on representation of citizens
- In March 2005, the Venice Commission suggested to reform the constitution by transferring competencies from Entities to State level
- Consequently, Bosnian political parties presented a proposal for constitutional reform which was rejected in April 2006
- The European Court of Human Rights in Strasbourg will need to decide whether the BiH Constitution is in breach of the European Convention on Human Rights
- The Constitution included in the agreement reflected the weak consensus over a BiH state and the strength of the partisans of ethnic division

#### **PACE, 29 June 2006, par.1-4 :**

" 1. Since Bosnia and Herzegovina's accession to the Council of Europe in April 2002, slow but steady progress has been achieved in building a stable, functional and efficient state. Examples are the setting up of a court at State level and the transfer of competences from the Entities to the State in the fields of defence, intelligence, the judiciary, indirect taxation and the

forthcoming police reform on the principles of which all parliaments at entity and state level agreed upon in October 2005.

2. To date, however, the continuing weakness of the State and the constitutional necessity to ensure full equality at every level between the 3 constituent peoples have led to a situation where around 60 percent of the GDP is still spent on maintaining state and entity apparatus: there are 3 rotating Presidents at state level, 2 Presidents at entity level, 13 prime-ministers, over 180 ministers, 760 members of various legislative bodies, and 148 municipalities. Furthermore, the voluntary or imposed transfer of a number of competences to the State level has not resulted in a corresponding reduction of the entity apparatus.

3. The Assembly recalls that a key objective of Bosnia and Herzegovina's membership in the Council of Europe is to promote domestic ownership and responsibility for reform. It also recalls its Resolution 1383 (2004) in which it urged the authorities and the political forces in the country to engage in a constructive dialogue on the issue of constitutional reform.

4. The opening of Stabilisation and Association Agreement negotiations with the European Union just before the 10th anniversary of the Dayton Peace agreement in November 2005 makes it even more imperative to take measures to address the generally recognized need to strengthen State institutions that are currently too weak to allow for Bosnia and Herzegovina's further integration into Europe. "

**COE Venice Commission, 7 April 2006, par.1-8:**

"The Constitutional reform process in Bosnia and Herzegovina:

The present Constitution of Bosnia and Herzegovina was adopted as Annex IV of the 1995 General Framework Agreement for Peace in Bosnia and Herzegovina, the Dayton Agreement. Its main purpose was to end the bloody conflict in the country and not to establish a functional state.

In March 2005 the Commission adopted, at the request of the Parliamentary Assembly of the Council of Europe, its Opinion on the Constitutional Situation in Bosnia and Herzegovina and the Powers of the High Representative (CDL-AD(2005)004). In this Opinion the Commission concludes that constitutional reform is indispensable and that it will have to be carried out in several stages, with an entirely new Constitution based on a democratic process in Bosnia and Herzegovina (hereinafter referred to as BiH) as the final aim. As regards the first stage of constitutional reform, the Commission notes:

"102. A central element of the first stage of constitutional reform has to be a transfer of responsibilities from the Entities to BiH by means of amendments to the BiH Constitution. This is an indispensable step if any progress is to be achieved in the process of European integration of BiH. This step will be difficult since, as with other constitutional amendments in BiH, it will have to be based on consensus among the representatives of the three constituent peoples. Constitutional reform cannot be imposed. Another element of the first stage should be a streamlining of decision-making procedures within BiH, especially with respect to the vital interest veto, and a reform of the provisions on the composition and election of the Presidency and the House of Peoples which seem either now or following the entry into force of Protocol No. 12 on 1 April 2005 incompatible with the ECHR. The reform of the vital interest veto at the State level could best be carried out in parallel with similar reforms in both Entities."

In addition, the Commission insists on the urgency of the reform of the Constitution of the Federation of Bosnia and Herzegovina. The agreement on constitutional reform examined in this Opinion only relates to the Constitution of the State.

The Opinion of the Venice Commission raised a lot of interest in Bosnia and Herzegovina. With the assistance of a former Principal Deputy High Representative, Donald Hays, now at the US Institute for Peace, a group of experts appointed by the main political parties started to meet to discuss constitutional reform, taking as the point of departure the Venice Commission Opinion.

The agreements reached at expert level were further discussed by the leaders of the main political parties and finally, on 18 March 2006, the party leaders approved the agreement on the first phase of constitutional reform.”

**PACE, 29 June 2006, par. 8, 15-20 :**

“8. The Assembly therefore strongly regrets that on 26 April 2006, the parliament of Bosnia and Herzegovina failed, by just two votes, to reach the required two-thirds majority in the House of Representatives in order for the constitutional amendments to pass. (...)

17. Although it would probably not be realistic to expect that Bosnia and Herzegovina move quickly from a system based on ethnic representation to a system based on representation of citizens, drafting a completely new Constitution would certainly in the long run be preferable to trying to improve the Dayton one.

18. As a first step the Assembly expects people and politicians in Bosnia and Herzegovina to again discuss constitutional reform immediately after the October general elections, and if they decide to do this on the basis of the proposals agreed upon so far, to eliminate at least the entity voting in the House of Representatives and to define more precisely the vital national interest and the related veto mechanism.

20. As a second step the Assembly therefore urges the authorities of Bosnia and Herzegovina by October 2010 at the latest, to draft and adopt a new Constitution in order to:

20.1. replace the mechanisms of ethnic representation by representation based on the civic principle, notably by ending the constitutional discrimination against "Others";

20.2. find efficient and rational decision-making procedures that are not sacrificed to the principle of involving representatives of each constituent people in any decision;

20.3. review the territorial organisation of the State and its division into entities, cantons and municipalities and the repartition of competences between the state and the lower levels with a view to increasing efficiency and sustainability;

20.4. examine how to integrate the Brcko District.”

**CoE, 18 July 2006, par.17-19:**

“17. In spite of the agreement reached by 7 political parties, the House of Representatives failed to adopt the package on 26 April. Two main parties voted against: the “Club of representatives of Croatian People”, for fear that the reform would undermine the constitutional position of Croat interests, particularly vis-à-vis the RS and the “Party for BiH”, which felt that the reforms did not go far enough and had the effect of entrenching the Dayton status quo. Whilst there seemed to be widespread agreement on the fact that, having elaborated the package in record time when there was no expectation on a possible debate on constitutional reform was in itself a sign of a maturing political class, positions diverged on the follow-up to be given to the whole process.

**Balkan Insight, 20 December 2007:**

“Bosnia’s constitution is being scrutinised by the European Court of Human Rights in Strasbourg following complaints that it is discriminatory. The European Court of Human Rights in Strasbourg is hearing three cases brought by citizens of Bosnia and Herzegovina on the grounds that the BiH constitution discriminates against them because of their ethnic background.

The first case was brought by Dervo Sejdic in June 2006. Sejdic belongs to Bosnia’s Roma community. In January 2007 Jakob Finci, who is Jewish, brought a case before the court, and in September this year a third case was brought by Ilijaz Pilav, a Bosniak from the smaller of BiH’s two Entities, the Republika Srpska, RS.

“We are simply deprived of the right to take part in elections, we are unable to exercise our passive civil right, the right to be elected,” Finci, who is head of BiH Jewish Community and Director of the BiH Civil Service Agency, told Balkan Insight.

A number of leading legal experts in Bosnia believe these appeals stand a good chance of success, in which case the country will have to remove relevant provisions from the state and Entity constitutions. But to do so would mean rejecting one of the key principles on which the Dayton Peace Agreement and the BiH Constitution are based. Under the Dayton Constitution Bosnia's tripartite Presidency consists of one Serb, one Bosniak and one Croat. The president and two vice-presidents in the two Entities, the BiH Federation and the RS, are elected on a similar basis, and similar arrangements apply to other senior appointments, the object being to ensure equal representation of the constituent peoples. But the same arrangements exclude those citizens who are not Serb, Bosniak or Croat – classified under the Constitution as Others – from being elected. They also discriminate against Serbs in the BiH Federation and Bosniaks and Croats in the RS.

[...]

Yet the Constitution commits Bosnia and Herzegovina to adherence to the European Convention on Human Rights – which these provisions on ethnic representation clearly breach. Bosnia and Herzegovina ratified Protocol 12 of the Convention, which plainly states that electoral procedures for official posts must ensure equal treatment for all citizens, allowing all citizens to vote and all citizens to stand for election.

[...]

The constitution regards citizens as Serbs, Croats, Bosniaks and Others, precluding any direct affiliation with the state of Bosnia and Herzegovina or with the nation of Bosnia and Herzegovina.”

**See also :**

*Opinion on the constitutional situation in Bosnia and Herzegovina and the powers of the High Representative, Council of Europe, Venice Commission, 11 March 2005*

### **Diverging political visions of the three constituent peoples hinder Constitutional Reform (2008)**

- Croat, Bosniak and Serb visions of a new BiH Constitution diverge fundamentally, with little to no common ground or possibilities to negotiate
- Bosniaks tend towards a strong central state, while RS is keen on keeping its independence as spelled out in the Dayton Peace Agreement
- Such a stalemate is delaying BiH's accession to the EU

#### **OHR, 13 May 2008:**

##### *Constitutional Reform*

10. Many of the country's political parties have been busy developing their constitutional-reform platforms and proposals. The initialling of the SAA with the EU on 4 December, based on the assumption that both police-reform legislation and a full SAA would quickly follow, stimulated Croat and Serb party leaders, in particular, also to assume that the political focus would now shift to tackling the issue of constitutional reform. Not only did neither happen during the reporting period, but the constitutional models that were published or sketched out were at such wide variance with one another that the entire issue became a renewed battleground among the ruling coalition. The party leaders therefore decided at a meeting in Siroki Brijeg on 2 February to concentrate on police reform and to postpone any discussions on the process or scope of constitutional reform until after the signing of the SAA.

11. Despite continuing efforts to coordinate and articulate a single position on the basis of the principles outlined in their Kresevo Declaration of September 2007, the Croat-dominated parties have not achieved a unified stance on constitutional reform. The two incarnations of the Croat Democratic Union (the HDZ BiH and the HDZ 1990) have been most proactive in developing and presenting their proposals. The HDZ 1990 came forward on 10 November, advocating a federal model for BiH that would have “at least three units” with legislative, executive and judicial powers. Each would be multinational in population, but each would also provide one constituent people with a majority. The HDZ BiH’s platform of 11 December endorsed the same model, but with four federal units, one being the greater Sarajevo metropolitan area. The smaller Croat parties, including the HSS-NHI and the HSP, opted instead for more mid-level units, which should not be formed according to exclusively national criteria. What remains unclear within the Croat camp is whether the internal re-organization of BiH should be limited to adjusting the territorial setup within the Federation or should also include – and change – the current boundaries of the RS. RS leaders have, of course, rejected the second option out of hand.

12. This stumbling block, combined with statements by the leader of the HDZ BiH that were seen as accepting the territorial inviolability of the RS, produced a change of tack by some of the Croat parties as regards both substance and process. Meeting on 14 March at the initiative of the HDZ 1990, most leaders present agreed and signed a statement calling for immediate changes to the entity constitutions and laws in order to ensure the equality of all three constituent peoples in each. The HDZ BiH and the People’s Party “Radom za Boljitak” did not sign this statement. Although the former assessed the statement as positive, it regretted the timing, which had caused the predominantly Bosniak and Serb parties immediately to reject any plan to start reforms with the entities rather than the state as a whole.

13. The RS-based parties have made clear throughout that they are only prepared to consider constitutional changes that do not diminish the territorial integrity and competencies of the RS as established at Dayton. Their preference is for an explicitly federal or confederal order in which the RS, in its existing confines, would become one of the units. The PDP argued in its 19 January proposal that no reforms beyond those envisaged by the so-called April Package of 2006 would be acceptable to them; and that any territorial reorganisation of BiH should apply only to the Federation. For its part, the SNSD Main Board concluded on 26 January that future federal (or, in fact) confederal units should have the explicit right to self-determination, up to and including secession, as well as more state-like powers than the current entities.

14. Bosniak political leaders proved reluctant to discuss constitutional-reform models in any detail. S BiH President Haris Silajdzic argued that this would be pointless until such time as Kosovo’s final status was settled. Arguments over the scope of police reform have, in fact, become surrogates for the discussion of constitutional matters as far as they are concerned. Thus the common SDA-S BiH platform on constitutional reform that had been expected last year did not materialise. The two parties do, however, share a preference for a “civic” BiH composed of at least five multinational regions based on functional, economic, geographical, transport, historical, and national (or ethnic) criteria.

15. Although constitutional reform remains essential if BiH is to be a functional and sustainable state with real hopes of joining the EU any time soon, reaching any domestic consensus on the matter will prove extremely difficult so long as the domestic parties’ conceptions remain both antithetical and non-negotiable. When a readiness to compromise emerges, it will still be necessary for the international community to help facilitate any potentially successful process.

### **Important step towards institutional reform: Contested police reform accepted at high political price and after a serious political crisis (2008)**

- The last few months of 2007 witnessed a serious political crisis revolving around voting reforms suggested by the High Representative
- The crisis revolved around the stalled police reform which stands as a symbol for the relationship between BiH and the international community, and for BiH's struggle towards political independence
- The need to achieve police reform pushed the High Representative to propose institutional changes to decision-making in parliament
- RS reacted strongly to the HR's proposal, saying its national integrity was in danger
- Ultimately, a compromise could be found and the proposed laws were adopted on 1 December 2007
- As another important incident, the sudden death of RS president Jelic in September 2007 revealed serious gaps in RS Constitution
- The current Constitutions were written in different circumstances: RS and Federation Constitutions date from wartimes, BiH Constitution is part of the Dayton Peace Agreement
- As the constitutional reform process is blocked, High Representative Lajcak revealed measures to counter attempts to paralyse the running of state institutions, including government
- On 11 April 2008, the contentious police reform was narrowly adopted by the BiH Lower House, at a high political price, notably a division among the two main Bosniak parties

### **World Vision, 26 November 2007**

[...] [P]olitical tensions in Bosnia and Herzegovina cause concern in the international community and ris[e] prices at home. [...] Since Prime Minister Nikola Spiric resigned on 1 November as a protest against voting reforms by the international High Representative, some analysts have viewed the political crisis as the most serious since the end of the 1992-95 war between Serbs, Croats and Bosniaks. The current talks in Kosovo, set to end on 10 December, add to the sense of insecurity.

[...]

The worsening political stalemate has provoked a rise in the price of basic food items, leading to speculative trading and panic buying. In Bosnia and Herzegovina, where the average wage is low and there is over 40% unemployment, these factors are leading to increasing hardship for the poor.

### **CoE, 20 February 2008, para 36 to 39:**

39. [...] During the Commissioner's visit in June 2007, many people with whom the Commissioner discussed this issue expressed the view that the reform was absolutely crucial for the future of the country, but were doubtful if the political agreement required could be found any time soon. The Commissioner calls for the political leaders to put the interest of citizens first and start again discussing the constitutional reforms, taking into account the proposals made by the Venice Commission.

### **ESI, 8 November 2007, pp. 4-9:**

**p.4ff:**

In November 2003 the European Commission first called for reform of policing structures in Bosnia and Herzegovina. To better understand what exactly the problem of Bosnian policing was the Commission then financed a functional review of policing which took place in the first six months of 2004. A report was published on 30 June 2004 as the key input for a strategy to bring policing up to European standards. This functional review underlined that the mere existence of

15 different law enforcement agencies in the country (Federation, RS, 10 Cantons, Brcko, SBS, SIPA) is “not a weakness per se”. [...] It noted that Bosnia had different organisational options, *all in line with European best practice*: either a national police; or a model with two entity police forces, Brcko district, SIPA and SBS but with out cantonal police forces; or a bottom up model, based upon the cantons, the RS police regions, Brcko, SIPA and SBS, plus a common national function for coordination, selection, training and information and communication.

The review concluded:

“All three models feature both advantages and disadvantages. The evaluation and final choice depend on the weight given to the different criteria like top down or bottom up, product orientation, integration in local/regional communities, rationality, distance to today’s realities, etc.” It also strongly stressed the importance of domestic ownership.

[...]

However, only three days after the review was published OHR decided that there was in fact only one possible model for Bosnia. On 2 July 2004 High Representative Paddy Ashdown used the Bonn powers to impose a Police Restructuring Commission (PRC) with a very narrow task: to propose a “single structure of policing under the overall political oversight of a ministry or ministries in the Council of Ministers”. There was nothing left to be discussed except how this was to be implemented. Ever since that fateful decision in the summer of 2004, this has been disputed by successive governments in Republika Srpska.

The PRC was foreign-led: its chair and deputy chair were foreigners, and its working methodology was that “there will be no voting in the PRC. The Chair will lead discussion and debate designed to reach consensus. The Chair will determine when the Commission has reached an acceptable level of consensus on an issue.” The Police Commission followed the OHR and ignored the analysis of the EU-funded experts.

[...]

Given the importance and political sensitivity of this question, one would have expected a serious effort by the OHR to convince sceptics of the intrinsic value of a centralised police in a federal state. However, a search for arguments used produces few that actually withstand critical scrutiny.

#### **p.7:**

In recent weeks the crisis over police reform came to a head. On 29 August 2007 High Representative Miroslav Lajcak presented Bosnian party leaders with another proposal for how to reform the police. He refrained from making his proposal public but set Bosnian politicians a deadline to agree on a reform. The deadline was subsequently prolonged but not met. On 18 October the prime minister of Republika Srpska, Milorad Dodik, anticipating some punitive measures, warned that Serbian officials would resign from their positions in the state institutions if Lajcak were to use his right to dismiss officials. On 19 October Lajcak gave a press conference stating that “we are all aware that Bosnia and Herzegovina does not function as it should” and then imposed amendments to the Law on the Council of Ministers of Bosnia and Herzegovina. He also instructed the Joint Collegium of the BiH Parliamentary assembly to amend their rules of procedures. He warned that if the Collegium would fail to adopt these changes he would impose them by 1 December, and that there would be more impositions to follow. The very fact of impositions as punishment for failing to meet the police reform deadline was immediately criticised by Serbian politicians. Milorad Dodik told Bosnian reporters that the measures are unconstitutional and “will not be accepted in the Republika Srpska”.

On 31 October the Peace Implementation Council (PIC) endorsed Lajcak’s decisions. The next day the Prime Minister of Bosnia, Nikola Spiric, a Serb and political ally of Dodik, resigned. He told television: “Bosnia-Herzegovina is absurd. If the international community always supports the high representative and not the institutions of Bosnia-Herzegovina, then it doesn’t matter if I am the head of that state, or Bart Simpson’.”



In fact, at the heart of the current crisis are fundamental questions of Bosnia's architecture of power. One concerns its internal structure: is Bosnia more likely to prosper as a federal or as a unitary state? There are those in the international community and among Bosnian political actors who believe that Bosnia should become a unitary state. According to its current constitution, however, Bosnia *is* a federation. The second question concerns the power of the international community. OHR first imposed its views on an issue that deserved serious debate. It then noted that police reform could not be imposed.

[...]

**p. 9:**

[A] *serious* public debate on the merits of various reform proposals has not yet taken place. Such a debate would need to explain what different police reform models would actually accomplish; how much they would cost; and what options exist to strengthen already existing institutions at the central level, SIPA and the State Border Police? Such a debate would go back to the different options for police reform outlined in the 2004 functional review. It would focus on practicalities, not ideological positions. And it would stick to the position often repeated by OHR that there would be no imposition nor coercion in this manner.

#### **Open Democracy, 18 December 2008:**

The Dayton political structure, with governments at state, entity, canton, municipal, and city levels, is one of the most unwieldy imaginable, and fully 60% of the national budget is consumed by governmental expenses. This situation works well for politicians and their cronies who are engaged in crooked privatization and who periodically vote salary increases for themselves, but not for the average citizen. Unemployment has hovered around 40% nationwide for a decade, and foreign investment has been discouraged by political turbulence. Regular surveys show that in the face of such a deadlock Bosnian citizens feel hopeless, and a two-thirds majority of young people would leave the country if they had the opportunity. Tens of thousands have already done so.

#### *Reform and reaction*

In response to this disastrous state of affairs, recent High Representatives have encouraged domestic officials to make reforms. The most outstanding remaining reform - and the most difficult sticking-point - is the creation of a centralised police administration. Currently there are entirely separate police forces run by the entities and, in the federation, by regional units known as the cantons. This chaotic arrangement not only prevents coordination among the various police forces; it ensures continued ethnic division, with accompanying discrimination, throughout the country.

For the past several years the OHR has been pressing local leaders to draft an agreement on a nationwide unification of police administrations. A draft package on this unification came close to adoption by Bosnia's parliament in early 2006, but it failed by two votes. Further work on this issue was delayed by national elections in October, and the floundering process came to a head in September 2007. As the six political parties in Bosnia's governing coalition prepared for a new vote on police reform, High Representative Lajcak warned that there would be "difficult consequences" for Bosnia if reform were not finally approved.

However, once again police reform was defeated, this time by Serb representatives who insisted that control of police must remain at the entity level. This sparked what came to be termed the worst governmental crisis since Dayton, with rumblings of political disintegration and even renewed war.

Although previous High Representatives have not refrained from widespread removal of recalcitrant local officials, Lajcak's warning referred more to the simple fact that Bosnian leaders, by virtue of their obstruction of reform, could destroy Bosnia's chances for advancement in the

process of accession to the European Union. Rather than simply remove the offending politicians, shortly after the last reform failure Lajcak proposed two procedural changes designed to prevent repetition of boycotts in parliament and in the central government in Bosnia's capital, Sarajevo. In the post-war period such boycotts have traditionally been used as a way of obstructing passage of unwanted reforms. This tactic has been especially popular among Serb politicians.

On 19 October, Lajcak thus proposed reforms redefining voting quotas in the state-level council of ministers and in the Bosnian parliament, and he allowed time for the government to adopt the reforms by 1 December. These measures were intended to streamline the processes of the central government. If they were not adopted, Lajcak declared that he would exercise his power of decree and promulgate the laws on his own.

Lajcak's first proposal made it possible for Bosnia's council of ministers to hold sessions whenever a majority of its members are present, and for decisions on certain matters to be made by a majority of those attending. This compels all representatives to ensure attendance at central proceedings, thus eliminating boycott.

The second measure stipulated that laws could be passed in Bosnia's parliament, as long as the majority voting for them includes at least one-third of the deputies from each of Bosnia's two entities. This measure does not eliminate the veto power of the ethnic-based entities, but it does, again, eliminate their ability to veto by boycott.

Seen rationally, these were mild measures that can hardly be characterized as punitive or discriminatory. However, in ethnic politics in Bosnia, rationality often takes a back seat to the more compelling tactics of fear-mongering and division, which at times approach hysteria. The Serb response to Lajcak's proposals could justifiably be described in those terms.

From Republika Srpska's prime minister Milorad Dodik downwards, Serb leaders hastened to decry the measures as "endangering the freedom of the Serb nation", saying that Lajcak's proposal was "anti-constitutional" and "anti-Dayton". Representatives of the RS quickly threatened mass resignation if Lajcak did not withdraw his proposals. Lajcak held fast, and at the beginning of November the ethnic Serb prime minister at the state level, Nikola Spiric, announced his resignation. Other Serb officials, including Dodik, promised to follow suit.

Tensions were heightened in late October when thousands of Serbs held demonstrations in the Republika Srpska capital of Banja Luka, as well as in a half-dozen other RS towns. Demonstrators held placards reading, "Hands Off Republika Srpska", and "Give Us Back Dayton's Bosnia, or an Independent Serb Republic". Tellingly, some demonstrators held signs bearing the image of Russia's president, Vladimir Putin.

#### **Balkan Insights, 20 December 2007:**

Provisions in the RS constitution to deal with an orderly succession as well as who is acting in the case of the death of a sitting president proved to be inadequate – pointing at one of the several serious shortcomings of constitutional arrangements in both BiH entities.

Other problems in the RS Constitution include obsolete provisions such as still existing death penalty, or provisions that are not harmonized with the state and BiH Federation constitutions. While the BiH Federation constitution has less loopholes, its obligatory ethnic distribution of key positions and seats often cannot be implemented in reality.

These two entity constitutions as well as the BiH constitution all have another common problem, which is protection of national interest, which causes discrimination of personal rights. "Texts of the constitutions in BiH actually resemble a split personality," says Faris Vehabovic, a legal expert from the office of the BiH Ombudsman, in one of the analysis of BiH constitutional issues published over the past year. He explained that these documents have "some great provisions, while other of its stipulations create confusion among legal experts."

[...]

The underlying problem is that constitutions in both BiH entities – in the BiH Federation and Republika Srpska – were adopted at the time of war, in 1993 and 1992. BiH Constitution was created during the peace talks in 1995. Some key elements of these documents were amended over the past decade, mostly by the OHR, to be in line with basic provisions of the international principles and BiH state constitution. Yet because of the tense politician situation and complex administrative and political setup, these documents were never properly harmonized and thoroughly rewritten to fix all the ambiguities and loopholes.

Unlike politicians in BiH federation who still had no concrete initiatives for a comprehensive constitutional overhaul, the RS administration has already moved on to update the most outdated constitutional provisions. On 12 December 2007, the RS National Assembly requested from the Constitutional Commission to present its formal proposals for constitutional amendments within 45 days, after which they will be debated and eventually adopted.

This process has started already in the spring of 2007, when Parliament Speaker Radojicic announced that the RS Commission for Constitutional Issues, in cooperation with constitutional law experts, had launched a comprehensive overhaul of the entity constitution. This process got delayed due to the recent political crisis. The sudden death of the RS President Jelic reminded everybody of this burning issue.

[...]

One of the biggest remaining overarching issues in both entity and state constitutions is insistence on protection of national interest, while discriminating personal rights. Because of this problem, already three BiH citizens have press charges against BiH constitutions in the European Court for Human Rights.

#### **Balkan Insight, 11 April 2008:**

Bosnia's lower house of Parliament has narrowly adopted crucial police reforms, necessary for its EU membership bid.

The legislation now just needs approval from the Upper House the House of Peoples, and Bosnia will fulfil its last obstacle for signing the Stabilisation and Association Agreement, SAA with the European Union – widely seen as the first step to membership of the bloc.

Thursday's vote was initially planned for April 4, but after two days of tension and trading accusations, Bosnian legislators delayed their decision in order to give more time to political leaders to reconcile their differences.

The reform laws were adopted by a majority gathered around two key parties – the Bosnian Party for Bosnia and Herzegovina, SZBH and the Bosnian Serb Party of Independent Social Democrats, SNSD.

As these two parties clashed over last-minute amendments, Bosnia's top international envoy Miroslav Lajcak intervened. Local and international sources said Lajcak proposed a compromise version that was eventually narrowly adopted with 22 votes for, 19 against and one abstained.

[...]

The Bosniak Party of Democratic Action, SDA, Serb Democratic Party, SDS and opposition Social Democratic Party, SDP remained resolutely opposed to the legislation. SDA and SDP demanded larger centralisation of police forces, while the SDS wanted a referendum on this issue.

The two laws establish a number of coordinating and supervising bodies in line with EU requirements. The legislation does not insist on a greater centralisation of Bosnia's state, entity and local police forces, but includes a compromise amendment stipulating that further reforms will be made pending eventual future constitutional changes.

While adoption of the police reform represents a crucial step forward for the country, it has come at high price. Heightening of tensions on the political scene and growing divisions among the two key Bosniak parties, SDA and SZBH, could have serious negative effects on the ruling coalition in the coming period, analysts say.

**On the same issue, see also “Dangerous Rumbblings in Bosnia”, ISN Security Watch, 2 November 2007: <http://www.isn.ethz.ch/news/sw/details.cfm?ID=18310>**

**See also :**

***Opinion on the constitutional situation in Bosnia and Herzegovina and the powers of the High Representative, Council of Europe, Venice Commission, 11 March 2005***

### **The population of BiH favours a strong central state and wants economic opportunities (2007)**

- A UNDP survey reveals that a majority of Bosnians favour a strong central state and EU membership
- Muslims are more in favour of a central state than Christians
- This means that Federation residents are more in favour than RS residents
- Respondents see job creation, improved infrastructure and fighting corruption as the most pressing issues
- Police reform, education, prosecution of war criminals, de-mining and national defence are not seen as priorities by the population of BiH
- People are ready to put a central government above ethnic considerations

#### **UNDP, 7 July 2007, General Findings, Section 4.2, p.27, 28**

“There is a general agreement that political power should reside at State level with over two-thirds (67.7%) giving this option their first choice. This finding was not expected considering that the majority of the people (76.6%) say they do not trust the State government in Sarajevo 84. An overwhelming majority (85.7%) who trust the state government in Sarajevo ‘a great deal’ want political power to be located at the state level, whereas only one half (51.7%) who have no trust at all in the Government in Sarajevo want state power to be located there. There is not necessarily a contradiction between mistrust in the State government of the day 85 and the desire to locate political power at state level: the location of political power is, broadly speaking, a matter of constitutional arrangements. However, there appears to be a gap between respondents’ experiences of the State government and their aspirations for constitutional arrangements [...]

In logistic regression, religion features as a powerful predictor: Muslim respondents are much more likely to support the idea of locating political power at State level than their Christian counterparts. Respondents with primary BiH identity and FBiH residents are also more likely to support State-level power. There are moderate and weak effects from age and displacement status.”

#### **Conclusions section, p. 4:**

“In the eyes of its population young people and people generally are the key strength of BiH: human and not natural resources are identified as the main asset. As for weaknesses, unemployment, corruption and politics and its actors are prioritised. This establishes a profile of pros and cons which can be of guidance in overall policy design. As for visions of the future for BiH, the central focus of this research, seven in ten say ‘in the EU’. This is particularly striking

since this result emerges from an open-ended question. This gives a clear direction in long-term aspirations.

As for short-term priorities (next twelve months), an improvement in living standards is the top concern. In conjunction with unemployment as the greatest perceived problem, the call for the use of economic levers resonates throughout the survey. In addition to demands for national unification, improvements to the infrastructure and reducing corruption surface as priorities. Non-priorities include the prosecution of war-criminals, de-mining, national defence, police reform and education.

Principally, respondents expect that the political world rather than individuals should take care of their respective policy priorities. This indicates two things. One is that there is a belief in 'Big Government' as a solution to people's problems. Dependency on state output ('delivery van') is also found in other variables. The other is that people's relatively low trust in institutions and their negative attitudes towards the political world are a commentary on their perceptions of the current arrangements, which also influence their expectations for the immediate future. At the same time, this does not debar them from aspiring to a better future.

[...]

As for an anticipated direction of change, the notion that BiH citizens should take their fate into their own hands emerges powerfully. A small majority is ready to abandon ethnic politics. Small majorities also think that politicians should decide on ways forward and that the government, rather than individuals, is responsible to provide. In the relationship between variables an underlying logic emerges. Beyond univariate results, factor analysis shows that 'big change' and an end to ethnic politics are related. Respondents also say that corruption must end. At the same time it appears that whatever the direction of change, the injustices of the war need to be addressed. In this sense, reconciling the population with the outcomes of the war appears as part of any viable future scenario.

***The UNDP report includes the creation of a Reconciliation Commission in its recommendations. See in the Recommendations section of National and International response***

### **Progress towards EU integration requires a self-functioning state with the signing of the SAA as an important step (2008)**

- While international aid was important during and directly after the war, it has created dependency in BiH
- BiH goes through two transitions: from socialism to a market economy, and from war to a post-war society
- It is in BiH's interest to move towards the development of local capacities and institution building
- In October 2005, the EU recommends the launch of negotiations for a Stabilisation and Association Agreement (SAA) further to reforms strengthening state level competencies.
- The SAA agenda includes refugee and IDP returns
- A reform of the constitution and of its police system should be the next steps to reinforce BiH statehood and to fulfil EU requirements
- Measures required by the EU accession process have to be taken by BiH authorities and not imposed by the High Representative, says OHR.
- BiH and the EU initial the SAA in December 2007, hoping to sign it in May 2008

**UNDP, NHDR 2007, p.22:**

Bosnia and Herzegovina has been a huge beneficiary of international aid in different areas. Although the population could have hardly survived during the war or stabilized their lives post-conflict without international aid, it must be borne in mind that it was precisely this foreign assistance which in turn created the huge dependency syndrome prevalent in BiH.

It is now in BiH's main interest to make a rapid and smooth transition from being an aid-recipient towards sustainable development with the development of local capacities and institution building. The key factor in making this transition towards societal sustainability and development is the need for a complete change of opinion and attitude by the people and governments of BiH. The majority of BiH's population, according to the traditional way of thinking, believes that the international community has brought about changes to the state by adopting the role of 'patron'.

During the socialist era, people expected the state to solve all problems, both those of the citizens and businesses. Similarly, nowadays the people of BiH expect the international community to solve all its problems, while the local initiatives remain frozen, and both leadership and population remain passive. If BiH is to move away from this dependency culture there must be a radical shift in the current way of thinking. A wake-up call is needed for the people of BiH, making them responsible for their own futures.

The transition from a centrally-planned economic and political monopoly into a free-market economy, democracy and civil society is the key for the future. A significant part of the population which pre-war enjoyed a relatively high standard of living now finds itself below the general poverty line. In this sense, economic exclusion is about a new form of poverty. This differs from the traditional notions of poverty and exerts a greater influence on social exclusion because the kind of social networks which had previously existed can no longer be materially supported. This particularly applies to the elderly who are most frequently affected.

***IDPs have relied for years on now dwindling international humanitarian aid, which makes it particularly difficult to include them into current social assistance schemes (see “Displaced persons and refugees among four population groups at greatest risk of falling into poverty (2006), in the section “Issues of Self-Reliance and Public Participation” (INTERNAL LINK)***

**New Europe, 8 December 2007:**

EU Enlargement Commissioner Olli Rehn announced on the evening of December 3 in Sarajevo that Bosnia- Herzegovina is to initial the Stabilization and Association Agreement (SAA) with the European Union. “I have decided to initial the SAA agreement with Bosnia- Herzegovina tomorrow,” Rehn told reporters in Sarajevo after meeting with Bosnia’s top authorities as well as with the leaders of political parties.

[...]

“The leaders of the country have convinced me of the commitment to finish the job concerning police reform,” Rehn said. He added that the country would still have to conduct a number of reforms before it signed the SAA deal, as the first step towards eventual full membership in the European family.

Bosnia-Herzegovina completed SAA negotiations with the EU in November [2006], while Olli Rehn informed the state’s parliament in March of this year that the country did not meet necessary requirements to initial the deal. Many political problems escalated since then and the Rehn’s decision came just three days after Bosnian political leaders found a solution late November to a nearly two-month deep crisis that halted its progress towards European integration.

In November, Bosnian political leaders also agreed to continue work on stalled police reforms, set as one of the preconditions for rapprochement with the EU. Before its meeting with Rehn, Bosnia's central government adopted an action plan, which was earlier agreed by political leaders to continue with police reform. The government pledged itself to work seriously on the reform aimed at joining ethnically divided police troops in the country under the one state roof.

**ECRE, October 2007, p.3:**

"Refugee and IDP returns and broader migration and refugee issues are part of the agenda of the Stabilisation and Association Process."

**B92, 5 May 2008:**

The international high representative to Bosnia-Herzegovina said that the signing of the SAA was merely a technical matter, because the 1000-word document needed to be translated into 22 languages.

Lajcak said that he believed everything would be ready by May 26 for the signing to take place, because "Bosnia-Herzegovina deserves it."

**CoE, 3 November 2005, par.5, 8-9,12)**

"[S]ome major reforms, pushed for years by the international community, have finally been approved, mainly the defence, police and broadcasting reforms, allowing the European Commission (EC) to recommend on 21 October 2005 the launch of negotiations for a Stabilisation and Association Agreement (SAA) with BiH. This is an historical decision marking, few weeks before the 10th Dayton Anniversary, a decisive shift away from the country's post-war reality. (...)

8. With respect to international relations, the EC decision to recommend the launch of negotiations on a SAA between BiH and the EU has undoubtedly been the major development in the period covered by the present report. The decision has been taken just after the adoption of the Agreement on police reform, a major achievement towards reinforcing of BiH statehood (see below paras. 63-65).

9. At the same time, the success of the defence reform has brought BiH closer to accession to the Partnership for Peace (PfP) with NATO. The Law on Defence and the Law on Service in the Armed Forces of BiH were adopted early October 2005. The former provides for the transfer of the authority over defence from the entity to the state level, introduces a single defence budget, regulates a common defence system throughout the country and establishes and defines the chain of command. The Law on Service in the Armed Forces of BiH sets the basis for the creation of a professional single military organised on the UK model of "regional" regiments and controlled by BiH. In its Communiqué of 7 October 2005 the Steering Board of the Peace Implementation Council (PIC) warmly welcomed the recent adoption of the defence reform noting that the creation of a NATO compatible single military force will give BiH the armed forces it needs to meet the security challenges of the 21st Century. The only obstacle to accession to the PfP with NATO remains respect of the BiH commitment to fully co-operate with the ICTY, including the transfer to the Hague of all war crimes indictees. (...)

[W]ith the SAA process under way, the need for more radical and sustainable reforms becomes more apparent. Such reforms may only be achieved if an overall constitutional change is to be agreed by all three constituent peoples. 10 years after Dayton there is a growing feeling that BiH has come as far as it could under its present constitutional arrangements. A constitutional change will not only allow the state to be more functional, closer to its citizens and less expensive for tax payers, but will also allow the development of ownership by the national authorities and the phasing out of the Bonn Powers and the OHR as a whole. In the words of the High

Representative, “provided that the necessary progress is made, by the October 2006 general elections there is every possibility that the OHR will not exist and that the Bonn powers have been got rid of”.

**OHR, 21 July 2006:**

“The so-called “Bonn Powers”, instituted at the end of 1997, gave the High Representative the authority to dismiss officials found to be obstructing implementation of the peace agreement, and to impose legislation that will ensure peace and stability. This has allowed the OHR to reduce obstruction and help take Bosnia and Herzegovina to a point where it is now negotiating a Stabilisation and Association Agreement (SAA) with the European Union, the first step towards eventual EU membership.

So, why change something that is working?

The simple answer is that a democracy that is protected and consolidated through the use of executive powers granted to an extraneous institution cannot develop the necessary inner strength to sustain itself.

If Bosnia and Herzegovina is to complete its journey to full post-war rehabilitation and Euro-Atlantic integration, it must travel the remainder of the way under its own steam. (...)

Already two years ago, the European Union made it clear that legislation required to launch the SAA would only be considered acceptable if enacted by the authorities of Bosnia and Herzegovina on their own. It could not be imposed by the High Representative. (...)

The international community will remain engaged in Bosnia and Herzegovina through the continued presence of EUFOR, the EU Police Mission, NATO and other international actors. Indeed, the European Union’s engagement will be reinforced, by enhancing the role of the EU Special Representative and by moving forward with the SAA process. I intend to serve as High Representative until the closure of the Office and then to remain in Bosnia and Herzegovina in my other capacity, as EU Special Representative.”

**Kosovo’s declaration of independence impacts on RS, while international community speaks out strongly against a secession referendum (2008)**

- · On 17 February 2008, Kosovo declared itself independent from Serbia.
- · Some political forces in RS warn that they would start a referendum on secession from BiH
- · The International Community, led by OHR and the EU, declares to uphold the Dayton Agreement which creates the territorial integrity of BiH
- · The International Community also stresses its interest to see Bosnia integrated into the EU

**ISN, 21 December 2007:**

Finally, the final Kosovo solution will have a serious ripple effect in Bosnia-Herzegovina and pose grave consequences for the country’s territorial integrity.

Bosnia’s Serb-dominated entity of Republika Srpska was created during the war on the territory the Bosnian Serb military conquered between 1992 and 1995. By the end of the war, Republika Srpska was a largely ethnically cleansed territory, legalized by the Dayton Peace Agreement.

Since 1996, most international community efforts have been focused on stripping powers (both economic and military) from the country’s separate entities and, for all intents and purposes, doing away with these separate governments and working toward a unified country.



However, Republika Srpska's existence as a separate entity created through the results of a military conflict and based on a simple ethnic majority has in some respects legitimized the calls of other separatists in the region

Politicians in Republika Srpska, which comprises 49 percent of Bosnian territory, have warned that should Kosovo declare or be granted independence by the international community, they will hold a referendum among Bosnian Serbs to vote on secession from Bosnia and annexation to Serbia. According to a November 2007 public opinion poll held in Republika Srpska, 77 percent of Bosnian Serbs believed Serbs should break away from Bosnia if Kosovo Albanians seceded from Serbia.

**OHR, 13 May 2008:**

5. Early 2008 saw the adoption of conclusions by the leadership of Republika Srpska's ruling party, the Alliance of Independent Social Democrats (SNSD), on 26 January that called for the transformation of BiH into an asymmetric federation (or confederation) and claimed the right, supposedly based on the UN Charter, to self-determination up to and including secession for the entity. This was clearly a warning shot fired in anticipation of Kosovo's unilateral declaration of independence on 17 February. The RS National Assembly duly confirmed this link when it passed a resolution on 21 February condemning the illegality of Kosovo's UDI, demanding that BiH not recognise it, and exhorting those countries that had done so. It went on to state that the RS ... "would consider that it too possessed the right to establish its future legal status by means of a referendum".

6. I immediately reacted to this in a public statement, noting that I was "deeply concerned by the adoption of this resolution by the RSNA" and stressing that Bosnia and Herzegovina is an internationally recognised state whose sovereignty and territorial integrity is guaranteed by the Dayton Peace Agreement. Entities of Bosnia and Herzegovina have no right to secede. In its 27 February declaration, the PIC made clear its position when it expressed "deep concern with regard to official calls for secession. The PIC SB strongly emphasises that under the Dayton Peace Agreement one entity has no right to secede from Bosnia and Herzegovina."

**Balkan Insights, 19 March 2008:**

EU Enlargement Commissioner Olli Rehn has reiterated the International Community's absolute commitment to the Dayton Peace Agreement, which ended the 1992-1995 war and guarantees Bosnia's sovereignty and territorial integrity. In an interview with the Sarajevo Dnevni Avaz daily Rehn stressed that no changes in the Bosnian constitutional order are possible "without the consent of all in Bosnia and Herzegovina."

In a pointed reference to recent statements by some Bosnian Serbs that the smaller of the two entities in Bosnia and Herzegovina could vote to secede from the country, Rehn noted that "we work on abolishing internal boundaries, not on establishing new ones." Following Kosovo's unilateral declaration of independence there have been calls for a referendum in Republika Srpska, RS, to decide whether it should secede from Bosnia, but RS officials have subsequently played down the idea.

**Bosnia is vulnerable to regional political instability (2008)**

- but Serbs, Croats and Bosniaks in BiH all frequently identify with the aims and achievements, struggles and defeats, of their co-nationals across its borders.
- The issue of Kosovo's future status continued to feature prominently in the country's political discourse

- · Inadequacies in judicial cooperation among Serbia, Croatia, Montenegro and BiH, particularly over war-crimes prosecutions, remain

**OHR, 13 May 2008:**

**XIV Bosnia and Herzegovina and the Region**

60. Bosnia and Herzegovina is uniquely vulnerable to political instability in the region. Not only does the domestic politics of Croatia, Montenegro and Serbia occasionally impact upon it, but Serbs, Croats and Bosniaks in BiH all frequently identify with the aims and achievements, struggles and defeats, of their co-nationals across its borders.

61. The issue of Kosovo's future status continued to feature prominently in the country's political discourse during the period. The failure of the Troika process in December and the countdown to a unilateral declaration of independence in February led to a ratcheting up of rhetoric and concern on the part of BiH Serbs, who share the general Serb identification of Kosovo with their faith, culture and nationhood, albeit to a lesser degree than in Serbia proper. Republika Srpska Prime Minister Dodik took part in many manifestations of Serb solidarity over Kosovo, but also usually argued that Kosovo's fate should not and need not have implications for – or produce disturbances in – BiH. Although, as reported above, both his party and parliament ultimately sought to play the card of the alleged Kosovo "precedent", he maintained public order and did not support the more extreme manifestations of Serb anger over Kosovo's eventual declaration of independence and its recognition by many countries. Public demonstrations against Kosovo's independence in the RS were relatively small in scale and the entity's police contained the violent impulses of young hooligans relatively easily, although minor damage was inflicted on some diplomatic offices in Banja Luka.

62. What did afflict non-Serbs in BiH were the efforts of the EU to placate Serbia for its impending "loss" of Kosovo by offers of a SAA and/or a political treaty in the run-up to both the Serbian presidential elections in January and Kosovo's declaration of independence in February. Accusations of double standards on the part of Brussels were frequent, especially in view of the difficulties BiH was experiencing in its own efforts to fulfil the EU's terms in regard to police reform.

63. BiH's niggling border-definition issues with Croatia and Serbia remain unresolved, as does the problem of Croatia's plan to build a bridge, bypassing BiH's small slice of Adriatic coastline, between the mainland and the Peljesac peninsula. The risk in this case is that BiH's access to the open sea might be impaired. Inadequacies in judicial cooperation among Serbia, Croatia, Montenegro and BiH, particularly over war-crimes prosecutions, also remain. As noted above, however, the main BiH complaint is that Serbia has done nothing to implement the February 2007 verdict of the International Court of Justice in regard to indicted war criminals.

**Regional cooperation on tackling regional displacement (2007)**

- · On 29 June 2001, the Agreement on Succession Issues of the Former Socialist Federal Republic of Yugoslavia (SFRY) was signed in Vienna
- · Ministers dealing with refugees and IDPs in Bosnia, Croatia and Serbia-Montenegro commit to solve the remaining population displacement in the region by the end of 2006 through return or local integration (2005)
- · This commitment is one of the requirement included in the accession process to the EU
- · Each country will design a country plan of action
- · A task force will meet four times a year to unite individual actions plans in a joint implementation matrix

- EC, OSCE and UNHCR commends the process as an important step in the right direction
- As of May 2006, roadmaps still have not been finalised and discrepancies remain on major issues such as occupancy rights in Croatia

**ECRE, October 2007, p.2:**

The Agreement on Succession Issues (the Vienna Agreement) came into force in 2004 and aims to regulate the relations of successor states to the former Socialist Federal Republic of Yugoslavia (SFRY). Annex G (Private Property and Acquired Rights), regulates the recognition, protection and access to private property and acquired rights of citizens and other legal entities of former SFRY. It guarantees, on the basis of reciprocity and without discrimination, the protection of rights of all citizens and other legal entities of former SFRY on all the territories and before the institutions of all successor States (Article 7).

Of particular relevance to returnees is Article 6 of Annex G regulating occupancy and tenancy rights.

**UNHCR, May 2006:**

*The 3x3 Initiative*

"Recognizing the remaining number of persons displaced throughout the region and the need to find durable solutions for them, three international actors (OSCE, the EC and UNHCR) came together to encourage the three Governments of BiH, SCG and Croatia to formulate a policy to find durable solutions for refugees in the region within a reasonable timeframe. This "3x3 Initiative" led to the January 2005 Regional Ministerial Conference on Refugee Returns, which resulted in a Ministerial Declaration in January 2005. In the Declaration, the Governments pledge to ensure just and durable solutions for refugees in the region, whether by return or local integration. The Declaration further commits the Governments to formally acknowledge all remaining obstacles to durable solutions in country-specific "Roadmaps", which contain suggested ways forward. These Roadmaps are to be unified into one regional "Joint Matrix". A 3x3 ministerial meeting at the end of March 2006 was hoped to have accelerated the process and led to the finalization of the Roadmaps by the three Governments but, unfortunately, it seems not to have managed that. Lack of agreement on substantial issues, such as a resolution to the issue of former tenancy rights holders in Croatia, continues to hamper real progress."

**ECRE, October 2007, p.2:**

At the Regional Conference on Refugee Returns held in Sarajevo in January 2005, Ministers from Bosnia and Herzegovina, Croatia, and Serbia and Montenegro committed to solving "the remaining population displacement by the end of 2006, facilitating returns or local integration of refugees and internally displaced persons (...) without any discrimination and providing assistance and support (...) in cooperation with UNHCR, the EU and OSCE". In doing so, they agreed to develop individual action plans (Road Maps) for each country signatory to the Declaration which were to be subsequently unified in a joint implementation matrix. Almost two years after the signing of the **Sarajevo Declaration**, progress has been slow. There remains a number of outstanding issues that need to be resolved before a comprehensive Road Map for each country is developed and a Joint Implementation Matrix is agreed. These concern the settlement of the question of Occupancy and Tenancy Rights (OTR) in Croatia and the recognition of pension and other rights for working years spent in Serb controlled areas of Croatia during the war.

**MHRR, 31 January 2005:**

**"We, the ministers responsible for refugees and internally displaced persons in Bosnia and Herzegovina, Croatia, and Serbia and Montenegro, met today in Sarajevo to identify our individual and joint activities that should be undertaken in the forthcoming period with the assistance of the international community in order to ensure a just and durable solution to refugee and IDP situation in our countries;**

Considering that a just solution to this important issue must primarily be in the interest of safety, dignity and well-being of individuals and peoples, and should also contribute to peace and stability in Southeastern Europe, as well as to the efforts our countries are making to join the EU;

**We have agreed as follows:**

1. Pursuant to our country programmes, we are committed to solving the remaining population displacement by the end of 2006, to facilitating returns or local integration of refugees and internally displaced persons in our countries, depending on their individual decisions, without any discrimination, and providing assistance and support to refugees and internally displaced persons in cooperation with UNHCR, the EU and OSCE;
2. Access to all rights and entitlements, including the right to accommodation, shall be ensured in a fair and transparent manner, while all social, legal, procedural or any other requirement for the implementation of the above-said shall be met in the spirit of the present Declaration.
3. Without prejudice to the precedence of the right to return, refugees who have chosen not to return will be assisted by their new host countries to locally integrate in accordance with their national legislation.
4. UNHCR, as well as the EU and OSCE are invited to assist our governments in the return process and local integration and to raise financial and other support and assistance from the international community;
5. Upon return or local integration, all refugees shall enjoy the same rights and shall have the same responsibilities as all other citizens, without any discrimination;
6. The above mentioned principles and goals shall serve as a basis for the development of individual action plans ("Road Map") in our countries, including a comprehensive list of all the tasks that must be undertaken and each country shall bear the individual responsibility for the implementation. Those individual plans of activities shall be unified in a joint implementation matrix;
7. Each country shall prepare its own action plan within the next three months. During the same timeframe UNHCR is invited to assist in creating the necessary databases.
8. We commit ourselves to appointing the representatives of the responsible ministries and other relevant bodies, and we invite UNHCR, as well as the European Union and OSCE to appoint their representatives to the Task Force.

The Task Force shall meet at least four times a year to:

- unite individual action plans in a joint implementation matrix;
- review the data base referred to in paragraph 7 herein;
- review the remaining challenges from (i) repatriation programmes and access to the rights, (ii) economic development in the areas of returns and integration, (iii) exchange of data on durable solutions, and (iv) possible issues of local integration, including, *inter alia*, issues related to social protection of vulnerable groups, such as the elderly, patients and single mothers;"

**Ministers of refugee and DPs in Bosnia, Croatia and Serbia-Montenegro commit themselves to close the displacement chapter in their region by end of 2006 (2006)**

- Ministers dealing with refugees and IDPs in Bosnia, Croatia and Serbia-Montenegro commit to solve the remaining population displacement in the region by the end of 2006 through return or local integration (2005)
- This commitment is one of the requirement included in the accession process to the EU
- Each country will design a country plan of action
- A task force will meet four times a year to unite individual actions plans in a joint implementation matrix
- EC, OSCE and UNHCR commends the process as an important step in the right direction
- As of May 2006, roadmaps still have not been finalised and discrepancies remain on major issues such as occupancy rights in Croatia

**UNHCR, May 2006:***The 3x3 Initiative*

"Recognizing the remaining number of persons displaced throughout the region and the need to find durable solutions for them, three international actors (OSCE, the EC and UNHCR) came together to encourage the three Governments of BiH, SCG and Croatia to formulate a policy to find durable solutions for refugees in the region within a reasonable timeframe. This "3x3 Initiative" led to the January 2005 Regional Ministerial Conference on Refugee Returns which resulted in a Ministerial Declaration in January 2005. In the Declaration, the Governments pledge to ensure just and durable solutions for refugees in the region, whether by return or local integration. The Declaration further commits the Governments to formally acknowledge all remaining obstacles to durable solutions in country-specific "Roadmaps", which contain suggested ways forward. These Roadmaps are to be unified into one regional "Joint Matrix". A 3x3 ministerial meeting at the end of March 2006 was hoped to have accelerated the process and led to the finalization of the Roadmaps by the three Governments but, unfortunately, it seems not to have managed that. Lack of agreement on substantial issues, such as a resolution to the issue of former tenancy rights holders in Croatia, continues to hamper real progress."

**MHRR, 31 January 2005:**

**"We, the ministers responsible for refugees and internally displaced persons in Bosnia and Herzegovina, Croatia, and Serbia and Montenegro,** met today in Sarajevo to identify our individual and joint activities that should be undertaken in the forthcoming period with the assistance of the international community in order to ensure a just and durable solution to refugee and IDP situation in our countries;

*Considering* that a just solution to this important issue must primarily be in the interest of safety, dignity and well-being of individuals and peoples, and should also contribute to peace and stability in Southeastern Europe, as well as to the efforts our countries are making to join the EU;

**We have agreed as follows:**

1. Pursuant to our country programmes, we are committed to solving the remaining population displacement by the end of 2006, to facilitating returns or local integration of refugees and internally displaced persons in our countries, depending on their individual decisions, without any discrimination, and providing assistance and support to refugees and internally displaced persons in cooperation with UNHCR, the EU and OSCE;
2. Access to all rights and entitlements, including the right to accommodation, shall be ensured in a fair and transparent manner, while all social, legal, procedural or any other requirement for the implementation of the above-said shall be met in the spirit of the present Declaration.
3. Without prejudice to the precedence of the right to return, refugees who have chosen not to return will be assisted by their new host countries to locally integrate in accordance with their national legislation.
4. UNHCR, as well as the EU and OSCE are invited to assist our governments in the return process and local integration and to raise financial and other support and assistance from the international community;
5. Upon return or local integration, all refugees shall enjoy the same rights and shall have the same responsibilities as all other citizens, without any discrimination;
6. The above mentioned principles and goals shall serve as a basis for the development of individual action plans ("Road Map") in our countries, including a comprehensive list of all the tasks that must be undertaken and each country shall bear the individual responsibility for the implementation. Those individual plans of activities shall be unified in a joint implementation matrix;
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The Task Force shall meet at least four times a year to:

- unite individual action plans in a joint implementation matrix;
- review the data base referred to in paragraph 7 herein;
- review the remaining challenges from (i) repatriation programmes and access to the rights, (ii) economic development in the areas of returns and integration, (iii) exchange of data on durable solutions, and (iv) possible issues of local integration, including, *inter alia*, issues related to social protection of vulnerable groups, such as the elderly, patients and single mothers;”

**OSCE, 17 February 2005:**

“On 31 January, Chairman of the BiH Council of Ministers Adnan Terzic opened a ministerial conference on regional returns attended by representatives of the governments of Serbia and Montenegro, Croatia, Bosnia and Herzegovina and the international community. The conference produced a Declaration in which the three participating countries committed themselves to “solving the remaining population displacement by the end of 2006”. The governments, in co-operation with the United Nations High Commission for Refugees (UNHCR), the European Union and the OSCE, also pledged to increase their efforts to facilitate returns and local integration of refugees and internally displaced persons.

Over the next three months, the three countries are to develop individual action plans that will be united under a joint implementation matrix; a Task Force, in which representatives of the three international organizations will take part, are then to review these plans. A meeting of the region’s prime ministers, reviewing the progress of the initiative, is also supposed to take place yearly. The next is already scheduled for October 2005 in Sarajevo.”

**UNHCR, 30 January 2005:**

“The principals of the European Commission (EC), OSCE and UNHCR from Bosnia and Herzegovina reiterated their support for the governments of Bosnia and Herzegovina, Croatia and Serbia and Montenegro in their efforts to enable refugee return in the region, and thus fulfil their responsibilities to the Dayton Peace Accord, at a conference held in Sarajevo yesterday.

Participating in the Regional Ministerial Conference, hosted by BiH Prime Minister Adnan Terzic, international community representatives were encouraged by the willingness of the three governments to openly discuss achievements and the outstanding challenges to conclusively tackle the remaining population displacement between these three countries.

UNHCR, EC and OSCE underline the importance of proceeding with the implementation of the Declaration adopted yesterday, within the timeframe agreed, and look forward to continuing our involvement in this process.”

# POPULATION FIGURES AND PROFILE

## General

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### Ethnic Distinctions According to the Constitution (2008)

- Four ethnic distinctions for Bosnia's population

#### CoE, 20 February 2008:

76. The Constitution of Bosnia and Herzegovina defines Bosniacs, Serbs and Croats as "Constituent Peoples" while the rest are referred to as "the Others". According to the 1991 census, the population of Bosnia and Herzegovina consisted of Bosniacs (43.5%), Serbs (31.2%), Croats (17.4%), Yugoslavs (5.5%) and Others (2.4%). The category of "others" was composed of members of 17 national minorities.

## Global IDP Figures

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### As of June 2008, there were 124,958 Displaced Persons in Bosnia and Herzegovina (2008)

- UNHCR, 30 June 2008: Number of displaced persons in Bosnia and Herzegovina: 124,958

#### UNHCR, 30 June 2008:

Number of displaced persons in Bosnia and Herzegovina: 124,958

Displaced Persons:

Federation: 56,204

RS: 67,642

Brcko District: 1,112

**Return figures for 2007:** UNHCR estimates that during 2007, a total of 4,516 persons have returned home, of which 3,899 were minority returns.

1,678 persons returned to the Federation;

2,137 persons returned to RS

701 persons returned to Brcko District.

### IDP Re-registration process (2006)

- Final review of IDP registration application established the number of displaced persons to 134,200 according to UNHCR as of 1st July 2007
- 180,251 displaced persons according to UNHCR as of 31 August 2006
- 185,000 registered as internally displaced in April 2005
- In January 2005, 308,748 persons were registered as internally displaced

- · Number of IDPs after re-registration is two-third less than the number of the previous re-registration exercise in 2000
- · According to the re-registration exercise 13% have registered for the first time as IDPs
- · 98,000 IDPs currently reside in the Federation of which 37% are displaced within the Federation
- · Around 86,000 DPs reside in the Republika Srpska (RS), of which 5% is displaced within the RS
- · Further to the re-registration exercise, the authorities will go through the applications and revise IDP status according to the legislation
- · The revision process was completed in 2006

***In 2004 the Ministry for Human Rights carried out a re-registration exercise to identify the IDP in need of durable solutions. Those who have benefited from reconstruction assistance of have repossessed their property are not considered as IDPs in need of solution.***

#### **MHRR, 2004:**

“Ministry for Human Rights and Refugees, in cooperation with competent Entity Ministries and UNHCR, during 2004 carried out revision of numerical situation of displaced persons in BiH. In a systematic manner, and based exclusively on administrative measures, number of displaced persons has been corrected from 570,000 displaced persons registered in 2000 to some 470,000. Then comparison has been conducted of indicators from database on displaced persons with collected indicators on reconstruction and property repossession, land allocation and other indicators, and there is a conclusion that only some 295,000 displaced persons in BiH are in need of displaced person status.

This strengthened MHRR in conviction that it is necessary to carry out reregistration, and then revision of status, in order to arrange legally the status of all BiH citizens, who still have need for enjoying the status of displaced person in BiH. Therefore, the “Protocol on Implementation of the Process of Revision of Numerical Situation and Status of Displaced Persons in BiH” was signed between BiH Ministry for Human Rights and Refugees, RS Ministry for Refugees and Displaced Persons, FBiH Ministry for Displaced Persons and Refugees, and the District Brcko Government. Its implementation has been foreseen in two phases. Re-registration process in BiH is underway. It will be completed on 15 February 2005, and will give reliable picture in the field of displaced persons, as well as enable launching new process, since data collected during re-registration will be used for harmonized determination of legal status and determination of rights of displaced persons at the entire territory of BiH.”

#### **UNHCR, May 2006:**

“At the end of 2004, the relevant State and Entity authorities, with the co-operation of UNHCR, engaged in a country-wide re-registration exercise of displaced persons (DPs). Following the last such exercise in 2000, when over half a million persons registered as DPs, the aim was to readjust operating figures by determining the accurate number and identifying the main needs of those still displaced in 2005. The exercise was completed in Spring 2005 and resulted in figures dropping from some 518,000 DPs who registered in 2000 to 185,531 persons who re-registered this time. Of these, some 98,000 persons reside in the Federation, some 86,000 in the RS, and the remainder in the Brcko District. After the revision of status, in line with the corresponding legislation, the final number of DPs may lower. However, it is important to remember that individual applications for DP status can still be made.”

#### **UNHCR, June 2006:**



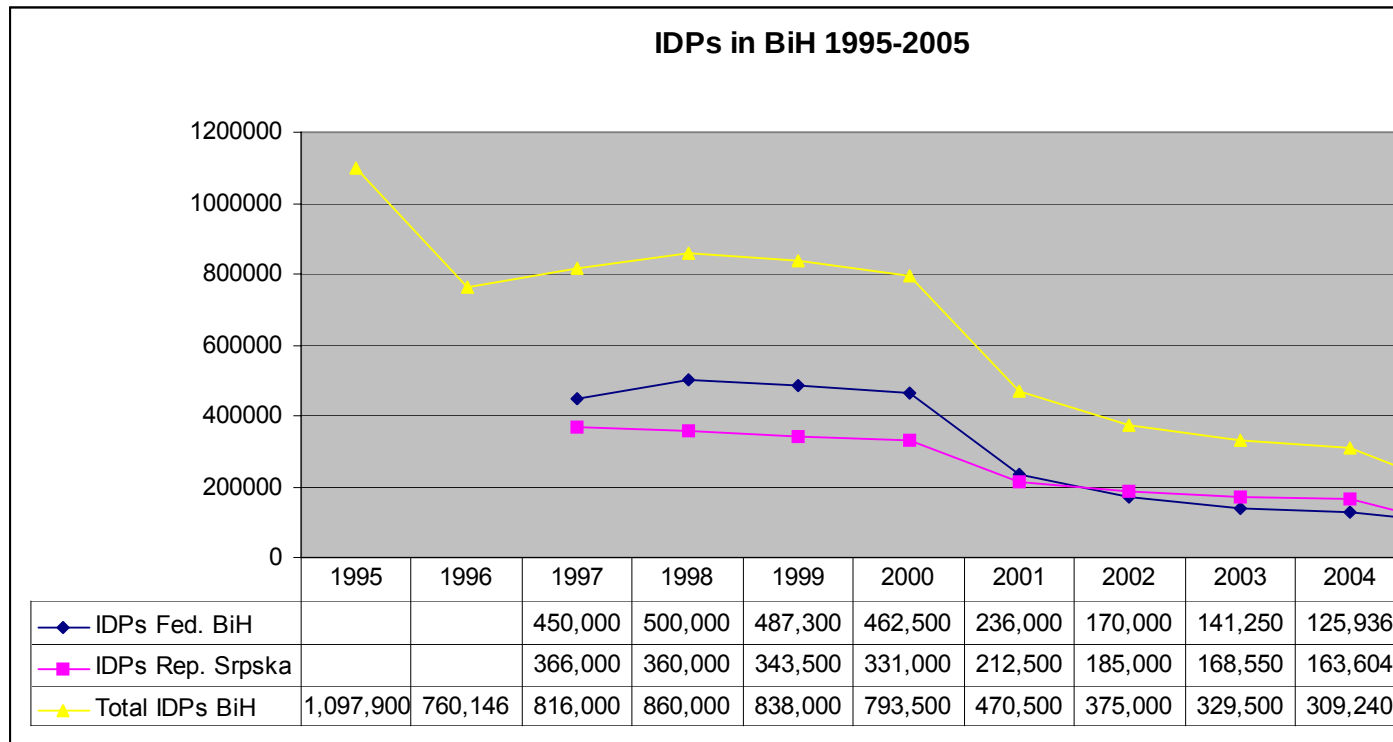
"In spite of the substantial return, BiH is still dealing with a large group of 186,138 (59.892 households) DPs who applied for DP-status in the 2005 re-registration exercise, initiated by the local authorities. The authorities are currently in the process of reviewing the applications and are expected to complete this task in the course of 2006. Given the recent decrease in return, the return of the majority of these DPs in the near future is unlikely.

The number of DPs that re-registered and filed an application for extension of their DP-status numbers roughly 187,000. Of these DPs approximately 24,000 persons (13%) are registered for the first time. Of the total of DPs, approximately 98,000 reside in the Federation of Bosnia and Herzegovina (FBiH), of which 37% is displaced within the FBiH. Around 86,000 DPs reside in the Republika Srpska (RS), of which 5% is displaced within the RS. The remainder are displaced in the Brcko District."

***For more information on the IDP revision process go to section "National response", See also for more detailed results on the re-registration exercise (in sources below) "Comparative analysis on access to rights of refugees and displaced persons, Ministry for Human Rights and Refugees, December 2005, pp.81-95***

### **Internal displacement since Dayton (1995-2005)**

- Rapid decrease in 1996 corresponds to massive majority returns in the immediate post-war situation (1996)
- Re-registration exercise in December 2000 shows a drop in IDP figures reflecting the intention of many to locally integrate
- Increased feeling of security and progress in property repossession lead to significant return in 2001 and 2002
- Slow decrease of IDP population since 2003 corresponds to lower rate of return due to several reasons: certain IDP have locally integrated, lack of funding for reconstruction of houses, sustainability issues
- Ministry for Human Rights and Refugees gives a slightly lower estimates of IDPs in need of solution than UNHCR: 295.000 (14000 less)
- Preliminary results of re-registration exercise shows significant drop of IDP figures



Source: UNHCR

#### ***Re-registration exercise of IDPs in December 2000***

##### **Commission for Human Rights, 2001:**

"According to the Office of the United Nations High Commissioner for Refugees (UNHCR), as of October 2000 there were still some 793,000 internally displaced persons (IDPs) in Bosnia and Herzegovina and 300,000 Bosnian refugees abroad. Under the new laws on refugees and IDPs, all displaced persons have to re-apply to maintain their status (as displaced persons). It is expected that this re-registration exercise, the results of which were expected in early December 2000, will determine more precisely the current number of displaced persons, as well as their aspirations for the future. The number is likely to be somewhat lower than the UNHCR figure and many IDPs/refugees may declare that they no longer wish to return to their pre-war homes."

#### ***Progress of property repossession helps many IDP to return (2001-2002)***

##### **Housing conference, 2003:**

"The decrease in the regional displaced population during 2002 as shown in the above table is a continuation of the decrease in 2001. This progress is summarily analysed below. 2001-2002 saw rapidly decreasing numbers (compared to previous years) of refugees and DPs. Many found durable solutions by returning: over 120,000 returns have been recorded in 2001 in Croatia (23,100) and in BiH (98,900); some 100,000 were so-called minority returns of refugees and DPs. In 2002 17,600 returns have been registered in Croatia and 108,000 including over 102,000 "minority returns" in BiH by 31 December (Total: 125,600). (...)

Actual property repossession in BiH through the Property Legislation Implementation Plan (PLIP) at mid-March 2003 stood at 74% of the submitted requests for property repossession. Property repossession in Croatia has progressed since the 2001 revision of occupied private property. By 1 February 2003 some 8,600 housing units have been repossessed, while 10,300 units are yet to be returned to their owners."

#### ***IDP figures stagnates (2003-2004)***

**Reuters, 2003:**

"[UNHCR representative, Udo]Janz also said the figure halved in 2003 from the previous year's 107,000 people, an indication that the bulk of the people who wanted to return have done so by now"

***In 2004 the Ministry for Human Rights carried out a re-registration exercise to identify the IDP in need of durable solutions. Those who have benefited from reconstruction assistance of have repossessed their property are not considered as IDPs in need of solution.***

**MHRR, 2004:**

"Ministry for Human Rights and Refugees, in cooperation with competent Entity Ministries and UNHCR, during 2004 carried out revision of numerical situation of displaced persons in BiH. In a systematic manner, and based exclusively on administrative measures, number of displaced persons has been corrected from 570,000 displaced persons registered in 2000 to some 470,000. Then comparison has been conducted of indicators from database on displaced persons with collected indicators on reconstruction and property repossession, land allocation and other indicators, and there is a conclusion that only some 295,000 displaced persons in BiH are in need of displaced person status.

This strengthened MHRR in conviction that it is necessary to carry out reregistration, and then revision of status, in order to arrange legally the status of all BiH citizens, who still have need for enjoying the status of displaced person in BiH. Therefore, the "Protocol on Implementation of the Process of Revision of Numerical Situation and Status of Displaced Persons in BiH" was signed between BiH Ministry for Human Rights and Refugees, RS Ministry for Refugees and Displaced Persons, FBiH Ministry for Displaced Persons and Refugees, and the District Brcko Government. Its implementation has been foreseen in two phases. Re-registration process in BiH is underway. It will be completed on 15 February 2005, and will give reliable picture in the field of displaced persons, as well as enable launching new process, since data collected during re-registration will be used for harmonized determination of legal status and determination of rights of displaced persons at the entire territory of BiH."

**UNHCR, 15 April 2005:**

"The number of displaced people in Bosnia and Herzegovina has dropped dramatically in the last five years due to returns and local integration, according to the preliminary results of a major re-registration exercise.

The initial results, released by the authorities in Bosnia and Herzegovina on Friday, show that there are now 185,000 internally displaced people (IDPs) in the country, down by two-thirds from the 2000 figure of more than 500,000. The new number is also substantially lower than the last UNHCR estimate of 310,000 at the end of 2004.

"While this drop is partly accounted for by the known return of some 210,000 people to their homes in their pre-war places of residence during this period, the figures also reveal that a further 120,000 people decided not to re-register as displaced this time round," UNHCR spokeswoman Jennifer Pagonis told reporters in Geneva on Friday. "This is presumably for the most part because they have in the meantime found a solution, either by returning to their pre-war homes or by integrating into the communities where they have been living for the past decade."

She added that the authorities must now process the applications and determine the true needs of those who are still displaced in Bosnia and Herzegovina, almost 10 years after the signing of the Dayton Peace Agreement.

"Once this is done, we should have a much clearer picture of the outstanding needs, and the authorities will be in a better position to target the limited funds available for those among the 60,000 or so families who are still in need of assistance," said Pagonis."

### **National authorities see the need for a re-registration of IDPs in 2003**

- The Ministry for Human Rights and Refugees estimates indicate 386,110 internally displaced persons as of 30 June 2003
- However, the Ministry for Human Rights and Refugees estimates that the actual number of displaced persons is less than 250,000
- Reasons provided for a lower number include, displaced persons who registered more than once and persons who are no longer displaced but have not legally de-registered

### **Ministry for Human Rights and Refugees October 2003, pp.23-24: "Current Number Of Persons Displaced In BiH**

When the number of displaced persons as at 31 December 2000 is reduced by the number of returns recorded from 01 January 2001 to 30 June 2003, there are about 386.110 persons currently displaced in Bosnia and Herzegovina.

#### *Projection Of Actual Number Of Displaced Persons In BiH*

The Sector for Refugees from BiH and Displaced Persons in BiH estimates that the former presented figure of 386.110 displaced persons as at 30 June 2003 is both incomplete and inaccurate because after the census had been carried out in 2000 there was no de-registration in BiH. This clearly indicates that the number of displaced persons is considerably lower than calculated while the reliable figure would be established upon the status revision exercise.

A lot of displaced families have in the meantime repossessed their properties or occupancy rights following the implementation of property laws. Additionally there is a large number of families who have been assisted in reconstruction for return and a significant number of those who have sold out either/or exchanged their housing units and settled elsewhere too. All the listed situations are according to the Law reasons for cessation of a displaced person's status [1]. For the establishment of an accurate numerical indicators on current displacement in BiH it is necessary to carry out a de-registration exercise of all those who durably resolved their status.

Besides, a technical control of the Central Database on Displaced Persons (CDDP) has resulted in the verification of a large number of double-entries due to the fact that some families have applied for status for two or more times and even in two or more municipalities at the same time.

The Strategy of Bosnia and Herzegovina for the Annex VII (GFAP) Implementation recognized the completion of a database on refugees and displaced persons as one of the most important preconditions for a successful proceedings on Annex VII (GFAP) provisions. The Ministry for Human Rights and Refugees in co-operation with UNHCR is considering the legal provisions for the realization of this process.

It is marked that not only displaced persons who are still in the need for durable solutions would benefit from this activity, but all national and international subjects providing for the reconstruction and Annex VII (GFAP) implementation too. This would result in directing the reconstruction assistance to priorities and eliminating double beneficiaries.

It is our understanding proved by the collected indicators that around 140.000 persons should be additionally de-registered in relation to the currently stated figures of displacement, as follows:

- 35.000 persons who are in the database recorded two or more times,
- 105.000 persons who durably resolved their status in some other way,

Explanation:

A lot of families have durably regulated their status on individual bases or have been assisted by various national and international organizations upon the registration exercise had been carried out.

- Some of displaced families have purchased or exchanged properties and thus decided to live elsewhere.
- A large number of families had been allocated construction land and either by self assistance or donations have built housing units.
- The implementation of property laws resulted in large number of displaced persons' repossession so the voluntary return to former places of residence in safety and with dignity is feasible but either the whole families or some of their family members are not willing to return. A lot of them are just waiting for a good opportunity to sell, exchange or rent their housing units.
- Additionally, a large number of housing units have been reconstructed but the prewar owners or individual members of their families are not returning. However, when applying for assistance in reconstruction at the same time they submitted the applications for voluntary return yet they had not left their temporary accommodation and have not returned.
- Unfortunately, some of displaced persons took the opportunities of various resettlement programmes and left abroad thus "de facto" losing a displaced person's status but these circumstances have never been regulated "de jure".

All listed situations represent the legal basis for a cessation of a displaced person's status.

Referring to the aforementioned we estimate that less than 250.000 persons in BiH still need the status of displaced persons.

This short review does not include the social or some other aspects and dimensions on the issue but aims at the presentation of the present understanding and estimations of the Ministry for Human Rights and Refugees with regard to the current and actual number of displaced persons in BiH."

[Footnote 1] *Article 6 of the Law on Refugees from Bosnia and Herzegovina and Displaced Persons in Bosnia and Herzegovina* ("Official Gazette" of Bosnia and Herzegovina, 23/99)

### **At least 200,000 persons have become internally displaced since the Dayton Agreement (1995-1999)**

- 80,000 persons displaced as a result of transfers of territory between the two Entities
- The internally displaced population also includes returning refugees who cannot return to their pre-war home

#### Newly displaced persons

#### **UN Commission on Human Rights, 17 March 1998, para. 4:**

"[S]ince Dayton, another 80,000 individuals have been displaced as a result of transfers of territory."

#### Relocated returning refugees

##### **USCR 2000, p. 220:**

"In 1999, 43,385 internally displaced persons returned to their places of origin - 50 percent more than in 1998, when 29,570 internally displaced persons returned. Despite these returns, the overall number of internally displaced people in Bosnia barely decreased from the previous year, as many repatriating refugees became newly displaced. About 10,000 Bosnian Serbs originating in the Federation relocated from Yugoslavia to Republika Srpska at the time of the bombing; and many non-Serb returnees from third countries, originally from Republika Srpska, were forced to relocate to areas of the Federation."

##### **UN SC 11 June 1999, para. 46:**

"The total number of refugees having returned to Bosnia since the end of the war has reached some 330,000. Another 256,000 displaced persons have returned within Bosnia, but the overall estimated number of displaced has continued to increase to approximately 850,000, as refugees relocated upon repatriation outnumber those who return to their pre-war homes."

##### **HIWG 16 November 1998, p. 13**

Cumulative figure for relocating returnees (1997-1998) as of 10 November 1998

106,000 refugees relocated in the Federation

9,500 refugees relocated in the Republika Srpska

## **Disaggregated data**

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### **Statistical profile of displaced person population (2006)**

#### **UNHCR, October 2007:**

##### **Access to social and economic rights:**

"Approximately, 82% of the DPs still have their property destroyed. It is assumed that the DPs are mainly accommodated in private property owned by someone else (22%). Some are residing in collective accommodation (8%) or are accommodated in socially owned apartments (8%). As the economic situation in BiH is bleak, worsened by the difficulties faced through the economic transition, the problem of scarce employment opportunities is endemic for BiH. While the lack of employment opportunities constitutes an obstacle for return, it also haunts individuals in displacement. Only an estimated 17% of the DPs are employed. Besides employment, other sources of income are pension and other allowances and/or entitlements. It is assumed that 20% of the DPs are without any source of income.

##### **Gender and age considerations:**

The recent re-registration indicates that 2,467 are elderly without any source of income. Children are also a vulnerable group. There are around 19,000 minors, of which 3,000 between the ages 0-5 and 16,000 aged between 5 and 18. Furthermore, it appears that roughly 96,000 IDPs are women, and approximately 32% are female-heads of households, another group of particular concern.

##### **Vulnerable persons:**

Among the IDPs are significant numbers of persons who need special attention: 8,845 persons are physically and/or mentally challenged and 10,926 are chronically ill. The problems to be addressed to improve conditions for many IDPs go far beyond return and local integration efforts. Political will to implement social policies to address the needs of this vulnerable population will be

required. At present, weak government institutions do not effectively support these vulnerable IDPs. According to various Government reports approximately 7,000 extremely vulnerable IDPs live in some form of collective accommodation. More specific review of this category is necessary in order to identify appropriate solutions for them. The Government effort to find a permanent solution for these persons needs to be increased. For many vulnerable persons, after 16 years of living as an IDP, focus only on return is not realistic. All aspects of durable solutions will need to be examined.”

***For more information on the results of the re-registration exercise of IDP, see also (in sources below) "Comparative analysis on access to rights of refugees and displaced persons, Ministry for Human Rights and Refugees, December 2005, pp.81-95***

#### **Disaggregated data on returnees (2008)**

***There are no disaggregated data on returnee populations. Returnees are registered by the municipalities, where neither age nor gender are being registered.***

# PATTERNS OF DISPLACEMENT

## General

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### UNDP survey has details on patterns of displacement (2007)

#### UNDP, 7 July 2007, section 3: Displacement, Diaspora and Return:

##### 3.1 Displacement and Return – The Facts (results from a nationally-representative survey with 3,580 respondents)

- Four in ten (40.2% or 1,438) respondents say they experienced forced migration
  - Just over half (54.8% or 788) report that they were displaced once, leaving 45.2% (or 650) who experienced multiple displacements
  - Out of the 650 respondents who were displaced, more than once 48, one third (32.5%) were displaced twice, close to one third (29.1%) three times and about one quarter (25.4%) five times and more. It appears that for about half of the BiH population who experienced forced migration, displacement was a history of multiple moves. In a few cases, respondents say they were displaced more than ten times
  - As for locations, about four in ten (43.4% or 624 51) of the 1,438 who were displaced did not go far and remained within their Entity. A further two in ten (19.9%) stayed within BiH but went to the other Entity. Therefore, about two thirds (63.3% or 910 cases) remained within the borders of BiH. They represent the number of migrants who can be considered as IDPs. The remaining 35.1% (or 504 cases) are strictly speaking refugees as they went beyond the borders of BiH
  - In sum therefore, 40.2% of the BiH population above the age of 18 experienced forced migration. One quarter (25.4%) of the total sample 55 are IDPs, 14.1% are refugees. The rest were never displaced
  - Generally, [...] non-returnees are slightly more likely to be in urban areas, returnees more in the countryside. To some degree this underlines the remaining urbanisation-dimension in displacement
  - Non-returnees tend to be younger but there is no inverse value for returnees. Employment makes a small difference in the sense that non-returnees tend to be more unemployed (compared with inactive) and returnees are more likely to be inactive compared with employed. There is also a small effect from perceived standard of living
  - Life satisfaction, subjective health, education and markedly income do not play a role. Also, there is no significant effect from perceived standard of living
  - Overall, compared with other analyses in this report, the parameter estimates for displacement status are moderate or weak. They do not mark out returnees and non-returnees as special-needs groups which require immediate attention. The results also help to put comments made by discussants in the focus group into a quantitative context.
- [...]



- Except for a smallish effect from employment status, there are no significant economic differences between displaced and non-displaced respondents. This study thus shows that on the merit of people's own reports displacement did not expel returnees and non-returnees from the economic mainstream. That in itself is a major achievement
- Regarding attitudes to the displaced, overall, responses are remarkably supportive: when it comes to the displaced, there is a distinct sense of compassion and solidarity. At this level, there appears to be solid support for both continued return and the sustainability of return. However, people believe that the assistance-delivery-system is corrupt, and that non-returnees are somewhat less deserving. Remarkably, responses do not differ much between displaced and non-displaced respondents

### **Increased deportations of BiH citizens lead to further internal displacement (2005)**

- Deportees are rejected asylum-seekers, or persons whose temporary protection status have ceased
- Some of the deportees are former IDPs who sought asylum abroad after the war because they were unable to return to their home
- This phenomenon was prompted by the late progress of the property repossession process
- Application by asylum countries of the "internal flight alternative" contributes to swell IDP numbers

#### **UNHCR, January 2005:**

"The number of deportations to BiH has increased in the past three years. According to the BiH State Border Service (SBS), 3,398 persons were deported from European countries during the year 2003, nearly double the number of deportations in 2002 (1,716 persons). Another 2,199 persons were deported to BiH in 2004. The highest number of deportations came from Sweden (611), Germany (465), Croatia (411) and Denmark (165). While the percentage among the deportees who appear to have gone through an asylum procedure is limited, some are persons whose temporary protection status ceased, and others are rejected asylum-seekers who left BiH after the war.

UNHCR has observed that among the deportees are former IDPs in BiH who were seemingly not able to return to their homes of origin because of their continuing protection needs and who decided to seek asylum abroad. This is prompted by the fact that, with the relatively late implementation of the property laws, many IDPs in recent years had to vacate the properties they were temporarily occupying to allow the return of the original property right holder. This, coupled with the lack of appropriate alternative solutions, may have led some of the evictees who fear to return to their pre-war place of residence or who do not have habitable property to return to deciding to seek durable solutions abroad. (UNHCR note: The Property Law Implementation Plan (PLIP) was conceived in 1999 as a tool for enabling the right to return to one's home, a right enshrined in Annex VII of the GFAP. PLIP in fact helped hundreds of thousands of refugees and IDPs to return home since. Implementation implied, however, that the right to property repossession could ultimately be enforced through the forcible eviction of the current occupant who refuses to vacate the property of another rightful owner. Under the domestic DP legislation, BiH authorities are required to provide often basic accommodation to IDPs who had to vacate the occupied properties but have a genuine need for housing. In practice, such accommodation may be limited to the neediest and is not always adequate in terms of standards.)

UNHCR remains concerned that such cases are summarily dismissed, on the presumption of the overall improved conditions in BiH, and without proper consideration of the individual claim. As some of these new asylum-seekers might have been unable to return to their area of origin because of concerns for their safety, past persecution or severe trauma, or fear of persecution by

non-state agents (such as war criminals still at large), there is a continuing need for a case-by-case assessment of their claims.

An increasing number of asylum countries have started to apply the so-called “internal flight or relocation alternative” (IFA) to asylum-seekers from BiH, be they “new” asylum seekers who left BiH after the war or persons whose temporary protection status has ceased. The application of the IFA implies that persons who have a well-founded fear of persecution in one place may be able to settle safely in other parts of the country and live a normal life there.

As indicated in UNHCR’s Guidelines on the internal flight alternative, (...) the concept should not be used to bypass a comprehensive assessment of the asylum claim. Before it can possibly be considered to expect a refugee whose well-founded fear of persecution has been established for one part of the country of origin to relocate to another, careful analysis as to the *relevance* and to the *reasonableness* of such relocation should be applied. It is UNHCR’s assessment, that in view of the current conditions in BiH, internal flight or relocation may not be an option for many individuals, who instead swell the numbers of IDPs in the country.”

### **Remaining IDPs and current returnees are among the most vulnerable (2005)**

- IDP figures reduce slowly as the remaining candidates for return are the most vulnerable
- A re-registration exercise to be completed early 2005 should give a better estimate of the number of IDPs in need of durable solutions
- Returnees are also among the most vulnerable

#### **UNHCR, 2005:**

“[T]he number of returning refugees and IDPs is lower than expected. It is anticipated that 2005 will see a continuation of refugee and IDP returns, albeit on a reduced scale. During 2005, UNHCR will continue working towards the completion of its obligations under Annex VII of the Dayton Peace Agreement.

The continuation of the re-registration exercise begun in 2004 will yield a clearer picture of the number of those still displaced who wish to return. Although the overall number of returns is likely to be modest in comparison with those of recent years, the undiminished attention of the humanitarian community will be required, as a number of those who do choose to return will be particularly vulnerable. Legal advice and basic assistance will be required by households headed by single females, people who have been languishing in sub-standard collective facilities (including the handicapped and elderly) and those traumatized by war.”

#### **UNDP April – June 2003, pp.21-22:**

“The category of internally displaced persons is getting smaller – not because they are returning to their pre-war homes, but because their property is being reinstated and they lose the status of being displaced. In the previous and this quarter, the number of reinstatements grew considerably; what is worrying is that return is being reduced to the return of the poorest and socially vulnerable categories, who become even more vulnerable in their new-old environment, since they cannot count any longer with the assistance of international and entity institutions, or social or neighborly solidarity. International organizations and entity ministries complete their work on the return by reinstating refugees and displaced persons or by constructing housing facilities. It turns out that this is only a smaller part of the work, since the returnees, usually without any savings and means to start a private business, continue to depend on assistance. Thus, returnee settlements turn into isolated and introvert enclaves, without social links with their surroundings.

Numerous groups of the Roma communities, scattered around BiH, are in a similar position. Members of this population begin returning to their country, too, but they meet with a worse reception than other categories of the population. Social work centres do not even keep records of their number or these records are totally unreliable because of the great movability of Roma families. In any case, the Roma can count less than other inhabitants of BiH with social welfare, and by all accounts, efforts of the international community to implement projects of assistance for the Roma minority have not yielded significant results."

### **Displaced Roma, a particularly vulnerable group (2008)**

- Bosnian war affected Roma like other groups of the country
- Most Roma got displaced from RS to the Federation, where they now live in great poverty
- Dayton peace agreement while trying to protect the three main ethnic group marginalized Roma
- Marginalisation of Roma has made their return more difficult
- Action plans for the employment, health and housing of Roma have not progressed during 2006

#### **CoE, 20 February 2008:**

"85. Roma are the largest national minority in Bosnia and Herzegovina. Although (in the absence of a recent census) the exact number of Roma is not known, it is estimated that there are between 30,000 to 60,000 Roma living in the territory of Bosnia and Herzegovina. Before the war, the Roma communities used to live mainly in the territory of what is today the Republika Srpska. During the war, large numbers of Roma left their pre-war places of residence, either as displaced persons or as refugees. Many were expelled and very few have returned to their place of origin. Consequently most of the Roma today are residing in the territory of the Federation of BiH. The vast majority of the Roma in Bosnia and Herzegovina live in extremely difficult socio-economic conditions and in extreme poverty."

#### **ERRC, February 2004, p.10:**

"The break-up of the former Yugoslavia and the wars that ensued had a devastating effect on Romani individuals and communities in Bosnia and Herzegovina. Roma were brutally treated by all parties to the conflict, and it is feared that as many as 30,000 Roma were subject to ethnic cleansing. Many Roma were also detained and severely ill-treated in concentration camps, particularly Serb-run concentration camps. Roma and Romani communities were reportedly particularly targeted in Prijedor and the surrounding villages of Kozarac, Hambarine, Tukovi and Rizvanovici. Horrific atrocities were also committed against Roma from Vlasenica, Rogatica and in Zvornik and surrounding villages. At least seventy Roma were killed in the infamous massacre at Srebrenica in 1995. Romani men were also forcibly conscripted and made to perform slave labour in the armies of all sides to the conflict. Many Romani women were raped and/or forced to perform sex labour,. The 1992-1995 war saw the wholesale destruction of a number of Romani communities. To date, justice has yet to be provided to Romani victims of actions during the 1992-1995 war. [...]"

#### **ERRC, February 2004, p.21:**

"The ethnic tensions that surfaced in 1980 and which, in 1992, culminated in three years of bitter ethnic civil war, have contributed significantly to the social exclusion of Roma in Bosnia and Herzegovina. The relatively small Romani minority was not formally allied with any of the parties to the war and at no point during the civil war did Romani groups attempt to constitute themselves as a fourth combatant group in Bosnia's ethnic war.[...] When the terms of the peace settlement

were negotiated, the situation of Roma was not taken into account. Indeed, the resulting peace treaty designed at Dayton and the post war Constitution institutionalize a state of Bosnia and Herzegovina which recognizes three groups - Bosniaks, Croats and Serbs-as hegemonic, to the exclusion of other ethnic groups”

**ERRC, February 2004, p. 19-20:**

“As for the current situation, the London-based Minority Rights Group considers the number of Roma to be around 40-50,000, and according to the Organisation for Security and Co-operation in Europe (OSCE) Mission to Bosnia and Herzegovina, there are “10,000 to 40,000 Roma in BiH, although there could be as many as 60,000”. Local Romani activists put the number of Roma in Bosnia and Herzegovina even higher, estimating it to be 80,000 to 120,000 persons. The distribution of the Romani population is uneven, where the highest concentration is in the Tuzla Canton in the Federation, home to some 15,000 Roma. Before the Bosnian war, many of the Tuzla Canton’s Roma lived in the territory that now belongs to the Republika Srpska entity, but were forcibly displaced during the war as they fled persecution as Muslims in this predominantly Serb region. In comparison, the number of Roma in all of Republika Srpska today do not reach 10,000 persons, whereas it is considered that before the war the majority of Bosnian roma lived on this territory. The Tuzla Canton is followed by Zenica-Doboj and Sarajevo cantons in terms of numbers of Roma living in them.”

**USDoS, 11 March 2008:**

The Roma population, estimated at 40,000 to 80,000, faced serious difficulties in exercising the full range of fundamental human rights provided to them under the law. Access to employment, education, and government services were particular problems. The BiH Helsinki Committee estimated that only 1 percent of the working-age Romani population was employed and indicated that Roma were usually the first to be let go during a reduction in force. Many Roma were also excluded from public life because they lacked birth certificates, identification cards, or a registered residence. Many Roma also could not access health care or register to vote. Only a small number of adult Roma were officially employed, and Roma were often denied social support; some families sent their children out to beg or relied on other sporadic sources of income.

During the year the Roma Council and the Ministry of Human Rights and Refugees worked to develop action plans for the employment, health and housing of Roma, in efforts to fulfill preconditions for eligibility in the "decade of Roma inclusion" initiative in the EU. However, by year's end the government had not completed the action plans for housing, health care, and employment, while the implementation of the education action plan had been implemented only partially.

**(See on the Decade of Roma, under which the Action Plans should fall: [www.romadecade.org](http://www.romadecade.org))**

**See also on Roma:**

***In the Education Section, "Efforts to facilitate the integration of Roma children at schools"***

***In Documentation Section, "Roma excluded from fundamental political and social rights because of lack of personal documents"***

***In Subsistence Needs Section, "Displacement aggravates the living conditions of Romas"***

***In Property rights section, "Roma continue to struggle to access property rights" and "Some measures taken to legalise Roma settlements"***

**Internal displacement follows a rural-urban migration pattern (1998)**

**Stubbs 1998, p. 194:**

"There are few systematic data comparing and contrasting refugees and IDPs, though some generalizations can be made. On the whole, the refugees who left Bosnia-Herzegovina did so earlier in the war rather than later (when the exit doors were firmly closed). They tend to be urban, more cosmopolitan in outlook and better educated than their internally displaced counterparts. The presence of large numbers of rural IDPs in the urban centres has been a cause of continuing tension in Bosnia-Herzegovina (the two groups were relatively impermeable before the war) and has contributed to the continued dominance of the three ethnically-based nationalist parties."

**See also** *["War-induced movements: typology \(1998\)"](#)* *[Internal link]*

# PHYSICAL SECURITY & FREEDOM OF MOVEMENT

## Physical security

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**The security situation is improving, while the reluctance to punish ethnically motivated violence remains (2008)**

- Security has steadily improved in the last three years but return related incidents still occur in various part of the country
- There is reluctance on behalf of the police to investigate return-related incidents and a low number of convicted perpetrators
- Ethnically motivated violence affects minority returnees or their properties, religious buildings, and graves
- In some cases the authorities have fuelled inter-ethnic tensions by allocating private land belonging to minorities to members of dominant ethnicity.
- Ethnic bias in favour of the dominant ethnicity has also been reported in Court

**USDoS, 11 March 2008:**

A hostile return environment remained in some places. During the year there were attacks against symbols of minority groups and away from attacks against individuals. Many returnees cited authorities' failure to apprehend war criminals as a disincentive to return. Many displaced persons created permanent lives away from their prewar homes, and only individuals with few other options (including a large number of elderly pensioners) tended to return.

[...]

Ethnically-motivated religious violence was reported in many municipalities and was directed at ethnic symbols, clerics, and religious buildings. Civil society representatives noted that members of the BiH Council of Ministers tended to condemn these incidents only in cases where their own ethnic group was the victim.

**NADEL, ETH Zurich, Return survey, 2006:**

- Around 90% of the respondents feel safe from violent threats based on inter-ethnic tensions.
- 12% of returnees fear such threats, compared to 8% of domiciles.
- The ratio is 15% for minorities and 8% for non-minorities.
- Feeling insecure is more widespread in urban areas and among elder people than in rural areas and among younger people.

**UNDP, Return survey, 7 July 2007, Conclusions p.2:**

"Public service TV, and, on balance, municipal authorities are trusted. Most of all, there is relatively high trust in the police. [...] p.4: Non-priorities include the prosecution of war-criminals, de-mining, national defence, police reform and education."

**USDOS, 8 March 2006 p.7 and 14:**

“While incidents of violence decreased overall in the country, follow-up investigations in a number of cases were problems. Police conducted investigations but consistently failed to apprehend and charge perpetrators of ethnically motivated hate crimes. For example, in February an unknown assailant physically attacked an elderly Bosniak returnee to the RS town of Dobož.

In May a match between the country's junior national soccer team and the team of Serbia and Montenegro in Bijeljina was marred by ethnic slurs against Bosniaks and burning of the BiH flag by Bosnian Serb supporters of the visiting team. Also in May unknown persons broke the windows of three Bosniak-owned shops in Prozor.

Harassment and discrimination against minorities continued throughout the country, often centering on property disputes, despite improvements in some areas. These problems included desecration of graves, arson, damage to houses of worship, verbal harassment, dismissal from work, threats, and assaults.

Entity and local governments and police forces frequently allowed or encouraged an atmosphere in which abuses of religious freedom could take place, although there was improvement from previous years. Overall, respect for religious freedom declined during the year. In some cases, however, police and local government officials acted to protect religious freedom by providing security for major religious events and for religious buildings. The reluctance of police and prosecutors to aggressively investigate and prosecute crimes against religious minorities remained a major obstacle to safeguarding the rights of religious minorities.

Ethnically motivated religious violence was often directed against ethnic symbols, clerics, and religious buildings. Local police generally did not conduct serious investigations into such incidents.

**Helsinki Committee, 17 January 2006:**

“Although the security of the returnees and their property has improved in 2005, we still record a large number of assaults on national and religious facilities and monuments, and there were some cases of physical assaults and the cases of destruction of property. The police are more efficient in their work, but there is still unbalanced number of employees from the ranks of minorities.

The Helsinki Committee for Human Rights in BiH this time also expresses its concern because the authorities still fail to undertake measures in order to resolve many-year focal points and potential inter-ethnic conflicts in some cases, such as Kotorsko near Dobož where local authorities passed decisions to allow construction of houses for displaced Serbs on the appropriated private property. Already for years, Bosniaks have been claiming back their private land, and 126 Serb families ask for places to live in. In Sanski Most too, many-year pending court disputes relating to appropriation of the land of the citizens of Serb ethnicity have not yet been resolved. The authorities claim that „there is no law” under which illegally placed crosses at the Stolac Old Town and at the monument of victims of Blajburg at Radmilja can be destroyed, etc. “

***For more information on security incidents see Helsinki Committee full report (link in "Sources" below)***

**UNHCR, January 2005, p. 3-6:**

“In 2004, 135 return-related security incidents were reported over the year, 56 in the RS, 73 in the Federation and six in Brčko District. In December 2004, a returnee leader in Teslić was killed by an unknown perpetrator which created fear and anger among the returnee community. Apart from being a returnee leader, the victim was also witness to a cantonal court trial against an individual charged for war crimes.[...]

It remains a significant concern that the local police are often reported to be slow in responding to incidents affecting returnees and that few return related incidents result in adequate sentences or even identification of the perpetrators. In certain instances, serious negligence and mishandling during the examinations have cast serious doubts on the ability and willingness of the local police

to identify and arrest suspects. Prosecutors have also on several occasions been reluctant to act upon cases, as was the case in the Eastern RS in March 2004, when hateful messages and posters of Radovan Karadzic were driven around in open vans and no investigation related to Article 390 of the RS Criminal Code (inciting or promoting national, racial or religious hatred) was being launched.

The number of perpetrators convicted remains extremely low, and the sentences imposed are often lenient in spite of the seriousness of the crimes. Additionally, local authorities often do not sufficiently condemn return-related incidents and if so, their statements are frequently the result of strong encouragement from international organizations.

The recruitment of additional “minority police officers” still needs to be actively pursued and the proper conditions for them to fulfil their duties need to be put in place. In Srebrenica, for instance, less than 10% of the local police force are ‘minority officers’ and it has been very difficult to retain them due to the salary differences in force across Entities. It is hoped that the European Union Police Mission (EUPM) despite its limited mandate will continue to exert efforts in ensuring the recruitment of “minority police officers” within the context of a transparent police reform process and in securing the safety of returnees.”

#### **Landmines continue to pose barrier to safe return of displaced persons and refugees (2008)**

- Some observers question the integrity of the government de-mining projects
- Lack of funding for demining hinders sustainable return
- Demining is particularly difficult in BiH due to the absence of mines map
- 128 municipalities are affected by mines
- BiH Ministry of Foreign Affairs coordinates demining activities, a mine action strategy was adopted in 2003
- Between 1996 and 2002, the mine incident rate has fallen from an average of 52 casualties per month to six casualties per month
- In the first 4 months of 2003, 14 of 27 fatal mine accidents were returnees
- Land mines pose a significant barrier to the reconstruction of BiH, to the safe return of IDPs and refugees and to the development of economic activities

#### **USDoS, 11 March 2008:**

“Although the government supports an array of demining programs, outside observers questioned whether government corruption undermined the integrity and safety of demining projects in the country. During the year there were 30 landmine accidents that killed eight persons and injured 22.”

#### **UN Committee on Human Rights, 29 December 2005, par.37:**

“Landmines pose a significant obstacle to the safety of returnees, to reconstruction efforts and to the development of economic activities in Bosnia and Herzegovina, which remains the most heavily mined country in South-Eastern Europe. As the majority of returns are taking place to rural areas where agriculture and cattle-breeding are essential means of subsistence, IDPs and returnees are particularly heavily affected. From 2003 to 2004, a total of 95 persons were victims of mine accidents, of whom 37 were returnees and 5 were IDPs. The Ministry of Civil Affairs,



which is responsible for the implementation of the mine action plan, intends to prioritize mine clearance in return areas. However, at the current rate of mine clearance, which is almost totally funded by international donors, this will take an estimated 10 years.(...) The Representative also received allegations of a deliberate lack of mine clearance efforts in some return areas.”

**See also:** *Reducing risk through community mine action, July 2006*

**UNHCR, January 2005, p.6:**

“Land mines are still a significant barrier to the reconstruction of the country, the safe return of IDPs and refugees and the development of economic activity in BiH, which remains the most heavily mined country in South Eastern Europe. According to figures provided by the BiH Mine Action Centre in 2003, 670,000 mines and 650,000 unexploded ordnance (UXOs) remain in roughly 10,000 sites. Twelve (12) per cent of these explosive devices are located in zones of everyday use, reconstruction and economic activities.

Low resources allocated to demining activities negatively impact the possibility for the safe return of IDPs and the creation of job opportunities. At the current speed of demining (currently almost totally funded by international donors), it is estimated by the BiH Mine Action Centre that it will take around 10 years to demine these priority areas, excluding the clearance of UXOs.

In 2003, a total of 54 persons were victims of mine accidents, out of whom 9 were children, 19 were returnees and 5 were IDPs.<sup>12</sup> During 2004, a total of 41 mine accidents were reported by the ICRC, 18 of which involved returnees. Two 10-year-old boys were killed in an UXO explosion in a return area near Mostar when playing outside in October 2004.”

**MHRR, December 2004, p.67-69:**

“Mine clearance is certainly important precondition of return, especially if we know that at the moment of current interest is return in villages and places where agriculture and cattle breeding represent basis for securing existence of returnees.

This field is being coordinated with Ministry of Civil Affairs, in a manner that return plans and projects are forwarded to it, after which they are harmonised with mine clearance plans through Mine Action Commission and bilateral donors. Bosnia and Herzegovina is a country with the biggest and the most complex mine problems in Europe and is in the group of the most endangered countries in the world. This situation is made more complex by nature of mine problems in Bosnia and Herzegovina, whose main characteristics are the following: lack of minutes on minefields, unreliable information on minefield locations, their forms and disposition of mines, laying of mines individually or in a relatively small number over large area, which has large suspicious area as a consequence.

Mines restrict access to natural and other resources necessary for country development, particularly for sustainability of population return.

Total suspicious area is 2,481 sq.m. or some 4 % of the territory of Bosnia and Herzegovina. Number of local communities endangered by mines in BiH is 1,366, which is 1/5 of total number of all communities. Some 1,300,000 people reside in mine-struck communities, out of which some 100,000 are directly endangered. A total of 128 municipalities have been affected by mine contamination.

In the previous period significant progress has been achieved in building of the antimine actions in Bosnia and Herzegovina. This progress is reflected in building onto Standards for mine and UXOs clearance, and adoption of new Demining Strategy in Bosnia and Herzegovina till 2009.”

### **Human Rights Institutions in place, but with some difficulties (2008)**

- · The Dayton Peace Agreement (Annex VI) and the BiH Constitution provide for a set HR instruments and for their institutional application.
- · While BiH has ratified many HR instruments, their implementation remains difficult
- · The state-level Ombudsinstitution, for example, could not be installed because of unresolved ethnicity-based considerations regarding the selection of the Ombudsmen
- · CoE recommends the the State level Ministry of Human Rights and Refugees (MHRR) take on an equally central role for implementing Human Rights as it currently does for implementing Annex VII (return issues)
- · CoE also recommends the consideration of a National Human Rights Action Plan

#### **CoE, 20 February 2008, pp. 4 and 7:**

7. The Dayton Peace Agreement (DPA) that brought an end to the war in BiH in 1995 provided for a set of institutional arrangements for the protection of human rights and rule of law in BiH.

8. The Constitution of Bosnia and Herzegovina provides for the direct application of the rights and freedoms set forth in the European Convention on Human Rights, which “shall have priority over all other law”. Annex 6 (on Human Rights) of the Dayton Agreement set forth the direct applicability of 15 more international human rights instruments.

9. BiH has made significant progress in the implementation of the formal obligations and commitments accepted upon its accession to the Council of Europe on 23 April 2002. Bosnia and Herzegovina has signed and ratified a number of Council of Europe treaties including the European Convention for the Protection of Human Rights and Fundamental Freedoms (ECHR) and its protocols (with the exception of Protocols 9 and 10), the European Charter of Local Self-Government, the European Convention for the Prevention of Torture and Inhuman or Degrading Treatment and Punishment (CPT) and its protocols, and the Framework Convention for the Protection of National Minorities<sup>6</sup>. The European Charter for Regional or Minority Languages and the CoE Convention on Action against Trafficking in Human Beings have been signed and are pending ratification. The ratification of the revised European Social Charter remains among the outstanding commitments undertaken by BiH when joining the Council of Europe. Bosnia and Herzegovina signed the Revised European Social Charter on 11 May 2004, but has yet to ratify it.

10. Despite significant progress made in the area of accession to and ratification of international instruments as well as in the area of legislative reform, there are still major deficiencies in the practical implementation of these reforms.

[...]

#### **c) Ombudsman**

27. In the course of the visit, the Commissioner visited all three Ombudsman institutions on both state and entity levels and met with the Ombudspersons for an exchange of opinion on the past work and to discuss the challenges in the process of creating one unified state level Ombuds institution.

28. The new law on Ombudsmen at the State level was adopted in April 2006. According to the law, the three existing Ombuds institutions at state and entity levels were planned to be merged into one single, state-wide structure as of 1 January 2007. The transfer has yet to be

implemented. In the course of the meetings with the Ombudspersons as well as in his exchanges with other governmental and non-governmental stakeholders, the Commissioner reiterated his recommendation to the country's relevant decision makers to invest all efforts in order to ensure that the professional experience and expertise of the present Ombuds institutions will not be lost in the transition to the new structure.

29. At the time of the writing of this report, the selection of the new Ombudsmen by the House of Representatives remains blocked.<sup>14</sup> The Commissioner and his office will continue to follow this process closely.

**CoE, 7 February 2007:**

25. The deadline foreseen for the transition from Entities Ombudsmen to a unified State Ombudsman is 31 December 2006. Administrative arrangements for the transfer of functions are progressing, but since the appointment mechanisms for the new State Officials involves Parliament directly, some delays are more than likely.

Concerns remain about the lack of confidence in the new institution. The reasons for this are a still- perceived ethnic bias (the new Law foresees that the headquarters of the new Institution will be in Banja Luka), a lack of clarity about the procedure for the election of the new State Ombudsmen and a fear of political interference due to close party connections to the Office.

There also seems to be a risk that the experience and competence acquired by the Entity Ombudsmen over the last 12 years may be lost in this new institution, there is not one single Entity Ombudsmen who would be prepared to work with the State Ombudsmen Office.

**CoE, 20 February 2008, p.7:**

***d) National coordination***

30. The State level Ministry of Human Rights and Refugees (MHRR) has a central role in implementing the Annex 7 of the DPA on the return of refugees and displaced persons. However it does not have an overall coordination role in the field of human rights. Its' mandate, scope for initiative and power are compromised by the constitutional set-up: it lacks relevant power and implementation force, either laterally across State level ministries or vertically through the Entities and Cantons.

31. While welcoming the active role the MHRR has had in facilitating the returns, the Commissioner recommends that the MHRR is given a more active role in the overall coordination of human rights issues within the BiH Council of Ministers. The Commissioner recommends that consideration is also given to a development of a National Human Rights Action Plan. One of the goals of such a plan would be to ensure the implementation of recommendations issued by human rights monitoring bodies by the relevant authorities.

**Difficult police reform accepted in April 2008 (2008)**

- The Police Reform was accepted in BiH Parliament in April 2008
- The police reform aims at unifying the fragmented police forces and making them ethnically diverse
- While legal standards are improving, lack of political will stands in the way of effective reform
- Police and judiciary response to minority-related violence and harassment remained inadequate
- Follow-up investigations were problematic and police failed to apprehend offenders

- Federation Canton governments have agreed to an ethnically mixed police, yet there continues to be resistance in practice
- Ethnic imbalances in police force still need to be redressed to ensure safety of minority returnees
- Police and judiciary reforms were underway in 2003

***On 11 April 2008, BiH Parliament's Lower House narrowly adopted crucial police reforms. See for more details and background on the political implications of the police reform INTERNAL LINK TO "Important step towards institutional reform: Contested police reform accepted at high political price and after a serious political crisis (2008)"***

**USDoS, 11 March 2008:**

The law gives the state-level government primary responsibility for law enforcement, but extends significant overlapping competencies to each entity and to the Brcko District, each of which has its own police force. The European Union Force continued to implement the military aspects of the Dayton Accords and provide a secure environment for implementation of the nonmilitary aspects of the settlement. The North Atlantic Treaty Organization headquarters in Sarajevo is responsible for overseeing defense reform, counterterrorism efforts, and cooperation with the ICTY. A European Union (EU) police mission monitored, mentored, inspected, and worked to raise the professional standards of the local police.

The Police Reform Directorate finalized a draft plan for BiH police reform in December 2006. This report was never approved due to highly divergent views of leading political parties over police reform. Despite numerous rounds of negotiations, the Federation and RS did not agree on a plan to reform local police structures. [...]

Police Standards Units (PSUs) functioned as internal affairs investigative units in each entity's Ministry of the Interior and in the Brcko District. The presence of these units led to the creation of standardized procedures for processing complaints of police misconduct and for disciplining police. There were continued reports of corruption within the entity and national security services. Crimes discovered included accepting bribes, inflicting serious injury, violating public law and order under the influence, assisting the escape of a prisoner during transport, forgery, and extortion; one individual was dismissed for war crimes charges.

**CoE, 20 February 2008, para.20-22:**

20. At present, BiH has fifteen criminal law enforcement agencies. In a review carried out in 2004, the European Commission established that the country's police forces are divided and over-staffed, and that cross-entity-cooperation was insufficient. The Police Reform Directorate confirmed these findings in its 2006 report describing the current policing system in BiH as "too complicated, too expensive, and not sufficiently effective in combating crime". [...]

22. Decertified police officers continue to be a standing issue for the police forces in BiH. These police officers were barred from police service for life as a result of the vetting process of the United Nations International Police Task Force (IPTF), which took place from 1996 to 2002. IPTF was established to reorganise the police forces in BiH under Appendix 11 of the Dayton Peace Agreement and was one of the major components of the UN Mission in Bosnia and Herzegovina (UNMIBH).

**Security Council Report, 14 May 2007:**

The 30 April 2007 letter, in reply to a 30 January 2006 letter from the Bosnia and Herzegovina government, stated that members of the Council recognised "improvements in the legal standards and practices for the recruitment and selection of police officers within Bosnia and Herzegovina" and considered that where Bosnia and Herzegovina law allows, "persons denied certification or

decertified by the IPTF may be permitted to apply for positions" in law enforcement agencies. The two conditions are that recruitment meets the laws and procedures of the law in Bosnia and Herzegovina and that at the time of re-application the applicants disclose they have been decertified. It is worth noting that in order to comply with these conditions, local legislation will need to be amended or adopted.

Schwarz-Schilling, who has strongly lobbied for this issue to be resolved, has described it, in statements issued in Sarajevo, as the best possible solution, although he had been pushing for a more comprehensive review process.

**USDOS, 8 March 2006, p.3:**

"Police in the RS generally did not meet target standards of ethnic representation, as mandated by various agreements; however, the number of minority police officers in both entity police forces continued to increase slightly. (...)

The Federation and the RS have their own police forces, as does the District of Brcko. There are three primary levels of law enforcement in the country: the state-level BiH Ministry of Security, which does not have a police force but is supported by the State Investigation and Protection Agency (SIPA) and the State Border Service (SBS); the Federation Ministry of Interior; and the RS Ministry of Interior. The RS interior ministry is centralized with five public safety centers. The Federation interior ministry is decentralized; each of the 10 cantons has its own cantonal ministry of interior that functions autonomously. Neither the Federation nor the RS interior ministries reports to the BiH Ministry of Security. Although they share information, these structures function quasi-independently and have jurisdiction over different offences. For example, the security ministry is responsible for state-level crimes, such as terrorism and trafficking in persons, whereas the RS and Federation interior ministries are responsible for crimes in their areas. In October the entities and state authorities approved a police reform proposal which supported key European Commission principles on unified policing and set out a roadmap for implementation."

**CoE, 18 July 2006, par.10:**

"On police reform, the Republika Srpska (RS), after accepting the principles of the reform, is currently blocking any implementation measure that would threaten existing Entity competence, which is seen as a first step in the dismantling of the Serb Entity,"

***For more information on police reform see:***

***"Police reform is about making BiH a safer place to leave", OHR, 28 July 2006 (see link in sources below)***

***"Report to the European Parliament by the OHR and EU Special Representative for BiH, June-December 2005", OHR, 28 January 2006 (see link in sources below)***

***"Police reform falters", Transitions online, 3 October 2005 (see link in sources below)***

**U.S. DOS 31 March 2003, Sect.5 U.S. DOS 31 March 2003, Sect.5:**

"[F]ollow-up investigations in a number of cases were problematic, and police consistently failed to apprehend offenders.

Authorities began to deploy minority officers in areas with minority returns; however, the lack of housing for returning police officers hindered this process. The RS Ministry of Refugees committed to provide reconstruction material to a total of 20 Bosniak minority police during the year. Eighteen packages had already been delivered by year's end. NGOs provided the majority of this assistance, but the RS assistance was an improvement over last year. In Prijedor 42 of the

747 area police officers were Bosniak, and a number of senior positions were set aside for Bosniaks.

All Federation Canton governments have agreed to an ethnically mixed police force in principle; however, many Cantonal governments continued to resist integration in practice. The Neretva (Mostar) Canton was an exception; the Interior Ministry in this Canton made significant progress in unifying the police force, including co-locating offices, shedding Croat nationalist insignia, and unifying portions of the budget under its direct control. In other cantons of Herzegovina, there has been far less progress in depoliticizing the police forces. Although Western Herzegovina (Livno) Canton hired significant numbers of police from among Serb returnees in several municipalities, Croat nationalists still dominated the command structure and budget process. A Serb appointed in late 2001 as police chief in the town of Drvar resigned in September. Both the Livno and Siroki Brijeg Cantons failed to remove Croat nationalist insignia from police uniforms, and they continued to fly Croat nationalist flags on police and Interior Ministry buildings. On the other hand, due to IPTF pressure, Livno's Interior Ministry began flying the Federation flag, alongside the Croat nationalist flag, in September. (Drvar had already begun flying the Federation flag.) Drvar was also the site of an incident involving the destruction of a Catholic cross, allegedly by local Serbs, but police reinforcements from Livno defused the situation without any violence.

Police in the RS generally did not meet target standards of ethnic representation, as mandated by various agreements. An interentity agreement negotiated under U.N. auspices allows the voluntary redeployment of officers across entity lines to redress ethnic imbalances. There were over 1,600 minority police throughout the country by year's end. This represented approximately 10 percent of the total police force. In general, while new officers were accepted into the police academies under strictly observed ethnic quotas, it will take years of concentrated effort to establish effective, professional multiethnic police forces throughout the country."

### **Entrenching the Rule of Law (2008)**

- the PIC cited the need to demonstrate this entrenchment through the adoption of a National War Crimes Strategy and the adoption of a National Justice-Sector Reform Strategy.

#### **OHR, 13 May 2008:**

22. The principal development during the reporting period was the February decision of the PIC Steering Board's Political Directors to single out "entrenchment of the rule of law" as one of the objectives to be delivered by the BiH authorities before OHR's transition could take place. In particular, the PIC cited the need to demonstrate this entrenchment through the adoption of a National War Crimes Strategy, the passage of the Law on Aliens and Asylum, and the adoption of a National Justice-Sector Reform Strategy.

#### *War Crimes Prosecution Strategy*

23. The working group led by the country's chief prosecutor held four meetings during the reporting period that aimed to determine the scope and contents of a national strategy on the prosecution of war crimes. A draft is expected by the end of April. The strategy should confirm current practice on case selection and prioritisation. It could also put an end to the endless public discussions in BiH of the number of war crime cases that remain to be tried. The agreement of a robust strategy should also serve to address public concerns over the efficacy of domestic judicial processes dealing with war crimes. The chief prosecutor's absence on sick leave has lately delayed the emergence of the draft strategy, but the recent appointment of a replacement to chair the working group indicates that the process is back on track towards producing a document on which concrete discussions and recommendations can be based. Given the PIC decision that the

adoption of a war-crimes strategy is one of the benchmarks for OHR closure, my office will be closely involved in helping ensure that BiH has a relevant and effective plan.

[...]

#### *National Justice-Sector Reform Strategy*

25. By January 2008, the National Justice-Sector Reform Strategy was ready for submission to and adoption by the Council of Ministers. At that point, however, the RS Ministry of Justice sent in comments of a largely technical nature, but which served, collectively, to undermine the previously achieved agreement and, in effect, to degrade the strategy's state-wide scope. The RS comments pointed to the maintenance of exclusive entity competency over judicial reform, denying the state's interest and depriving it of any harmonising or coordinating role among the entities and Brcko District. Both the long and relatively successful engagement of the international community in justice-sector reform, as well as the more recent PIC commitment to push this issue forward, mean that OHR will need to work with other interested parties, particularly the BiH Ministry of Justice, the OSCE and the UK Department for International Development, to forge a compromise that will ensure an acceptable and substantive strategy is adopted.

#### *Other Rule of Law Issues*

26. [...] OHR assisted the BiH Security Ministry to review its internal organisational rulebook. Two national working groups, established following the brainstorming sessions OHR chaired last year, have now produced their recommendations. These propose the establishment of an Appellate Court of BiH, but not the formation of satellite branches of the State Court to try war crimes cases. Rather, they argue for the reinforcement of the human capacity of the State Court's War Crimes Chamber.

### **Reform of judicial institutions continues to be slow, perpetuating impunity in certain areas (2008)**

- While the laws of both BiH Entities provide for an independent judiciary in civil matters and human rights violations, the procedures are slow due to backlog and at times partial
- The recommendation of the ombudsman are not binding, and a new appointment of the Ombudsman has been delayed in parliament.
- A new Bill of the Law on Free Legal Aid in Civil Matters, not yet adopted by the end of 2007, should allow for free legal aid to vulnerable persons, provided by, among others non-governmental organisations
- Judiciary response to minority-related violence and harassment remained inadequate
- Follow-up investigations were problematic and police failed to apprehend offenders

#### **USDoS, 11 March 2008:**

The law provides for an independent and impartial judiciary in civil matters, and citizens could file civil suits seeking remedies for human rights violations. Individuals could also seek assistance from an ombudsman institution to hear and provide recommendations on cases of human rights violations. These recommendations, however, were not binding, and the politically-appointed ombudsmen were not always effective. [...] In April 2006 the BiH parliament adopted a law establishing a single ombudsman institution composed of three members representing the country's three constituent persons. The multiple ombudsman offices, already existing at the entity level, were abolished and folded into the new state-level office. At year's end the political appointments of the new three-member BiH ombudsman remained in parliamentary procedure, delayed by political maneuvering.

[...]

The state constitution does not explicitly provide for an independent judiciary, but the laws of both entities do. The State Court is the highest court in the country for certain criminal cases, including war crimes, organized crime, terrorism, economic crime, and corruption. The country also has a State Constitutional Court and State Prosecutor's Office. Each entity has its own supreme court and chief prosecutors' offices. The BiH state-level court system does not exercise judicial supremacy over the individual entity-level court systems. Political parties sometimes influenced the judiciary in politically sensitive cases. Judicial reforms reduced the level of intimidation by organized crime figures and political leaders, but some intimidation remained.

The BiH High Judicial and Prosecutorial Council acts independently and regulates many of the most important affairs of the judiciary with clear, transparent criteria for judicial and prosecutorial appointments and detailed disciplinary liability for judges and prosecutors.

Local officials and police generally cooperated in enforcing court decisions, but problems persisted as a result of inefficiency. Despite efforts to streamline court procedures, there was a large backlog of more than 1.9 million unresolved cases, mostly in noncriminal matters. Authorities generally respected and implemented constitutional court decisions.

**CoE, 20 February 2008, pp.5, 6:**

## **2.2 Institutional framework for the protection of human rights**

11. The country's present Constitution contained in Annex IV to the DPA establishes a complex, multi-layered institutional system characterized by fragmentation and overlapping. Depending on how the one State, two entities, one autonomous district and ten cantons are counted, Bosnia is divided into three, four or fourteen territorial jurisdictions with separate sets of laws. This fragmentation and substantive inconsistency is an impediment to the effective protection of human rights of all citizens.

12. Besides declaring the European Convention on Human Rights (ECHR) directly applicable, the DPA in its Annex VI established, on the State level, the Commission on Human Rights consisting of the Office of the Ombudsman and the Human Rights Chamber and providing it with a mandate to address individual complaints challenging violations of the ECHR as well as of a range of other human rights treaties.

13. The DPA provided for the transfer of responsibility of the Human Rights Chamber from the international community to BiH institutions at the latest 5 years after the signing of the DPA. However, its' mandate was extended until the end of 2003. The Human Rights Commission, operating within the framework of the Constitutional Court, was established to enable the proper completion of cases taken on by the Human Rights Chamber. The rationale of the Human Rights Commission staffed with 5 judges from the Human Rights Chamber was to work swiftly on the reduction of the backlog of pending cases lodged before the Human Rights Chamber until the end of 2003. The Human Rights Commission has managed this task reasonably well. Since January 2007, the Commission has been fully incorporated into the Constitutional Court and the remaining pending cases have been transferred directly to the Constitutional Court.

### **a) The Judiciary**

14. The State-level Court of BiH, the two Entities' Supreme Courts and Constitutional Courts, and the BiH Constitutional Court form the country's six high courts. Judicial appointments to the Constitutional Court are made by the Parliaments upon the recommendations of the High Judicial and Prosecutorial Council. All other judges are appointed by the High Judicial and Prosecutorial Council as an impartial and independent body. The structure of the judicial system mirrors the country's administrative-territorial organization. Important reforms introduced a few years ago have resulted in noticeable improvements of the independence of the judiciary and making the



work of the judicial and prosecutorial sector more professional. However, all interlocutors that the Commissioner met with confirmed that the reform process had lost momentum since 2006.

15. At the end of 2006, there were approximately two million pending cases at courts across the country. The backlog in combination with poor court management and scarce modern equipment and infrastructure accounts for the slow processing of cases. A coherent and systematic action plan to reduce the backlog of cases is therefore needed urgently. The introduction of alternative dispute resolution measures and other out-of-court resolution could make a significant contribution to the reduction of the backlog of unresolved court cases. Further efforts are required to improve the efficiency and effectiveness of the national courts and the execution of court decisions.

16. The Constitution of Bosnia and Herzegovina provides the legal framework for the organization and functioning of the Constitutional Court, which has its seat in Sarajevo. Six judges out of the total nine are selected by the respective assemblies of the two Entities. The remaining three judges are appointed by the President of the European Court of Human Rights after consultation with the Presidency of Bosnia and Herzegovina.

17. At the end of 2006, the Constitutional Court accounted for approximately 3000 unresolved cases. Due to the absence of a supreme court at the state level, the Constitutional Court is increasingly acting as an appellate court. The decisions of the Constitutional Court are, however, often not implemented by the relevant bodies and authorities, which is of serious concern as it undermines the rule of law and respect for the Constitutional Court. Furthermore, there is no mechanism in place currently that could remedy the situation. The non-execution of final court decisions needs to be addressed.

18. The State Court of BiH is composed of the Criminal, Administrative and Appellate Division. It has jurisdiction over criminal offences defined in the Criminal Code of Bosnia and Herzegovina and other laws of Bosnia and Herzegovina (Article 13 Law on Court of BiH and Article 23 CPC BiH) as well as over criminal offences prescribed in the Laws of the Federation of Bosnia and Herzegovina, Republika Srpska and the Brcko District of Bosnia and Herzegovina, if such criminal offences have the potential to endanger the sovereignty or territorial integrity of the country. The Criminal Division is separated into three Sections for War Crimes, Organized Crime and other criminal offences respectively. Within its administrative jurisdiction, the Court is, *inter alia*, competent to decide on the legality of final individual or general administrative acts and/or orders. The Appellate division decides upon appeals against decisions delivered by the Criminal or Administrative Division of this Court.

**Vasa Prava, December 2007, p.8:**

“At its 12th regular session, the Council of Ministers determined the text of the Bill of Law on Free Legal Aid in Civil Matters to be referred by the Ministry of Justice to the Parliamentary Assembly BiH for review. [...] The Bill [...] extends to include non-governmental organisations as the parties authorised to provide free legal aid, granting them the right of legal representation in the administrative procedures and disputes, misdemeanor, judicial, extrajudicial and enforcement procedures respectively. [It] enhances equal access to justice for all citizens in BiH. According to this legislative project, the right to free legal aid will be available to the category of vulnerable persons, such as social welfare beneficiaries, unemployed persons without other regular income, persons in difficult financial situations, children without parental care, as well as the persons, whose eligibility for free legal aid has been determined at a given time.

The finalisation of this Law, according to the experts' assessment, represents another step forward for BiH towards the justice reform and a new quality for the development and guarantees for strengthening the rule of law in line with the European standards.”

**UN Committee against Torture, 24 November 2005, par.10:**

"[T]he Committee is concerned about:

reported failure by the State party to carry out prompt and impartial investigations, to prosecute the perpetrators and to provide fair and adequate compensation to victims;

alleged discriminatory treatment in criminal proceedings where the ethnic majority often fails to prosecute alleged criminals of the same ethnic majority;

reported harassment, intimidation and threats faced by witnesses and victims testifying in proceedings and the lack of adequate protection by the State party; (...)

inadequate cooperation with the International Criminal Tribunal on Former Yugoslavia, in particular by the Republika Srpska, in failing to arrest and transfer indicted persons, including Radovan Karadzic and Ratko Mladic, indicted for genocide, torture and other international crimes"

**European Commission 18 November 2003:**

"With significant international input and support, BiH has begun to address the weaknesses of its various system(s) of justice and home affairs. For too long, ethnicity, geography and personal contacts were the major determinants of justice in a fractured legal system. Crime, both opportunist and organised, became widespread, and corruption put deep roots into the social, economic and political fabric of society. The full implementation of the **legal and judicial reforms** currently underway will determine whether BiH can establish rule of law and due process.

The **judicial system** in BiH was long sub-standard. In contrast with Brcko District where the entire legal and judicial system was relatively quickly overhauled, both FBiH and RS persistently accommodated incompetence and corruption within their legal and judicial systems. Judges and prosecutors were subject to pressure both from political leaders and from criminals. Basic judicial infrastructure was poor, lacking proper equipment, records and access to information and modern legal practice. Moreover, since the BiH legal space was split between Entities and Brcko, justice was easily avoided; judicial decisions in one jurisdiction were seldom enforced in another.

Reform has begun. In February 2002 a comprehensive **judicial reform strategy** was inaugurated. Despite a constitutional challenge by the RS National Assembly, High Judicial and Prosecutorial Councils (HJPCs) at State and Entity levels with both national and foreign members were established with the task of overseeing the appointment of judicial staff. Simultaneously, a reform of the court structure and of prosecutors' offices was inaugurated, cutting the number of courts and judges. [...]

A further important reform was the creation of a **BiH State Court and State Prosecutor** (again initially challenged by the RS). The State Court has criminal, administrative and appellate divisions and a number of Special Panels, including those for Organised Crime, Economic Crime and Corruption. It is staffed by both national and international judges. First cases have already been transferred to the Court. The Court will fill a legal lacuna by dealing with issues (e.g. asylum and immigration cases, which are within the competence of the State. Also, it should create a further bridge between the judicial and legal systems of the Entities. The 2003 creation of the State Ministry of Justice charged with ensuring international and inter-Entity co-operation on legal matters is also significant, although this ministry also faces personnel and resource shortages.

The highest level of judicial authority is the **BiH Constitutional Court**. Despite Road Map recommendations, the Constitutional Court has been persistently short of resources and for more than a year it was reduced to inactivity because of the failure of RS to appoint Serb members. Despite these difficulties, the Court enjoys authority and has become a respected arbiter."

**War Crime Chamber functions well, but has insufficient capacity (2008)**

- The War Crime Chamber of the BiH State Court was established in 2005, taking over cases from the International Tribunal and is working successfully, but can only handle few cases
- A large number of war crime cases are handled by largely inexperienced local courts, often known for their ethnic bias
- Despite a state-level law that provides for protection of vulnerable witnesses issued by the High Representative, there remains inadequate protection of vulnerable witnesses
- Lack of adequate witness protection does not encourage victims to testify and risks to perpetuate impunity
- Thousands of perpetrators continue to enjoy impunity for war crimes, crimes against humanity and genocide, committed during the war in Bosnia-Herzegovina

**CoE, 20 February 2008, p.6:**

19. The War Crimes Chamber was established in March 2005 and has secured itself a good reputation both among national and international observers for its professional handling of domestic war crimes cases. Despite delays and problems before its start, the Chamber has issued nineteen indictments against 33 suspects and handed down eight verdicts. However, it is clear that most of the numerous domestic war crimes will not be tried by the well- equipped War Crimes Chamber, but by other local courts. These courts often lack adequate infrastructure and financial as well as human resources.

**CoE, 4 February 2005:**

"The package of laws regulating the establishment of the War Crimes Chamber within BiH and the transfer of cases from ICTY to the BiH Prosecutor and the State Court officially came into force on 6 January 2005. A Registry will provide independent administrative support to the Court. Only highly sensitive war crimes and organised crime cases will be tried by the BiH State Court while other cases will proceed before the Entity (local) courts. To make sure that the new Chamber gains the benefit of years of international war crimes tribunal experience a strong international presence is foreseen for the first two years. This presence will gradually decline during years three to five and thereafter this specialised Chamber and the corresponding Department in the BiH Prosecutors Office will be fully BiH staffed institutions. Although it was foreseen that the War Crimes Chamber would be operational in January 2005 and start its first trials, the required reconstruction work and building of secure pre-trial detention facilities are now expected to be completed by the end of February 2005. As also requested by PACE (see PACE Recommendation 1664(2004, adopted in June 2004), the CoE member States are invited to consider assistance to the new War Crimes Chamber by way of human, material and financial resources. In this respect, the OHR has already indicated that substantial additional funds will be required to continue work of the Chamber into the future. International donors have pledged to revisit this requirement once the Chamber has been set up."

**AI, 26 May 2004:**

"In June the PIC endorsed a proposal by a joint OHR/Tribunal working group to establish a special chamber for war crimes in the new State Court, to be operational from 2004. This was the latest development in a protracted process which aimed to set up a judicial mechanism which would be capable of taking over cases from the Tribunal and other sensitive and complex cases from the Cantonal and District Courts.[...] However, AI remained concerned that the proposed solution would prove inadequate to address the vast legacy of outstanding cases of war crimes and other crimes under international humanitarian law. Given the problematic and flawed trials for war crimes conducted so far before the entity courts, the organization had serious concerns that a short-term solution which would only deal with a fraction of the outstanding caseload would not provide justice to the tens of thousands of victims of these crimes, nor would it benefit the longer-term process of truth-seeking and reconciliation between various communities. The proposal also did not take into account the regional nature of the war and the fact that many perpetrators as

well as material evidence relating to these crimes remained in neighbouring states, beyond the reach of the Bosnian criminal justice system. Another issue of crucial importance, the protection of vulnerable witnesses from attacks and intimidation, was not adequately addressed: although a new state-level law was imposed by the High Representative in January, in practice there was no effective protection inside the country and AI was informed that no international protection scheme, along the lines of the one used by the Tribunal, was foreseen.”

**UNHCR, January 2005:**

“Some initiatives have, in the meantime, been taken to establish a legislative and administrative framework for witness protection in BiH.[...] The new War Crimes Chamber of the BiH Court, for example, will also include a Victim and Witness Management Section. While this is in itself a positive development and shows acknowledgment that the protection of citizens providing testimony in war crimes trials is the responsibility of domestic institutions, the fact that the Victim and Witness Management Section itself has already been discussing with selected states about the potential relocation of war crimes witnesses and their families to third states, is testimony to the country’s accepted lack of ability to ensure the safety of some witnesses, as the implementation of laws that provide for the protection of war crimes witnesses has also been hampered by the lack of financial resources for technical requirements for the courts to provide proper protection.”

**AI 12 November 2003:**

“Thousands of perpetrators continue to enjoy impunity for war crimes, crimes against humanity and genocide, committed during the war in Bosnia-Herzegovina. The official number of persons still unaccounted for is around 16,000 (including thousands of unresolved ‘disappearances’). Rape and sexual abuse of women and girls occurred on a massive scale. However, most of the vast number of case files, recorded and investigated by Bosnian police and prosecutors, are gathering dust in the criminal justice system’s offices and archives, instead of generating active and effective prosecutions before the country’s courts. At the Tribunal, proceedings have been completed or are continuing for about 90 persons, most of whom were in leadership positions or responsible for large numbers of these crimes. Thus, many thousands of persons responsible for the worst possible crimes in Bosnia-Herzegovina still have got to be brought to justice in any court.”

**See also also**

***The Report “Transitional Justice in Post-Yugoslav Countries, Report for 2006” offers a wealth of information on the state of the justice system in BiH, including the following chapters:***

- war crime trials before local courts and before the War Crimes Chamber of the BiH Court.***
- - - the “Mechanics of Fact Finding” by the Truth Commission of BiH and the Sarajevo Commission”***
- Establishing the fate of missing persons***
- Reparations on Entity and State levels, and reparation by the Human Rights Chamber and the Human Rights Commission***

***“Looking for justice, The War Crimes Chamber in Bosnia and Herzegovina”, Human Rights Watch, February 2006 (see link in sources below)***

***“Justice at risk: War crimes trials in Croatia, Bosnia and Herzegovina and Serbia and Montenegro”, Human Rights Watch, 14 October 2004***  
***and “Foca confronts its past” HRW, 15 October 2004***

**Resolving the fate of missing persons is key to reconciliation and stabilization of the country, with particular focus on Srebrenica massacre (2008)**

- In 2007, some 13,000 persons remained missing from the wars of 1991-1995
- The state-level national Missing Persons Institute (MPI) absorbed the entity-level Missing Persons Commissions
- In 2003, the Human Rights Chamber requires RS to give information on Srebrenica events and the fate of the victims
- Close monitoring and pressure of OHR ensures efficiency of the Srebrenica Commission
- A first report is produced in June by the Srebrenica Commission whereby authorities of RS recognizes responsibility for the massacre
- A final report is released in November 2004
- Resolving the fate of missing persons is key to reconciliation and stabilization of the country
- RS continues to be reluctant to identify, try and remove from office persons mentioned by the Srebrenica Commission

**USDoS, 11 March 2008:**

"An estimated 13,000 persons remained missing from the wars in 1991-95. The International Committee of the Red Cross (ICRC) reported that since 1995 it had received 22,387 requests from family members to trace relatives still missing from the war. By year's end, a total of 9,555 persons had been accounted for, including 454 located alive.

[...]

The state-level national Missing Persons Institute (MPI) was responsible for absorbing the entity-level missing persons commissions and continuing the search for missing persons in partnership with the International Commission on Missing Persons (ICMP). In June, following the contested appointment of MPI's steering board, the Council of Ministers passed the MPI statute and bylaws. By year's end the staffs of both entity commissions were fully integrated into the MPI, and joint exhumation teams had taken over functions previously split between the entities. The institute's goal was to establish a single, central list of all missing persons from the 1992-95 war.

During the year entity-level commissions carried out 210 exhumations of clandestine gravesites in 80 locations with the forensic support of the ICMP. These efforts recovered 1,238 total cases of which 1,027 were from Srebrenica mass graves. The cases had not yet been identified at year's end and no estimate on the number of persons they represented could be made.

From 2000 to year's end, the ICMP generated a total of 21,372 DNA matches relevant to 13,887 missing individuals and collected more than 85,634 blood samples representing 28,429 missing individuals.

During the year the BiH Prosecutor's Office and its War Crimes Department conducted investigations based on the findings of the RS Srebrenica Commission, a body created by the OHR in 2003 to investigate the events surrounding the Srebrenica massacre and the fate of missing individuals from those events.

**USDOS, 8 March 2006:**

"The RS government established an independent Srebrenica Commission to comply with a 2003 Human Rights Chamber decision ordering it to inform families of the fate of relatives missing from the Srebrenica massacre and to investigate the events giving rise to the massacre and report the results of the investigation. In November 2004 the commission turned over a classified annex of documents implicating an unknown number of war crimes suspects to RS authorities for

investigation. In March the RS government forwarded to the Office of the High Representative and the state prosecutor a list of 892 persons suspected of involvement in the massacre who still hold government jobs. However, the High Representative Paddy Ashdown found that RS authorities failed to provide information about hundreds of individuals listed in the classified annex. In October RS authorities submitted their final report as required by the High Representative Ashdown. (...)

During the year the Federation commission uncovered five mass graves in Liplje near Zvornik that contained the remains of more than 1,000 victims of the Srebrenica massacre.”

**OHR, 18 November 2004:**

“A suit brought by a group of relatives of those still classified as missing following the fall of the Srebrenica “safe area” in July 1995 led, in 2003, to a judgement by the Bosnia and Herzegovina Human Rights Chamber requiring Republika Srpska, inter alia, to conduct an in-depth investigation to discover the fates of these missing persons and to issue a report on its efforts and findings.

Although the Human Rights Chamber’s judgement did not task the Office of the High Representative with any particular action, it was clear that international monitoring and stimulus to this process was necessary if it was to have the outcome sought by the Human Rights Chamber. I therefore requested the Senior Deputy High Representative, Bernard Fassier, to monitor the activity of the Republika Srpska Commission. Following the Commission’s belated establishment in January 2004, it became apparent that the role of the Senior Deputy High Representative would need to involve more than mere monitoring if the Commission were to produce a meaningful report that disclosed hitherto unknown facts relevant to the chamber’s judgement. [...]

The eventual result of these efforts was a report in June that, for the first time, constituted recognition by the Republika Srpska of the origins, nature and extent of the atrocities committed in and around Srebrenica. The report also disclosed the location of previously unknown primary and secondary mass graves, documents and other evidence that may serve as bases for further prosecutions of war crimes.

The report established that, between 10 and 19 July 1995, some 8,000 Bosniaks were liquidated in a manner that constituted a severe violation of the international laws of war and that the perpetrators and others took elaborate measures to conceal these crimes by relocating the bodies.

Moreover, the report:

- Identified 32 locations of mass graves, 11 of which were not previously known;
- Elaborated upon the participation of particular Republika Srpska military and police units;

· Alluded to participation by army and police units from “Republika Srpska Krajina” and Serbia in the action and aftermath.

The report cites documents making clear that “Operation Krivaja” had three planned phases: the attack on Srebrenica, the separation of women and children, and the execution of males.

The Srebrenica Commission promised to produce a consolidated list of all the persons still unaccounted for after the July 1995 events in and around Srebrenica, but stressed that it would have achieved better results if it had had access to other relevant documentation of the competent Republika Srpska institutions, as well as to records of the Federation.”

**USDOS, 28 February 2005, section 1.b:**

“On November 15, the Commission released the final portion of its report. The Commission found that there were 7,806 confirmed victims. A classified annex of documents implicating an unknown number of war crimes suspects was turned over to the RS authorities for investigation. Former RS Prime Minister Mikerevic and RS President Cavic acknowledged publicly for the first time that large-scale war crimes took place in Srebrenica and apologized to the relatives of the victims on behalf of the RS government. The families' associations reiterated their desire to see the perpetrators of the massacre brought to justice as soon as possible.

By year's end, 1,438 victims of the Srebrenica massacre had been buried; 1,304 of them were interred at the Srebrenica-Potocari Memorial and Cemetery.”

**OHR, 7 January 2005:**

“The High Representative expressed concern that the RS Government has to date taken no action to form a group which will analyse the documentation produced by the Srebrenica Commission and to identify all officials , with emphasis still in the employment of the RS authorities, whose names appear in the confidential annexes. This is critical to demonstrate the commitment of the RS to build a future for all Bosnia's citizens. The High Representative reminded PM Mikerevic that he "expects the work to be completed, and a report delivered both to the State Prosecutor and to the OHR, by the end of February".

Then RS Government has publicly pledged to bring those responsible for war crimes to justice. This review is amongst the measures designed to remove from the RS institutions - and especially from the RS security structures - those who bear individual responsibility for the RS' non co-operation with the ICTY and bring to justice those directly responsible for these crimes

**Determination of international community to refer perpetrators to the ICTY is only partially successful (2008)**

- Referrals to the ICTY continue in 2007, although they do not include most of the lower-level perpetrators
- RS lack of cooperation with the Hague leads to a serie of dismissal in the RS in June 2004.
- Cooperation with ICTY is Council of Europe commitment and one of the conditions for further European integration
- NATO refuses BiH's participation to Partnership in Action because of RS lack of cooperation with ICTY
- Radical measures adopted by the High Representative's provoke political crisis in RS
- IC's determination bears fruit: RS finally transfers its first 3 suspected war criminals to the Hague (January-March 2005)

**OHR, 13 May 2008:**

**V Cooperation with the ICTY**

27. I continue to place a high priority on cooperation with the ICTY. Since my last report, international forces and domestic law enforcement agencies have applied continuous pressure on and scrutiny over persons and networks suspected of supporting ICTY fugitives. My office cooperates with and supports the activities conducted by ICTY, NATO, EUFOR, the RS police, the BiH Intelligence and Security Agency (OSA), and others involved in efforts to bring the four remaining fugitives to justice. This has resulted in greatly improved coordination and unity of effort, as well as more efficient use of our limited resources.

28. For its part, the BiH Prosecutor's Office remains vigilant in its investigation of the support networks' financial assets; and OHR will continue to back efforts to freeze the assets and to coordinate travel bans on individuals known to be part of these networks.

29. The arrest of the remaining fugitives – and of Mladić and Karadzic above all – would greatly improve the situation in BiH. Not only would their arrests help bring closure for the families of victims, but it would also do much to remove the stigma attached to Republika Srpska and to improve inter-ethnic relations in the country. It would therefore be helpful if the relevant organs of the United Nations could find a way to ensure that Serbia meets its legal obligations under both international and domestic law to arrest these fugitives and to close this sorry chapter of Balkan history.

30. Although OHR continues to press for progress on the Human Rights Chamber case related to the disappearance of Colonel Avdo Palic in 1995, the RS authorities have made no progress in locating his remains or in bringing his murderers to justice, as required by the chamber's rulings. There has been a lack of cooperation by Serbia, where the putative perpetrators and/or witnesses reside. OHR will continue to press for action on the Palic case, which, despite its longevity, remains under active investigation.

31. Our efforts to secure funding for hiring experienced staff to assist the BiH Prosecutor's Office in the investigation of Srebrenica-related war crimes has resulted in an exceptionally generous response from international donors. Sufficient funds were pledged to permit four investigators and two legal assistants to be hired. Combined with the establishment of a field office in Srebrenica by the BiH Prosecutor, I am confident we will begin to see progress in assuring Srebrenica survivors that their concerns for justice and, in some cases, their own security are being addressed.

32. I will continue to monitor all aspects of ICTY-related activity in BiH to ensure our joint efforts contribute to the apprehension of key fugitives.

**USDoS, 11 March 2008:**

"The State Court War Crimes Chamber and entity courts continued conducting war crimes trials during the year. The ICTY transferred six new cases involving 10 defendants to the State Court. Six trials were underway, based on BiH indictments reviewed by the ICTY, at year's end. Eight additional trials began at the State Court based on local indictments not reviewed by the ICTY, involving nine defendants. The BiH State Prosecutor's office opened 17 new war crimes investigations involving 45 suspects and confirmed eight new indictments involving 14 accused.

[...]

Four ICTY indictees remained at-large, including Radovan Karadzic, Ratko Mladic, and Stojan Zupljanin.

Despite local- and international-level efforts to prosecute war crimes, many of the lower-level perpetrators of killings and other abuses committed in previous years remained unpunished. These included those responsible for the approximately 8,000 persons killed after the fall of



Srebrenica, and those responsible for approximately 13,000 to 15,000 other persons who were missing and presumed killed as a result of ethnic cleansing.

**HRW, 14 Janvier 2005:**

***“War crime accountability***

For the first time in years, the NATO-led Stabilization Force (SFOR) did not arrest a single Bosnian citizen indicted before the International Criminal Tribunal for the former Yugoslavia (ICTY) in 2004. Nevertheless, SFOR intensified efforts to arrest Bosnian Serb wartime leader Radovan Karadzic, conducting several operations near Sarajevo and in remote mountain villages in the east of the country, where Karadzic was believed to be hiding. SFOR also arrested several individuals believed to belong to the network of persons who were helping Karadzic hide. Still, Karadzic remained at large as of October 2004.

Leading political and military figures in the wartime Croatian Republic of Herzeg-Bosnia – Jadranko Prlic, Bruno Stojic, Slobodan Praljak, Milivoj Petkovic, Valentin Coric, and Berislav Pusic – surrendered to the Tribunal on April 5, 2004. They are charged with crimes against humanity and war crimes committed against Bosnian Muslims in Western Bosnia and Herzegovina during the early 1990s. [...]

Local officials in each entity of Bosnia remain unwilling to prosecute members of the ethnic majority in their region for war crimes. Hundreds, possibly thousands, of war crimes committed in Republika Srpska have yet to be investigated and tried before the Republika Srpska courts. In May 2004, Republika Srpska opened the first war crimes trial ever against ethnic Serbs; eleven Serbs are accused of the illegal detention of Catholic priest Tomislav Matanovic in 1995, who was later found murdered. In the Federation of Bosnia and Herzegovina (the Bosniac majority area), there have been more indictments against members of the local ethnic majority, but these efforts have been plagued by a lack of support on the part of police and political elites, as well as poor cooperation between the countries in the region and entities in Bosnia and Herzegovina on judicial matters, and a lack of witness protection mechanisms.”

***December 2004: NATO’s refusal to let BiH within the Partnership for Peace on account of bad cooperation with the Hague triggers a new set of measures by the High Representative, including new dismissals of RS officials:***

**CoE, 4 February 2005:**

“On 16 December 2004, following a second refusal by NATO to admit BiH into its Partnership for Peace programme because of continued lack of co-operation with the ICTY by the BiH authorities, especially those in RS, the High Representative, Lord Ashdown, announced a series of measures “to address the systemic weaknesses in BiH’s law enforcement and security institutions” (see below, under IV, B). His announcements were accompanied by those of the US government to freeze the assets of the Serb Democratic Party (SDS), founded by war-crimes fugitive Radovan Karadzic, and impose a visa ban on the leaders of the SDS and its coalition partner, the Party of Democratic Progress (PDP).

“The first transfer of a war crimes suspect to The Hague, with the co-operation of the Republika Srpska (RS) authorities in mid-January 2005, is a significant step in the right direction. However, as most wanted war crimes suspects remain at large, much is still needed to ensure full co-operation with the ICTY, a priority matter for the CoE and a pre-condition for progress towards further Euro-Atlantic integration. The decision of the High Representative mid-December 2004 to dismiss several high officials of the RS testifies that obstacles still exist in this respect.”

### ***After 9 years of inactivity, RS transfers three indictees for war crimes to the ICTY***

**OHR, 14 March 2005:**

"Welcoming the transfer of Gojko Jankovic to the ICTY today the High Representative, Paddy Ashdown said:

"I welcome the fact that Gojko Jankovic is finally in The Hague after nearly a decade on the run, and that the RS authorities have carried out his transfer. He stands accused of grave crimes for which he will now answer before a court of law.

Jankovic is the third indictee transferred to the ICTY this year by the Republika Srpska authorities, and the second in a period of three days. These are welcome steps forward by the RS authorities, and in notable contrast to their previous nine years of inactivity and obstruction in relation to the ICTY.

But these steps represent the start of a process. The international community will now be watching closely to see that this process on which the RS authorities have embarked continues and picks up pace. That means that the remaining indictees - including Radovan Karadzic and Ratko Mladic - must be transferred to The Hague without delay. The first steps on the road towards cooperation with the ICTY have been taken: but the journey will not be complete until every indicted war criminal from BiH is in The Hague."

## **Freedom of movement**

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### **Improving freedom of movement despite continued influence of ethnic separatists (2002-2003)**

- All permanent police checkpoints were dismantled in 1999
- The introduction of universal license plates in 1998 also improved the freedom of movement throughout Bosnia significantly
- There were improvements to facilitate freedom of movement during 2002
- The High Representative continued to remove local officials obstructing the return of refugees and IDPs in 2002
- Many problems remain to prevent returns, including political pressure for individuals to remain displaced to increase ethnic homogeneity in specific areas
- Though trends of intimidation for displaced persons to stay in their place of displacement decreased in 2002-2003, they were still practiced in some areas

**U.S. DOS March 2003, sect.2d:**

"The Constitution provides these rights, and freedom of movement, including across the Inter-Entity Boundary Line, continued to improve; however, some limits remained in practice.

Pressure from evictions, combined with an increased sense of security in most areas of the country and awareness that international assistance was limited, prompted the increase in returns.

[...]

There were some improvements during the year that facilitated returns. In January the High Representative promulgated the 'Vital Interest' Decision, which provided a clearer accounting of Refugee Ministry budgets used to support return. In the RS, the Refugee Ministry followed the initiative begun in 2001 and supported the return of Bosniaks and Croats by providing reconstruction assistance to both of these groups. As of September, a total of 460 Bosniak and Croat families received such assistance. As of October, the RS Refugee Ministry had spent \$3.2 million (KM 6.4 million) on the initiative. The RS Refugee Ministry also agreed to provide reconstruction assistance to approximately 20 minority police officers returning to the RS, and deliveries were made to 18 of these officers as of the end of October. The increased number of ethnically integrated police forces helped improve the climate for returns, although security remained inadequate in some areas [...].

Serbs continued to return in greater numbers to the Federation. In October the Federation Refugee Minister, after some delay, paid funds promised for joint reconstruction and return projects. The town of Drvar, a previously Serb town which was 'ethnically cleansed' during the war by Croats, was by year's end again majority Serb, with a rate of compliance with property laws of 90.27 percent. In early June, the High Representative removed the hard-line Bosniak mayor of Donji Vakuf for obstructing the return of refugees and IDPs. The mayor had publicly opposed the return of Serbs. In December preparations were made for a plan to hand over the responsibilities of OHR's Reconstruction and Return Task Force to the BiH Government. Because no government was formed from the October elections by the end of the year, these plans were delayed.

Many problems remained that prevented returns, including: Hard-liners obstructing implementation of property legislation; political pressure for individuals to remain displaced in order to increase the ethnic homogeneity of the population in a specific area; societal violence; and the lack of an ethnically neutral curriculum in public schools. Lack of housing also contributed to the problem; the needs continued to far outweigh available resources. Municipal administration taxes on documents that are necessary for return, such as birth or land certificates, remained high. In addition, minority returnees often faced employment discrimination, lack of access to health care in the place of return, and denial of utility services such as electricity, gas, and telephones by publicly owned utility companies. All of these problems decreased from the previous year, yet still persisted in hard-line areas. In October members of the Federation Ministry for Refugees and Social Welfare were subjects of allegations of corruption; the High Representative determined that an audit of the Refugee Ministry's budget needed to be undertaken. Auditors initially commented that fraud and misuse of funds were likely involved. The audit was ongoing at year's end. The Federation Ministry was unable or unwilling to keep financial commitments in support of returns throughout the year, and this caused many IDPs, particularly Bosniaks, to remain displaced or continue living in deplorable conditions as a result of the Ministry's failure to provide support.

The continued influence of ethnic separatists in positions of authority hindered minority returns. Government leaders in both the RS and the Federation often used a variety of tactics, including public statements, to inhibit the return of IDPs. Municipalities in the RS continued to allocate illegal land plots in areas such as Zvornik and Bratunac, in eastern RS, altering prewar demographics and intimidating potential returnees. Much of Croat-controlled Herzegovina and towns in eastern RS remained resistant to minority returns, although efforts by hard-line Croats to resettle returning refugees in a manner that consolidated the results of ethnic cleansings ceased for the most part. IDPs living in those areas, even those who privately indicated interest in returning to their prewar homes, frequently had been pressured to remain displaced, while those

who wished to return had been discouraged, often through the use of violence [...]. These trends of intimidation for displaced persons to stay in their place of displacement decreased, although they were still practiced in the staunchest hard-line areas of the RS and Herzegovina. ”

**U.S. DOS February 2001, sect. 2d:**

"The IPTF and SFOR completed the dismantling of all permanent police checkpoints in 1999, greatly enhancing freedom of movement.

Freedom of movement improved significantly with the introduction of universal license plates in 1998. The new plates do not identify the vehicles as being registered in predominantly Bosniak, Bosnian Serb, or Bosnian Croat areas."

**UNHCR September 2001, para. 10:**

"[D]espite the inclusion in Article I (4) of the Constitution of BiH of a guaranteed right to return to freedom of movement, the introduction by the High Representative in 1998 of uniform vehicle license plates across BiH, and the ongoing activities of UNHCR bus-lines across key return axes, certain segment of the displaced population remain reluctant and uncertain to cross inter-Entity, and sometimes inter-Cantonal boundary lines."

**Inter-entity bus traffic supported by UNHCR has contributed to improved freedom of movement of minority members between the entities (1996-2002)**

- Free bus service initiated by UNHCR in 1996 to foster cross-entity visits of minority members
- Security of buses initially ensured through escorts by international armed and police forces
- Bus lines were fully commercialized by the end of 2002

**ICG 30 April 1997, section 1.4:**

"By late spring of 1996, it was obvious to UNHCR that the assessment visit strategy was not working and that the dividing lines between the entities were hardening into de facto borders. It was equally clear that tens of thousands of 'minority' Bosnians desperately wanted to cross the lines to visit their former towns, get in contact with family members and friends, find out whether their former houses were still standing and, if so, who was occupying them.

In perhaps its boldest experiment, UNHCR decided to open a free bus service on routes to the Sarajevo Serb suburbs and between cities such as Banja Luka and Drvar, Tuzla and Bijeljina, and Sarajevo and Gorazde. UNHCR began this program with considerable trepidation because it was clear there might be harassment and attacks on the buses. There were indeed some problems on a number of routes initially, but overall the bussing program was a success. The buses were often filled to capacity and the frequently emotional response of the riders made clear that beneath the surface of the inter-community cold wars, there remains a pool of 'normal people' who resist the nationalists' program of ethnic segregation.

The safety of the bussing experiment was of high concern at the start, and this was an area where IFOR took special measures to assure security. The initial runs on some routes were escorted by IFOR and IPTF, and were monitored from the air. Bosnian Serb authorities in some areas such as Banja Luka initially resisted the buses on the grounds that the service had not received prior authorisation, that the drivers were not licensed in the RS Entity, and the buses were uninsured. At one point, a British IFOR commander in Banja Luka dispatched armoured vehicles to an especially troublesome Bosnian Serb checkpoint with orders to attach hooks to the police cars and drag them away. This put a definitive end to the resistance at that location. Over time the harassment subsided.

The service was sub-contracted to the Danish Refugee Council. By the end of the year, 11 such bus lines were in operation, providing transportation to up to 1,000 passengers per day wishing to visit their places of origin. UNHCR intended to transfer this service to a commercial operation, but security concerns have so far prevented the implementation of this intention. Despite the efforts of local authorities, in particular Bosnian Serbs and Croats, to obstruct the bus service, some 283,000 passengers have used the buses as of April 1997. The annual cost of this service has been approximately \$1.3 million. While the impact of the bus service on actual numbers of minority returns is impossible to determine, there is no doubt that it was an important confidence-building effort and promoted freedom of movement across the former confrontation lines."

**UN December 1998, p. 59:**

"The present UNHCR-sponsored bus lines enabled hundreds of thousands to visit their former homes and re-establish pre-war links. While some of these bus lines were commercialised during 1998, UNHCR will maintain the remaining bus lines which service minority returns and are not commercially viable, and will open additional bus lines particularly in sensitive areas of minority return."

**UNHCR May 1999, sections 2.45-2.46:**

"There are now 17 UNHCR bus lines. Thirteen lines previously run by UNHCR were commercialised in 1998 and handed over to private companies. A survey conducted in December 1998 revealed that for many people, this was the only way to visit the other Entity, friends, relatives and homes. The UNHCR bus lines provide a sense of security and are more frequently used by Serbs than by Bosniacs or Croats. UNHCR bus lines are flexible and often re-directed in order to follow return trends and identified axes of return. However, the UNHCR bus lines do not prevent security incidents from taking place during assessments visits. For instance between March and June of 1998, a series of violent incidents took place which ranged from a group of 50-75 Serbs stoning the Kladanj-Vlasenica UNHCR bus to the physical assault and/or robbery of a number of Bosniac passengers from Sapna (Federation) visiting Zvornik (RS). In Zvornik, when victims approached the local police for help, the common response was that they were attacked by a gang operating in the area and that the victims should not return in the future. Another incident took place in the town of Piskavice, outside of Vlasenica (RS), and involved a group of approximately 12 Bosniac women, five of whom were verbally and physically assaulted whilst visiting their pre-conflict homes and the local graveyard. On 29 August 1998, a crowd of Serbs threatened the displaced Bosniacs who were visiting Klisa (RS). The displaced Bosniacs were advised to leave and, as a result, they held the IPTF officers hostage. On 5 June 1998, displaced Bosniacs also originally from Klisa had their bus stoned. On 5 October 1998, the UNHCR bus line Trebinje (RS)-Mostar (Federation) was stopped for two hours by the Federation local police. The luggage of the passengers was searched and some boxes of cigarettes were confiscated.

While these types of incidents are not a daily occurrence, they happen with enough frequency to indicate that tensions remain high and that full freedom of movement is still not fully assured throughout the country."

**UNHCR June 2002, p. 353:**

"Bus lines (one a cross-border service) were operational in 2001. The number of bus lines was reduced to nine after April 2001, due to commercialization of four lines. The remaining lines will be privatized as soon as they become commercially viable. "

***The UNHCR bus lines operated through December 2002. The bus lines have now been fully commercialized.***

***See [Map of UNHCR bus lines](#) as of December 2002 (website of UNHCR Office of the Chief of Mission in Bosnia and Herzegovina) [Internet].***

## **Vulnerable groups**

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### **Ensuring witness protection to address war crimes (2008)**

- The Witness Protection Programme of the BiH State Court was expanded, while the safety of potential witnesses continues to be questioned
- Successful prosecution of war crimes depends on availability of credible witnesses
- Monitoring of war crime trials shows that inadequate witness protection hamper trials and put witnesses at risk
- Impunity for war crimes puts witness at risk and prevents return
- Lack of cooperation between entity police and judicial forces facilitates impunity
- There are several reports of harassment of witnesses leading to withdrawing of statements
- Adequate witness protection should ensure physical and psychological situation of the witnesses

#### **USDoS, 11 March 2008:**

"The BiH State Court made significant progress on adjudicating organized crime and war crimes cases and expanded the witness protection program. Since its inception, the Witness Protection Department provided support to more than 150 individuals. The February 23 killing of RS Helsinki Committee cofounder Dusko Kondor in Bijeljina raised questions about the safety of potential witnesses. Many individuals within the Bosnian nongovernmental organization (NGO) and international community questioned whether Kondor, who notified authorities that individuals threatened him for several weeks prior to his murder, was killed because he was a witness to the 1992 killing of 23 Bosniaks in Bijeljina and had been sharing his account with State Investigation and Protection Agency (SIPA) war crimes investigators."

#### **UN Commission on Human Rights, 29 December 2005, par.35:**

"The Representative was informed of a series of acts of intimidation and harassment of witnesses in war crime trials and regrets the absence of a functional witness protection programme. With large numbers of alleged war criminals still enjoying impunity, the protection needs and safety concerns of these persons cannot be underestimated and often pose a decisive obstacle to them upon return to their communities of origin. The domestic criminal justice system persistently failed to take steps to actively prosecute alleged perpetrators. A major factor regarding continuing impunity was the lack of cooperation between the Federation of Bosnia and Herzegovina and Republika Srpska judicial authorities and police forces. The War Crimes Chamber within the Bosnia and Herzegovina State Court has after much delay taken up its work in September 2005, which constitutes an important step towards expediting the prosecution of war criminals. However, the lack of financial and other urgently required resources is a continuing cause for concern, as it may undermine the effectiveness of the Chamber's operation and impedes the realization of a witness protection programme."

#### **UNHCR, January 2005:**

"Special attention must be paid to witnesses testifying before the International Criminal Tribunal for the former Yugoslavia (ICTY), because of the number of suspected and/or indicted war

criminals still at large and the fact that a fully functional witness protection programme is not yet in place in BiH. For example, in 2002, ICTY witnesses were on at least two occasions the target of violence. In two separate incidents, the house of an ICTY witness was damaged by explosives and a war crime witness found an explosive device under his car. In May 2004, the brother of a war crimes suspect allegedly in the process of providing information on the former Bosnian Serb leader Radovan Karadzic and his network to the ICTY, was mistakenly killed in a raid by the Republika Srpska (RS) police. It is being argued<sup>2</sup> that the informer was targeted in order to silence him before he was able to say more. Increasing numbers of cases have become known where war crimes witnesses have been threatened and in several instances they were reported to have withdrawn their statements. As an indication for the prominence with which war crimes suspects still move around BiH with impunity, it was revealed in December 2004 that the RS Army had until summer 2004 been harboring and protecting prime war crimes suspect Ratko Mladic, despite repeated and public pleas to collaborate with the ICTY and apprehend war criminals.[...] In December 2004, a witness to a local war crimes trial in Zenica who had recently made two statements was killed by an unknown perpetrator in Teslic.[...] This situation of intimidation and harassment of trial witnesses may be further exacerbated when cases begin to be transferred from the ICTY to domestic courts.

#### **HRW, October 2004:**

“The successful prosecution of war crimes cases depends on the availability of credible witnesses, which in turn requires that witnesses are confident that they can testify truthfully without fear of retribution. Achieving accountability through national war crimes trials, therefore, requires measures to protect witnesses prior to, during, and after trials. In some cases, effective witness protection requires a long-term witness protection program or resettlement in another country.

Governments in the region should develop mechanisms to resettle witnesses in other countries, in cooperation with the international community, as a complement to effective in-country witness protection programs. Many crimes will be impossible to prove unless former members of the military, paramilitary, or police units that perpetrated the crimes testify against their comrades. The international community must undertake to facilitate the relocation of such witnesses, including arrangements for them to reside outside the former Yugoslavia.

Ultimately, the small size of many Balkan states sets an objective limit to the usefulness of witness protection measures. In the long run, the best defense against witness intimidation is the creation of a climate conducive to war crimes prosecutions throughout the Balkans, by developing a political consensus about the importance of war crimes prosecutions, as well as independent and professional legal systems. Unfortunately, the actual climate is far from ideal. It is crucial that the governments show leadership and speak clearly in favor of accountability.

Human Rights Watch’s monitoring of recent war crimes trials in the Balkans indicates that the lack of adequate witness protection is hampering trials and forcing witnesses to take unnecessary risks.

The Ilijasevic trial in Bosnia and Herzegovina makes clear that where witnesses share the same ethnicity as the accused they are often afraid or otherwise unwilling to testify in war crimes trials. The three ethnic Croats who testified for the prosecution in the trial between December 2002 and October 2003 stated that they did not know the accused. A former prison guard in the Croat-held Vares detention facility, testifying on March 25, 2003, even claimed that he did not know the name of any other guard who worked in the same shift with him in the prison.

Trial observers and journalists from the area have repeatedly suggested to Human Rights Watch that fear of retribution prevented some Bosniac (Bosnian Muslim) witnesses in the Ilijasevic trial from telling the court all they knew and, in some cases, from coming forward at all. A majority of the Bosniac witnesses in the trial are returnees to the locations mentioned in the indictment against Ilijasevic. Although it is difficult to establish whether or why witnesses were unwilling to provide complete and accurate evidence, fear of retribution is certainly a plausible explanation.

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#### **Impunity for war crimes and lack of efficient witness protection hinders minority return: (2006)**

- Presence of suspected war criminals in the place of return constitutes a serious obstacle to return
- War criminals are moving freely and occupying position in local administration
- Impunity associated with psychological and material vulnerability of war crime victims makes return even more difficult
- Impunity continues for those responsible of widespread rape campaigns
- In general, BiH cooperation with ICTY has been less than satisfactory, especially in the RS
- RS Authorities have transferred their first case of war crime indictee in 2005 after heavy pressure from the international community

#### **USDOS, 8 March 2006:**

“The security situation for returnees improved during the year, although isolated incidents of violence were reported and a hostile atmosphere still existed in many areas. Many returnees cited authorities' failure to apprehend war criminals as a disincentive to return, as they did not want to live in communities with persons who had committed war crimes and had not been held accountable. Many displaced persons were creating permanent lives away from their prewar homes, and only individuals with few other options (including a large number of elderly pensioners) tended to return.”

#### **UNHCR, January 2005:**

“The presence of suspected war criminals and failure to arrest and prosecute them constitutes an important obstacle to return and affects the sense of security of many returnees. Moreover, it is not only that the local police has often not been able to arrest war criminals, but the continued presence of suspected war criminals in the local administration which hampers trust of the local



population and particularly returnees into the justice system.[...] Despite the efforts made in the context of the decertification process undertaken by the International Police Task Force (IPTF) before the end of 2002 as regards police officers against whom there was evidence of wartime crimes, considering the magnitude of war crimes committed in Bosnia and Herzegovina, and the active role of local administrators in the execution of these crimes, it is unlikely that all war criminals have been removed from local administrative bodies. In cases where officers have been decertified, IDPs and returnees have come across them in other central roles in their former municipalities, either as experts or consultants to the Ministry of Interior, in the judicial systems and other central parts of the local administration, including in schools.”

**AI 12 November 2003, p.19:**

"[T]he point needs to be made that the protection of vulnerable witnesses must take account of other needs apart from their physical security. These politically-charged trials have a profound social impact - both at the general level of the community at large and at the level of those participating in the proceedings. They do not take place in an academic, judicial vacuum but are very much part of the dynamics of political and social developments, as many proceedings so far have taken place against a backdrop of mass publicity. Practical, psycho-social and medical support should be offered to all vulnerable witnesses, in particular with regards to the high risk of re-traumatisation as a result of giving testimony and being subjected to cross-examination. The need for such support is expressly recognized in international law. Article 68(1) of the Rome Statute requires the Court and the Prosecutor to take such measures.[...]

The dire economic and social living conditions of many witnesses (in particular former detention camp inmates, rape victims, displaced persons, single parents and the elderly - categories which obviously to a large extent overlap) need specific attention as well. Therefore, it is recommended that witness protection schemes work in close cooperation with the local health and social service system, as well as with organizations with experience in working with vulnerable and traumatized individuals.”

**AI, 12 October 2004:**

“Entrenched ethnic divisions among the political elites in Bosnia continue to shape political and human rights developments in the country. While ethnic violence has for the most part ended, ongoing ethnic divisions among Bosnia’s constituent peoples – Bosniacs (Bosnian Muslims), Serbs, and Croats – continue to impede progress in key human rights areas, such as war crimes accountability and the return of refugees and displaced persons.

***An example of impunity: sexual war crimes***

“Bosniak, Croat and Serb women who endured horrendous crimes of sexual violence have still to obtain justice. Nearly a decade after the armed conflict in Bosnia-Herzegovina of 1992-95, only a handful of those responsible have been brought to justice for the widespread rape and sexual abuse of women. Women were held in sexual slavery and subjected to repeated rapes and other forms of torture by armies and paramilitary groups on all sides of the conflict.

Vigorous campaigning by women’s organizations, which first revealed to a shocked world the extent of the abuses in 1992, has made a crucial contribution to the recognition of rape as a war crime. Prosecutions for rape and sexual enslavement as crimes against humanity took place at the International Criminal Tribunal for the former Yugoslavia, and the Rome Statute of the International Criminal Court subsequently recognized rape, sexual enslavement and other crimes mostly committed against women and girls as war crimes and crimes against humanity.

Despite this, virtual impunity continues. There have been almost no prosecutions for rape and other crimes of sexual violence before domestic courts in Bosnia-Herzegovina, denying most women access to justice, redress and reparation. The men who raped them enjoy continuing impunity, while the lives of the victims remain socially and economically blighted. Apart from

services provided by women's organizations, appropriate medical and psychosocial support remains generally unavailable.

In June 2003, as the Tribunal began to prepare for its closure in 2010, the international community proposed the establishment of a State Court with a War Crimes Chamber in Bosnia-Herzegovina, which is expected to start proceedings in early 2005. However, moves to create a national war crimes court in Bosnia-Herzegovina have not satisfied doubts that the perpetrators will ever be brought to justice.

The new court – created in a process that appeared driven by international financial and political factors – will fail to deliver justice and redress unless women feel that it is safe to testify. There would have been even fewer prosecutions at the Tribunal if it were not for the courage and determination of women who have stood up to threats and intimidation.

There is no effective protection for witnesses from attacks and intimidation inside the country or under an international protection scheme such as that in place at the Tribunal. Women prepared to testify at the State Court need to be guaranteed protection of their physical safety and access to psychological, social and economic support both during trial proceedings and afterwards."

### ***War crime accountability***

#### **HRW, 14 Janvier 2005:**

Local officials in each entity of Bosnia remain unwilling to prosecute members of the ethnic majority in their region for war crimes. Hundreds, possibly thousands, of war crimes committed in Republika Srpska have yet to be investigated and tried before the Republika Srpska courts. In May 2004, Republika Srpska opened the first war crimes trial ever against ethnic Serbs; eleven Serbs are accused of the illegal detention of Catholic priest Tomislav Matanovic in 1995, who was later found murdered. In the Federation of Bosnia and Herzegovina (the Bosniac majority area), there have been more indictments against members of the local ethnic majority, but these efforts have been plagued by a lack of support on the part of police and political elites, as well as poor cooperation between the countries in the region and entities in Bosnia and Herzegovina on judicial matters, and a lack of witness protection mechanisms."

#### **CoE, 4 February 2005:**

"The first transfer of a war crimes suspect to The Hague, with the co-operation of the Republika Srpska (RS) authorities in mid-January 2005, is a significant step in the right direction. However, as most wanted war crimes suspects remain at large, much is still needed to ensure full co-operation with the ICTY, a priority matter for the CoE and a pre-condition for progress towards further Euro-Atlantic integration. The decision of the High Representative mid-December 2004 to dismiss several high officials of the RS testifies that obstacles still exist in this respect."

**See also "Justice at risk: War crimes trials in Croatia, Bosnia and Herzegovina and Serbia and Montenegro", Human Rights Watch, 14 October 2004, [link below](#)**

**"Foca confronts its past" HRW, 15 October 2004**

***For more information on the need for continued international protection of witnesses of war crimes, see Section 3, UNHCR, July 2003, "UNHCR's Concerns with the Designation of Bosnia and Herzegovina as a Safe Country of Origin", [link below](#)***

***For more information regarding the general problems with justice and reconciliation in Bosnia, see "Bosnia: Massacre Trial Highlights Obstacles to Justice in the Balkans," Human Rights Watch, 16 January 2004, [link below](#)***

## **New impetus to prosecute war crimes trial in Republika Srpska but cooperation with the ICTY remains inadequate (2006)**

### **Human Rights Watch, 16 March 2006**

“For most of the past decade there has been effective impunity for war crimes in Republika Srpska (the predominantly Serb entity of Bosnia). By November 2005, only two war crimes trials had been completed in Republika Srpska. In contrast, over fifty war crimes cases were heard during the same period in the Federation of Bosnia and Herzegovina (Bosnia’s other entity), including more than a dozen involving defendants from the dominant ethnic group in the location in question. Serbia and Montenegro carried out thirteen trials in the same period, all but one involving Serb defendants, and Croatia had a large number of trials, including nine trials involving Croat defendants.

However, in late 2005 war crime prosecutions began to gain momentum in Republika Srpska. In two trials completed in November and December respectively, a court in Banja Luka convicted a total of four ethnic Serbs on war crimes charges, and one Serb was convicted in the town of Trebinje in December. As of early February 2006, a war crimes trial against an ethnic Serb was ongoing in Trebinje district court, and another one involving a Serb defendant in Banja Luka district court. Prosecutors in charge of war crimes prosecutions in several parts of Republika Srpska were also nearing completion of other investigations.

The rise in the number of prosecutions reflects a greater willingness of Republika Srpska to bring war crimes suspects to trial. In addition, the creation of the new Sarajevo War Crimes Chamber has significantly increased the number of war crime cases likely to be heard in Republika Srpska. During 2005, the Special Department for War Crimes in the Office of the Prosecutor of Bosnia and Herzegovina carried out a review of war crimes cases investigated in Bosnia. While the most serious cases are likely to be prosecuted in the War Crimes Chamber in Sarajevo, a large number have already been referred to local prosecutors in Republika Srpska and the Federation of Bosnia and Herzegovina. The Special Department for War Crimes has transferred around forty cases to Republika Srpska prosecutors, and further transfers are possible.”

### **AI, January 2006:**

“Co-operation between the RS authorities and the Tribunal remained inadequate. By the end of 2005, no suspect indicted by the Tribunal had been arrested by the RS police. A policy of “voluntary surrenders” by the RS authorities resulted in a number of transfers from the RS, or with the assistance of the RS authorities. However, the policy violated the obligation of the RS to co-operate fully by arresting and transferring indicted suspects. Six publicly indicted suspects remained at large, some of them believed to be in the RS or in Serbia and Montenegro.”

## **Reintegration of vulnerable groups can prove very difficult (2000-2003)**

- Discrimination based on ethnicity, political affiliation, national origin and gender impact more severely on vulnerable groups, including minority returnees, Roma and female-headed households
- Returnees without prospects of re-integration run the risk of ending up in collective centres, which the local authorities and UNHCR are trying to phase-down

- Ethnic membership, lack of financial resources and absence of family support seriously affect the access of vulnerable groups to health care and social services
- Already disadvantaged groups also risk being further marginalised through reconstruction assistance, privatization and allocation of the housing stock
- Many returnees, in particular in rural areas controlled by another ethnic group, or elderly, disabled and residents of collective centres, find themselves in extremely precarious conditions

**OHCHR 21 January 2003, para.6:**

"It is still the case that the majority of human rights concerns are rooted in some form of discrimination based on ethnicity, political affiliation, national origin, gender, or various intersections thereof. Difficulties experienced by the entire country due to economic hardship or the aftermath of the conflict impact more severely on vulnerable groups, for example minority returnees, Roma and female-headed households. The pervasive influence of political parties in areas which should be free of any influence, such as employment and access to housing, is to be deplored and must be remedied. [...] **It is hoped by the Special Representative [of the Commission on Human Rights to examine the situation of human rights in Bosnia and Herzegovina] that the new gender law, when implemented, will address some of the inequalities, but he urges much greater efforts to analyse the full ramifications of all forms of discrimination to ensure that positive steps are taken towards their removal.**"

**UNHCR August 2000, sect. 3:**

"The assessment of medical cases and socially vulnerable persons, such as (mentally and physically) handicapped persons or the elderly, should not be limited merely to the availability of treatment or special care requirements in BiH. Several other factors play an equally important role in ensuring accessibility to treatment and special care. The financial resources of the concerned individuals must be taken into account, since the former social policy of free access to social services and health care, applied under the socialist system, has changed with the introduction of fees to access health care and social services. Vulnerable but impoverished returnees in general do not have access to proper treatment and to medical facilities. The health insurance system is still ineffective and the restructuring of the health care and social service infrastructure is far from complete. The reform of the Entities' legislation regulating these matters may well take some time since it must take into account the constitutional competencies of the various levels of government authority.

The ethnicity of a returnee might also affect her/his access to health care and social services. Therefore, the reintegration of members of minority constituent peoples might be further undermined by their vulnerability and their disability. Provided there are no other protection problems, the possibility of repatriation of individuals in need of special care should be assessed on a case-by-case basis. Returnees without prospects of re-integration run the risk of ending up in collective centres, which the local authorities and UNHCR are trying to phase-down by providing solutions to the displaced residents. Consideration should be given to whether the community of origin or relatives can provide care and assistance or, alternatively, to whether the appropriate institutions are close to the place of origin so as to ensure proper reintegration in the place of pre-conflict residence, and finally as to whether funds are available to pay for services provided by a medical facility or through home care. The reintegration of elderly persons without family support can prove particularly difficult. The elderly in BiH represent close to 11% of the total population as opposed to the 1991 figure of 6.5%. UNHCR discourages the creation of new institutions for vulnerable persons, because they do not take into account their needs of independence and socialisation and because they often represent an expensive model of care for which the authorities in BiH do not provide the necessary funds to sustain. As in any repatriation,

children separated from their families or traditional care-givers must be accorded special care and attention, particularly regarding their legal status and special protection needs."

**UNCHR 29 January 2001, para. 33:**

"Insufficient attention has been paid to the needs and problems of persons belonging to vulnerable groups, many of them women, in the return process. There is a grave risk of already disadvantaged groups being further marginalized and excluded when property is redistributed in Bosnia and Herzegovina through reconstruction assistance, privatization and allocation of the limited available housing stock. Additional efforts are needed to address the needs of vulnerable people."

**UNCHR 29 January 2001, para. 18:**

"Five years after Dayton, discrimination on the basis of ethnicity, political opinion and gender remains one of the core problems in Bosnia and Herzegovina. The importance of this matter increases as the international community tries to push for the accelerated return of refugees and IDPs. Return makes sense only if it is sustainable. Once the familiar obstacles of poor security and difficulties in property repossession are overcome, access to social and economic rights will be of primary importance. Unfortunately, many returnees - particularly in rural areas and locations where returnees are a small minority (in particular in eastern Republika Srpska and some Bosnian Croat controlled areas) - find themselves in extremely precarious conditions. This is especially true for the most vulnerable groups among the returnees, including the elderly, sick and disabled, and residents of collective centres."

**See also *"Extremely Vulnerable Individuals: The Need for Continuing International Support in Light of Difficulties to Reintegration Upon Return"*, November 1999, website of UNHCR mission in Sarajevo [Internet]**

## SUBSISTENCE NEEDS

### General

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#### **Failure to reform the social welfare system leads to unequal distribution and leaves the most vulnerable IDPs unassisted (2007)**

- Both Entities have Laws on Displaced Persons, which do not always correspond to the actual aid received by IDPs. Upon return, both the IDP status and any assistance received will cease.
- The current structure of the social welfare system allows for unequal assistance depending on which Canton or which entity the DP reside
- The reform required to ensure a functional the social welfare system is hampered by pressure of various interest groups
- The international community is promoting a reform to address the needs of the most vulnerable

#### **UNDP, 2007:**

“Although BiH has committed itself to ensuring adequate social protection for all its citizens, this goal has not yet been achieved. With no single programme at the state level and entitlements to transfers based on status rather than need, social protection in BiH remains characterised by fragmented funding, unequal and often inadequate delivery of services, inadequate resources and unequal access to support.”

#### **UN CHR, 29 December 2005:**

According to the Federation of Bosnia and Herzegovina Law on Displaced-Expelled Persons and Repatriates, holding IDP status entitles a person to a number of rights and benefits, such as accommodation, food, social reintegration and psychological support, health care, education for children and youth and other essentials. In practice, however, only accommodation and basic health care are provided.

In the Republika Srpska, the Law on Displaced Persons, Returnees and Refugees regulates legal IDP status and its cessation, as well as rights and entitlements to certain benefits, such as cash assistance, basic health care, elementary education, unemployment benefit, loans to start income-generation projects as well as temporary basic accommodation, provided IDPs cannot cover expenses themselves. It specifically stresses that “responsible authorities shall issue to displaced persons and returnees all documents necessary for the exercise of their legal rights”. (...) According to both laws, IDP status including its entitlements ceases upon return to a person’s pre-war place of residence, “when a safe and dignified return to her/his former place of residence is possible, but a displaced person has not returned there, or when this person voluntarily decided to permanently settle in another place”.

#### **CoE, 11 May 2005, par.50:**

“Another complicating factor in this sphere is the extremely complex and heavy institutional structure of the State and especially the Federation. In this Entity, social welfare is a Cantonal power, but without all Cantons having adopted legislation thereon. The Cantons also have large competences to adopt implementing legislation on health care. The Advisory Committee has been given to understand that the current system results in significant differences between the

Cantons and between the Entities and that no authority feels responsible for filling existing gaps in the social net. This situation has a negative impact on those having to deal with authorities of different levels in their daily life, in particular displaced persons such as the Roma who fled the Republika Srpska.”

**UN CESCR, 24 January 2006, par. 40-42:**

“The Committee encourages the State party to promote the adoption of the proposed Law on Amendments to the Law on Social Protection, Civilian War Victims, and Families with Children which is currently in the Parliamentary procedure in the Federation of Bosnia and Herzegovina and which provides for the transfer of the budget for the social protection of civilian war victims and persons with disabilities not related to armed conflict from the cantons to the Federation, in order to eliminate inequalities resulting from the diverging availability of funds in the cantons. It also requests the State party to ensure that the authorities of the Federation of Bosnia and Herzegovina extend this budgetary transfer to other categories of social protection beneficiaries.

The Committee recommends to the State party ensure that victims of sexual violence suffered during the armed conflict of 1992-1995 obtain the status of civilian war victims, to devise and implement a coherent strategy at State level to protect the economic, social and cultural rights of victims of sexual violence and their family members, and to ensure the participation of victims of sexual violence in any decision-making processes affecting them.

The Committee requests the State party to promote the adoption of an inter-entity agreement on pension rights and to ensure the implementation of the inter-entity agreement on health insurance with a view to guaranteeing access to pension benefits and health care by returnees who move from one entity to the other.”

**OSCE, 11 April 2006:**

“In the absence of gainful employment, displaced people and returnees at the very least need to have access to essential social services and utilities in order to remain in their homes. Social welfare and assistance payments, pension benefits, health care, education, and temporary social housing are all issues that influence whether an individual who returns home is able to remain. Unfortunately, a combination of inter-entity politics and labyrinthine constitutional structures hampers Bosnia and Herzegovina’s ability to provide such services successfully at even minimal levels. Too often still, local interest groups influence decisions on budgets for essential aspects of life such as social assistance and health care, social security, and welfare in order to ensure that their particular constituency receives a disproportionate share of the available benefits. This only works to the detriment of other socially vulnerable groups, which include but are by no means limited to refugees and the internally displaced. Since these special interest groups often hold disproportionate sway within political parties, politicians often tend to evince little or no interest in making the legislative and policy changes needed to ensure a functional social safety net in Bosnia and Herzegovina.”

**OSCE, 15 September 2005, p.5:**

“The Mission has, for instance, lately increased its engagement in the rights to social protection and adequate housing. This alteration in focus has gradually taken shape because of the acute failure of entity level governments to meet basic international obligations and to implement state-wide legislation to cover the needs of the most vulnerable members of society. This shift in focus also coincides with the efforts of the international community to reform the social welfare system, as part of the World Bank’s SOSAC II programme and its work with the BiH authorities resulting in the country’s Poverty Reduction Strategy Paper (PRSP), as well as to ensure adequate funding to such protection mechanisms after the introduction of a Valued Added Tax (VAT) at the beginning of 2006. (The Government of BiH has committed to establishing a ‘social fund’ to help

people of limited means cope with the effects of a single, seventeen percent-rate VAT with no exemptions, but so far concrete details for this fund are lacking.)”

***For more information on the social protection and pension systems, see under “Self-Reliance” (INTERNAL LINK)***

### **Persisting problems of access to utilities for returnees and other vulnerable persons (2006)**

- Ministry for Human Rights and Refugees coordinates efforts to reach agreement on electricity between responsible Ministries and Directors of electricity companies
- MoU harmonises procedures for reconnection in favour of returnees
- Reconstruction of electricity network will focus on return areas
- Some areas of Croat controlled Herzegovina and Eastern RS still deny returnees access to electricity
- Problems in access to utilities for returnees and other vulnerable persons continued to be reported in 2002-2003 in a number of municipalities
- Private lawsuits have been lodged against utility companies
- Inter-Agency Working Group on Utilities was created in May 2001 to deal with legal analysis and the development of a strategic approach regarding discriminatory practices
- Returnees are often over-billed for periods during which they were displaced or for reconnection
- Utility companies claim a lack of technical or network capacity to deny re-connection to returnees

#### **Helsinki Committee, 17 January 2006:**

“One of the most common forms of obstruction can be illustrated with the example of the Croatian returnees to the municipality of Derventa, who have been waiting already for six years for the low-voltage electric network to be reconstructed and connected to their homes. There are 150 households waiting for it. In the area of Ustipraca, 20 percent of returnees’ houses are also in darkness, the same as in the municipalities of Zvornik, Višegrad, Sanski Most, Glamoc and elsewhere throughout Bosnia and Herzegovina. The situation is similar with water supply, roads, and in particular it is difficult to exercise the rights to health and social protection, or education.”

#### **UNHCR, 26 January 2004:**

UNHCR welcomes the MOU on Reconnection of Returnee Housing Units to the Electricity Networks, signed today in Sarajevo between the responsible BiH ministries and the electricity companies in Bosnia and Herzegovina. The MOU and its future implementation represents significant progress in the BiH authorities taking over the responsibilities for the creation of suitable conditions for the return of all peoples who wish to return in line with Annex 7 of the General Framework Agreement for Peace in Bosnia and Herzegovina.

Returnees have faced a myriad of problems with the reconnection of their properties to the electricity network since the very beginning of the return process in Bosnia and Herzegovina. Returnees as one of the most economically vulnerable groups in BiH, were thus also heavily burdened by taxes and fees for the electricity reconnection.

As a result of the MOU, all three BiH electricity companies will take over the responsibilities for the reconstruction of the electricity network with an emphasis on return areas and returnee households as a priority for reconnection. Municipal authorities and MHR Regional Centres will



closely cooperate with the electricity companies in order to ensure full transparency in the use of funds allocated for this purpose. The most important provision in the MOU is the harmonization of an exemption of reconnection taxes and fees for returnees throughout Bosnia and Herzegovina. UNHCR will continue to monitor its implementation until the rights of all returnees to again have access to vital services to be provided by the authorities, is ensured.

**US DOS, 28 February 2005:**

"Some areas of Croat-controlled Herzegovina and some towns in eastern RS remained resistant to minority returns. This was most often expressed through official obstruction of returnees' access to local services

(i.e. municipal power and water, education, and health care). For example, the government-owned RS electric company was obliged to connect residents who live within 50 meters of an existing power line. Despite repeated requests, they consistently failed to connect many eligible returnee households, especially in the Srebrenica-Bratunac area."

**Ombudsman of the Federation of Bosnia and Herzegovina, March 2003:**

"In a number of municipalities problems of access to utilities for minorities were reported in 2002 - 2003 Article 11 of the International Covenant on Economic, Social and Cultural Rights recognises the right of every citizen to an adequate standard of living for himself and his family, including adequate food, clothing and housing, and to the continuous improvement of living conditions.

However, there is a huge rift between standards defined by international conventions, which bodies of governance committed to comply with, and the actual state of social rights of citizens in the Federation of BiH.

Wartime devastation and reduced donations by the international community cannot be used, seven years since the end of the war, as valid justification for the arrogant attitude of authorities towards the socially most vulnerable categories of the population. There continues to be a disproportion between the living standard of the majority of the population, who are on the verge of poverty, and the fees burdening them for utility services, which are an essential requirement for life. [...] An example that illustrates social poverty are numerous addresses by citizens over lawsuits brought against them by public enterprises for failure to pay utility bills. Although sometimes these bills are around 10 or so KM, citizens are in a hopeless situation between an inability to pay and a possibility of being left without electricity or water, as the basic requirements for normal life.

In the area of Herzegovina-Neretva Canton, cases were reported of massive addresses by citizens who complained of water and electricity being cut off for entire buildings and settlements due to outstanding debts from the wartime and post-war period. Through mediation by the Office of Ombudsmen of FBiH in Mostar, in co-operation with responsible persons in the water company in Mostar, a fast and efficient solution was found to prevent water being cut off.

The problem of electricity cuts, however, remained unsolved. The power distribution company in Mostar, "Elektro distribucija", namely, refuses to issue outstanding debt cards which would show which period outstanding debts refer to. This prevents citizens from checking individual monthly bills and their foundedness, or if they are possibly outdated. The board of "Elektro distribucija" Mostar passed a decision that citizens themselves would have to cover the costs of issuance of outstanding debt cards, which is an additional fee for the already impoverished citizens."

**UNDP 2003:**

## Bugojno Municipality

[...] “Access to public utilities: Low confidence in the ability of potential returnees from rural areas to access public utilities undermines return. For example, Bosniak returnees to Bosanski Dubovac complain that municipal authorities by-passed their village when connecting telephone lines to a neighbouring Serb village. In the village of Zeravac, houses reconstructed by international donors are still without electricity. Reconstructed houses in Velika faced difficulties in connecting utilities, and the delivery of electricity remains unstable. Water supply is a problem for the whole population in Derventa Town, but is especially acute in rural areas. Such difficulties in accessing utilities can create a perception that the municipality does not encourage minority returns in rural areas where most return takes place.”

## **Helsinki Committee for Human Rights in Bosnia and Herzegovina, 2003:**

### Cazin Municipality

“The data from the NGOs and the municipalities related to the return of apartments show that the return was completed in 99% of the cases, while the return of private property was completed in almost 90% of the cases. They are planning to complete this task in hundred percent of cases by the end of the year. Such results are the consequence of strengthening of human resources in those municipal services that are in charge of return. Unfortunately, this is not the case with other municipal services and public institutions. For example, there are still cases where some people are favoured at the expense of others in getting phone lines, and where infrastructure and utility problems (water, electricity, roads) are being slowly or not at all resolved.”

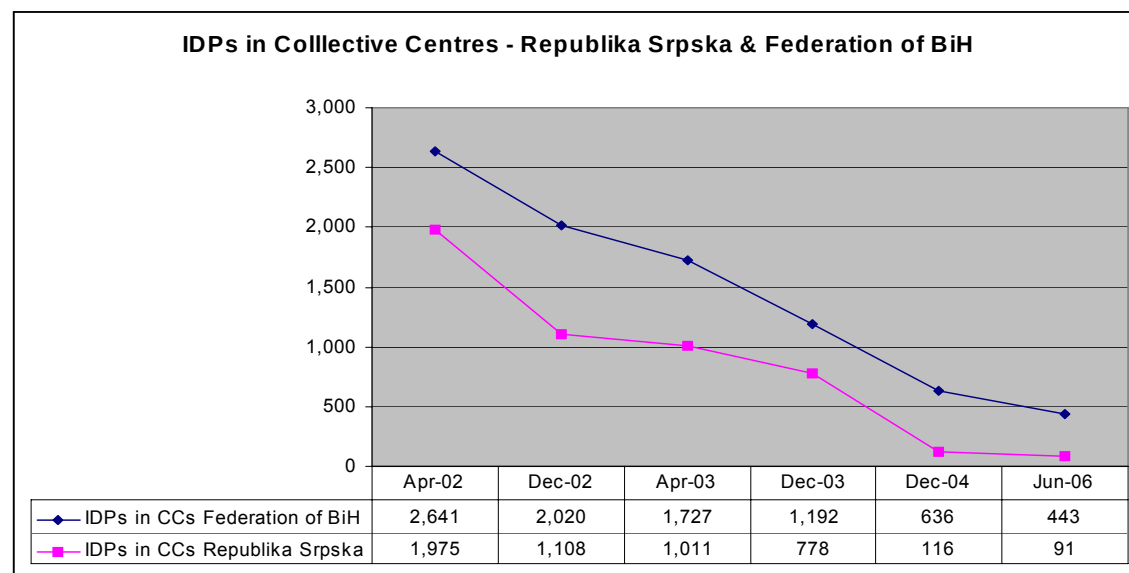
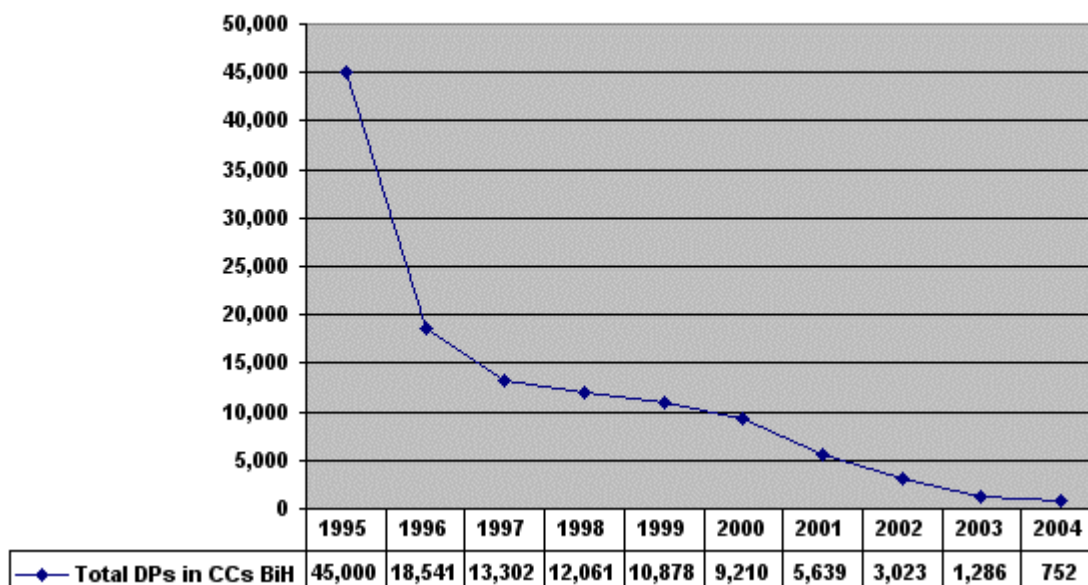
## **Shelter and non-food items**

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### **At least 7,000 internally displaced persons still live in collective centres (1995-2008)**

- Statistics show a sharp decrease in the first years due to the first post-war returns
- In subsequent years the population only decreased gradually thanks to reconstruction or property repossession
- Several assistance projects have contributed to decrease the number of collective centre residents through reconstruction of their houses.
- Only the most vulnerable cases remain in the collective centres. Some of them unable to return (elderly, traumatized) require institutional care.
- Some figures indicate that some 7.000 IDPs still live in informal collective centres under dire conditions.
- Many of those IDPs do not correspond to strict criteria of reconstruction projects

### IDPs in Collective Centres in BiH



Source: UNHCR, Statistical summary, 30 June 2006

#### CoE, 20 February 2008:

64. At least 7,000 displaced persons are still living in collective centres, although only a few hundred in officially recognised ones.

#### UNHCR, June 2006:

“DPs of particular concern to UNHCR are those accommodated in collective types of accommodation. It is difficult to determine the accurate number of these persons but according to information collected during the 2005 re-registration exercise, at least 7,000 persons are still living in collective centres. Although there are various projects for return, including reconstruction assistance, a significant number of persons accommodated in collective/alternative accommodation in BiH do not meet legal criteria stipulated by these projects. In practice, there is

a discrepancy between legal regulations stipulating too formal and complicated eligibility criteria and the real situation of the persons concerned."

**UNHCR, CC report:**

"At the end of the war in December 1995, some 45,000 displaced resided in such centres. The number of residents in these centres declined drastically to 18,500 at the end of 1996, after the majority returned to their pre-war residences. Since then, however, the number of persons still requiring assistance provided in these centres has only reduced gradually. (...) In April 2000, UNHCR discontinued most material assistance and focused its activities to the identification of durable solutions for the residents, leading to the eventual closure of the centres. At the same time, UNHCR has been encouraging the Entity authorities to take a more proactive approach in resolving the plight of this vulnerable population. Since 2001, the Federal Ministry for Social Affairs, Displaced Persons and Refugees made attempts to close some collective centres by accommodating the individuals concerned in reconstructed houses. The Ministry for Refugees and Displaced Persons in Republika Srpska continued its strategy of housing collective centres residents in newly constructed apartments for a one year tenancy period. UNHCR is strongly advocating proper institutional care, in close co-ordination with the respective Ministries of Health, to be offered where possible and necessary to the elderly among the centres' residents.

Late in 1998, in partnership with the Government of Switzerland, UNHCR started with the implementation of projects to provide lasting solutions for Collective Centres residents. The Swiss Humanitarian Aid (SHA) programme 'Durable Solutions for Collective Centres Residents' (DuSoCC) was thus established. Project costs are covered by UNHCR and administration costs are borne by the Government of Switzerland (Project Manager and seven local staff). SHA's staff has been based in UNHCR offices in BiH since February 1999 to enable them to work closely with UNHCR's field colleagues.

From the beginning of 1999 to date, some KM 6, 5 million has been spent on this project, and some 1,520 beneficiaries found durable solutions returning to their reconstructed pre-war homes. As a consequence of diminishing financial resources and the rapidly deteriorating living conditions in the Collective Centres, the residents remain of primary concern to UNHCR in terms of providing protection and assistance to this vulnerable group. Although Swiss Humanitarian Aid (SHA) is striving to provide durable solutions wherever possible, no other donors are providing contributions to this project. UNHCR's ultimate goal is to eliminate the need for collective centres altogether by end 2005. UNHCR and SHA will maintain and update the database of individual residents in all the Collective Centres. Efforts will have to be made to target the most vulnerable individuals, while reviewing changing circumstances in property repossession.

Donors funding reconstruction projects throughout BiH has been drastically diminishing since 2002, and at the same time it is focused predominantly on repairing and rebuilding houses for other beneficiary groups. UNHCR would like to see these efforts complemented with a contribution in aid of collective centre residents. Such resources could not only be used for constructing housing units, but also for economic assistance through income generation projects and agricultural initiatives to ensure sustainability of these returns. UNHCR urges donors to either fund already prepared projects in order that solutions for these most vulnerable displaced persons can be identified and implemented in a timely manner."

***In 2004, a project financed through a grant of the Council of Europe Development Bank (CEB) was implemented in cooperation with UNHCR to support the most vulnerable residents of the remaining collective centres by supporting return or institutional care. In November 2004, the CeB approved a loan of USD 8.000.000 to rehabilitate houses of 1100 families living in collective centres or temporary accommodation.***

***For more information and statistics on collective centres see also:***

***"2006 UNHCR assistance programme in Bosnia and Herzegovina", UNHCR, June 2006, "Durable solutions for the collective centre residents", UNHCR/CRS, 2005/2006, and***

**Remaining IDPs, particularly in collective centres, are among the most vulnerable and live in appalling conditions (2007)**

- IDPs' living conditions remain of grave concern
- Remaining IDPs in BiH are the most vulnerable among the overall population
- IDP status provides for some basic social entitlements, but they are not always provided
- Officially only a few hundreds IDPs remain in collective centres
- However, it is estimated that about 7.300 IDPs live in unofficial collective centres in appalling conditions
- Irregular collective centres are located mainly in the Federation and receive some help from authorities and UNHCR
- Collective centres inhabited by Roma often lack running water and electricity
- Those living conditions lead to health and psychological problems, children are particularly affected
- IDPs living in collective centres are particularly vulnerable to human trafficking
- UNHCR is disseminating information on sexual and gender based violence in reception centres and collective centres
- Children living in collective centre face difficulties to go to school

**UNHCR, October 2007:**

While the numbers of IDPs and refugees in BiH are substantially lower than those recorded in 2000, their living conditions remain a grave concern. Throughout the country, they continue to reside primarily in urban centres, such as Banja Luka, Sarajevo, Tuzla and Mostar, many in government-funded temporary accommodation. It is fair to assume that those persons, who still in 2007 maintain IDP status with the relatively limited benefits attached to it, are the most vulnerable among the overall population. Others may have, in the meantime, found a durable solution, either by returning to their pre-war homes or by locally integrating into their new place of residence.

IDP status is often the only opportunity for a vulnerable individual to have access to legal as well as minimum social protection such as temporary accommodation, health care, and/or other basic entitlements. However, even where IDP status is confirmed, IDPs often have difficulty accessing the assistance or accommodation to which they are entitled. The collective accommodation which is available today provides only the most rudimentary living conditions. Many persons have lived in these facilities for years due to a lack of funds for repair and development of infrastructure and services and slow implementation of reconstruction in many areas of BiH. Lack of Government leadership and plain oversight for many communities has also hindered improvement of living conditions for IDPs.

**UN Commission on Human Rights, 29 December 2005, par. 30-31:**

30. Due to achievements with regard to the rate of return, as well as the start of the closure of camps by international agencies and local authorities some years ago, only several hundred IDPs remain in officially recognized collective centres. However, according to official figures, about 7,300 persons still live in irregular collective centres and ad hoc settlements which were originally provided by local authorities as temporary shelter for those displaced by the conflict. Most of

these centres, which remain monitored by UNHCR, are located in the Federation of Bosnia and Herzegovina where some receive limited support from the Federation of Bosnia and Herzegovina Ministry of Refugees and Displaced Persons or the cantons and municipalities concerned. The Representative visited some of these unofficial centres and settlements no longer supported by the Government or the international community and noted with concern the abject poverty and deplorable living conditions of IDPs, which are clearly not in accordance with the right to an adequate standard of living as provided for by guiding principle 18. Unofficial settlements inhabited mainly by Roma have no running water and electricity and are not connected to public services such as waste collection. As a consequence of these conditions, the social isolation of the centres and the high percentage of inhabitants suffering from depression and trauma, an increased level of learning and psychological difficulties among children has been documented by UNICEF, affecting especially those children who have been living there for extended periods of up to 10 years.(...)

31. Almost all inhabitants of collective centres belong to particularly vulnerable groups, such as female-headed households, elderly persons without family support and the disabled, severely traumatized individuals, witnesses in war crime investigation or Roma. Their return to their places of origin is unlikely for a variety of reasons, mainly: (a) unresolved property repossession processes; (b) delays in reconstruction of their houses, sometimes because they have been unable to submit the required documentation; (c) adverse conditions in communities of origin, such as lack of infrastructure, employment opportunities, access to education and health care; and (d) changes in the ethnic structure of return communities or the still outstanding return of other community members.<sup>20</sup> Special assistance to these groups is necessary, and 10 years after the Dayton Peace Agreement, instituting systematic efforts to find durable solutions for them is a matter of urgency.

32. Many IDPs are suffering from long-term post-traumatic stress disorder (PTSD). PTSD is especially prevalent in households headed by females because the husbands and fathers are missing. The extent of the trauma suffered as well as other difficulties faced by displaced children in the post-war period, including mourning the missing and killed, lack of financial resources and separation from closely related persons, gravely affects their development and health. Particularly difficult is the health situation of the estimated 200,000 camp survivors and an unknown number of victims of sexual violence, who are in need of specific social services and psychological programmes. Bosnia and Herzegovina still lacks adequate medical and psychiatric services to address their continuing suffering. This infringes on the rights of traumatized, sick and disabled IDPs to receive the medical care and attention they require (guiding principle 19, para. 1). While camp survivors and victims of sexual violence have been recognized as victims of torture by the International Criminal Tribunal for the former Yugoslavia,[...] their status does not amount to a legal recognition which would grant them specific rights and protection measures. The absence of an umbrella law at the State level for their protection and the lack of acknowledgement by society and the State of their suffering may lead to re-traumatization. The Representative notes the assurances recently given by a representative of Bosnia and Herzegovina to the Committee against Torture that an umbrella law on their protection would be initiated at the State level in 2006.”

**UNHCR, Background note on trafficking, June 2006, p.1-2:**

“Prevention of trafficking among displaced population groups UNHCR seeks to avoid that persons of concern to the Organization are exposed to the risk of becoming victims of trafficking. Women and children in displacement may be more vulnerable to different forms of exploitation and abuse being separated from family members and traditional support mechanisms or isolated from their communities. Categories who may be particularly vulnerable to trafficking are those in “camp situations” e.g who are accommodated in reception centres in BiH, namely asylum-seekers, temporarily protected (‘admitted’) persons, and refugees. Other categories of persons of concern

are women returnees and internally displaced persons, especially those accommodated in collective centres in BiH.

UNHCR BiH includes prevention of trafficking in the general gender-based violence (SGBV) awareness raising campaigns and other activities in the reception centres. UNHCR's 'Guidelines for Prevention and Response: Sexual and Gender-Based Violence against Refugees, Returnees and Internally Displaced Persons' have been translated into the local language, used in training events and widely disseminated."

**Helsinki Committee, 17 January 2006, p.13-14:**

"Children who are still with their parents in collective refugee and asylum centers, in which the accommodation capacities and living conditions are below human dignity, are in an extremely difficult situation. The transportation to the school is not provided to the children, particularly in rural environments. They often go on foot, even for more than 7 kilometers (village Branjevo – municipality of Zvornik – 350 pupils), which certainly affects on the security of the youngest ones."

***For statistics on the official number of IDPs in collective centres check the following website: [www.unhcr.ba](http://www.unhcr.ba)***

**Significant reconstruction needs remain unaddressed (2005)**

- 50.000 housing units are still in need of substantive repairs
- In 2004, the Ministry for Human Rights and Refugees registered application for reconstruction from refugees, displaced persons and returnees
- Applications will be used to determine priority areas for reconstruction
- 86% of applicants are currently residing in Bosnia being either displaced or returnees

**UN Commission for Human Rights, 29 December 2005, par.41:**

"Some 50,000 housing units remain destroyed or in need of substantive repairs, and many need to be reconnected to the public water and electricity supplies. Resources for reconstruction are scarce as donors are increasingly directing funds to other priorities. Again, vulnerable groups face the biggest difficulties in having their houses reconstructed. They may only receive part of the building material required or lack the capacity or the resources to do the actual construction work. Vulnerable categories have often been excluded from the process of identifying beneficiaries for reconstruction assistance."

**MHRR, September 2005, p.5, 7, 15, 21:**

"Last year in June, the Ministry for Human Rights and Refugees of Bosnia and Herzegovina, publicly invited all refugees from BiH, displaced persons in BiH and returnees in BiH who meet the general criteria for the housing units reconstruction aid projects aiming the return to submit their applications for the registration of potential beneficiaries for the assistance in reconstruction and return. The public call is launched in order to determine reconstruction and return needs, to identify priority areas of return and for the planning of activities on substantial completion of the return process in BiH through the provision of an uniform and harmonized realization of the GFAP Annex VII goals at the entire BiH territory. (...)

All applications collected so far have been processed in the Department for Refugees and DPs and data have been recorded in the Central Database on potential beneficiaries of the return-related reconstruction assistance. (...)

These results were used in the identification of priority areas for “30 Municipalities” and “SUTRA 2” projects which have been realized within the Commission for Refugees and Displaced Persons and monitored by the MHRR. (...)

Now, almost 10 years after the peace agreement was signed in Dayton, according to the recorded requests for the registration, **more than 120.000 persons are still waiting the reconstruction assistance and the return to their pre-war homes in BiH.**

The highest percentage of recorded applications (some 55%) is related to the requests for the reconstruction of more than 19.000 damaged and/or destroyed housing units for return of 66.000 persons to F BiH, while some 42% applications are related to requests for reconstruction of some 14.500 properties ensuring the pre conditions for the return of some 50.000 persons to RS.

Aiming the return of some 4.000 persons to their housing units from 1991 in Brcko District 1.350 family requests for registration is recorded. (...)

As indicated in the former review of registered applicants by categories, **obviously the largest number of potential beneficiaries (30.529 families) currently reside in Bosnia and Herzegovina i.e. 103.425 persons or some 86% of the total number.**

Out of this number, in BiH Federation currently reside 15.426 families of potential beneficiaries, 13.422 in Republic of Srpska and 1.661 in Brcko District respectively.”

***For more detailed information and statistics, see: Report on registered potential beneficiaries of assistance for reconstruction and return in BiH, Ministry for Human Rights and Refugees, September 2005 (see link in sources below)***

### **Absence of a state level housing law to address the needs of the most vulnerable (2005)**

#### **UN CESCR, 24 January 2006, par.24-25:**

“The Committee is concerned about the absence at the State level of a housing law and of a national housing strategy to address the housing needs of the population. The Committee is also concerned about the lack of social housing units, especially for the low-income and disadvantaged and marginalized groups.

The Committee notes with deep concern that many of the informal settlements in which the Roma people lived prior to the armed conflict have been destroyed without adequate alternative accommodation or compensation being provided to them, and that many Romani cannot lay claim to their settlements because of the lack of security of tenure relating to their property. The Committee is also deeply concerned about the high number of pre-armed conflict tenants who have been evicted from their homes without being provided with adequate alternative accommodation or compensation.”

***For more information see also "Internal agencies urge local authorities to develop social housing to address the needs of displaced persons (2006)" in property section***

### **Roma living in informal settlements live in sub-standards housing conditions and are vulnerable to evictions (2005)**

- The majority of DPs living in informal settlements are Roma



- Those settlements are rarely connected to water and electricity and waste disposal services
- Informal nature of settlements does not provide an official address which is a precondition to obtain identity documents
- Lack of documents impede access to social services
- Legal status of settlements should be addressed

**CoE, 11 May 2005, par.46-49:**

“46. The authorities have so far not been able to secure full and effective equality between the Roma and the rest of the population. The Advisory Committee is particularly concerned about reports of the alarming situation in informal Roma settlements, where thousands of Roma, who face particularly serious difficulties, live in substandard housing conditions without basic sanitary facilities, electricity or reliable source of heating and with a lack of waste disposal services as well as insufficient access to fresh water. In many settlements, these conditions are such as to affect the overall health situation of their residents. The Advisory Committee is deeply concerned by these sub-standard living conditions and considers that these problems merit urgent attention and targeted measures by both domestic authorities as well as support by international donor agencies.

47. A particularly acute problem facing many Roma is the lack of personal documents, including birth certificates, personal identity documents, documents related to State-provided health insurance and social welfare as well as documents attesting to citizenship (see comments under Article 3 above, paragraph 24). One reason for this is the informal nature of many Roma settlements, whose residents are not legally registered at the local level and therefore blocked in practice from obtaining identity cards or refused access to social services such as health insurance or social benefits. The case of birth certificates has in particular been raised with the Advisory Committee: seemingly a number of Roma women leave hospitals after having given birth before being formally discharged as they cannot afford to pay the medical fee. As a result, these women do not acquire the necessary medical records for the purpose of registering the newborn, for whom it is then impossible to obtain a birth certificate. The Advisory Committee considers that the lack of personal documents creates a range of undue obstacles in the realisation of their basic human rights by many Roma and therefore urges the local authorities to step up their efforts to systematically register all their residents, irrespective of the legal status of the Roma settlements.

48. The Advisory Committee emphasises that Roma residing in settlements that have not been legalised are vulnerable to forced evictions without being provided alternative accommodation (see related comments under Article 6 below). It is therefore essential that the authorities address the legal status of these settlements as a matter of priority, and that no evictions involving human rights violations are carried out.

49. As a matter of principle, the Advisory Committee is deeply concerned that in Bosnia and Herzegovina, no authority seems to have perceived the scale of the problems faced by the Roma and the ensuing need to design and develop a comprehensive strategy at all levels to efficiently tackle these problems. The State Report for instance mentions only one case of discrimination in Kiseljak but fails to analyse the overall situation of exclusion faced by the Roma and the reasons behind it. The Advisory Committee was particularly struck that during discussions with both the Ministry of Health of the Federation and the Ministry of Labour and Social Welfare of the Canton of Tuzla, its interlocutors refused to admit the need for a systematic and coordinated action on behalf of Roma on the alleged ground that social action should have no link whatsoever with ethnicity.

**ECRI, 15 February 2005, par.62:**

“At present, between 50 and 70% of the Roma of Bosnia and Herzegovina are estimated to live in informal settlements, where conditions are extremely poor and, in some cases, such that the health and lives of their inhabitants are seriously threatened. Many of these settlements lack

basic facilities such as access to drinkable water, electricity, reliable sources of heating, sewage system or garbage disposal. Furthermore, people in settlements are vulnerable to forced evictions, following which, in a number of reported cases, alternative accommodation has not been provided. ECRI strongly urges the authorities of Bosnia and Herzegovina to address without delay the housing situation of the Roma population and to ensure in the short term, that all Roma dwellings meet, at the very least, basic standards of adequate housing. ECRI notes that, in some municipalities, such as in Sarajevo, and in Brcko district the authorities have taken some steps to legalise settlements or to provide alternative accommodation to their inhabitants and strongly recommends to the authorities of Bosnia and Herzegovina to extent these initiatives.”

***For information on OSCE’s efforts to legalise Roma informal settlements and facilitate return of Roma IDPs see: “[Report on Roma informal settlements](#)”, OSCE, 8 April 2005***

***See also in the same section “Displacement aggravates the living conditions of Roma (2005)”***

## **Health**

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### **Health statute of IDPs is poorer than domicile population (2008)**

- Some groups, including minorities and displaced persons, face great difficulties in accessing healthcare
- Large physical distances to health facilities, low income and lack of documents are major obstacles to access to health
- Displaced households are more likely than domicile population to suffer from hunger, poor health and neuroses

#### **CoE, 20 February 2008, para.43:**

43. The right to adequate health care is lacking for many citizens. The health insurance coverage in Bosnia and Herzegovina is only 80 %. The entitlements to health services – e.g. medicines and treatments - vary significantly from region to region, and some groups, such as people with disabilities (civilian war victims and others), minorities and displaced persons, face great difficulties in accessing healthcare.

#### **UNDP, 26 June 2006, pp.91-94:**

“The displaced are more likely to suffer from neuroses and disorders related to the psychological trauma of displacement. Large physical distances to health facilities, low incomes, and lack of proper identity documents, are major barriers to access to health services for displaced households. Insufficient vaccination coverage (most often due to inadequate identity documents) is a major determinant of vulnerability, particularly for displaced children. Like Roma, displaced households are much more likely than majority households to go to bed hungry because they cannot afford food. Displaced children are particularly susceptible to nutrition risks. (...)

The data suggest that displaced households in the Western Balkans are particularly vulnerable to poor health and malnutrition, and illustrate the need for disaggregated health data to monitor their status. The data show that displaced respondents lost an average of 17 days of normal activity as a result of illness, compared to just 12 days for majority respondents. This seems to be related both to the higher incidence of illness among displaced respondents and their less satisfactory access to healthcare. (...)

Twenty-two per cent of displaced respondents (compared to 18 per cent of majority respondents) report suffering from some form of chronic illness. This may be due to the lower quality of housing: the incidence of diseases among displaced households associated with dust and other lung irritants that are attributable to poor housing conditions, such as bronchitis or emphysema, is higher than among majority households (14 per cent of the displaced compared to 8 per cent of the majority). The data also support one of the more alarming findings often reported by qualitative research – the frequency of neuroses and psychological trauma.

Just 35 per cent of displaced households have access to a family doctor, compared to 43 per cent for majority households. The data suggest that such limited access to health care for displaced households is caused by their remoteness: 35 and 36 per cent of displaced households reported living more than three kilometres from a primary medical centre or general practitioner respectively, compared to 17 and 24 per cent for majority households. (However, 39 per cent of displaced households reported living within three kilometres of traditional healers, compared to 30 per cent of majority households—see Figure 2-34). These data suggest that, in light of the scarcity of modern medical care in the vicinity of the camps in which they live, displaced households turn more to traditional – largely unregulated – forms of health care.

In addition to their physical isolation, low incomes and inadequate identity documents are also barriers to adequate health care for displaced persons. Thirty-eight per cent of displaced households reported periods during the past 12 months in which they could not afford to purchase medicines prescribed to a member of the household (compared to 20 per cent for majority households). Although throughout the former Yugoslavia displaced persons were officially given ID cards entitling them to health care, 9 per cent of displaced respondents reported having been denied medical service due to lack of proper documentation. (...)

Health status is directly related to nutrition, which in turn is influenced by expenditures (i.e., poverty). The data show that although the reported differences in nutrition security for Roma households are much more pronounced than for majority and displaced households, the latter still face considerable risks. As much as 12 per cent of displaced households (versus 2 per cent of majority households) reported experiencing four or more cases within a month when they went to bed hungry because they couldn't afford food. Almost one fifth of displaced households face nutrition risk, compared with 4 per cent of majority households (Figure 2- 35). For children from displaced households, this figure rises to 27 per cent, compared to just 7 per cent for children from majority households."

### **Health care system does not sufficiently address the needs of returnees and internally displaced persons (2007)**

- The divided and Mono-ethnic composition of medical institutions negatively affects minority returnees' confidence in these institutions
- The state of health of the population of BiH has been deteriorating since the war
- Inequalities in access to, and receipt of, health care are particularly acute for returnees due to political and administrative barriers
- Due to lack of harmonization of entity laws on health insurance, returning IDPs frequently lose health insurance and face difficulties in accessing health institutions
- Problems are mainly linked to the complexity of the legal framework, lack of funds and absence of inter-Entity co-operation
- The situation is aggravated by the damaged infrastructure, and the effects of war on the health of the population

- An agreement between all health insurance funds was signed in December 2001 which may improve coverage across Entity lines
- Pensioners and unemployed persons continue to face difficulty to register for health insurance upon return

**BIRN, 14 March 2007:**

Bosniak returnees are complaining of routine mistreatment in hospitals and health centres in Republika Srpska, RS. They say doctors frequently refuse to treat Bosniak patients, or slap charges on them for treatments that are supposed to come free of charge under their insurance policies. Many former exiles returning to pre-war homes in the RS, who have been unable to access health care, have been forced to re-register in the Muslim-Croat Federation in order to get health care there. In Srebrenica, in eastern Bosnia, for example, 30 per cent of the Bosniak returnees have registered as residents of the Federation. Legal and medical experts say setting up a federal health ministry may be the only way to resolve the problem. Mirhunisa Zukic, chairwoman of the exiled and displaced persons association, also says the 1995 Dayton peace accords needs to be redefined to ensure refugees are both able to return to pre-war homes and live a normal life, once they are there.

The health care muddle reflects the broader constitutional crisis in the republic. The ten cantons of the Federation, the RS and the District of Brcko, which functions as a separate unit, all have their own health ministries. None operates on a nationwide, federal, level. The negative effect of this cumbersome division of responsibility is reflected in the fact that a worryingly high percentage of the total population, about 40 per cent, have no health care insurance at all. Even those with the right insurance are far from well covered when it comes to treatment. "Those who are insured often have to travel hundreds of kilometres to get treatment in hospitals covered by their insurance," said Arif Smajkic, an advisor to the ministry of civil affairs. The formation of a federal health ministry would resolve many of these problems, he added.

The authorities tried to resolve the headaches over health care six years ago with the signing of an agreement. This bound the two entities to cooperate on hospital care and in theory enables all patients to receive treatment anywhere in the country. But it is a dead letter.

Other Bosniak returnees to the RS depend on the services of volunteer medics from the Federation. On February 17, we found the waiting room in Srebrenica's health centre full of returnees making use of the opportunity to be treated by doctors from the Tuzla-based NGO Woman's Power. The organisation has been sending doctors to Srebrenica twice a month for the past five years. One of them, Branka Antic Stauber, said patients either did not trust Serbian doctors from Srebrenica or had been unable to exercise their right to free health care in the town. It's not only returnees who often find it difficult to exercise their health care rights in the RS. Long-term Bosniak residents also find themselves on the receiving end of inexplicable medical fees. [...]

[One doctor in the Srebrenica Health Centre] said the imposition of fees for what are supposed to be free treatments was a major disincentive to Bosniaks wanting to return home to the RS. "It's tantamount to the ethnic cleansing of returning exiles," he said. "If this trend continues, there will be no Bosnian Muslims left in the RS." Branka Antic Stauber, of Woman's Power, said a state health insurance fund would make it much easier to tackle this and other problems. So do many others.

**ICHR/IDMC/MRG/Cardozo, 3 July 2006, p.4:**

"The inter-entity agreement on health insurance provides that returnees can, upon registration, have access to health services and benefit from health insurance in their area of return. However, several elements hamper access of returnees to health services in their area of return. Many

returnees who are in a minority situation in their entity of return feel uncomfortable to be treated there for fear of discrimination and prefer to travel back to their area of displacement. The complexity of the system results in difficulty to transfer coverage from one entity to another and even from one canton to another within the Federation. In addition, the non-payment of contributions by employers into the different health funds limits the financial possibility to meet their obligations. The difficulty to access adequate health care in the area of return acts as a deterrent to return especially for elderly displaced persons.”

**ECRI, 15 February 2005, par.28:**

“While access to healthcare is reported to be problematic for many of the citizens of Bosnia and Herzegovina, it has been reported to ECRI that minority returnees encounter even more serious difficulties in accessing health services. Contrary to the pre-war situation, which was characterized by the existence of a single nation-wide health insurance scheme, there are at present three separate basic health insurance schemes in Bosnia and Herzegovina: one in the Federation, the responsibility for the operation of which has effectively been delegated to the ten Cantons: one in Republika Srpska; and one in Brcko District. The complexity of this institutional framework results in a number of difficulties—including the inability to transfer coverage from one location to another and the absence of inter-Entity co-operation on health insurance issues—compounded by non-payment of contributions into the different health funds. It has been pointed out to ECRI that some of these difficulties, and notably the impossibility to transfer coverage between cantons and between entities acts a deterrent to potential returnees and that it also constitutes a powerful obstacle for those who have already returned, since many of them are required, in practice, to travel to the other Entity to access health services. ECRI notes that an inter-Entity Agreement on Health Insurance has been concluded with the aim to overcome the difficulties in accessing healthcare faced by insured people, mostly returnees, who have had to move from one Entity to the other. However, the implementation of the Agreement is reported to be not satisfactory. ECRI strongly urges the authorities of Bosnia and Herzegovina to thoroughly implement the inter-Entity Agreement on Health Insurance. In addition, ECRI has received numerous reports according to which the mono-ethnic composition of the staff in health provision facilities in a number of municipalities negatively affects minority returnees’ confidence in these institutions. It has also received some allegations according to which health care services are not equally provided to members of all ethnic groups. ECRI urges the authority of Bosnia and Herzegovina to ensure that all persons living in Bosnia and Herzegovina enjoy adequate access to healthcare in a manner that is not directly or indirectly discriminatory vis-à-vis particular ethnic groups.”

**Poverty Reduction Strategy Paper Team, 30 May 2003, Sect. 2.2:**

“The state of health of the population of BiH has been deteriorating steadily since the war. The reasons are [...]: socio-economic circumstances, unemployment, migration, the large number of displaced persons, lack of health insurance, unhealthy lifestyles, etc. As many as 22 percent of the BiH population aged over 17 report intermittent constraints on their daily activities as a result of health problems; 24 percent have chronic ailments and 4 percent suffer from serious ailments. [...] In addition, there has been a marked deterioration in population health as a result of long-term stress—post-traumatic stress disorder (PTSD).”

**Poverty Reduction Strategy Paper Team 30 May 2003, Sect. 3:**

“Health insurance does not provide cover, even for those who have insurance, against having to make additional payments in the case of serious illness, while the uninsured are particularly at risk. Given the high costs of health care, this pushes households into poverty.[...] About 20 percent of the better-off have no health insurance, while as many as 36 percent of the poor are uninsured. There are also regional inequalities in access to health care, to the disadvantage of rural areas. The problem of access to health care in BiH as a whole is further exacerbated by the fact that the health care system is split between the two Entities (FBiH and RS), and between the cantons within FBiH, plus Brcko District. Inequalities in access to and receipt of health care are

particularly acute for returnees, who are mainly unemployed or pensioners, and for whom political and administrative barriers mean they are almost entirely without health care. As a result, returnees have to make out of pocket payments for health care services, mainly in the private sector, which impoverishes this category of the population in BiH.”

**UNDP June 2003, pp.62 -68:**

“Some serious problems have been identified, such as an inadequate registration and information system. Such a system is clearly required for the timely planning, implementation, and assessment of national immunisation activities. Moreover, significant and constant population migration contribute to flawed registration data, and thus lead to a low rate of vaccination coverage with Roma children, refugees, and displaced persons. An agreement on the realisation of health care has been signed between the Entities and between the Entities and the Brcko District. However, this agreement has not been complied with, so that a relatively small number of beneficiaries end up exercising their right to health care as laid out in this agreement. Due to the fact that entity laws are not harmonised with respect to health insurance, the change of residence that occurs when displaced persons return results in the loss of health insurance and difficulties in accessing health institutions.”

**See also:** [Consolidated report of the municipality assessments in Bosnia and Herzegovina, MHRR, UNDP, OHCHR, April 2004, p.56-61](#)

**Many IDPs suffering from long-term post-traumatic stress disorder do not receive adequate assistance (2006)**

**UNDP, 26 June 2006, pp.91:**

“The displaced are more likely [*than the domicile population*] to suffer from neuroses and disorders related to the psychological trauma of displacement.”

**UN Commission on Human Rights, 29 December 2005, par.32 and 63:**

“32. Many IDPs are suffering from long-term post-traumatic stress disorder (PTSD). PTSD is especially prevalent in households headed by females because the husbands and fathers are missing. The extent of the trauma suffered as well as other difficulties faced by displaced children in the post-war period, including mourning the missing and killed, lack of financial resources and separation from closely related persons, gravely affects their development and health. Particularly difficult is the health situation of the estimated 200,000 camp survivors and an unknown number of victims of sexual violence, who are in need of specific social services and psychological programmes. Bosnia and Herzegovina still lacks adequate medical and psychiatric services to address their continuing suffering. This infringes on the rights of traumatized, sick and disabled IDPs to receive the medical care and attention they require (guiding principle 19, para. 1). While camp survivors and victims of sexual violence have been recognized as victims of torture by the International Criminal Tribunal for the former Yugoslavia, (...) their status does not amount to a legal recognition which would grant them specific rights and protection measures. The absence of an umbrella law at the State level for their protection and the lack of acknowledgement by society and the State of their suffering may lead to re-traumatization. The Representative notes the assurances recently given by a representative of Bosnia and Herzegovina to the Committee against Torture that an umbrella law on their protection would be initiated at the State level in 2006. (...)

63. Specific resources need to be allocated to assist persons suffering from post-traumatic stress disorder. State-level legislation recognizing the status of victim of torture, creating specific protection measures and granting victims specific entitlements, should be enacted.”

## Vulnerable Groups

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### **Elderly IDPs and returnees face more difficulty accessing pensions than elderly people who have not been displaced (2007)**

**UNDP, 2007, p.25:**

Compared to people who never moved within the 65+ population, people who were refugees or displaced, are generally more likely to be pensioners. At the same time, the low rates of recipients in the temporary resident population (i.e. IDPs) suggest that access to old-age pension may be particularly difficult for the elderly who are internally displaced (Footnote: In terms of benefit levels, the lowest pension benefits were for pensioners who reported themselves as internally displaced person).

### **Vulnerable IDPs live in deplorable conditions (2006)**

- IDPs are more vulnerable to poverty than domicile population
- Certain factors such as gender, age, health, family status, group status aggravate vulnerability to poverty

**UN Commission on Human Rights, 29 December 2005, par.54:**

"The Representative is concerned about the deplorable living conditions of IDPs, especially those belonging to particularly vulnerable groups, such as the elderly without family support, traumatized victims, disabled or sick persons, female-headed households and families of missing persons, witnesses in war crimes investigations and trials, or members of the Roma and other minorities, who still live in collective centres, irregular settlements and other forms of temporary shelter, often experience multiple discrimination and are unlikely to be able to return to their original homes."

**UNDP, 26 June 2006, p.80:**

"This chapter emphasizes the importance of the unresolved legal status of displaced persons, and of its links to poverty and exclusion. It suggests that, while Roma need priority attention in terms of poverty reduction efforts, it is not just Roma who need such attention. Refugees and internally displaced persons are also vulnerable groups who face greater-than-average risks of poverty and social exclusion. Data also support the findings of other research that, within the 'displaced group' IDPs are often in much more difficult positions than refugees, and as such deserve particular policy attention.

Such factors as group status, country of residence, age, education level, and skill level of employment, significantly affect a household's vulnerability to poverty. Although displaced persons have lower poverty rates than Roma, the analysis also shows that in terms of the above mentioned factors, displaced households are vulnerable to poverty, i.e. they have a high risk of falling into poverty in the future given their household characteristics and their unsettled status.

Also, the magnitude of the decline in status experienced by the displaced (most of whom were not vulnerable prior to the conflict) suggests that subjective perceptions of poverty and vulnerability may be particularly acute. It should be kept in mind that some of the IDPs are Roma. On the other hand, the issue of the adaptation capabilities of the Roma IDPs as compared to those of the other IDPs should be considered."

**See also in section on Population profile and figures: “Statistical profile of displaced person population(2006)”**

**“At risk: Roma and the Displaced in Southeast Europe”, UNDP, 26 June 2006, P.73-80 ( see in sources below)**

**“Coping with war, coping with peace, livelihood adaptation in Bosnia-Herzegovina, 1989-2004” , Elizabeth Stites, Sue Lautze, Dyan Mazurana, Alma Anic, April 2005**

### **Displacement aggravates the living conditions of Romas (2008)**

- Roma are the least employed population group in BiH
- Lack of personal documents makes it very difficult for Roma to access social services, and in particular health care
- This has a particularly bad impact on the health of Roma children who often don't get the necessary vaccinations
- Most Roma live in informal settlements and have therefore been excluded from reconstruction assistance and are particularly vulnerable to evictions
- Roma live under very poor shelter conditions
- Lack of personal documents exclude Roma from access to health, education and public life
- Several projects are ongoing to improve the conditions endured by the Roma

#### **CoE, 20 February 2008:**

89. Roma are the most unemployed ethnic group in BiH. Only one in twenty-five Roma is employed or self-employed. The main sources of income are the sale of secondary raw materials (29 %) and begging (19%). Over 70 % of the Roma do not have any form of social insurance. Due to the low level of education, Roma are generally not adequately qualified to respond to modern labour market needs. Although it may not be possible to prove open and systematic discrimination of Roma in employment, it is reported that employers reluctantly hire Roma people.

“91. Lack of personal documents like birth certificates and personal identity documents remains a problem for many, and renders the Roma especially vulnerable. Access to health care services for Roma families is often limited by the lack of health insurance. This is due to a lack of citizenship and/or residency status, as well as from a lack of formal employment. Roma children are often not getting even the most basic vaccinations because of a lack of registration or information, and the percentage of non-immunised Roma is as high as 41 %. Roma women often deliver their children outside of medical institutions due to a lack of funds. These children are consequently left unregistered at birth. Information campaigns with Roma have been carried out to remedy this problem with some success.”

90. The Strategy for Roma foresees measures towards increased Roma employment. The Commissioner is aware that the BiH authorities together with the Roma Council are currently working on the development of Action Plans for Roma Employment, Housing and Health Protection and that efforts are also underway to revise the Education Action Plan. The Commissioner welcomes these efforts and urges the inclusion of more consistent and long-term strategies for improving the quality of livelihood, health protection and employment of Roma.

#### **OSCE, “Overcoming exclusion”, 2004:**

“As the largest national minority in Bosnia and Herzegovina (BiH) and as a socially, economically and politically marginalized group, the issues of concern to Roma are diverse. They range from access to education to employment discrimination; housing and property needs to the revival of the Romani culture and language.



Roma in post-war BiH face a series of difficulties exercising the full range of fundamental human rights guaranteed under the BiH Constitution. Such difficulties have been compounded by the displacement caused by the war. Of particular concern are issues regarding property rights and access to personal documents. It is estimated that there are between 30,000 to 60,000 Roma in BiH. This figure was determined during a joint fact-finding project by the OSCE High Commissioner on National Minorities and the Council of Europe.

A continued lack of organized political representation, coupled with prejudice and discrimination, make Roma one of the most vulnerable groups in society.” Roma face a range of problems linked to the lack of respect for their human rights. Denial of the right to property stems from longstanding uncertainty about the legal status of Roma settlements. Denial of other rights, such as access to social welfare and education, in part stems from problems many Roma face in registering with the civil authorities. In turn, a lack of education creates an unfair disadvantage in finding a job – making it difficult or impossible for Roma to secure employment. Meanwhile, with little access to social welfare, unemployed Roma have become one of the poorest groups in society.

The OSCE has developed a phased programme of activities to remove the obstacles to recognition of property rights, and assist with civil registration of Roma as first steps in achieving full recognition of and respect for their rights. [...]

The lack of personal documents such as birth certificates, identification cards or registered residence further contributes to the exclusion of Roma from society. Failure to register a child at birth prevents enrolment in school and inclusion in the social welfare system. Lack of personal documents also influences their access to healthcare and the participation in elections. The inability to secure documents is related to poverty and the low social status in the Roma community.”

**ECRI, 15 February 2005, par.62:**

“At present, between 50 and 70% of the Roma of Bosnia and Herzegovina are estimated to live in informal settlements, where conditions are extremely poor and, in some cases, such that the health and lives of their inhabitants are seriously threatened. Many of these settlements lack basic facilities such as access to drinkable water, electricity, reliable sources of heating, sewage system or garbage disposal. Furthermore, people in settlements are vulnerable to forced evictions, following which, in a number of reported cases, alternative accommodation has not been provided. ECRI strongly urges the authorities of Bosnia and Herzegovina to address without delay the housing situation of the Roma population and to ensure in the short term, that all Roma dwellings meet, at the very least, basic standards of adequate housing. ECRI notes that, in some municipalities, such as in Sarajevo, and in Brcko district the authorities have taken some steps to legalise settlements or to provide alternative accommodation to their inhabitants and strongly recommends to the authorities of Bosnia and Herzegovina to extent these initiatives.”

**Council of Roma, October 2004:**

“More than 85 % of Roma in the 15-65 age group do not enjoy social security or health care, while this percentage is lower in other age groups. Catastrophic statistics of this segment show a death rate among children that results from the lack of medical aid because of non-possession of health booklets or non-entitlement to medical care in some other way. A great number of Roma are refugees and displaced persons. However, owing to the lack of identification documents

before the war, they have not been able to get the status of refugees or displaced persons and thereby they have not been able to get any health insurance. They might be entitled to health insurance through registration with the labor exchange office, but they are not able to register with it either, because they do not have permanent place of residence.”

**For more information on living conditions of IDPs see:**

***“Protecting the rights of national minorities in BiH”, OSCE, accessed 16 August 2006***

**See also:**

***The non-constituents: rights deprivation of Roma in post-genocide Bosnia and Herzegovina, BiH Country report, European Roma Centre, February 2004,***

***Report on Bosnia and Herzegovina, European Commission against Racism and Intolerance, 15 February 2005, par.58-71***

**See also:**

***Education section, Envelope “Efforts to facilitate the integration of Roma children at schools”***

***Documentation section, Envelope “Roma excluded from fundamental political and social rights because of lack of personal documents***

***Patterns of Displacement section, Envelope “Displaced Roma, a particularly vulnerable group”***

***Property Rights section, Envelope “Roma continue to struggle to access property rights”***

***Property Rights section, Envelope “Some measures taken to legalise Roma settlements”***

## **Lack of adequate programmes to support victims of sexual violence (2006)**

### **Women War Peace, 14 October 2005:**

“Over twenty thousands Bosnian women are thought to have been raped during the war. This figure is undoubtedly an underestimate due to underreporting (Lene Hansen, “Gender, Nation, Rape: Bosnia and the Construction of Security”) [...]

UNHCR found many Bosnian women to be overtly traumatized by their experience of rape, detention and forced displacement. This trauma was found to be a significant factor in minority women’s unwillingness to return to their communities. In addition to psychosocial ailments, gynaecological problems and stress-related illnesses such as hypertension were found to be very prevalent amongst Bosnian women in 2000. [...] According to UNHCR, survivors of rape are doubly shamed as their violation represents an affront to their community as well as their personal integrity. Survivors are ostracized from their communities. (UNHCR, Daunting prospects)

### **UNCESCR, 24 January 2006, par.19:**

“19. The Committee is gravely concerned about the absence of a coherent strategy to support victims of sexual violence suffered during the armed conflict of 1992-1995 and that Entity laws pertaining to civilian war victims are gender-insensitive and provide inadequate social protection for victims of sexual violence.”

### **UNCERD, 2 September 2005, par.66:**

“66. As mentioned above, there are endangered groups of women in Bosnia and Herzegovina who are displaced persons, returnees, women belonging to minority groups, asylum seekers and poor women. Besides the Law mentioned above adopted for protection of women, the State Action Plan for enhancing the position of women in BiH society is in the progress of passing. The projects and programmes carried out to implement the Law on Gender Equality are particularly

interesting (Initial Report BiH CEDAW). The institutional mechanisms have also been established in BiH to support the implementation of the law and policies focused on strengthening the position of women and the activities dedicated to better protection of endangered categories of women.”

### **Female-headed households less likely to obtain secure housing or health care (2002-2003)**

- Refugee and displaced female-headed households face greater difficulties in obtaining secure housing or enforcing health insurance
- 22 % of female headed households are housed in temporary, illegal or emergency accommodation
- 25% of women in the RS live in bad or worse conditions as opposed to 15 % in F BiH

**UNDP May 2003, pp. 7, 12:**

***A UNDP report on female headed households*** "examines the poverty condition for female heads of household on the basis of the data extracted from the Living Standards Measurement Survey (LSMS). The findings suggests that, in the generally impoverished situation for people in BiH, female headed households are usually worse off where they exhibit one or more of these traits:

- the heads are of pensionable age or older, which indicates that they receive relatively lower incomes,
  - they are headed by widows living alone, which suggests an absence of family care,
  - the household is made up of refugees or displaced persons, which indicates that they will face greater difficulties obtaining secure housing or enforcing health insurance,
  - they are based in the RS, which makes them twice as likely to be living in poor housing.
- [...]

Surprisingly, the results derived from the LSMS indicate that 81 percent of female heads of household consider that they live in basically good or good conditions. The majority of these households also appear to have access to electricity and running water of some sort. A substantial number also enjoy security of tenure. 65 percent of female headed properties are owner-occupied, and a further six percent are in the process of becoming acquired by a household member under privatization schemes for state-owned property. This situation compares well with male headed households, 68 percent of which are owner-occupied. By contrast with these home-owning households or households with rental agreements, only 22 percent of female headed households are housed in 'temporary', 'illegal' or 'emergency' accommodation. Presumably, this category of people in insecure housing would include most of the 18 percent of female heads who have indicated that they are displaced persons or refugees.

Also revealing is the fact that the percentage of female heads of households living in good accommodation is significantly lower in the RS. 25 percent live in bad or worse conditions as opposed to 15 percent in the FBiH. This means that the chances of living in bad accommodation in the RS are almost twice as high for female heads of household. The poverty gap between the entities widens further for women living alone. 31 percent of women living alone in the RS considered their accommodation poor, when only 15 percent of women living alone in the FBiH endured bad conditions. More persons in the RS do not have access to a telephone and is it unlikely that the situation will improve for older people after privatisation, particularly in respect of provision of telephones to impoverished rural households [...].”

### **Members of Roma community continue to face discrimination upon return (2002 – 2003)**

- According to the Council of Europe/OSCE, 40,000 to 60,000 Roma face discrimination, including limited access to health care and education, poverty and weak legal status
- In 2002, there was limited assistance to the Roma from national authorities and international organisations

#### **ERRC No.3 2003:**

“Roma in post-war Bosnia and Herzegovina (BiH)[1] face numerous difficulties in exercising the full range of fundamental human rights guaranteed under the BiH Constitution. These difficulties have been exacerbated by the displacement of about 2 million people, among them large numbers of Roma, during the conflict in BiH in 1992-1995.[2] Of particular concern are issues regarding property rights and access to personal documents. The issues affecting the Romani community have not been adequately addressed by the international community so far, as focus had been primarily on the concerns regarding displaced Serbs, Croats and Bosniaks.”

#### **U.S. DOS 31 March 2003:**

“A Joint Council of Europe/OSCE-ODIHR report issued in June identified a number of problems regarding the social situation, discrimination, and human rights violations faced by the country's 40,000 to 60,000 Roma, such as limited access to health care and education, poverty, and weak legal status. Large segments of the Roma population were unable to substantiate their citizenship claims. Only a tiny number of Roma children and youth were enrolled at educational institutions; only a small number of Roma adults were in full time employment; and in spite of dire need, Roma were often denied social support. Nearly all Roma in the RS were expelled from their property during the war; very few have been able to reclaim it. These displaced Roma, as well as Roma in the Federation who have lost their property because of the ravages of war, lived in makeshift dwellings on abandoned property. Conditions for some were extremely poor, and many relied on begging to subsist. The situation was further complicated by the lack of relevant data on Roma. The Roma continued to be marginalized during the year, and neither the Federation, the RS, nor the BiH Ministry of Human Rights and Refugees took steps to assist the Roma population.

While Roma faced problems that many others in the country faced, they had far fewer social and charitable organizations interested in helping them, and faced widespread discrimination. However, some international NGOs began reconstruction programs for Roma. A lack of formal title to land in some instances greatly delayed these projects. There had been no reconstruction assistance by either the Federation or the RS for Roma by year's end.”

#### **UNHCR September 2001, paras. 88-90:**

“The pre-war Roma population in BiH numbered approximately 50,000-60,000 and may be higher as this figure does not include those who declared themselves as 'Yugoslavs', 'Muslims' of 'Others'. No updated figures of the post-conflict population are available and accurate statistics on the Roma population in general are difficult to obtain.

Before the conflict, many Roma lived in what is now the Federation of BiH, especially in urban areas such as Sarajevo and Tuzla. Many Roma also lived in what is now the RS, predominantly in the eastern region near the areas of Bijeljina and Zvornik, as well as Brcko. Many of those displaced from this region are still living abroad or remain displaced in the Federation. Having been generally displaced during the war, Roma returnees often encounter extremely difficult conditions including widespread discrimination in terms of access to employment, to adequate education for children, to social services and health benefits, and to adequate housing. Roma in BiH can also be subjected to acts of violence perpetrated by residents of return areas. Attacks by

Croat nationalists against returning Roma have been registered in eastern Bosnia and the return of Roma has also been seriously hindered by local authorities in the RS, one example being in Bijeljina, where municipal and Entity military and civil institutions had been situated in former Roma houses, including the Ministry for Displaced Persons and Refugees, the Military Court, and the RS Directorate for Privatization.

Roma constitute a large minority group in BiH and yet are often overlooked in all spheres of public life. The absence of 'national minority status' for Roma and a general lack of awareness that the Roma constitute a minority group add to the difficulties and prejudices encountered by Roma returnees. The Stability Pact for South-Eastern Europe has suggested that in the year 2001, which has been declared the International Year of the Roma, both governmental organizations and NGOs in the Region focus their efforts on the plight of Roma."

-[1] The exact number of Roma currently living in BiH remains unknown, but is estimated to be between 40,000 and 60,000. This amounts to between 1 and 1.5% of the population of BiH.

[2] There is no reliable estimate as to the number of displaced Roma. According to the United Nations High Commissioner for Refugees (UNHCR), to date over 875,000 refugees and displaced persons have returned to their prewar homes. However, while there are statistics measuring the return of Bosniaks, Croats and Serbs, there is no clear information on the return of refugee or displaced Roma. Most Roma are likely counted as 'others', of which only 6,700 have returned since the end of the conflict.

**See also:**

***Section I on Tolerance and Non-discrimination in the report of the "OSCE Human Dimension Implementation Meeting: Interventions and Recommendations by the International Helsinki Federation for Human Rights" IHF, 6-17 October 2003***

***"Access of Roma to Education and Health Care Services in Tuzla Canton, Federation of Bosnia and Herzegovina" December 2001 - January 2002, report published by the OSCE, the Council of Europe and UNICEF***

# ACCESS TO EDUCATION

## General

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### The general situation of education in BiH (2008)

- The education system in BiH is fragmented and to a large extent divided among ethnic lines
- This system tends to perpetuate ethnic separation of the population, prejudices and intolerance
- The school reform process started with the Framework Law on Elementary and Secondary Education in BiH, adopted in 2003
- The Law on Higher Education was adopted in 2007
- In 2002, a special Temporary Agreement on meeting of special needs and rights of children-returnees was adopted, defining six key objectives to ensure sustainable return to former places of residence
- One of the effects of the reform was the system of “Two Schools Under One Roof” (see further below)
- Ethnic separation constitutes a violation of the Framework Law on Education (learning about diversity) and of the constitutional principle of equality of languages

### CoE, 20 February 2008:

126. The educational system in Bosnia and Herzegovina is extremely fragmented; currently 14 Ministries of Education are involved in managing and running educational activities in BiH. Apart from being ineffective and expensive, the decentralisation of education in the Bosnian context has contributed to ethnic separation. Progress towards a modern and unified education system in BiH would require a strengthening of the role of the State in education. A recent report by the OSCE Mission in BiH warned that “education in BiH is in danger of becoming a security issue in itself because it is hindering the development of a stable and functional democratic state.” It called for measures to be taken to create a unified education system in BiH that would help reduce ethnic division and the potential for future instability. It also encourages Regional cooperation in this area.

129. The practice of transporting school children to ethnically homogeneous schools outside of their catchment area is still not completely eliminated, although progress has been made. Many children continue to travel, sometimes long distances, to attend schools with their own ethnic group and to have ethnic-related curricula.

130. The Commissioner is extremely concerned at the status of education in BiH. The policy of separating children according to their ethnicity can only reinforce the prejudices and intolerance towards others and ensure continued ethnic isolation. Measures to unify the educational system are long overdue. Ethnically-based and divided education systems remain an obstacle to sustainable returns. The Commissioner encourages the recent initiatives to involve parents and communities more in the development of a more democratic, inclusive and equal school environment. Although more research is still required, this might be the right approach to overcome the divisive policies and the politization of the education field, which is not in the best interest of the children.

131. It is generally recognised that quality education accessible to all children is the best tool to prevent inequality and the most efficient way to escape poverty and social exclusion. While in Bosnia and Herzegovina nearly universal primary education (between ages 6 – 15) has been achieved, the percentage of non-enrolled children is increasing and is now an estimated 4 %.

132. Significant disparities exist between children from poor and more affluent households. It is estimated that in the poorest segments of the society, one in four children do not attend school at all, despite the fact that primary school is compulsory for all children. This clearly increases the risk of “recycling” poverty from one generation to another. Roma children are the most disadvantaged. Children in rural areas in general face more difficulties in accessing quality education than children living in towns.

#### **Helsinki Monitor, February 2008, pp.13-15**

The system of education in BiH is divided to a great extent. Children of school age are separated on ethnic grounds, and frequently on the grounds of political affiliation of their parents as well. Thus, open segregation and apartheid are present in practice.

In the post-war period, Bosnia and Herzegovina embarked on the process of reform of the educational system based on the document “A message to citizens of BiH - Reform of Education in BiH”, signed by all ministers of education at the Peace Implementation Council’s meeting in Brussels in 2002. This document was accepted and signed by all educational authorities in Bosnia and Herzegovina. The goal of educational reform was to ensure good quality education for every child in integrated, multicultural schools at all levels, free from political, religious, cultural and other prejudices and discrimination, while maintaining respect for the rights of all children.

The Framework Law on Elementary and Secondary Education in Bosnia and Herzegovina of 2003 regulates principles of pre-school, elementary and secondary education and up-bringing, as well as adult education and establishment and functioning of educational institutions for additional classes for children of BiH nationals abroad. The said law, *inter alia*, regulates general educational goals as universal values of a democratic society, derived from generally accepted values based on specifics of national, historical, cultural and religious traditions of peoples and national minorities living in BiH. [...] All laws in the entities, cantons and the Brcko District, as well as other regulations in the area of education, should have been harmonised with provisions of the mentioned law within three months, which would complete the legal framework. However, harmonisation of the existing and drafting of new by-laws in the area of education to facilitate faster implementation of principles and objectives, have not been completed yet.

The Framework Law on Elementary and Secondary Education foresees a mechanism for setting up of an Agency for pre-school, elementary and secondary education in BiH. This agency would be tasked with coordination, follow up and research processes in the BiH educational system. This mechanism should have been regulated under a separate law on the agency. Pre-school education and professional development and training are envisaged as separate legal areas too, but pertinent regulations have not been adopted yet. The Law on Higher Education was adopted as late as 2007.

Returnees’ children in pre-war places of residence should have been given all assistance for enrolment, attendance and continuation of education. The Office of the High Representative together with the BiH authorities adopted a temporary agreement on meeting of special needs and rights of children-returnees (2002), therein defining six key objectives to ensure sustainable return to former places of residence.

One of the objectives was to “enable children-returnees to attend classes of the so-called “national group of teaching subjects” according to curricula and syllabi of their choice, whereas other teaching subjects will be taught according to local curricula”.

In reality, the stated objective was differently interpreted and applied by politicians and the BiH authorities. Consequently, this led to the situation that we have fifty-four schools called “two schools under the same roof”. Namely, under this practice children are separated in schools based on ethnic and religious affiliation or belonging to one of the constituent peoples.

[...]

Due to this situation, children are prevented from learning about “the other and different”, which is in direct opposition to general educational goals set forth under the Law on Elementary and Secondary Education, and all international documents pertaining to this area.

[...]

The BiH Federation Constitutional Court determined that “disputed provisions of the Law do not bring any of constituent peoples into an unequal position, nor do they lead to assimilation or outvoting of individual peoples”. Any other solution, for example, a possibility for classes to be conducted exclusively in the Croatian, Bosnian, or Serb languages, would constitute a violation of the constitutional principle on equality of all official languages in the BiH Federation and lead to violation of vital interests of constituent peoples, i.e. of those peoples whose languages would not be used for teaching classes

It should be noted that some progress has been made in the educational system through adequate co-ordination between 14 ministers of education. Thus, discriminatory symbols in schools and disturbing school names were removed. However, such efforts should be continued throughout the entire country and in all schools, as to fully observe this criterion. Also, steps were taken to provide common history and geography textbooks for students, and to formulate a single curriculum and syllabus core, as well as to define the rights of teachers and students to use their own language. All adopted legal projects, action plans and programs, as well as responsibilities of Bosnia and Herzegovina in terms of international standards in the area of education, have yielded only partial results in practice.

***The OSCE document “Tailoring Catchment Areas: School Catchment Areas in BiH”, September 2007, provides a comprehensive overview of the current educational system in BiH. It also explains the laws and decisions pertaining to education in BiH.***

<http://www.oscebih.org/documents/9769-eng.pdf>

### **Special Rapporteur on Education criticizes continuing fragmentation leading to segregation and discrimination (May 2008)**

- Assimilative tendencies, especially directly after the war, created disadvantages for minority returnee children
- Segregation of students in the “2 schools under 1 roof” system is bad for their mutual cultural understanding and the coherence of the country
- Despite minority laws and initiatives, Roma remain discriminated against when it come to access to education, mainly because of requirements of documentation

### **UNGA, 27 May 2008:**

#### **“1. Assimilation**

89. Before the 1992-1995 war, Bosnia and Herzegovina was distinguished by its multi-ethnicity and multiculturalism. It developed its education system to respond to its needs and realities. However, the system suffered not only from physical destruction during the war, but remains today under political, nationalist and ideological pressures that were compounded by the war.



Besides the killings, destruction and other hardships of the war, thousands of Bosnians, including Bosniaks, Serbs, Croats, Jews, Roma and others, were forced to leave their homes and resettle.

90. Major problems arose when people started coming back to their homes that had been “ethnically cleansed” during the war. The domination of majority groups over minorities was to a large extent reflected in education policies. Some children from majority groups were openly hostile towards children from minority groups, the latter ones having access only to education that suited the needs of children belonging to the majority community. Obviously, there was also an unwillingness to accept living in multinational communities; introducing principles seeking common policies in education remained a major challenge. In addition, the complexity of the political system and disorganization left the education system open to manipulation by those in power.

91. The Special Rapporteur observed that, in some areas, children belonging to a different ethnic group than the majority faced a lack of educational structures suited to their specific cultural needs. This was true for all ethnic groups, including Bosniaks, Serbs and Croats, depending on the area they are located. However, he observed that this phenomenon predominates in the Republic of Srpska.

92. The Special Rapporteur calls upon federal, entity and cantonal authorities to offer all children, regardless of their ethnic origin, an acceptable and adaptable education in particular concerning the so-called national subjects: language, literature, history, geography, nature and society and religious instruction. It is unacceptable that children belonging to a minority in a specific area of the country are compelled to follow a curriculum that does not respect their cultural specificities.

## **2. Segregation**

93. “Two schools under one roof” is a phenomenon that emerged after the war and has existed ever since. This practice sees children of different ethnicities attend the same school but are taught different curricula and at separate times. Children do not even meet during breaks and teachers use separate teachers’ rooms. The same also applies to the school administration.

94. The Special Rapporteur notes with regret that, although there was no segregation at schools before the war, some political authorities erroneously find that such separation is unavoidable. Many argue that each child must learn in his or her mother tongue. They affirm this even though, according to a citizen opinion survey conducted in 2006, 66.90 per cent of respondents believed that, in Bosnia and Herzegovina, there were three languages with minor differences (44 per cent), or “who cares, as long as we all understand each other” (46 per cent). Only 8 per cent stated that the three languages were significantly different. Although respect for diversity and multi-ethnicity is formally supported by the majority of relevant authorities, the presence of 54 “two schools under one roof” in the country indicates otherwise.

95. Even though Bosnia and Herzegovina was, and still is, under great political pressure from different international forums to solve the problem of “two schools under one roof”, it has still not identified measures to do it in an effective and sustainable manner.

96. The Special Rapporteur believes that segregation on ethnic grounds constitutes an unacceptable practice and can only reinforce existing prejudices, intolerance and social divisions.

97. Furthermore, the Special Rapporteur believes that, if students are neither given opportunities nor encouraged to build strong networks of friendship, tolerance and mutual respect as a basis of the educational process, the country risks failing to build a peaceful and developed society.

98. The situation, however, differs from one canton to another and some progress has been made. For example, in Mostar, a secondary school decided to merge both Bosniak and Croat

school administrations into one legal entity. In that school, Bosniak and Croat children learn some subjects in the same classroom. The Special Rapporteur observed that students in the school had no objections to studying together with persons belonging to a different ethnic group and were open to going further in the ethnic integration process. The Special Rapporteur acknowledges that this is far from being a model of successful multi-ethnicity, but believes that it is a step in the right direction.

99. Furthermore, the Special Rapporteur considers that District of Brčko constitutes an example that should be followed in the rest of Bosnia and Herzegovina. Bosniak, Croat and Serb students study together with the same curriculum, with respect for their own language and cultural specificities. The Special Rapporteur is aware of the objections against the adoption of this model in the rest of the country, but he shares the opinion of the Organization for Security and Cooperation in Europe that, with sufficient political will, it would be possible.

### **3. Minorities**

100. Bosnia and Herzegovina ratified the Framework Convention for the Protection of National Minorities of the Council of Europe in 2000. In addition, a law on the protection of national minorities was adopted in 2003. According to the law, entities and cantons should ensure that persons belonging to a national minority may, if they so request, receive teaching in their language.

101. With regard to the Roma population, an action plan on the education needs of Roma and members of other national minorities in Bosnia and Herzegovina was adopted in 2004. Its goals included the removal of financial and administrative barriers to Roma school enrolment and completion, the participation of Roma parents and communities in the education process, increasing Roma teaching staff and sensitizing non-Roma teaching staff to the needs of Roma students.

102. The Special Rapporteur welcomes these initiatives. Nevertheless, he is concerned that they may remain on paper without measures taken to ensure their practical implementation. He is particularly concerned by the lack of access to education for a large number of Roma children because of the absence of identity documents.

103. The Special Rapporteur encourages Bosnia and Herzegovina to implement expeditiously the recommendations made by the Committee on the Rights of the Child regarding discrimination suffered by minority children in Bosnia and Herzegovina, that the State Party strengthen its administrative and judicial measures to prevent and eliminate de facto discrimination against children, in particular, Roma children and children belonging to ethnic and/or religious minorities and other nationalities.”

### **Impact of displacement on education (2006)**

- In Bosnia and Herzegovina, the literacy level of IDPs is similar to those of the domicile population
- IDPs have lower enrolments rates than the domicile population
- Domicile population spends an average of 10 years and 9 months in education while displaced persons only have 9 years
- Displacement is more disruptive for children who have not completed school
- Displaced women are 27 per cent less likely to obtain secondary education than displaced men

**UNDP, 26 June 2006, p.81-82:**

“The survey data indicate that education is the area in which the profiles of displaced and majority respondents coincide most closely (see Figure 2-11). This suggests that weak education backgrounds do not pose the major problem for displaced persons that they pose for Roma.

However, there is a small gap in education status between majority and displaced household members. As with the Roma, lower attainment rates among the displaced reflect their lower enrolment rates, particularly at the secondary level (see Figures 2-12 and 2-13). Lower enrolments among the displaced are reflected in the number of years they spend in education. While the majority spends an average of 10 years and nine months in education, displaced persons spend just nine years.

Lower enrolment and attainment rates among the displaced, along with problems (for some respondents) associated with learning new languages, are reflected in the lower literacy rates among this group (see Table 2-4), which (with the exception of Bosnia and Herzegovina) fall below national literacy rates.

Although the above suggests that the education status of displaced and majority communities is broadly comparable, at least at the elementary and primary levels, it is clear that important pockets of vulnerability are present among the displaced. In particular it is important to distinguish between the displaced whose schooling was disrupted by displacement, versus those who either completed school before they were displaced or have begun/renewed education since the displacement. As shown in Chapter 2.1 (see Figure 2-1), the two largest waves of displacement followed shortly after the Croatian and Bosnian conflicts in 1991, and the armed resistance movement in Kosovo which took hold after 1997. The data show that for displaced persons of secondary school or prime university age (16-21 years), there were major drops in education levels, particularly for those at the older end of this range and who may have been less able to pick up their education in another environment following displacement (see Figure 2-14). These differences in education status can be explained by the turbulent and uncertain circumstances in which displaced children often find themselves (see Box 19). This underscores the importance of policies to ensure improved educational support for those whose education has been disrupted by displacement.

The survey data also suggest that displaced women are particularly vulnerable. Not only is the gap in attainment larger in the case of displaced women than displaced men (see Figure 2-15)—it increases with the level of education. The data indicate that displaced men are 15 per cent less likely to obtain secondary education than men from majority communities, while displaced women are 27 per cent less likely to obtain secondary education than displaced men. Overcoming the lower education status of the displaced requires interventions sensitive to the vulnerable state of displaced women.”

Figures can be accessed at the following link, p.82:

[http://europeandcis.undp.org/uploads/public/File/rbec\\_web/vgr/vuln\\_rep\\_all.pdf](http://europeandcis.undp.org/uploads/public/File/rbec_web/vgr/vuln_rep_all.pdf)

### **Current education system fails to play a reconciliatory role (2008)**

- Many parents choose the schools according to ethnicity
- This leads to separation of school children along ethnic lines and prevents building a unitary and reconciled society
- Such separation is sometimes supported by politicians

- Students in minority areas frequently face a hostile environment in school
- Fragmentation of the education system in BiH prevents reform
- Education is under the responsibility of the Entity in Republika Srpska, in Federation, responsibility belongs to 10 Cantons
- BiH has 13 Ministers of Education who often resist implementation of commitments taken at state level
- Resistance to create an inclusive and non-discriminatory education system reflects the division of society in post-war Bosnia

**OSCE, September 2007, p.6:**

In BiH, each of the country's three "constituent peoples" has their own curricula. In many cases, student attend schools only with those of their own ethnicity; in certain cases they attend classes separated by ethnicity within the same school building. This solidifies ethnic divisions within communities. It also leaves little room for national minorities or those of mixed ethnicity. These divisions in education impede reconciliation and state-building.

[...]

School choice [...] in BiH means that thousands of students leave their assigned catchments areas to criss-cross the country – in cars, busses, and on foot – every day to attend monoethnic schools. This works against two of the international community's highest priorities – the promotion of reconciliation among the national of the state and the return of refugees and displaced persons to their homes of origin. This also reflects and reinforces the broader divisions not just in the educational stems of BiH but in its society and politics as a whole. If BiH is to survive as a state made up of three constituent peoples and a number of national minorities, it seems logical to assume that it can only do so if it becomes and remains tolerant and respectful of the differences within it. Children educated in mono-ethnic environments will likely be poorly prepared for life in such a country, let alone in an increasingly diverse Europe."

**USDOS, 8 March 2006, sect.4:**

"Students in minority areas frequently faced a hostile environment in schools that did not provide an ethnically neutral setting. Obstruction by nationalist politicians and government officials slowed efforts to remove discriminatory material from textbooks, abolish school segregation, and enact other reforms. Cantonal governments in the Federation and the Ministry of Education in the RS pressured school directors at the primary and secondary school level, and several schools were directed by hard-line political figures."

**MRG, 12 July 2006:**

"BiH's education system is highly fragmented, with education having been devolved to the entities. In the Republika Srpska (RS) education is the responsibility of the entity,<sup>7</sup> whereas in the Federation of BiH (FBiH), education has been further devolved from the entity level to the 10 cantons. Education also falls under the responsibility of the Brcko district. At the state level, education is under the remit of the Ministry for Civil Affairs, yet the power is devolved. There are 13 additional Ministries of Education (MoEs), with varying remits. However, only the state can commit BiH to international undertakings, and has the responsibility to ensure the implementation of ratified international treaties."

**COE, 18 July 2006, par.70-73:**

"70. Education in general is a source of concern in Bosnia and Herzegovina. Since the last monitoring report, no progress has been made in this area. The phenomena of segregation in the schools of the Federation (so-called "two schools under one roof"), the absence of real choice of curriculum other than the RS one in Republika Srpska, the non-implementation of the state-level Framework Law on Primary and Secondary Education in BiH and lower-level education legislation and agreements such as the "Criteria for School Names and Symbols" as well as the

non-adaptation of the law on higher education are signs that the educational sector in Bosnia and Herzegovina is alarming.

71. The questions related to education are becoming a social problem as the families, especially in ethnically mixed communities, insist on segregation and ethnically-pure schools.

72. According to a number of politicians from different ethnicities and groups, the role and the influence of the religious leaders and communities are expanding to an extent that, in the educational field, they rival the State institutions. A law on religions and religious communities at the State-level could answer this question and limit the role of religion in education.

73. Education is the most important aspect of the further unification of the future generations and, moreover, of the country as a whole. Therefore, it is recommended that education should be streamlined, planned and organised mainly at State level.(...)

75 Nevertheless, the fact that practical improvements that do not require legal changes are not being implemented shows that it is not only the complicated State system of Bosnia and Herzegovina that prevents the reforms from being implemented, but it is actually the authorities that do not want to implement them”

**UN CERD, 2 September 2005, par.160:**

“The current situation with education in Bosnia and Herzegovina presents serious threat to stability, security situation, reconciliation, institution building, sustained return and economic recovery. Instead of being a driving force for common growth and development, education is often used as the ideological means to raise ethnic separation, intolerance, segregation and discrimination. In many areas, children from different constituent peoples attend the same school, but have separate classes. The minorities, especially Roma children, and the children with special needs, confront discrimination, and often have not any possibility for education.”

**OSCE, 22 April 2006:**

“We in the OSCE have therefore entered into this field not because we have particular expertise in determining whether, say, there is a better way to arrange vocational education or whether every third grade in every school needs to introduce “child-centered education.” Other organizations such as the European Commission or UNICEF are better suited to do that than we are. Rather, we have entered into this field because we are an organization that sends out missions like the one I head in order to carry out what the OSCE considers its core tasks - “conflict resolution” and “post-conflict rehabilitation.” Both of these tasks, in my view, must begin in this country, given its constituencies and composition, with the education of its future citizens and future leaders. After all, if they continue to be taught to believe in division and difference, as they are now, what hope does this country have for holding itself together, much less for joining the European Union?”

**Persistent discrimination and segregation in the education system hamper return of displaced persons and refugees (2005)**

- IDPs and returnees as well as children with disabilities, face difficulties in accessing schooling.
- majority are Roma and displaced children.
- Children of minority families often continue to live or attend school in the area of displacement
- There continues to be ethnically segregated schools in BiH

**UN CHR, 29 December 2005, par.46-48 and 62:**

“Problems in the area of the right to education, such as discrimination and ethnic separation, pose another important obstacle to sustainable return. For years after the war, children attending the same school were separated on the basis of ethnicity, and different curricula with strong

nationalist content were taught to different groups. As a result, many families have split, with one parent returning and the children staying with the other in the place of displacement to be able to follow the curriculum corresponding to their ethnicity. In other cases, children have returned with their parents but travel long distances to school. Since the authorities stopped financing the bussing of children to other entities at the end of the 2003/04 school year, some parents organize transportation themselves.

Although serious efforts have been made to address discrimination and to develop an egalitarian education system with curricula designed at State level, many challenges remain. In some regions, education is still organized along ethnic lines. For example, some 50 so-called “two schools under one roof”(…)

Efforts addressing these challenges include the 2002 education reform and an “interim agreement on accommodation of specific needs and rights of returnee children” signed in March 2002 between the entity Ministers of Education. As a result, returnee teachers were hired, and a larger number of schools offer to their minority returnee children separate classes on certain subjects such as language and literature, history, geography and religious instruction. Some schools have introduced the common core curriculum agreed upon by the education ministers in August 2003. As a consequence, certain areas recorded an increase in the number of returnee children attending schools in their places of return. Despite these efforts, marginalized groups of children, including IDPs and returnees as well as children with disabilities, face difficulties in accessing schooling. Of the 4-6 per cent of children not attending school at all, the majority are Roma and displaced children. (...)

Limited, or lack of, access to the right to education constitutes a major obstacle to return, as IDPs are reluctant to return to areas where their children would face segregation and intolerance and have to attend schools with a curriculum that does not respect the cultural traditions of their own ethnic group. The Representative recommends that the authorities continue the process of harmonization of the educational system and gradually eliminate the system of “two schools under one roof”. Countrywide educational programmes aimed at creating an environment of tolerance, peace and understanding of diversity should be established.”

### **Education reform attempts to address discrimination at school (2004)**

- Education reform proposes to create modern education system based on non-discrimination
- The reform intends to de-politicise education and strengthen a feeling of citizenship towards the country
- Non-discrimination measures should encourage returnee children to attend school in their place of return
- State-level framework law on primary and secondary education should ensure recognition of diplomas throughout BiH and facilitate return and freedom of movement
- Development of a common core curriculum should provide common foundation of knowledge while offering safeguards to protect various culture and languages.

### **Education Reform**

#### **OSCE, Key areas, 2004:**

“On 21 November 2002, BiH authorities presented the Education Reform Strategy to the Peace Implementation Council (PIC) in Brussels. The Education Reform Strategy is a comprehensive document, developed in co-operation between local stakeholders and the international

community, listing goals for education reform and focusing on the action needed to realise those goals: Access and Non-Discrimination, Improved Curriculum and Teacher Training in Pre-, Primary and Secondary Schools, Vocational Education, Higher Education , Finance and Legislation”

#### **OSCE, Key areas, 2004:**

“Our overriding objective is to depoliticise education, while creating the conditions that will ensure equal access to a high-quality, modern education throughout BiH.

Quality education is needed:

For the individual. It brings confidence and personal growth, as well as the skills, knowledge, values and attitudes that are critical for a young person to become a good and successful citizen.

For the community. It produces an aware and engaged citizenry, an enhanced potential for prosperity, and a society that is both fair and just.

For the country, As BiH strives to become a modern European state, quality education is essential to prosperity and progress.

We aim to put an end to segregation and discrimination through education, and to encourage returnees with school-age children to continue to go back to their homes.

We aim to de-segregate education, while respecting the rich cultural diversity that is the hallmark of our country.

[...]

“We will ensure that all children have access to quality education, in integrated multicultural schools, that is free from political, religious, cultural and other bias and discrimination and which respects the rights of all children. We will accomplish this by:

Providing returnee children with ready access to education, in integrated multicultural schools in their area of return, that is free from political, religious and cultural bias and discrimination.

. Implement the March 5th 2002 Agreement on Accommodation of Specific Needs and Rights of Returnee Children (February 2003)

. Develop long-term solutions for the education of all constituent peoples and persons belonging to national minorities (August 2003)”

#### **OSCE, Key areas, 2004:**

“Implementing a state-level law on education in primary and secondary schools, as prescribed in the Council of Europe post-accession commitments, and implementing the Human rights and educational principles embedded in this law by adopting laws in the Entities and Cantons that are consistent with it.

[...]

Establish a high-level expert working group, bringing together the OSCE, Council of Europe and OHR in co-ordination with the Ministries of Education at all levels of competence, to begin developing a common core curriculum (from 1 December 2002)

Establish an effective instrument to ensure that the common core curriculum and its implied European human rights standards, as prescribed by the state-level law on education in primary and secondary schools are implemented throughout BiH (September 2003 at the latest)

Develop, adopt and implement laws in the Entities and Cantons that are consistent with the human rights and education principles and standards embedded in the state-level law (at least two months before the beginning of the school year (2004-2005)

[...]

Obtain agreement of the cantonal authorities in the Federation to defer their powers in the area of higher education to the entity level, in accordance with the Constitution of the Federation of BiH, to achieve overall consistency in legislation for higher education.”

**OSCE, Key areas, 2004:**

“Consistent with its mandate in the area of human rights and pursuant to the decision of the OSCE Permanent Council in July 2002, the OSCE Mission to BiH has assumed responsibility for the co-ordination and facilitation of the work of the International Community in the education sector in Bosnia and Herzegovina

[...]

A key priority of the OSCE Education Department was the development, and is now the implementation, of the BiH Education Reform Strategy”

**Primary and secondary education****OSCE, New law, 2004**

“As part of the Education Reform Strategy, BiH authorities adopted a State-level Framework Law on Primary and Secondary Education on 4 July 2003.

[...]

The Framework Law on Primary and Secondary Education in Bosnia and Herzegovina ensures greater mobility for all students across BiH and will facilitate wider recognition of school certificates. It allows for greater school autonomy and increased parent and teacher involvement and partnerships. It also put into place a Common Core Curriculum, which helps and make possible full and free access to schools anywhere in BiH.

The law establishes that every child has a right to access and equal participation in the educational process as a basic educational and human rights principle. It also ensures the priority in education is focused on the rights of the child. Legislation entails the following additional aspects:

affirms the primacy of children's rights over any other rights;

ensures that all primary schools have a catchment area, which establishes that children will attend schools in their own communities. This eliminates the risk of children being bussed to other schools based on ethnic criteria; [...]

ensures that certificates and diplomas issued by verified educational facilities have equal status in the whole territory of BiH;

provides an indisputable basis for developing and adopting the Common Core Curriculum which was implemented starting in September 2003. This reform should lead to a large extent to the elimination of segregation through curriculum;

ensures that the educational process will contribute to developing a sense of commitment towards the State of BiH;

ensures that the languages of the three constituent peoples enjoy equal status throughout the territory of BiH, as guaranteed by the BiH Constitution.

In addition, legislation:

establishes a Curriculum Agency responsible for implementation, follow-up, evaluation, improvement and further development of the Common Core Curriculum;

ensures that the composition of school boards reflects the ethnic composition of the schools;

sets out that School Directors are to be appointed by the School Board – in effect giving greater autonomy to schools; and

foresees the establishment of parents' and students' councils with an advisory capacity.”

**Common curriculum****OSCE, Essence, 2004:**

“The Common Core Curriculum clearly sets out what is common in curriculum across BiH. It provides a broad core in all subjects, and also includes room for acknowledging different traditions and features of history, culture, and language from region to region. In these subjects,



some 50 per cent or more of topics taught are the same. For science and mathematics, the common elements make up more than 80 per cent of the syllabi taught.

Why is a Common Core Curriculum needed?

to facilitate unrestricted access to any school in BiH;

to make it easier for students to change schools if they move to different parts of the country;

to provide a common foundation for the further modernisation of the education system (better quality and higher standards for all), while offering safeguards to protect everyone's culture and language;

to promote mutual understanding and respect for differences;"

**See also:**

***Just the FAQs: questions and answers on education reform, OSCE, Department for Education, December 2004***

***OSCE, webpage on Education***

### **Implementation of the Education reform: progress under international pressure (2008)**

- Positive steps: the adoption of a State-level Framework Law on Primary and Secondary Education in 2003 and the adoption of a Law on Higher Education in July 2007
- Some Cantons have failed to implement legislation on primary and secondary education in particular with regards to the so-called "Two schools under one roof"
- Constitutional court confirms that the law on primary and secondary education does not violate the interest of Croat constituent people
- Criteria on removal of offensive school names and symbols from schools have been adopted
- Strong nationalist resistance against adoption of the law on higher education
- Some cantons refuse to transfer their competences in education policy to the Federation
- Enrolment in higher education remains very low, despite reforms, with poverty as the main barrier

### **Primary and secondary education**

#### **CoE, 20 February 2008:**

127. Some positive developments have occurred, mainly in the legislative field. The adoption of a State-level *Framework Law on Primary and Secondary Education* in 2003 and the adoption of a *Law on Higher Education* in July 2007 have been positive steps. The *Framework Law on Primary and Secondary Education* envisages a common core curriculum, syllabus and the right to use one's mother tongue. However, the law is not uniformly applied across the whole country. Introduction of education for democratic citizenship and new approaches to history teaching are other modest improvements made in the field of education.

#### **OSCE, 1 June 2006:**

"This has been seen in the field of primary and secondary education where the lower-level authorities have failed to fulfil their legal obligation to harmonise their legislation with the provisions of the BiH Framework Law on Primary and Secondary Education (adopted in June 2003) or to implement this legislation."

#### **COE, 18 June 2004, par.42 :**

"The State-level Framework Law on Primary and Secondary Education was adopted unanimously on 30 June 2003. Harmonised lower level legislation should have been adopted by the FBiH 10 Cantons, the RS and the District of Brcko. As of 8 June 2004, four Cantons have not

yet fully harmonised their legislation with the State Law, thus bringing themselves into direct conflict with the State of BiH and its international obligations, in particular the CoE post-accession commitment to adopt legislation on education within two years after accession (i.e. 24 April 2004). On 25 May 2004, the FBiH Constitutional Court rejected the HDZ's invocation of 'Vital National Interest' in one of these Cantons."

**OSCE, 17 February 05 :**

"In November 2004, the Constitutional Court of the Federation ruled that the amendments to the laws on Primary and Secondary Education in Central Bosnia Canton imposed by the High Representative in July 2004 do not violate the vital national interest of Croat constituent people. The decision further strengthened the principle that teaching exclusively in one language would in fact violate the right of other constituent peoples and contravene the principle that all languages in BiH are to be regarded as equal. Following the court's ruling, the amendments entered into force on 31 December 2004, marking the end of the process of harmonization of lower-level legislation with the state-level Framework Law on Primary and Secondary Education. With new education laws now in place, all of the Ministries of Education must now adopt the relevant by-laws necessary for setting common standards on various issues such as the establishment and functioning of school boards, school directors' appointment, or school names and symbols. The Mission has contributed to the development of prototype education by-laws for use by the Ministries of Education."

**OSCE, 11 November 2004:**

"Still, there is good news to report, too. With the assistance of the OSCE Mission, the Office of the High Representative, and the Council of Europe (CoE), all primary and secondary education laws in the country have been harmonized with the state-level Framework Law on Primary and Secondary Education.

Most BiH authorities have also developed and adopted Criteria on School Names and Symbols, which aim to ensure the use of appropriate, non-political, non-divisive names and symbols in schools."

**On this issue see also:** [Report on implementation of the criteria for school names and symbols, Coordination Board for the implementation of the March 5th 2002 Interim Agreement on Returnee Children, 5 April 2006](#)

**OSCE, 17 February 05:**

"On the positive side, the Commission for the Development of Guidelines on Textbook Writing for the Subjects of History and Geography in BiH successfully completed its work by producing guidelines for textbook authors and publishers. These guidelines are designed to ensure that students, for instance, have a basic understanding of the history and geography of all three constituent peoples and national minorities. Revision of the Common Core Curriculum for Foreign Languages also reached a successful conclusion in November 2004, thanks to a joint effort of the OSCE, the Council of Europe and the ministries of education. The new curricula, designed to bring foreign language learning in BiH in line with Europe-wide standards, now await the approval and subsequent endorsement of the country's many ministers of education."

**Higher education**

**USDoS, 11 March 2008:**

There were no government restrictions on academic freedom or cultural events; however, ethnic favoritism and politicization of faculty appointments constrained academic freedom. In Sarajevo, Serbs and Croats complained that Bosniaks received preferential treatment in appointments and promotions at the University of Sarajevo. The University of Banja Luka continued to limit faculty appointments almost exclusively to Serbs. The University of Mostar remained divided into two separate universities, reflecting the continued ethnic divide in the city.

**CoE, 20 February 2008:**

135. As regards secondary education, the attendance levels are also low in BiH compared to other European countries. The quality of education and the relevance of the school curriculum to working life is also questionable. There remains a strict division into “male and female” professions, contributing to gender stereotypes and preventing an increase of gender equality in working life. As regards higher education, less than 25 % of youth in BiH attend – compared to over half in the EU. Again, poverty is a serious barrier and only very few Roma take part in higher education. The areas of adult education and informal education are also undeveloped in BiH. Taking into account that during the war education was disrupted for a large number of young people, this is yet another serious issue to be tackled in BiH.

**OSCE, 1 June 2006:**

“The state has also neglected to adopt a state-level higher education law since 2003, thereby failing to provide the legal framework for the BiH universities to fulfill the Bologna obligations endorsed by the State. “

**CoE, 18 June 2004, par.43:**

“The State-level Framework Law for Higher Education, drafted by BiH and CoE experts, should have been adopted by the end of March 2004 to secure a World Bank loan package. This draft law specifically guarantees, inter alia, the recognition of BiH diplomas according to the same standards throughout Europe and student mobility and quality assurance. However, the State Parliament failed to adopt the law following the invocation of the ‘Vital National Interest’ clause by BiH Croat representatives in the House of Peoples on 7 May 2004 on the ground that the draft law would not, in particular, guarantee that there will continue to exist at least one University in BiH with Croatian language as the official language. They also contest the transfer of competences of the Cantons to the Federation in the education policy.”.

**CoE, 4 February 2005**

“Regrettably, BiH continues to lack a Law on Higher Education offering a legal framework to regulate the country’s higher education system in conformity with European standards. It remains thus one of the only two States to be part of the Bologna process but still lacking this crucial law.

Challenged by the Croat Caucus in the BiH House of Peoples, the BiH Constitutional Court ruled, in June 2004, that the Draft Framework Law on Higher Education endangered the vital interest not only of the Croats, but of all constituent peoples. The Court made it clear that all three constituent languages must be respected at all universities in BiH, thus preventing ethno-centric higher education.

In July 2004, the BiH Parliament stipulated that a new draft be prepared as quickly as possible taking into account the ruling of the BiH Constitutional Court and the interests of all constitutional peoples in BiH.”

**OSCE, 17 February 2005 :**

“Unfortunately, the international community remains the main driving force behind education reform. In the coming months, this process will have to leap some crucial hurdles if reform is to continue. They include the establishment of a state-level Curriculum Agency; a revised Standards

and Assessment Agency for primary and secondary education; as well as, upon adoption of a law on higher education, a Centre for Information, Recognition and Quality Assessment. Both the Curriculum Agency and Standards Assessment Agency are state-level institutions envisaged by the Framework Law on Primary and Secondary Education adopted in June 2003 and yet steps towards their creation have been halting at best.”

**CoE, 4 February 2005:**

“The persistence of ethnically ethno-centric schools in BiH is still a matter of grave concern for the CoE. Elimination of all aspects of segregation and discrimination based upon ethnic origin is not only one of the post-accession commitments undertaken by BiH, it is of the utmost importance for the peoples concerned and for the further European integration of BiH.”

**OSCE, 11 November 2004:**

“The educational sphere is, however, like other spheres of life in BiH, unfortunately not immune from political intervention. In fact, the recent failure to adopt the state-level Framework Law on Higher Education is a sad but illustrative example. Bosnia and Herzegovina has seen crucial reforms in higher education, most notably the long overdue mutual recognition of diplomas and qualifications with those of other European countries, postponed and ultimately undermined. Disappointing as this may be, formal and informal talks continue and the Mission, in co-operation with its partners in the international community, continues to work with BiH’s education authorities to break this political logjam. We are optimistic that, when it comes to higher education, thanks in part to our continued support, BiH will eventually join the rest of the family of European nations.”

**See also:**

*Overview of official gazettes containing the existing laws on primary and secondary education in BiH, 7 November 2007:* <http://www.oscebih.org/documents/9907-eng.pdf>

CoE, 8th report, par.66-68, see link in sources below

OHR, press release, 8/07/04 “[High representative enacts legislation harmonizing education laws in three cantons with BiH Education law](#)”

OSCE, [Citizens feel detached from their authorities, HoM interview](#), Dnevni list, 26/01/05

**Implementation of interim agreement addressing discrimination against returnee children (2005)**

- The Interim Agreement allows parents to choose the curriculum for certain subjects
- Permanent education solutions remain to be identified to ensure an inclusive and non-discriminatory education system
- School boards must also reflect the composition of the population
- OSCE has been entrusted with monitoring of the education reform
- Statistical data indicates over 400 school-age returnee children were enrolled in schools in their area of return and over 150 returnee teachers were hired (2003)
- The total number of returnee children enrolled in schools is over 33,000 and the number of teachers is almost 1,800 (2003)
- The number of multi-ethnic school boards increased slightly
- The practice of bussing children outside of their catchment area decreased significantly in a number of cantons

**OSCE, 19 April 2005, p.12:**

“In 2002, given the increasing number of returnee families and their concerns regarding education options in their areas of return, the 05 March 2002 Interim Agreement on Accommodation of Specific Needs and Rights of Returnee Children (Interim Agreement) was signed and in March 2003, an Implementation Plan for this Interim Agreement was adopted by all Ministers of Education. This implementation Plan allowed parents the possibility to opt for the curriculum of their own choice in the national group of subjects. As this is considered only to be an interim measure, it remains necessary to identify permanent education solutions which would ensure that curricula taught in schools throughout BiH address the needs of all constituent people and national minorities and which aim to provide for an inclusive and non-discriminatory education system.”

**OSCE Coordination Board for the Implementation of the March 5th 2002 Interim Agreement on Returnee Children 19 November 2003:**

“On March 5th 2002, Entity Ministers of Education signed the Interim Agreement on Accommodation of Specific Needs and Rights of Returnee Children. The aim of the Interim Agreement is to provide the necessary conditions in order to increase the enrolment of returnee children in schools throughout Bosnia and Herzegovina, particularly in schools where returnee children constitute a minority.

The Interim Agreement provides returnee parents with the possibility to opt to have their children taught the national subjects. (Language and literature, history, geography, nature and society, religious instruction) according to their choice of curricula. The Interim Agreement also provides conditions for the increased employment of returnee teachers to teach the national group of subjects and stipulates that the ethnic composition of School Boards shall reflect the composition of the school population where schools are located. The Interim Agreement also requires Ministers of Education to issue instructions on implementation and to appoint a representative from their Ministries to deal with the issue of returnee children.

In order to ensure full implementation of the Interim Agreement, a special working group comprised of representatives of all Entity and Cantonal Ministries of Education was established in order to draft a comprehensive Implementation Plan for the Agreement. On 13 November 2002, an Implementation Plan for the Interim Agreement was signed by Entity and Cantonal Ministers of Education. The Implementation Plan stipulates the conditions necessary for schools to organise and finance the teaching of national subjects for returnee children. Provisions for the hiring and recruitment of returnee teachers to teach the national group of subjects and for changing the composition of school boards to reflect the national structure of the student population are also included in the Implementation Plan.

In order to oversee implementation of the Interim Agreement, a Coordination Board comprised of representatives of all Entity and Cantonal Ministries of Education and the International Community (OSCE and OHR) was established.

**OSCE, 20 November 2003:**

**The Statistical report on the implementation of the Interim Agreement on Returnee Children**

“[...] showed that this school year over 400 school-age returnee children enrolled in schools in their area of return and over 150 returnee teachers were hired. The total number of returnee children enrolled in schools in the area of return is now over 33,000 and the number of teachers is almost 1,800. The number of multi-ethnic school boards increased slightly, and the bussing of children outside of their catchment area decreased significantly in Una Sana, Posavina, Tuzla and Bosnia-Podrinje Cantons.”

**OSCE Coordination Board for the Implementation of the March 5th 2002 Interim Agreement on Returnee Children 19 November 2003 :**

“The statistical data collected by the Entity and Cantonal Ministries of Education indicate the following trends: In the FBiH, the number of returnee students increased by 0.69% from 26,959 during the 2002/03 school year to 27,145 during the current school year. In the RS, the number of returnee students increased by 3.6% from 6,051 during the last school year to 6,269 during the current school year. In areas of high return, the number of the returnee students also increased significantly. In northeast Bosnia, between June and September 2003, the number of returnee students increased from 2,300 to 3,600 (56%). As of the 2003/04 school year, 1,776 qualified returnee teachers were hired in schools throughout BiH. This increase was due largely to the efforts of education authorities to give priority to qualified returnee teachers and to advertise teaching vacancies in areas of displacement. In the FBiH, the percentage of multi-ethnic schools boards decreased from 46.67% during the 2002/03 school year to 44.93% during the current school year. In the RS, the number of multi-ethnic school boards increased from 11.01% in 2002/03 to 17.82% during 2003/04. The number of students being bussed to schools outside their catchment area decreased by 6.52% in Una Sana Canton, 81.48% in Posavina Canton, 26.44% in Tuzla Canton and 5.15% in Bosnia Podrinje. In Central Bosnia Canton and Zenica-Doboj canton, the number of students being bussed outside their catchment area increased.”

**UNHCR email correspondence with UNHCR Sarajevo, 18 February 2005**

“Many of the required steps for the implementation of the Interim Agreement have been successfully met, like the removal of inappropriate content from textbooks for the national group of subjects, and the development of criteria and an implementation plan to assist school authorities in removing or replacing school names and symbols that could be viewed as inappropriate.”

**Two schools under one roof: segregated education persists in Bosnia and Herzegovina (2008)**

- The “two schools under one roof” are schools where children of various ethnicity use the same school without having joint classes
- There are still 54 such school in the Federation, while RS schools do not accommodate the needs of minority pupils
- Such schools have separate entrances and shifts depending on ethnicity
- Two schools under one roof were initially supported by the international community to encourage minority returnee children to attend school and mix with children of other ethnicity for extra-curricular activities
- This temporary solution has become permanent and legitimises a form of segregation
- Removal of two schools under one roof is one of the CoE post-accession commitments of BiH
- According to State level Framework law on Primary and Secondary education, such schools are illegal and administrative unification is required
- Administrative unification does not entail unification of curricula
- In September 2005 Canton 7 decided to added further separation between Bosniak and Croat pupils
- As of July 2006, there are still 54 two schools under one roof

**CoE, 20 February 2008:**

“128. There are still many instances of pupils being segregated according to their ethnicity. The most blatant form of exclusion in an education policy in BiH is the system of running “two schools under one roof”. This is still the case in 54 schools in the Federation of BiH. In these divided schools, the school facilities are completely separated for the children and staff of different ethnic groups. This applies both to the administration of the school as well as to the use of different curricula. On the other hand, the mono-ethnic curriculum in the Republika Srpska does not accommodate the needs of the minority pupils either.”

**ECRI, 15 February 2005, par.33**

“In these schools, pupils of different ethnic origin use the same facilities. However, these facilities host, in actual terms, two schools segregated along ethnic lines. These two schools are administratively separate, and the children follow different curricula. In addition, pupils, teachers, and non-teaching school staff of different ethnic origins often go to the same school in different shifts or use separate entrances and occupy separate sections of the same building.”

**OSCE, 24 March 2005:**

“The history of the phenomenon known as ‘two schools under one roof’ offers an instructive lesson in unintended consequences. It also offers an object lesson in how a purely educational issue can unfortunately metamorphose into a political one. It is a perfect example of why politics does not belong in the classroom. It is now time for these schools to be unified. It is also time that all parties understand that, by saying this, we are speaking only of legal and administrative unification of schools. We are not speaking about unifying languages or curricula.

‘Two schools under one roof’ began with the best of intentions. They were seen as a means of encouraging return by families with school-age children to areas in which their nation had become a ‘minority’ during the war. Yet, although the international community originally blessed this development, it always had reservations about it. For one thing, by suggesting that pupils from all three constituent peoples and the ranks of the ‘others’ should not attend school together, it appeared to legitimise and institutionalise a form of segregation. For another, by duplicating administrative and teaching staffs, complicating budgetary processes, and creating yet another barrier to the modernisation of primary and secondary education, it appeared wasteful. (...)

It was not surprising, therefore, that the Council of Europe should have tasked the authorities to eliminate all aspects of segregation and discrimination based upon ethnic origins when it admitted BiH to membership in April 2002. BiH ministers then signed up in November that year to an education reform strategy that required that the authorities provide for “integrated multicultural schools free from political, religious, cultural and other bias and discrimination”. In other words, the education reform strategy envisioned the administrative unification of “two schools under one roof”. The state-level Framework Law on Primary and Secondary Education, passed unanimously in June 2003, did so as well. This law led, in turn, to cantonal laws in the Federation in 2004.

Administrative unification is, therefore, now a clear legal imperative. The courts have rejected all challenges to it. Nine months later, however, we still have more than 50 “two schools under one roof” operating in Zenica-Doboj, Hercegovina-Neretva and Central Bosnia cantons, though the overwhelmingly majority lie in Central Bosnia Canton. These schools remain an object of political contention because certain political parties have seen fit to make them one. They have succeeded in creating the impression among parents, pupils, and teachers that administrative unification also means the homogenisation of curricula and the subordination of one or another of the official languages to the third. This is simply not true.”

**CoE, 3 November 2005, par. 69-76:**

“69. Increased politicisation along nationalist lines has led to repeated incidents of separation of children based on ethnicity across BiH at the beginning of the 2005/2006 school year in violation of BiH post-accession commitment to “eliminate all aspects of discrimination and segregation based upon ethnic origins.

70. Municipal authorities in Herzegovina-Neretva Canton (Canton 7), at the beginning of September, adopted decisions to divide “two schools under one roof” by establishing new schools in replacement of existing branch schools, thus adding physical separation between Bosniak and Croat pupils in Prozor/Rama and Capljina municipalities to already existing programmatic (2 parallel curricula) and legal separation. The CoE had written, through the SRSG, to both municipalities ahead of these decisions, warning that such moves violated BiH’s post-accession commitments. EU Ambassadors in BiH, the OSCE Mission, and OHR, acting in concert with the CoE, subsequently also issued written and oral condemnations. At its meeting of 7 October 2004, the Peace Implementation Council (PIC) voiced its deep concern at the repeated failure of education authorities to implement legal regulations and fulfil the CoE post-accession commitments.

71. It should be recalled that the legal and administrative unification of the so-called “two schools under one roof” in the FBiH is provided for legislation and the subsequent Instruction issued by the Minister of Education of the Herzegovina-Neretva Canton (Canton 7). However, it has never really been implemented with the exception of the Mostar Gymnasium and 2 primary schools.

72. The unification of the Mostar Gymnasium, endorsed by the Cantonal and city boards of HDZ and SDA, led to a shared administration (a Croat Director and a Bosniak Deputy Director, as well as a Bosniak Head of Board), a shared meeting room for teachers and social mixing of students from the two ethnic groups in numerous shared extra-curricula activities. The Secretariat Delegation visited the Mostar Gymnasium and acquired a very positive impression. The success of its unification has been recognised by parents and students and has led to an increase in student enrolment, particularly in the Croat curriculum, where the number of first year students (aged 14) doubled in September 2005 (see also below para. 82).

73. However, in other “two-schools under one roof”, children from different ethnic groups often attend classes in two different shifts (one in the morning and the other in the afternoon) or, where shifts are mixed, the age group is different (for instance, the 6 to 8 year old Bosniak children go to school in the morning together with the 9 to 11 year old Croat children). The creation of the “two schools under one roof”, an initiative promoted by the International Community, was *inter alia* designed to allow socialising among children of different ethnic groups, at least during extra curricula activities and in the playground. This was seen as a first step towards an ultimate and more ambitious objective of integrated education with a framework curriculum accommodating cultural diversity through the national group of subjects. But through the tactics of double shifts, even physical unification was prevented. At the same time, although a firm commitment was given by all Ministers of Education to respect the set of criteria agreed upon in the use of symbols and names in the schools, these criteria were never properly implemented. Thus, it can still happen that children of an ethnic group attend classes in a classroom where the ethnic or religious symbols of the other group are present. The recent decisions of municipal councils to



create separate main schools in some municipalities in Canton 7, following what seems to be a high-level political deal between HDZ and SDA, should thus be seen against this background.

74. The decision taken on separation and the creation of the separate school “Alija Isakovic” for Bosniak pupils in Prozor Rama (Canton 7) was finally annulled by the municipal council at the beginning of October. This reversal was mainly the result of protests by Croat parents who did not accept the idea of Bosniaks obtaining their own school in the Canton.

75. A new problem appeared recently in Zepce (Canton 4) where a lack of textbooks and of a curriculum in Croat language precipitated protests by Croat parents and a subsequent boycott, specifically arguing in favour of an 8-year rather than a 9-year education. While an 8-year education system is provided for in Croatia, the Framework Law on Primary and Secondary Education in BiH, adopted in June 2004, provides for a 9-year system. Thus any other option violates existing legislation. At the same time, in Central Bosnia Canton (Canton 6), Bosniak parents have put forward demands for the introduction of the “national group of subjects” according to the curriculum of their own choice, while in one instance they have demanded a separate school. Lastly, groups of returnee parents in the Republika Srpska increasingly voiced their requests demanding the introduction of the so-called “national group of subjects” (language and literature, history, geography and religious education) or a separate curriculum.

76. To sum-up, beyond the issue of administrative and legal unification of “two schools under one roof”, the main issue on which CoE and the rest of the International Community should continue to insist is full integration in education and an education system equal to all and respectful of the constitutional principle of equality of the three languages of the constituent peoples on the whole territory of BiH. A gradual evolution from three distinct curricula to a common core curriculum with the three languages being used equally in all schools and a national group of subjects to ensure respect for cultural diversity must be the only long-term objective which can ensure a common future for BiH.”

**COE, 18 July 2006, par.74-75:**

“74. Reports that are being published by the UN and the OSCE confirm that attempts to address the problem of “two schools under one roof” in a graduated process, e.g. administrative unification first, then eventually complete unification of the school, has failed. The only schools among the 54 that unified their administration (one Director, Assistant Director, etc) are the Mostar Gymnasium and the schools in Canton 4 and only under intense international pressure.

75. According to the authorities of the Mostar regional government, the unification of five vocational “two schools under one roof”, that was planned by the international community, will not take place. This actually means that all vocational schools in Mostar, a supposed unified city, would be ethnically segregated. The CoE and OSCE have issued a joint letter to the Mostar authorities (attached in Appendix II), to attempt to avert this outcome and ensure at least administratively unified schools, along the lines of the Mostar Gymnasium.”

**USDOS, 8 March 2006, sect. 4:**

“Administrative and legal unification of the 52 cases of “two schools under one roof,” with separate classes for Bosnian Croats and Bosniaks, did not lead to integrated classrooms, although shared extracurricular activities, school entrances and recreation facilities sometimes resulted. In some areas of the country, notably Vitez in central Bosnia and Prozor-Rama and Stolac in Herzegovina, local officials and parents sought to establish complete physical segregation of Bosniak and Croat students. Segregation and discrimination were entrenched in many schools, particularly in the teaching of national history and religious education. In the RS, non-Serbs made up less than 5 percent of the teaching staff in primary and secondary schools. In the Federation, minority teachers made up between 5 and 8 percent of all teachers, depending on the canton.”

**UN CESCR, 24 January 2006, par.28:**

“28. The Committee is deeply concerned about the practice of “two schools under one roof”, whereby common premises are either divided or being used at different times to teach separate curricula to children belonging to different ethnic groups, and about the trend in some locations to build separate schools for the respective ethnic groups.”

**See also UN Committee on the Rights of the Child, 21 September 2005, par.58-59 and "Harmony a long way off in Bosnia's disunited schools", by Predrag Popovic, BIRN, 13 October 2006 (in sources below)**

**Curricula differ depending on ethnicity, but should contain a Common Core Curriculum (2006)**

- The Law provides that a common core curriculum (CCC) must be implemented in all schools
- The objective is to ensure that students learn at least a minimum of common elements throughout to facilitate greater student mobility
- The CCC is not one curriculum but rather the common elements which must be included in all curricula
- The percentage of common curricula varies depending on the subject: very high for sciences and limited to the minimum for history
- The Interim Agreement on returnee children allows parents to choose specific curriculum for “national group of subject”
- This temporary measures has led to multiplication of curricula within schools and further separation of children
- Ethnically coloured content has been prevalent in textbooks covering national groups of subject
- Foreign curricula from Zagreb or Belgrade are still being used in Bosnia with minor modifications
- A Textbook Commission drafted guidelines for authors of textbooks in national groups of subjects including history and geography

**Common Core Curriculum (CCC)**

**OSCE, Essence, 2004:**

“The BiH Common Core Curriculum comprises all common elements taught in BiH schools and is an integral part of the state-level Framework Law on Primary and Secondary Education. It was adopted by all Education Ministers on 8 August 2003 and was introduced at the beginning of the 2003/04 school year. A Common Core Curriculum Steering Board was established to develop the overall curriculum guidelines and to oversee the work of Subject-Specific Working Groups. The Subject-Specific Working Groups were comprised of experts in primary and secondary education

coming from schools, Pedagogical Institutes, and universities. They compared the existing curricula, identified commonalities, and compiled the core syllabus for each subject for all years that the subject is taught. .”

**OSCE, 19 April 2005, p.11-12:**

“Article 59 paragraph 4 FW PSE Law (Framework Law on Primary and Secondary Education) stipulates that a CCC must be implemented in all schools in BiH, at the beginning of the school year 2003/2004 at the latest. The objective of the CCC was to ensure that students learn at least a minimum of common elements across the entire country and to facilitate greater student mobility. Although the CCC does not resolve the issue that curriculum across the country remains ethnically- coloured, as will be discussed later, it should be considered a first step in the right direction.

The CCC “*consists of all the curricula and syllabi of all subjects of primary and general secondary education of BiH that have as broad an agreed common core as possible*” (...). In essence, this means that for each of the 18 subjects covered by the CCC, a certain percentage is the same for all pupils, with the remaining percentage varying depending on the curriculum or curricula (...) of the canton or entity. The proportion between that which is fixed for all pupils and that which is not depends on the subject: in subjects such as mathematics or science, the common portion covers virtually the entire subject content whereas in subjects such as language and literature, history, geography, nature and society, the common portion comprises far smaller areas of the subject matter. With significant support from the international community, all Ministers of Education adopted the CCC on 8 August 2003. Implementation, however, has not been quite so unanimous. (...)

As touched above, the CCC is not one curriculum, but rather the common elements which must be included in all curricula in force across the country. In most cantons and in the RS, there is only one curriculum in force, that of the majority ethnic group in the canton/entity. Thus, a curriculum developed by the Mostar Institute for School Affairs is in force in Posavina Canton, West Herzegovina Canton and Canton 10 and parts of Central Bosnia Canton and Herzegovina-Neretva Canton. The latter two cantons also have schools following the curriculum issued by the FBiH Ministry of Education which is also in force in Una-Sana Canton and Bosnia-Podrinje Canton (Canton 5). A curriculum issued by the RS Ministry of Education and Culture is in force in the RS. Each of the remaining cantons, namely Tuzla Canton, Zenica-Doboj Canton and Sarajevo Canton, have a different curriculum. Finally, and as indicated above, in Zenica-Doboj Canton, Central Bosnia Canton and Herzegovina-Neretva Canton, there are two curricula in force and the curriculum depends on the ethnic majority in the school. In practice, this means that curricula are still ethnically coloured throughout the State. This ethnic colouration is primarily seen in the subjects of mother tongue and literature, geography, history, nature and society and religious instruction. For example, the country of reference, particularly for some of the history curricula, primarily remains neighbouring countries and not BiH.

**National groups of subjects and textbook Commission:**

**OSCE, 19 April 2005, pp.12-13:**

“In 2002, given the increasing number of returnee families and their concerns regarding education options in their areas of return, the *05 March 2002 Interim Agreement on Accommodation of Specific Needs and Rights of Returnee Children* (Interim Agreement) was signed and in March 2003, an Implementation Plan for this Interim Agreement was adopted by all MoEs. This Implementation Plan allowed parents the possibility to opt for the curriculum of their own choice in the national group of subjects. As this is considered only to be an interim measure, it remains necessary to identify permanent education solutions which would ensure that curricula taught in schools throughout BiH address the needs of all constituent people and national minorities and which aim to provide for an inclusive and non-discriminatory education system.

Alongside curriculum, ethnic colouration has also been prevalent in textbooks. Under the 10 May 2000 Agreement, in order to stop the practice of importing textbooks for the national group of subjects from neighbouring countries, it was agreed that textbooks imported from Zagreb and Belgrade should not be used past June 2002. However, this agreement has often been circumvented, and continues to be circumvented, by simply reprinting the same textbooks within BiH with minor modifications.

Following on the 10 May 2000 Agreement, and in line with the Interim Agreement, a Textbook Commission was re-established which completed a review of textbooks for the national group of subjects prior to the 2003/04 school year. While this Textbook Commission made much progress towards insuring that inappropriate content was removed from the national group of subject textbooks, it did not look at long-term solutions, nor did it review every textbook in use across the country for all subjects. Therefore, the content in many textbooks remained one-sided and biased. As stated by the 2004 U.S. Report on the State of Human Rights in BiH, *“there were textbooks in use outside the so-called national group of subjects that were not subject to the review process but contained material that was inappropriate. For example, the textbooks on politics and economics used in schools following the curriculum in Bosnian Croat majority cantons were produced in Croatia and contained material considered slanderous and hurtful to Serbs. Other cases were less explicit but were recognized as inappropriate or controversial”*. In an endeavour to promote longer-term and more sustainable solutions, a Textbook Commission for the Development of Guidelines for Authors of History and Geography was established in 2004. Recently completed guidelines were produced for textbook authors on the writing of history and geography textbooks which aim to ensure that students have a basic understanding of the history and geography of all three constituent people and national minorities, which promote multi-perspectivity and which use BiH as a main reference point. Notwithstanding this recent positive step, given a review of the curriculum and textbooks in use across BiH, one could only conclude at present that *“the needs of children of an ethnic background other than the majority one are not yet met in practice in schools in Bosnia and Herzegovina”*.

**USDOS, 8 March 2006, Sect. 4:**

“Schools throughout the country continued to use textbooks on subjects outside the so-called “national group” of subjects that contained controversial material. For example, textbooks in Bosnian Croat-majority areas refer to Croatia as the homeland of all Croat people, while texts in the RS instill a sense of patriotism towards Serbia and Montenegro.

During the year the Interentity Textbook Review Commission drafted guidelines for authors of new textbooks that emphasized multiple points of view, including those of women and national minorities. Despite their earlier commitment to the commission, five Bosnian Croat cantonal ministers of education and RS Minister of Education Milovan Pecelj refused to sign the guidelines.”

**OSCE, 21 July 2006:**

“ All Bosnia and Herzegovina’s Ministers of Education have now agreed on guidelines for authors and publishers of history and geography textbooks- two of the most sensitive and jealously protected subjects in this country’s three curricula- that, if adhered to, as I hope they will be, would finally give students a basic understanding of the history and geography of all three constituent peoples as well as of this country’s national minorities”

**OSCE, 22 April 2006:**

“We have already, in my view, spent far too much time decrying the existence of “two schools under one roof” in these two places, while failing to note that this kind of “segregation” is endemic to the entire country, just under different forms. Instead, my example comes from the area around Prijedor, where Croat students in two schools with less than eighteen students of their particular constituent community in each grade have now received the right to education in what are called here “the national group of subjects.” (The law stipulates that each grade must have at

least eighteen students of a particular Constituent People before such subjects become part of the school's curriculum.) My educational experts think that, on balance, this is a good thing - as an interim measure. I hope they are right. It is, after all, on the face of it, precisely the tolerance of differences that I am calling for. But let us not forget that "two schools under one roof" were supposed to be an interim measure as well. They were supposed to be a means of encouraging refugees to return to their former homes and different communities to begin to mix in schools by at least being in the same building. But, as the poet Robert Burns once wrote, "the best laid plans o' mice an' men gang aft agley." These divided schools have now taken on an aura of permanence. They now serve mainly as a means to keep these communities apart.

The larger point I wish to make, however, is that, for the sake of consistency, if this is done for Croats in Prijedor, it probably ought to be done every else in the country where students of a particular Constituent People are in schools in small numbers, too. How, for instance, can the authorities in Jajce now continue to deny Bosniacs instruction in the national group of subjects as they are demanding? One wonders where this will end.

In that regard, I am reminded of a recent visit I made to a branch primary school just outside of Visegrad. It was serving a community of Bosniacs who had returned to their pre-war homes. I went there on a snowy, cold day. The school consisted, in its entirety, of thirteen students, in three grades, in one room and with one teacher. It was so cold in that school that, within half an hour, my feet had turned to blocks of ice. I admired the teacher and the students for their valor and resoluteness in seeking to teach and to learn under such conditions. The parents who waylaid me afterwards told me they liked having the school close at hand, no matter how small. I later learned that this was the largest of the seven or so branch schools for this community. Others had as few as two or three students in them.

It struck me, then, that this may well have been a means to a different end - the end of keeping students of different ethnicities apart. Maintaining seven such small branch schools otherwise made little sense to me, for even if you do not heat the building, as the local educational authorities had clearly opted not to do, it still must cost something to operate these facilities. (Then again maybe it does not, for this particular school had so little in it - no gymnasium, no laboratory, no computer that I could see - that I wondered what kind of "professionally competent capital" it might be producing.) I now also wonder whether an agreement to grant fewer than eighteen students the right to education in their national group of subjects will not actually accelerate the tendency to atomize education in this way. The last thing you need in this country is more and more, smaller and smaller, mono-ethnic schools teaching distinctly different histories, cultures, and geographies. If the schools in Visegrad follow the precedent in Prijedor, the Bosniac students in these seven branch schools will soon be learning substantially different things about Bosnia and Herzegovina and their place in it from their Serb neighbors just down the road in the central school in town. (...)

[W]hen I hear that certain well-regarded local authors are taught in, say, Mostar in one curriculum as foreign writers simply because they are not of the same ethnicity as those studying under that particular curriculum, I grow distressed. If Bosnia and Herzegovina is to succeed as a community - as a commonwealth of citizens, even if composed of different cultures, religious beliefs, and languages—then this will hardly do. After all, how will you grow up feeling that you are a citizen of the State of Bosnia and Herzegovina if you are taught that your capital is actually Zagreb or Belgrade, if you are taught that the only possible orientation for your community and your country is Islamic, or if you are taught that everyone who does not speak or worship exactly like you does not belong with you?"

***See also: Two schools under one roof are a disgrace, OSCE, 7 September 2006 (see source below)***

***Statement of the Head of Mission to the Permanent Council, OSCE, 15 September 2005 (see source below)***

***History textbooks-Towards multiperspectivity, OSCE, 26 September 2006***

### **Brcko example shows possible way forward (2007)**

- In the Brcko school district, children from all three constituent ethnicities share the same classroom
- The OSCE argues that despite Brcko's special circumstances (small municipality, strong international presence, high investment), the model can be copied in other municipalities
- Issues such as identity, language and security have been satisfactorily take into consideration in Brcko, which shows that these issues can be tackled
- The OSCE issued a number of recommendations to BiH, based on the Brcko example

#### **OSCE BiH, September 2007, p.29:**

"The experience of the district of Brcko [...] suggests that dividing schools along ethnic lines is not inevitable – that there are ways around it. It separate education systems were successfully integrated – thanks to a law imposed by the Supervision – at the start of the 2001-202 school year. In the District students of different ethnicities are as a result now in schools and classes together more than 80 percent of the time. Although the District is a special case, it does indicate that monoethnic schools may not be the only way to arrange things in this country."

#### **OSCE BiH, Education Department, October 2007:**

##### **Executive Summary, p.5:**

More than a decade after the end of war, most children in Bosnia and Herzegovina still attend predominantly mono-ethnic classes. In order to maintain the status quo, some in society even suggest that the 'integration' of schools – i.e., the presence of students of different nationalities in the same classroom with a common curriculum – is another term for 'assimilation'. The District of Brcko belies this argument. There students of different ethnicities go to school together, receive instruction in their own languages in the same classroom, and retain their individual cultural identities. This report examines whether the Brcko approach to education could serve as a model for other parts of Bosnia and Herzegovina. The evidence suggests that, with sufficient political will, it can.

[...]

##### **Conclusions, p.24ff:**

Some people argue that Brcko cannot serve as a model for education in the rest of Bosnia and Herzegovina because it integrated its schools and curricula under a unique set of conditions. They cite the municipality's small size, strong international supervision and large outside investment as the main contributors to the success. Even though there is some truth in these claims, the benefits bestowed on Brcko in comparison to other places in Bosnia and Herzegovina are sometimes exaggerated. The city of Mostar, after all, has been the object of much international attention and money as well – including significant contributions to the reconstruction and modernisation of its Old Gymnasium as an example of integrated schooling – and yet it is very far from being a model of successful multi-ethnicity.

[...]

People who oppose any change in the way education is now organised in Bosnia and Herzegovina tend to cite the different languages and culture and identities of the country's three constitutive peoples as reasons for maintaining the status quo. To them the choice is between assimilation and maintenance of identity. What has up till now been lacking is evidence that casts serious doubt the truth of this claim. Education in Brcko provides such evidence. It shows that students of different nationalities can commingle in schools without losing their own national identities.

*Safety and Security:*

Elsewhere in Bosnia and Herzegovina, for instance, parents have proved reluctant to send their children to schools in which their particular nationality is in the minority. They often say that they fear the consequences for their children's personal safety. The lack of antagonisms among children in Brcko's schools, however, shows that children can get along and have normal relations despite differences in nationality when allowed and encouraged to do so.

#### *Identity and Language:*

Sometimes the question is not so much of the identity of the individual child but of the community as whole. The issue of language in particular has become politically divisive in Bosnia and Herzegovina. Many argue that each child must have the right to education exclusively in his or her mother tongue. They say this even though, according to public opinion polling conducted in late 2006, 90 percent of the respondents believe either that in Bosnia and Herzegovina there are three languages with only minor differences or 'who cares as long as we all understand each other'. Furthermore, 77 percent of all respondents – 72 percent of Bosniacs, 57 percent of Croats and 90 per cent of Serbs – agreed that both the Latin and Cyrillic alphabets should be learned. Experience in Brcko has shown that three different languages can be accommodated in one system and that no one has to give up their particular variant for the sake of integration. Multiethnic teaching staffs can provide a balanced and quality education for all students and teach all three languages to students.

#### *Promoting Multiethnicity:*

The so-called National Group of Subjects was established as an interim measure to accommodate the specific needs of each constitutive people. They have often been used to gain as much autonomy within an educational system as possible. Brcko's use of national subjects, by contrast, allows children to study these together as well as in separate groups. It uses a curriculum in which at most a quarter to a third of the subject matter in national subjects in primary schools differs, while secondary school students may attend class together as much as 90 per cent of the time.

#### *Nine-year Education*

The Common Core Curriculum adopted across the country in 2003 was supposed to ensure the ability of students to move from one part of Bosnia and Herzegovina to another with some assurance that schools would be teaching the same thing. With the adoption in the same year of the Framework Law on Primary and Secondary Education, most parts of the country began to prepare for introduction of an additional year of primary school in accordance with this law. Some Croat politicians and activists, however, objected to this ninth year, even though several advisory projects funded by the European Union had recommended it. Their stated objection was that Croatia has only eight years of primary education and that Bosnian Croats who might want to study there later needed to have the same educational background. But Croat parents in Brcko are seemingly satisfied with the nine-year primary education in the District. Moreover, a number of students from Croatia itself cross the border each day in order to attend secondary schools in Brcko.

#### *Textbooks and Teaching Materials*

Textbooks seem to be the most difficult things to bring together in education in Bosnia and Herzegovina. Brcko has made more progress in this regard than the rest of the country. In Bosnia and Herzegovina textbook publishers tend to serve only one of the country's three constitutive peoples. Even in Brcko, sensitivities about the languages in which textbooks are written have remained. As a result, the District offers a separate set of textbooks, produced in Mostar, to Croats even as in most primary schools Bosniacs and Serbs are using nine core texts for six subjects 'lectured' into both the Bosnian and Serbian languages. This is hardly ideal, but it does represent considerable progress.

## **RECOMMENDATIONS**

The OSCE Mission to Bosnia and Herzegovina offers the following recommendations, which are designed to solidify the changes made in education in Brcko and to allow the rest of the country to benefit from its experiences:

- The District should have a voice in the formulation of educational policy for the country as a whole; it should not be excluded because of its special status.
- Brcko's educators should make a greater effort to share their experiences with their counterparts elsewhere in the country; regular study visits by selected educators and pedagogues to the District would facilitate the exchange of such best practices.
- Teachers should similarly participate in exchanges with schools outside the District to share their experiences.
- Brcko District authorities should do the same with entity and cantonal ministries of education, as well as with the education department of the Ministry of Civil Affairs, so that the future Education Agency might have the benefit of their experience as it starts its work.
- Brcko's efforts to select textbooks and translate them into three languages should provide a model and resource for schools in the rest of Bosnia and Herzegovina.
- Brcko District's efforts to rationalise its network of schools also deserve support and emulation country-wide.

#### **Efforts to facilitate the integration of Roma children at schools (2005)**

- Main reasons for low attendance and achievement levels of Roma children at school: discrimination, poverty, and language barriers, as well as the lack of focused support programmes
- Discrimination and poverty are the main reasons for low attendance of Roma children at school
- A national plan on the needs of Roma and other minorities has been adopted
- Majority of children not attending schools are Roma and displaced children
- Provision of accelerated learning programmes, schoolbooks, supplies and meals have helped increase attendance of Roma children at school
- Several positive examples of integration show the impact of the increased awareness on the issue

#### **CoE, 20 February 2008:**

"86. The education level of Roma in BiH is generally low, especially among the younger Roma, and the illiteracy rate is very high. Two in five Roma have never been to school. The Roma women and girls are often even more disadvantaged. Very few girls finish primary education. Early marriage of Roma girls is still common. Generally, Roma children in BiH perform poorly in school; language barriers, lack of school readiness programmes and support programmes for Roma children within the education system are the main contributors to low educational achievement. UNICEF research on Roma education in BiH indicates that Roma children achieve similar results to non-Roma children given the same level of preparation. The school readiness of Roma and non-Roma children therefore represents a systemic gap, which is not being addressed in BiH.



87. The new draft law on Preschool Education stipulates obligatory preschool education for all children. Once adopted, its full implementation is expected to take time, considering that the current rate of preschool involvement is 6% (the lowest in Europe). There is also the risk that Roma children will be excluded from the initial phases of implementation. To prevent this from happening, awareness raising and programme development needs to be undertaken by those working with and for Roma. Roma children generally have high drop out rates, and this needs to be addressed via school programmes and work at the community level. Primary school enrolment rates in BiH are high on average, at 94 per cent, but are only 33 per cent for Roma children.

88. The Commissioner recommends that authorities take comprehensive measures to increase the attendance of Roma children in school and to prevent early drop out. Ensuring the inclusion of Roma children in preschool education should be one of the early priorities. Particular attention should be paid to the inclusion of Roma girls in education at all levels.”

**UN CHR, 29 December 2005, par.48:**

“Despite these efforts, marginalized groups of children, including IDPs and returnees as well as children with disabilities, face difficulties in accessing schooling. Of the 4-6 per cent of children not attending school at all, the majority are Roma and displaced children.”

**UNCESCR, 24 January 2006, par.28 and 51:**

“The Committee expresses its grave concern about the fact that 80 per cent of Romani children do not attend school. (...) The Committee urges the State party to promote equal access by Romani children to primary, secondary and tertiary education, e.g. through the grant of scholarships and the reimbursement of expenses for schoolbooks and of travel expenses to attend school, and to closely monitor school attendance by Romani children.”

**OSCE, “FAQs”, 2004:**

“Currently, the presence of Roma in schools is sporadic at best. Very few Romani children attend the later grades of primary and secondary schools. Extremely poor living conditions, lack of proper clothing and the inability to purchase required schoolbooks are the most common reasons for the exclusion of Roma from schools, despite a willingness of many parents to enroll their children.

As part of the Education Reform Strategy, a special Task Force has developed an Action Plan on the Educational Needs of Roma and Other National Minorities in Bosnia and Herzegovina and OSCE will work to oversee its implementation. (...)

In February 2004, Education Ministers adopted an Action Plan on the Educational Needs of Roma and Other National Minorities in Bosnia and Herzegovina which proposes concrete measures to address the social and economic barriers BiH’s largest minority, the Roma, often face by calling on authorities to provide financial assistance for textbooks and transport as well as to raise awareness among Roma parents and communities about the importance of schooling. The Action Plan also proposes steps to ensure that the language and culture of all national minorities is respected within BiH schools and that Ministries incorporate aspects of the culture, history and literature of national minorities into the existing curricula.” (OSCE, “access to quality education”, 2004) “OSCE field staff, in close collaboration with school directors, municipal authorities and NGOs are working at the local level to provide solutions. In Modrica municipality, for example, 50 Romani children attended summer school classes out of which 39 children enrolled for the 2003/2004 school year. In Gradiška municipality, the mayor has supported families of Romani children with enrolment fees for Romani students in secondary school. Catch-up classes are being planned in two of the municipalities’ main schools.

Another successful example from which education authorities can learn can be found at the Džemaludin Caušević Primary School from the municipality of Novi Grad in Sarajevo Canton.

The director of that school obtained permission to allow Romani children to retroactively take exams required to continue their education. After taking extra classes during the summer, 13 Romani children passed their exams and were able to continue their education, putting the total number of Romani students attending regular teaching at 65. Additionally, the school addressed the needs of those students - Roma and non-Roma -who could not afford lunch by providing a hot lunch through donor assistance."

The Council of Minorities, responsible for overseeing the implementation of the Action Plan, has not been appointed as of February 2005. However, OSCE indicates that the Action Plan has done a lot to raise awareness and create a positive atmosphere within the various authorities dealing with the issue (OSCE, email, 16 February 2005)

***As of October 2006, the Council of Minorities had still not been adopted (email from OSCE BiH , 13 October 2006)***

**MRG, 12/07/06:**

"Some of the Ministries of Education have recently adopted regulations/by-laws on national minority children's education. Regarding the Roma, by-laws deal with regular and systematic data collection on enrolment and school completion rates; accelerated learning programmes; provision of school books, supplies and transport; additional teachers' help for learning; provision of scholarships, etc. Regulations again emphasize the importance of pupils' education in their native languages. (...)

Roma children's attendance at schools is sporadic at best. They are generally absent from the upper years of primary and secondary school. The implementation of the MoE's policies resulted in the provision of free school books, supplies, and meals for Roma children, (with transport also provided in some instances). Further, 60 young Roma have scholarships which are provided by Open Society Fund BiH through the Foundation 'Education Builds BiH'. Of these, fewer than 10 are university students (and none are studying pedagogy, which is essential if the number of Roma teachers is to grow). In terms of increasing the enrolment rate among Roma and the provision of support for accelerated learning some improvements have been made in regions which were included in the comprehensive project 'Promoting Roma children's access to education'. These measures have slightly increased the number of Roma children in schools, but the drop-out rate remains high. This is due to the poverty and marginalization of the Roma community, and Roma parents' lack of awareness of the importance of education for their children. No attempt has been made to enable the teaching of the Roma language. In research for this study, all 173 Roma respondents said that there are no such optional subjects in schools, or Roma teachers. They said that they mainly learn about Roma culture and history from their families (81.5 per cent) or communities (64.1 per cent); 87.7 per cent cited school as the place where they learned least about these issues. This is the case even in Tuzla canton, where measures were adopted in 2005 to introduce lessons about Roma culture, literature, language, and history within primary school curricula. Despite this, none of schools in Tuzla canton, which has one of the largest concentration of Roma, apply these measures. Roma holidays are celebrated in some primary schools in Sarajevo and Tuzla, but not in Banja Luka. Over 61 per cent of Roma children aged 10–16 years, feel that the celebration of Roma holidays is important for their sense of identity, among other reasons.

The views of Roma over the age of 16 are more complex. Most of them strongly support these ideas: 'Roma have to know more about their people and customs'. Their statements indicate a wide range of feelings, from a greater stress on the need to develop their identity to experiencing exclusion from society: 'We accept the culture of others, but they do not want to hear about us at all.'

See also:

*National action plan on the education needs of Roma and members of other national minorities in Bosnia and Herzegovina, February 2004*

*The non-constituents: rights deprivation of Roma in post-genocide Bosnia and Herzegovina, BiH Country report, European Roma Centre, February 2004, pp.178-201*

*Report on Bosnia and Herzegovina, European Commission against Racism and Intolerance, 15 February 2005, par.58-71,*

See also on Roma:

*Documentation Section, Envelope "Roma excluded from fundamental political and social rights because of lack of personal documents"*

*Subsistence Needs Section, Envelope "Displacement aggravates the living conditions of Romas"*

*Patterns of Displacement Section, Envelope "Displaced Roma, a particularly vulnerable group"*

*Property Rights Section, Envelope "Roma continue to struggle to access property rights"*

*Property Rights Section, Envelope "Some measures taken to legalise Roma settlements"*

## **Obstacles to education**

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# ISSUES OF SELF-RELIANCE AND PUBLIC PARTICIPATION

## Self-reliance

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### **Reform of pension and social assistance schemes is crucial to ensure social inclusion of vulnerable groups (2007)**

- BiH urgently needs to harmonise and reform the national pension and social protection systems.

#### **UNDP, 2007, pp.12, 13:**

The social protection system is highly fragmented; neither eligibility nor actual benefit entitlements are consistent across the country. While policy is determined at the entity level, implementation is delegated to the cantons and municipalities without any parallel transfer of the necessary resources. As a result, lower administrative levels are often unable to fulfil their obligations to their clientele. The legal structure of the system, which determines benefit entitlements, does not include minimum standards, and there is no link between regulations and legislation to the poverty line articulated in the country's Poverty Reduction Strategy Paper. Service delivery (i.e. benefit distribution) on the ground is the responsibility of the Centres for Social Welfare (CSW).

[...]

Benefit entitlements are generally determined by status rather than need (*for example, war veterans receive a disproportional amount*), and there is no universal system in place to identify the socially needy in a systematic fashion. [...] The result is a system that lacks transparency and benefit allocations, which vary widely [and which] is an additional source of exclusion.

[Regarding the Pension System reform,], the Government of RS established a Working Group for Pension System Reform in February 2007. The FBiH Government established a Working Group for Pension System Reform in May 2007. In addition to these groups, which are composed of policy experts, politicians, financial intermediaries and supervisors, other stakeholders should be involved in the process. Based on international best practice, it is very important to have the general public well informed on all aspects and consequences of the reform process from the very beginning.

*For more information on the social protection and pension systems, see under [“Subsistence Needs, General” \(INTERNAL LINK\)](#)*

### **Many displaced persons among the poorest and socially excluded (2007)**

- Social and economic exclusion of (among others) IDPs seems to be deepening, while the number of very poor people is on the decrease
- The social policies of the Entities tends to target those who have a good chance of moving above the poverty line, leaving the desperate cases behind
- Both returnees and non-returnees see job-creation as the most pressing problem
- The risk of falling into poverty is particularly high in the Republika Srpska and appears to be lower in the Federation

- The position of displaced persons in the social welfare system and other social support systems has not been adequately resolved
- Displaced persons constitute approximately 45% of the extremely poor in the FbiH and 21% in the RS
- The most vulnerable are displaced persons living in collective centres, 40% of whom fall into the category of the poorest and 39% who are just over the poverty line
- Single mothers in displaced persons' or returnee households do not have adequate access to the basic forms of social welfare
- With radical cutbacks in humanitarian and international assistance, the system at the entity and cantonal level has been unable to take the role of financing the needs of the displaced
- Displaced persons and other vulnerable groups are often forced to pay for basic services

**UNDP, NHDR 2007, p.23:**

Despite increasing growth rates, the percentage of the population living below the poverty line is still high. Even worse, some groups are excluded from participation in society in various ways and experience marginalization at various levels (education, employment, health, social participation). Particularly affected groups include minority returnees, the Roma, the disabled, elderly and young. The excluded groups are not just at the highest risk of income poverty but find it far more difficult to access the labour market, quality education, healthcare and political participation. The risk of these groups being excluded in at least one dimension is higher if several components of social exclusion interact and influence each other, thus creating a spiral of multiple deprivation (i.e. gender, location, disability). People are excluded by institutions and behaviour that reflect, enforce and reproduce prevailing social attitudes and values, particularly those from the powerful groups in society. The current situation clearly demonstrates the need for social inclusion to form the policy framework for BiH in the future.

[...]

**p.41:**

According to the consumption-based poverty measurement in 2004, 37% of displaced persons, or every third displaced person, was poor. Between 2001 and 2004 the poverty of displaced persons deteriorated according to the three main measures - headcount, depth and severity - while the share of displaced persons in the overall poor population dropped by 50%, from 29% in 2001 to 16% in 2004.

In theory, this type of situation arises from the so-called 'pseudo social policies' which target the least severe cases in a certain category of the poor. For example, the social welfare system helps persons who are closest to the poverty line so that they can easily rise above the line, while the situation among the poorest remains unchanged as they are the most expensive category to be addressed under this kind of system. Considering the high poverty rate, material poverty seems to be the main characteristic of the exclusion of displaced persons, although material poverty is a consequence not the cause of social exclusion in this category, due to the fact that they have moved to a new environment and have lost their pre-war family and friend connections which are important in terms of entering the BiH labour market.

**UNDP, 7 July 2007, Conclusions, p.10:**

**2.3 Common Focus on Employment and the Young**

Although major differences exist between returnees and non-returnees, they share a common view that there is an acute need for creating employment opportunities. This concern was raised by groups across the country; young and old, men and women, returnees and non-returnees. Having a job is not simply a desirable end in itself, but is also a necessary precondition for the realisation of core aspirations in other areas of life. In addition, employment is central to the success of the return process. Sustainable return and integration appeared virtually synonymous with paid work. Infrastructural improvements and public services

matter less. The research thus provides support for a redirection of policy-making from the area of return to measures, which secure livelihoods irrespective of displacement status.

There is support in all age groups for investment in young people. There is a popular perception that the future of BiH lies in the young. Despite the relative disengagement amongst younger discussants, many are aware of their potential but feel constrained. They believe that older generations, the media and other societal structures stand as obstacles in their development and involvement in society. In a way, they have difficulty in recognising themselves in BiH society and feel unable to make a greater contribution to the country until their core concerns have been addressed. At the same time, as a critical finding of this research, they look to institutional initiatives to provide solutions to their problems.

**Poverty Reduction Strategy Paper Team 30 May 2003, Sect. 2B:**

“Below the poverty line are most frequently children, persons with low education levels, the elderly and the disabled as well as the rural population. An analysis of data for the population as a whole indicates that children, especially those under 5 years of age, displaced persons and returnees, the unemployed, and persons with low education levels, are particularly exposed to the risk of poverty.

[...]

Poverty of families with children is at its most pronounced where none of the family members are employed, and the situation is particularly difficult for displaced households, where the head of household is unemployed.

[...]

In all parts of the country, these categories, who are frequently without any stable source of income and not being covered by the existing social welfare systems, are considerably more vulnerable to poverty than the population that was not forced to move.

An additional problem of displaced persons results from the fact that they emerged as a vulnerable group during the war, and their position in the social welfare system and other social support systems has not been adequately resolved. They have been to a great extent dependent on humanitarian aid and the support of international organizations. Housing conditions are mainly poor, regardless of whether they are in collective centers or other people's apartments allocated for temporary occupancy.[...]

In the circumstances of radical cut-backs and the imminent cessation of these types of assistance, the displaced are in an especially difficult position, as there is no organized system at the entity and cantonal level that could take over the role of financing the needs of the displaced. The displaced therefore represent a charge on the municipalities which, in most cases, are unable to provide them with even the minimal conditions for survival.

[...]

Single mothers in displaced persons or returnee households face particularly serious problems since, in addition to all the other aspects of discrimination, they do not have access to even the basic forms of social welfare provided to other population groups.

[...]

The Living Standards Measurement Survey did not include the most vulnerable group of the displaced, those who are still residing in collective centers. According to official data, there are still around 1000 displaced persons in collective accommodation in FBiH and some 2000 in the RS. In the continued elaboration of the Poverty Reduction Strategy this population group will also be covered by the research so that their specific problems can be taken into account.

[...]

The most precise research on poverty in BiH to date has demonstrated, contrary to what was expected, that the poverty level is lower than anticipated, and that no one in BiH is below the lower limit of extreme poverty, i. e. unable to satisfy at least the minimum food needs. 19.5% of

the BiH population is below the general poverty line. However, around 30% of the population are concentrated immediately above the poverty line and are vulnerable to falling below it.

More population is exposed to poverty in the RS (25%) than in the FBiH (16%). Inequality is also pronounced within each entity and there are major differences among areas populated by different majority peoples: Croat majority areas enjoy the highest standard of living, Bosniac majority areas are in between (with the exception of Goražde), while the living standard is the lowest in the RS. In Croat majority areas, 6.9% of households are in the group of the poor in terms of realized income, in the Bosniac majority areas this percentage varies between 22 and 25%, and in the Serb majority areas the percentage of such households is 40 -43%. In the RS, the living standard of the population is lower in the eastern parts than in the north-western parts around Banjaluka.

[...]

Violations of human rights, particularly in the case of minority returns, are one of the important causes of poverty. Returnees are frequently denied the right to personal safety, right to peaceful enjoyment of private property, right to work, right to education and access to health and social care services, as well as the right to equality before the courts of law. These citizens are frequently victims of discrimination, and their opportunities to influence the course of events in public life are almost nonexistent. As a result, returnees are one of the poorest and most vulnerable categories, especially in the RS.

[...]

The existing social welfare systems are completely inadequate to meet the greatly increased needs. The extremely limited means which the governments of the Entities can set aside for this purpose apart, the problem is compounded by the decentralization of responsibilities in the area of social policy. This in the end results in a large number of beneficiaries entitled to social assistance who do not enjoy these benefits.”

**Poverty Reduction Strategy Paper Team 30 May 2003, Sect. 5D:**

“Corruption, too, hits the poor especially hard, whether it is related to visiting a doctor, acquiring rights to some form of social assistance, obtaining documents, education, return of property or employment, because they often have no other way to ensure the necessary services. Displaced persons, the elderly, the rural population, children and young people are often forced to pay for such services because they are not properly accepted or recognized by their communities, and lack the channels of communication that could enable them to demand their rights.”

***See also, At risk: Roma and the displaced in Southeast Europe, UNDP, 26 June 2006, p.17-29 (see in sources below)***

**Return Study relativises the negative picture to some extent (2006)**

- A sense of discrimination and unequal opportunities of minorities is often higher in theory, but not always backed by personal experience

**NADEL, ETH Zurich, August 2006:**

- More than 70% of the respondents think that the rights and opportunities of people to shape their lives are not equally distributed.
- Minorities have a significantly more positive view in that respect than non-minorities.

Around 80% of the respondents hold the opinion that members of minority groups can pursue cultural and religious beliefs without facing any problems.

- Discriminations against minorities supposedly exist in:
  - job seeking (54% of minority respondents hold that opinion, 32% of non-minority respondents);
  - public services (26% of minority respondents hold that opinion, 13% of non-minority respondents);
  - less friendly treatment in daily life, different treatment of minority children in school.
- Ratios of personal experience of discrimination among minority respondents are significantly smaller: 8% in the RS, 3% in the Federation.

### **Growing poverty, social exclusion, overstretched social welfare system and widespread violation of social rights (2008)**

- The war destroyed vast parts of Bosnia's physical and social infrastructure, leaving over 50 per cent of the population socially excluded, leading to widespread lack of social participation
- The current social and welfare system is not capable to reach vulnerable individuals
- Therefore, there are widespread violations of social rights, including discrimination at work, overdue salaries and back pensions
- Vulnerable groups such as minority returnees and Roma, suffer particularly from the inadequacies.
- Returnees and displaced persons are often forced to move to cantons that will grant them greater social protection or employment prospects
- The legal framework necessary to ensure returnees' unbiased access to socio-economic facilities and opportunities is largely in place, yet enforcement remains limited
- To increase returnees' awareness of their rights, the OHR has developed public information campaigns on access to employment opportunities, education, health, and utilities
- Social policy is the responsibility of Entities and Cantons, while social assistance in the Republika Srpska is provided by the municipalities

#### **CoE, 20 February 2008, para.40-45:**

40. Poverty, social exclusion and inequality are a growing concern in Bosnia and Herzegovina. This is somewhat paradoxical, since the economy in BiH is doing well and continues to grow. According to a recent report by UNDP over 50 % of the population in BiH is socially excluded, while approximately 22 % of the population is extremely socially excluded from even the most basic processes and needs.

41. Groups such as minority returnees, Roma, the elderly, people with disabilities and many youth and children have not only the highest risk of income poverty and unemployment, but have also far less access to public services and participation in political and public life. Almost half of the population lives below or close to the poverty line. To address these serious concerns, the BiH Council of Ministers adopted in 2004 a Medium Term Development Strategy, revised in 2006, which outlines key policy measures needed to combat social exclusion and fight poverty in BiH.



42. To a large extent, the situation is still a consequence of the conflict in 1992-1995, which caused enormous human loss, displacement and material destruction. [...] The conflict also destroyed much of the social safety nets that would normally provide some form of protection to the vulnerable persons in a society. However, the current system of social protection cannot provide even minimum protection to persons in need of support and assistance and does not guarantee equal rights to all citizens. One of the problems with the current approach is that attention is not paid to the needs of the individuals. Although the proportion of national income spent on social assistance in BiH is in line with the European average, its distribution is not. There are some groups in the society – mainly war veterans – who receive much higher levels of social assistance than others. As a consequence of the unequal distribution, almost 100,000 persons who need assistance are not covered by any social protection and are left destitute. [...]

45. Families with children are most at risk of poverty, especially single-parent families. Lack of access to education, training and employment opportunities are serious concerns for children and youth. According to a recent survey, over 60% of young people would like to leave Bosnia and Herzegovina if they could. Apathy and lack of participation in society are common.

**IFRC 1 January 2004:**

“As a result of slow economic recovery and detrimental effects of the transition process, the quality of life of many marginalised groups has deteriorated. The already high unemployment rate of more than 40 per cent is expected to rise in the forthcoming privatisation of giant stateowned enterprises. Impoverishment is widespread with 25 per cent of the population in Republika Srpska entity and 16 per cent in the Federation entity living below the poverty line. The situation is compounded by widespread corruption, low and irregular salaries and pensions that represent a huge burden for the fragile BiH economy. In addition, the complicated and overstaffed government structure at all levels consumes over 60 per cent of GDP. To change this, a radical reduction in government spending and shift to development and social sector spending is needed. In its Human Development Report 2002, the UNDP states that ‘on the basis of per capita GDP (USD1,206), the country is 65 per cent poorer than it was before the war and it is close to the bottom of all the regional rankings’.

Funds for humanitarian aid are decreasing dramatically and local authorities are unable to take over the responsibility for people in need.”

**Council of Europe 1 October 2003, para. 57:**

“Representatives of the civil society in both Entities – NGOs and Ombudsmen - unanimously expressed their major concern with the social climate in BiH. They referred to widespread violations of social rights –including cases of discrimination at work- and to the increased protests by employees and retirees to request overdue salaries and back pensions. The situation of unemployed, elderly and ill persons, refugees and IDPs, as well as the health protection system was particularly critical.”

**See also:**

*For more on economic and social rights, see paras. 15 - 19 in “[Question of the Violation of Human Rights and Fundamental Freedoms in any Part of the World](#)” Situation of human rights in parts of South-Eastern Europe, Report submitted by José Cutileiro, Special Representative of the Commission on Human Rights.*

**Lack of harmonised legislation at state level on social entitlements limits freedom of movement (2006)**

- Constitutional framework for Bosnia confer limited responsibility and authority to state level

- The consequence is that entitlements to social and economic rights vary depending on the entity or canton people live in
- Discrepancy in entitlements limits freedom of movement when return results in loss or decrease of social benefits
- Pensions for military victims of war are far more generous than pensions for civilian victims of war
- Victims of sexual violence are not adequately protected or compensated under the current scheme for civilian war victims
- A law currently under examination proposes transfer of the budget for the social protection of civilian war from the Canton to the state level to eliminate inequalities resulting from the diverging availability of funds in the cantons
- The different eligibility criteria for recognition of the status of civilian victim of war may be an obstacle to return for those holding such status in the entity of displacement.
- Municipalities should allocate an adequate budget for return.

**UN CESCR, 24 January 2006, par.8, 12, 18-19, 40-41:**

“The Committee notes that the constitutional framework for Bosnia and Herzegovina imposed by the Dayton Peace Agreement, which divides the State party into two Entities (the decentralized Federation of Bosnia and Herzegovina consisting of 10 cantons and the centralized Republika Srpska) as well as one district (the District of Brcko), confers limited responsibility and authority to the Government at the State level, in particular in the field of economic, social and cultural rights, and creates a complex administrative structure, which often results in the lack of harmonization and implementation of laws and policies relating to the equal enjoyment of economic, social and cultural rights by the populations of the two Entities, the cantons of the Federation and the municipalities of the same or different entities. (...)”

The Committee expresses its deep concern that returnees, in particular those belonging to ethnic minorities, are often denied access to social protection, health care, school education for their children and other economic, social and cultural rights, thereby impeding their sustainable return to their communities. (...)”

The Committee notes with deep concern the extent of the discrepancy between the significant budget allocations for financing the pensions of military victims of war and the comparatively low resources allocated to social protection, as reflected by the fact that, under the Law on Amendments to the Law on Social Protection, Civilian War Victims, and Families with Children of the Federation of Bosnia and Herzegovina, civilian war victims will receive only 20 per cent of the pension benefits received by military victims of war.

The Committee is gravely concerned about the absence of a coherent strategy to support victims of sexual violence suffered during the armed conflict of 1992-1995 and that Entity laws pertaining to civilian war victims are gender-insensitive and provide inadequate social protection for victims of sexual violence. (...)”

The Committee encourages the State party to promote the adoption of the proposed Law on Amendments to the Law on Social Protection, Civilian War Victims, and Families with Children, which is currently in the parliamentary procedure in the Federation of Bosnia and Herzegovina. It provides for the transfer of the budget for the social protection of civilian war victims and persons with disabilities not related to armed conflict from the cantons to the Federation, in order to eliminate inequalities resulting from the diverging availability of funds in the cantons. It also requests the State party to ensure that the authorities of the Federation of Bosnia and Herzegovina extend this budgetary transfer to other categories of social protection beneficiaries. The Committee recommends that the State party ensure that victims of sexual violence suffered during the armed conflict of 1992-1995 obtain the status of civilian war victims,

to devise and implement a coherent strategy at State level to protect the economic, social and cultural rights of victims of sexual violence and their family members, and to ensure the participation of victims of sexual violence in any decision-making processes affecting them.”

**UN CHR, 29 December 2005, par.50 and 60:**

“As the protection of civilian victims of war is regulated by entity laws which, as described above, differ from one another, the different eligibility criteria for recognition of the status of civilian victim of war may be an obstacle to return for those holding such status in the entity of displacement. (...)

The unwillingness of local authorities to sufficiently respect, protect and fulfil the human rights of returnees, in particular their economic and social rights, continues to pose a major obstacle to sustainable return. These obstacles often originate in widespread and persistent discrimination along ethnic lines which still penetrates all spheres of public and private life in many regions of the country. Despite recent efforts, non-harmonized laws and regulations at different levels remain and have also hampered return and integration. The Representative recommends that existing legislation be reviewed at all levels in the light of human rights provisions relevant to IDPs and returnees, with support from the international community. A comprehensive policy of non-discrimination, possibly designed with the assistance of the international community, should be adopted to address discrimination in all spheres, particularly education, health, social protection, employment, access to justice, public participation and the media. It should include legislative measures

as well as effective mechanisms for redress and compensation, a system monitoring the situation of vulnerable groups, codes of conduct and public campaigns. The participation of all sectors of society, including the private sector, would be essential for the successful implementation of the policy. Legislation should be harmonized and simplified, especially in the areas of pensions and employment, access to health, education, the use of symbols in public institutions and the recognition of the status of civilian victim of war. (...)

Further, the Representative recommends that the authorities make the necessary budget allocations for the implementation of laws affecting the situation of returnees and displaced persons, especially in the areas of social welfare and health. Municipalities should likewise allocate an adequate budget for return. The Representative invites the authorities to consider accepting the competence of the Committee on the Elimination of Racial Discrimination to examine individual communications, by making the declaration under article 14 of the International Convention on the Elimination of All Forms of Racial Discrimination.”

**Inter-entity return still hampered by divided pension system (2006)**

- Under the current agreement between the two pension funds of the country a returnee pensioner will keep receiving his pension from the fund where he was displaced
- Since pensions are not harmonised throughout the country pensioners from Republika Srpska returning to the Federation are disadvantaged because they will receive a meagre RS pension to live in an area with a higher cost of living
- Most returnee pensioners keep their health insurance in their area of displacement for fear of discrimination
- The merging of the Mostar and Sarajevo-based funds in January 2002 has made return between Croat and Bosniac-dominated areas easier

**IDMC/ICHR/MRG/Benjamin. 3 July 2006:**

*“Freedom of movement hampered by lack of harmonisation of rights and education curriculum at state level*

As a result of their weakness, state level institutions are unable to guarantee equal social and economic rights throughout the country. The lack of harmonised entitlements to social and economic rights and limited cooperation between entities affects freedom of movement since displaced persons might be reluctant to return to an entity where they will receive a lower pension or limited access to health care. Under the current agreement between the two pension funds of the country (one in

Republika Srpska and one in the Federation), a displaced person returning to his entity of origin will keep receiving the amount given by the pension fund in his place of displacement. Since pension entitlements are higher in the Federation than in Republika Srpska (RS), this has a significant impact on the decision of IDPs to return from the RS to the Federation. IDPs, being usually poorer than the rest of the population, are particularly affected by the relative loss of income that the low RS pension would represent in the Federation where the cost of living is clearly higher.”

**UN CHR, 29 December 2005, par.51:**

“Similarly, the different pension calculation schemes and pension amounts in each entity also adversely affect returns. Following the Agreement on Mutual Rights and Obligations in the Implementation of Pension and Disability Insurance between the entity funds, it became possible for a beneficiary receiving a pension from the fund in his or her place of displacement to continue receiving this pension after return. However, individual return decisions and sustainability are influenced by the difference in pension amounts between entities in conjunction with differences in the cost of living.”

**UN CERD, 11 April 2006, par.21:**

“The Committee notes that although pension benefits are significantly higher in the Federation than in the Republika Srpska, pensioners who previously received their pensions in the Federation, but who were internally displaced to the Republika Srpska, continue to receive pensions from the Republika Srpska Pension Fund upon their return to the Federation. Furthermore, most internally displaced persons returning to their pre-armed conflict Entity of residence keep their health insurance status in the Entity where they resided while displaced because of complicated registration procedures and fear of discrimination in the places of their pre-armed conflict residence, despite the significant financial burdens imposed on them by virtue of having to commute between Entities to receive treatment or, alternatively, to bear the full costs of health services in the Entity to which they have returned (Art. 5 (e) (iv))”

**Ombudsmen Institution of the Federation of Bosnia and Herzegovina, March 2003:**

“The different amount of pensions in the entities, with a different level of living costs, results in that displaced persons who are entitled to a pension in the RS, which as a rule is lower than the one they would be entitled to in FBiH, after exercising the right to return, cannot cover even basic livelihood needs. Attempts made by the entity governments to overcome these problems by way of protocols have not given result in practice. [...]The Ombudsmen of FBiH on several occasions pointed out the unfoundedness of the above agreement and violation of rights of numerous citizens, which the implementation of the agreement in practice leads to. Responsible bodies and responsible individuals in these bodies and institutions turned a deaf ear to all that, defending their position by referring to the unfounded document.

Finally, the Human Rights Chamber, deciding on complaints lodged by a number of citizens, took a stand identical to the stands and assessments of the Ombudsmen of FBiH and assessed that the above agreement was legally unfounded and that its implementation violated the rights of citizens.”

**Human Rights Chamber for Bosnia and Herzegovina, Annual report 2002:**

“Pensions:

During the year the Chamber has considered a group of cases (Klickovic and others v. Bosnia and Herzegovina, the Federation of Bosnia and Herzegovina and the Republika Srpska) concerning the pension rights of displaced persons. The applicants are retired persons who lived in Sarajevo before the war. They were displaced during the war and lived in the territory of the Republika Srpska. They have since returned to live in Sarajevo. Under the arrangements in force their pensions are paid by the Republika Srpska pension fund. They complain that the pensions they receive are less than those paid to other Federation residents who were not displaced. The cases raise issues under Article 1 of Protocol No. 1 to the Convention and in relation to discrimination in the enjoyment of the right to social security under Article 9 of the International Covenant on Economic, Social and Cultural Rights. The Chamber's decision in these cases was adopted and delivered in January 2003.”

**Human Rights Chamber, January 2003, par.9-13:**

“Following changes brought about by the armed conflict, pensions in Bosnia and Herzegovina came to be administered by three separate funds: the Social Fund of Pension and Disability Insurance of Bosnia and Herzegovina (hereinafter the .Sarajevo Fund.), the Bureau of Pension and Disability Insurance Mostar (hereinafter the .Mostar Fund.), and the Public Fund of Pension and Disability Insurance of Republika Srpska (hereinafter the .RS Fund.). The Sarajevo Fund and Mostar Fund subsequently merged, following a November 2000 decision by the High Representative,<sup>2</sup> into the Federation PDI Institute (hereinafter the .Federation Fund.), which has been operational since 1 January 2002. Presently there is one pension fund in the Federation and one in the Republika Srpska, and all legislation directly concerning pension systems is made at the Entity level.

The basic calculation schemes for determining rights to pension and disability insurance are different in each entity. One result of this has been significantly lower pensions in the Republika Srpska. In March 2002, the average pension in the Federation was 190 KM, and the average pension in the Republika Srpska was 120 KM. The minimum pension payment prescribed by law in the Federation of Bosnia and Herzegovina is 140 KM, while the minimum pension in the Republika Srpska is 80 KM.

The system of pension insurance in Bosnia and Herzegovina, as inherited from the former SFRY, has been based on the .pay/go. principle that salary contributions from current workers support the current pensioners. Thus, money that comes into the system as contributions is immediately paid out as pensions, rather than becoming interest-generating capital from which the interest is paid out as pensions. When the current workers retire, salary contributions from the future generation of workers will finance the current workers' pensions. Therefore, the pension system as a whole has had the character of a general social insurance system. This is also the case with the current Federation and RS Funds.

On 27 March 2000, the Mostar Fund, Sarajevo Fund, and RS Fund entered into the Agreement on Mutual Rights and Obligations in Execution of Pension and Disability Insurance (hereinafter the .Pension Agreement.) (OG RS, no. 15/00, 5 June 2000; OG FBiH, no 24/00, 30 June 2000), under which they agreed that the Fund that had made payments to pensioners before the Agreement came into force would continue to pay those pensions regardless of the pensioners' place of temporary or permanent residence. The Pension Agreement entered into force on 18 May 2000. The enabling legislation for the Pension Agreement is listed in the preamble as Article 205, paragraph 2 of the Republika Srpska Law on Pension and Disability Insurance (OG RS nos. 27/93, 14/94, and 10/95) and Article 82, paragraph 4 of the Federation Law on Pension and Disability Insurance (OG FBiH no. 29/98).

The RS Fund, with the authorisation of the Republika Srpska government,<sup>4</sup> unilaterally terminated the Pension Agreement in March 2002 (OG RS, no. 10/02, 4 March 2002). According

to a June 2002 report<sup>5</sup> by the United Nations High Commissioner for Refugees (hereinafter .UNHCR.), despite its withdrawal from the Agreement, the RS Fund has continued to pay those pensioners already recognised as its beneficiaries. For its part, the Federation Fund has declared that it will continue to follow the Agreement and pay its beneficiaries now living in the Republika Srpska."

**See also *Klickovic and others v. Bosnia and Herzegovina, the Federation of Bosnia and Herzegovina and the Republika Srpska, Human Rights Chamber of Bosnia and Herzegovina, January 2003***

**See also:**

**For more detailed information, see "*Pension and Disability Insurance Within and Between Bosnia and Herzegovina, the Republic of Croatia and the Federal Republic of Yugoslavia in the Context of the Return of Refugees and Displaced Persons*", a discussion paper prepared for the ongoing trilateral dialogue in the context of the Stability Pact Regional Return Initiative Task Force, October 2001.**

### **Impact of displacement on access to employment (2006)**

- Unemployment rates are higher among displaced than domicile population
- Displaced workers are overrepresented in sectors dominated by manual labour low-skill work and the informal sector
- Majority and displaced women across the region have higher unemployment rates than men
- Unemployment rates can also be influenced by the degree of ethnic segregation or integration.

**UNDP, 26 June 2006, pp.83 and 87:**

***This study presents the result of findings in countries of the Balkans: Bosnia and Herzegovina, Croatia, Serbia, Montenegro.***

"Despite broad comparability in the education status attained among displaced and majority communities there are major differences in the employment opportunities available to the two groups. (...)

The data show that unemployment rates and subjective perceptions of unemployment are far higher among displaced than among majority respondents, and in most cases more than twice as high (see Figure 2-16) In contrast to majority respondents, whose subjective perceptions of unemployment and reported unemployment rates are fairly close, relatively high proportions of the displaced perceive themselves as being unemployed when they are in fact involved in some form of income generation. This most likely reflects the fact that employment for the displaced is concentrated in the informal sector, involving irregular or poorly paid work. Although such activities may generate income, they may not be regarded as 'employment'.

### **Differences in types of employment and sources of income:**

The data in Figure 2-17 show that, in comparison with workers from majority communities, displaced workers are overrepresented in sectors dominated by manual labour and low-skill work – such as trade and construction – and underrepresented in public sector employment in such areas as public utilities, health care, education and science. This is most probably caused by both an aversion to lower-skilled employment among the majority, combined with a lack of public-sector opportunities for the displaced due to their largely 'provisional' and 'unresolved' status. The

'provisional' status of the displaced seems to affect their ability to obtain skilled employment: just 15 per cent of displaced workers are in skilled employment, compared with 31 per cent of workers from majority communities. Differences in levels and types of unemployment among the displaced have a major impact on their incomes. Average monthly incomes from wages among majority households (363 euros) are nearly double those of displaced households (191 euros).

### **Gender**

Disaggregating unemployment rates by sex highlights the doubly vulnerable position of displaced women. The data show that majority and displaced women across the region have higher unemployment rates than men (see Figure 2-21). As discussed in the Employment chapter on Roma, this might be related to the greater probability that women will withdraw from conventional labour market activities to engage in activities such as housework and/or looking after children. (,,)

Unemployment rates can also be influenced by the degree of ethnic segregation or integration. The survey approached this issue by posing questions about the ethnic mix of the respondents' settlement, village, town, city, or immediate neighbourhood. The data show that unemployment rates are highest among the displaced living in areas predominantly containing the displaced, and lowest among those living in mixed areas (see Figure 2-24). The extent of ethnic mixing does not appear to have a significant impact on the employment prospects of majority workers. This suggests that initiatives to reduce unemployment among displaced persons should focus on increasing their integration into majority communities and on providing living opportunities outside of refugee centres."

*See also, [Coping with war, coping with peace: Livelihood adaptation in Bosnia-Herzegovina, 1989-2004](#), Elizabeth Stites, Sue Lautze, Dyan Mazurana, Alma Anic, April 2005*

### **Sustainable return continues to be hindered by high rates of unemployment amongst displaced and returnees (2005)**

- Discriminatory practices in employment is a major factor in people's decisions not to return
- Unemployment is most widely spread among the young people and displaced persons
- Unemployment rate stands around 42.7% in the FBiH and 38.2% in the RS (December 2002)
- The limited employment opportunities are compounded by widespread discrimination based on ethnicity, political affiliation or gender
- Discriminatory dismissal or recruitment is especially prevalent in the public sector and should be punished
- There are also certain concerns that the privatization process in some parts of BiH is taking place in a corrupt fashion
- International efforts towards eliminating 'ethnic' discrimination in employment, focuses on legislative reform and the implementation of an anti-discrimination strategy
- Sustainability of return to urban areas may be endangered by lack of land for subsistence farming
- To encourage DPs to consider return, the OHR developed media programmes that increase the visibility of successful returnees and provide information on return conditions

### **UN CHR, 29 December 2005, par.64:**

"Discriminatory practices in employment, especially prevalent in the public sector of municipalities, discourage minority returns. Returnees excluded from the formal labour market

have to resort to the informal economy or other coping mechanisms. The Representative recommends that the authorities closely review and monitor recruitment practices in the public sector with a view to eliminating discrimination. Disproportionate underrepresentation of one ethnic group in a given public company should be taken as an indication of discrimination unless otherwise demonstrated. Programmes and initiatives aimed at creating employment opportunities specifically for IDP and female returnees who are heads of household should be created. Such measures might include vocational training for women as well as training for employers on gender equality. Authorities should also take steps towards creating an environment conducive to economic growth and development in return areas, and ensure that the privatization process is conducted in a transparent and accountable manner. Past incidents of discrimination in employment need to be addressed by providing those unfairly made redundant with re-employment or compensation.”

**AI 1 October 2003:**

“Insufficient conditions for returnees in the place of their return continued to mar the sustainability of their return [in 2003]. In particular, the lack of access to employment was a major factor in people's decision not to remain in their pre-war community. Employment opportunities were scarce in general, reflecting the weak economic situation and the forced transition to a market-led economy through mass privatization, however those in ethnic minorities in addition faced discrimination when trying to find employment or get rehired in their pre-war jobs, and had virtually no access to legal remedies or any other form of redress.”

**Poverty Reduction Strategy Paper Team 30 May 2003, Section B2:**

“Displacement had an impact on the stratification of the labour market: the displaced are in a much more difficult situation, facing greater difficulties in finding a job and often forced to accept jobs that other groups were not interested in. In view of the difficult economic situation as well as continued ethnic tensions, returnees almost never manage to return to their previous jobs.”

**Poverty Reduction Strategy Paper Team 30 May 2003, Section B4**

“According to official statistical data, in December 2002 the official number and rate of unemployment (unemployed registered with employment bureaus) were 435,505, or 41.1% (42.7% in the FBiH and 38.2% in the RS) of active population.[...] Women represented 46,3% of the overall number of unemployed. Approximately one third of the unemployed were demobilized soldiers, while 4% were family members of killed soldiers and military war disabled.[...] About 34% of the population (38,6% of the FBiH population and 26,7% of RS population) regard unemployment as the single most serious problem faced by the country. As a result of cuts in military personnel, as already announced, as well as the impact of privatization, jobless numbers are expected to continue to rise

In December 2002 in the FBiH there were 21,711 more unemployed persons, or 8.1% more compared to December 2001. In the same period, the number of people in employment was 390.201, a drop of 15.488, or 4%.[...] The observed trend of rising unemployment can be attributed, in the long term, to privatization and the slow pace of economic reform and, in the period in question, to the demobilization of a part of the professional soldiers of the FBiH Army. Subject to certain conditions, the unemployed who previously had jobs have the right participate in the safety net which provides benefits of between 117 and 240 KM, payable for a period of between 6 and 12 months. Insufficiency of funds for this purpose led to only 3, 320 people receiving these benefits in 2002.38 Unemployed persons in the FBiH are entitled to health care on condition that they are registered with one of the cantonal employment institutes. The resources for paying health care contributions for this category are provided from part of the unemployment insurance contribution levied on wages.[...]

In the RS, at the end of 2001 there were 147.749 unemployed persons, i.e. 40%. In 2002, unemployment continued to decline gradually, falling to 144,790 or 38%.[...] It should be noted



that the data of the RS Statistical Institute on the unemployed and the June data from the records of the RS Employment Institute, which point to a drop in the number of registered unemployed, are not confirmed either by the data on the real decline of industrial production in the RS, nor by the findings of polls carried out amongst the population.[...] Of the overall number of unemployed persons registered at the Employment Bureau, 43% are women. Demobilized soldiers account for 38.7% of registered unemployed persons, military war disabled 4, 5%, and members of families of killed soldiers 5.1%. 27% of the unemployed are refugees, 10, 6% are displaced persons and 1, 8% are returnees.[...] A further problem is the estimate that over 50% of the approximately 223,000 employees in RS are in fact on "wait-lists".[...]"

"The consequences of the war have extremely complicated the situation in BiH and the position of its rural population, where the level of poverty is significantly higher. Although BiH has no pronounced potential for the development of agriculture, about half the rural population relies to a large extent on agriculture to survive. Many rural communities have been destroyed and their population displaced, either to third countries or within the country, where they are now largely living in cities. The slow pace of demining means that normal life is still impossible in many parts of the country, and a proportion of arable land cannot be cultivated.

[...]

The lack of a comprehensive agriculture development policy deters people from investing in that activity, while options for other types of employment in rural areas are minimal. All this prevents many displaced persons from leaving their temporary residences in the cities, which creates an additional pressure on the very small number of jobs, increases the cost of housing and gives rise to difficulties in the provision of educational, health care and social services." (Poverty Reduction Strategy Paper Team 30 May 2003, Section C4)

**Poverty Reduction Strategy Paper Team 30 May 2003, Section 5D:**

"Unemployment (coupled with inactivity or exclusion from the labour force) are among the major immediate consequences of the difficulties facing BiH in the process of post-war recovery and the transition to a market economy. At the same time, unemployment is a shock to society and the individuals, which brought poverty and inflicted it, directly or indirectly, on members of virtually all categories of the population, although it is most widely spread among the young people and displaced persons."

**OHR 13 October 2003, paras. 51-52:**

"Many DPs still do not return to their pre-war residences because they feel they would be unable to rebuild their lives there. While many of the concerns are well grounded, some are based on incomplete information. To encourage DPs to consider return, my Office developed media programmes that increase the visibility of successful returnees and provide factual information on return conditions. In addition, my Office, SERDA and the country's Employment Bureaus are jointly developing a system to make information on vacancies around the country more widely accessible.

Further, there are many employment creation initiatives around the country, often targeting returnees in particular, but no study ever compared the effectiveness and efficiency of the different approaches followed. To aid donor agencies in their programme designs for 2003, my Office conducted a survey among implementing organisations and provided donor agencies with their feedback on the advantages and drawbacks of the various types of programmes. These efforts are aimed at rebuilding BiH's multiethnic society with opportunities for all citizens, including refugees, DPs, returnees and the domiciled communities."

**U.S. DOS 31 March 2003:**

"The continued depressed state of the economy throughout the country and the consequent lack of employment opportunities for returnees remained a serious obstacle to a significant number of returns. Attempts by returnees to receive compensation for jobs illegally lost during the conflict years were largely unsuccessful. As a result, most minority returnees were elderly, which placed a burden on receiving municipalities. Younger minority group members, who depended on adequate wages to support their families, generally remained displaced, especially in cases in which they had managed to find work in their new place of residence. Some reports described younger returnees going back to their prewar homes, but no adequate statistics existed to determine the age of returnees."

**See:**

*The [Human Rights Chamber for Bosnia and Herzegovina](#) and the [Human Rights Ombudsperson for Bosnia and Herzegovina](#) for decisions relating to employment discrimination catalogued on the web.*

*For more information on the labour law in Bosnia and Herzegovina, consult the human rights reports prepared by the [Human Rights Coordination Centre \(HRCC\)](#). In particular, see Paragraphs 108 to 113 of HRCC report covering the period between 1 April and 30 June 2001.*

**See also:**

*Office of the High Representative, Reconstruction and Return Task Force (OHR/RRTF), March 1998, Report March 1998, [An Action Plan in support of the return of refugees and displaced persons in Bosnia and Herzegovina](#).*

*"Discrimination in a depressed economy", section V, in: ["The Continuing Challenge of Refugee Return in Bosnia and Herzegovina"](#), International Crisis Group, 13 December 2002.*

**Authorities have failed to address violations of workers' right who arbitrarily dismissed during the war (2006)**

- During the war, tens of thousands of workers were dismissed arbitrarily because of their ethnicity
- Mechanisms put in place by authorities to remedy this situation are not functional

**AI, 26 January 2006, press release:**

"Ten years after the signing of the Dayton peace agreement, the authorities of the Federation of Bosnia and Herzegovina and of the Republika Srpska have failed to address violations of workers' human rights," Omer Fisher, Amnesty International's researcher on Bosnia and Herzegovina said.

The 1992-1995 war between the three major ethnic groups of today's Bosnia and Herzegovina, Bosniaks (Bosnian Muslims), Bosnian Serbs and Bosnian Croats, took the lives of tens of thousands of people while driving millions away from their homes. Tens of thousands of workers in these territories were discriminated against and unfairly dismissed because of their ethnicity. Discriminatory dismissals were in many cases the first step in aggressive campaigns of "ethnic cleansing", which included killings, forcible transfers and deportations.

The Dayton Agreement, and specifically its Annex 7 on refugees and displaced people, explicitly recognized the right to return as both a remedy to the human rights violations of unlawful transfers or deportations and as a means to reverse effects of the “ethnic cleansing”. In the ten years after the end of the war, about half of the 2 million people displaced by the conflict have returned to their homes.

"When coming back to their homes, minority returnees often must struggle to overcome persistent and endemic discrimination in accessing employment," Omer Fisher said.

"Without employment many returnees are unable to ensure or maintain an adequate standard of living and, facing destitution, many either decide to go back to their area of displacement, or commute there to continue working. Others emigrate in search of work."

The right to be free from discrimination, including in the enjoyment of the right to work, is enshrined in a number of international human rights standards and treaties to which Bosnia and Herzegovina is party. The Federation of Bosnia and Herzegovina and Republika Srpska labour laws prohibit discrimination in employment. They also contain provisions providing compensation to victims of discriminatory dismissals. However, such provisions remain insufficient. Among other problems, these legal protections do not apply to all workers who lost their jobs as a result of discrimination and compensation, when awarded, is manifestly inadequate and generally regarded as “symbolic”. Equally importantly, the mechanisms to consider claims by former workers and to award compensation are not in place or are too limited. The vast majority of claims remain pending.

In those cases where workers were unfairly dismissed on the grounds of their ethnicity from state-owned companies, the state failed to respect the principle of non-discrimination in the enjoyment of the right to work. Where they were dismissed by private companies, the state failed to protect workers from discrimination. In all cases, workers who were dismissed in a discriminatory manner have a right to full reparation for the human rights violations they suffered."

**See also full report: [Bosnia and Herzegovina: behind closed gates: ethnic discrimination in employment](#), Amnesty International, 26 January 2006**

## **Public participation**

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### **Social trust and trust in BiH institutions are low (2007)**

#### **UNDP, 7 July 2007, Conclusions p.2:**

The survey shows that social trust in BiH is virtually non-existent. In international comparisons, BiH is relegated to the last position. This means that in a key indicator of social cohesion, BiH is outperformed by all other transition countries which the World Values Survey programme covers. Also, in perceptions of social fairness BiH does not do well; most respondents say that they do not expect much fairness from others. While at the personal level people report relatively high life satisfaction, the lack of trust in others and in society at large appears as highly problematic, indicating that a core component of social capital (Putnam) is under-developed.

Overwhelmingly, BiH citizens see the situation in their country as ‘bad’. In contrast to their evaluation of personal spheres, respondents take a dim view of present conditions at the macro-level. In fact, there is a chasm between people’s description of their personal circumstances and their assessments of the country at large. A negative view of the national situation is compounded by relatively low trust in the institutions of BiH. Averaged across all scores, there is slightly more

mistrust but there are important exceptions. Public service TV, and, on balance, municipal authorities are trusted. Most of all, there is relatively high trust in the police. Half the sample trusts the EU but few trust other international organisations (IOs), the judiciary, and the State government in Sarajevo. least trusted but the differences are small. In fact, respondents do not distinguish much between international institutions. Overall, and with exceptions, popular respect for the institutions of BiH society is low. The parties and the State government are accorded lower trust scores than political institutions at the municipal or Entity level. Cantons are not seen to be essential. Institutional trust is a concrete expression of system acceptance. It gauges a sense of the legitimacy of the governance arrangements in the eyes of the population. It appears that trust needs to grow before greater political legitimacy, especially at State-level, can be achieved.

**Non-discriminatory participation of citizens of all ethnicities in public life is crucial for the social coherence and stability of BiH (2008)**

- The Bosnian population needs to re-create overarching social cohesion, which is difficult after the devastating war
- Currently, many Bosnians, and especially minorities, are excluded socially and economically
- National and international organisations work on peace building efforts
- Stimulating the local economy through inclusive approaches is a good way of integrating people and of creating prosperity

**UNDP, NHDR 2007, p.13**

social inclusion does not happen by developing policies alone. It requires the support of every citizen, non-governmental and governmental organizations, the business community, trade-unions and political parties. Only through joint activities and by sharing a common vision can a lasting and genuinely inclusive society be created for tomorrow's BiH. [...]

**p.23:**

The devastation of social structures and social values alongside the slow economic recovery, influence of the international factor and dependency on foreign aid have created apathy amongst the population. This is particularly the case among the youth. Research has shown that over 60% of them, regardless of their ethnic background, do not see their future in BiH. Social self-exclusion and widespread lack of participation are notable factors within the population manifesting themselves in lack of participation in social activities and elections, for example. Interestingly, the most highly educated sector of the population also falls within this group.

**World Vision, 26 November 2007:**

World Vision's peacebuilding work includes workshops in non-violent conflict resolution with youth and teachers. These groups successfully mix Bosniaks and Serbs who have been on opposite sides of battle lines.

"A strong civil society is a key ingredient in a healthy democracy," Sue Birchmore concludes. "And though there are quite a few committed people working on it, this does not really exist yet here. [...]"

Ongoing support to student councils, parent-teacher associations and community groups by World Vision complements the work of Area Development Projects and child sponsorship in impoverished rural areas. A recent advocacy event in the capital, Sarajevo, focused on training members of local voluntary organizations to engage effectively with the government. □

**OSCE, 11 January 2008:**

there is much that can be done at the local level to promote economic development by creating conditions that will attract investment and improve employment prospects. There is a clear link between the quality of governance and prosperity. A commitment to tackle corruption and introduce efficient, effective, transparent and accountable government creates conditions that are attractive to investors. [...]

The OSCE Mission to BiH has launched an initiative to encourage the type of joint action necessary to stimulate the local economy by assisting municipalities, the business sector and citizens to co-operate on local economic governance. During 2006 and 2007, the Mission's Democratisation Department has been working with 17 municipalities to develop partnerships and mechanisms for improved co-operation. Citizens and local entrepreneurs from Bosanska Krupa, Bosanski Novi, Gracanica, Tesanj, Srebrenik, Ilidza, Pale, Citluk and Posusje were interviewed in spring 2007. The aim of these interviews was to gain their opinions about the obstacles to local economic development and how they see these could be overcome through their participation in municipal economic planning.

**OSCE, 28 January 2008:**

Facing a low degree of public involvement in local affairs, authorities in Milici are highly committed to include more citizens in bringing the municipality forward. Partnership, a module within the OSCE Mission to Bosnia and Herzegovina's UGOVOR project, offers just that: a framework for municipal authorities and citizens to jointly identify a challenge, develop and implement a response, and evaluate the result. [...]

Due to public apathy and hesitance on behalf of citizens to get involved with their local authorities implementing Partnership is perceived as rather challenging, especially for rural municipalities.

**Current constitution and legislation limits the right of participation of minorities (2008)**

- The current Constitution of Bosnia and Herzegovina allocates certain important rights on an explicit ethnic basis
- Reform of Bosnia's segregated electoral system is vital to triggering a process of gradual political and social cohesion
- Only individuals from the three 'constituent peoples' - Bosniacs, Croats and Serbs - can stand for office in the House of Peoples or for election as President therefore excluding Roma, Jews and other minorities
- Choice for voters is restricted upon ethnicity: only a Serb may be elected from Republika Srpska and only a Bosniac or Croat from the Federation
- Restrictions on self-identification exclude individuals of mixed ethnicity who refuse to choose one constituent people identity over another
- Returnees face problems regarding participation in public affairs, which also prevents or complicates
- returns, particularly of minorities, and social reintegration
- Deprivations of minority returnees' rights are inextricably linked with the lack of political representation of the non-dominant group into the political system
- Amendments to the Bosnian election law call for proportional participation of minorities on all levels of public and political life
- This obligation will be difficult to enforce as long as figures remain based on the pre-war (1991) census

**MRG, 17 November 2005:**

“On the eve of the 10th anniversary of the Dayton Peace Agreement, negotiations over the new Bosnia and Herzegovina Constitution must firmly establish minority rights and reform a discriminatory electoral system that enhances ethnic divisions. Minority Rights Group International (MRG) stated that such an undertaking is key to healing entrenched divisions and fostering a pluralist society where all existing minorities are able to fully participate in public life.

Political structures designed along ethnic lines in the post-Dayton Constitution 10 years ago have been blamed for creating greater ethnic division in Bosnia. (...)

Long-overdue reform of Bosnia's segregated electoral system is vital to triggering a process of gradual political and social cohesion.

MRG, in partnership with the Benjamin N. Cardozo School of Law Human Rights and Genocide Clinic and the European Roma Rights Center (ERRC), is campaigning to change the electoral system, which violates the rights of many citizens to participate equally in public life, and institutionalizes politics along ethnic lines. Only individuals from the three 'constituent peoples' - Bosniacs, Croats and Serbs - can stand for office in the House of Peoples or for election as President, to the exclusion of Roma, Jews and other minorities. Additionally, the choice for voters is restricted upon ethnicity: only a Serb may be elected from Republika Srpska and only a Bosniac or Croat from the Federation. Restrictions on self-identification exclude individuals of mixed ethnicity who refuse to choose one constituent people identity over another. This violates of the right to choose to be treated or not to be treated as a national minority, and the principle that no disadvantage shall result from this choice [FCNM Article 3].”

**UN CHR, 29 December 2005, par.52:**

“Due to discriminatory attitudes and practices by some local authorities, returnees expect or face problems regarding participation in public affairs, which also prevents or complicates returns, particularly of minorities, and subsequent social reintegration. In July 2000, the Constitutional Court of Bosnia and Herzegovina ruled that none of the three main ethnic groups as the constituent peoples of Bosnia and Herzegovina shall be excluded from exercising its rights in the entities and that their members shall be represented at all levels of government and public administration. However, problems remain with the implementation of these principles as well as for those who do not belong to any of the three constituent peoples, the so-called “others” such as the Roma.”

**UN CERD, 11 April 2006, par. 4, 11-12:**

“The Committee notes that the structure of the current Constitution of Bosnia and Herzegovina allocates certain important rights on an explicit ethnic basis. The Committee recognizes that this structure arises out of the Dayton/Paris Peace Agreement and that it may have been necessary, on an interim basis, to secure peace in the aftermath of the armed conflict. However, the Committee also notes that the Constitution's current assignment of important rights based expressly on ethnicity may impede the full implementation of the Convention. (...)

The Committee is deeply concerned that under Articles IV and V of the State Constitution, only persons belonging to a group considered by law to be one of Bosnia and Herzegovina's “constituent peoples” (Bosniaks, Croats, and Serbs), which group also constitutes the dominant majority within the Entity in which the person resides ( e.g., Bosniaks and Croats within the Federation of Bosnia and Herzegovina, and Serbs within the Republika Srpska), can be elected to the House of Peoples and to the tripartite Presidency of Bosnia and Herzegovina. The existing legal structure therefore excludes from the House of Peoples and the Presidency all persons who are referred to as “Others,” that is persons belonging to national minorities or ethnic groups other than Bosniaks, Croats, or Serbs. Although the tripartite structure of the State party's principal political institutions may have been justified, or even initially necessary to establish peace following the armed conflict within the territory of the State party, the Committee notes that legal distinctions that favour and grant special privileges and preferences to certain ethnic groups

are not compatible with Articles 1 and 5 (c) of the Convention. The Committee further notes that this is especially true when the exigency for which the special privileges and preferences were undertaken has abated. (Arts. 1 (4) and 5 (c)). **The Committee urges the State party to proceed with amending the relevant provisions of the State Constitution and the Election Law, with a view to ensuring the equal enjoyment of the right to vote and to stand for election by all citizens irrespective of ethnicity.**

The Committee expresses its concern that the State and Entity Constitutions allocate certain authority to, and confer specific rights exclusively on members of the so-called “constituent peoples” (Bosniaks, Croats and Serbs), and that persons not belonging to one of these ethnic groups are formally referred to as “Others” (Article 2 (1) (c)). **The Committee urges that the State party ensure that all rights provided by law are granted, both in law and in fact, to every person within the territory of the State Party, irrespective of race or ethnicity. The Committee strongly recommends that the State party review and remove all discriminatory language from the State and Entity Constitutions, and from all legislative and other domestic law texts, including especially, but not limited to, distinctions between so-called “constituent peoples” and “Others.”**

**MRG, Benjamin N. Cardozo, February 2006:**

Par. 5:

“Given the need to secure the collective rights of the three main ethnic groups in BiH after the war, which ostensibly was fought on ethnic grounds, the rights of “others” have often been overlooked in the implementation of human rights and collective rights in almost areas of life. And in spite of progress, as outlined in BiH’s periodic report, severe problems of racism and discrimination persist in the country, often as a result of nationalist policies pursued by ethnically based political parties.”

Par.8:

“In light of the ongoing negotiations over constitutional reform and the scheduled Bosnian elections in October 2006 this report will focus on discrimination in regard to the right of public participation. In particular, this report will focus on the incompatibility of the BiH Constitution and the Election Law of BiH with Article 5(c) of ICERD. It is argued that the Constitution and Election Law do not provide for equal treatment of all citizens in the exercise of their right to vote and to stand for election.”

Par.14-16:

“The [Constitution and legislation] reserve access to the tripartite presidency for persons belonging to the “constituent peoples”, namely Bosniac, Serb or Croat ethnicities. Thus, persons falling outside of - or not identifying themselves with - the stated ethnic groups are legally barred from holding a position in the tripartite presidency.

Moreover, Serbs residing in the Federation and Bosniacs or Croats residing in the RS are not eligible to the tripartite Presidency of BiH. (...) Thus, the right to participate in elections is inextricably linked to ethnicity, which in turn is linked to territory.

Finally, citizens voting rights in both Entities are restricted on the basis of ethnicity in that an individual may only vote for candidates of specified ethnicities.”

Par.31-34:

“The BiH structure creates incentives for the three constituent peoples to govern in a manner beneficial to their ethnic constituencies and detrimental to the needs of citizens outside these three groups. Thus, it is difficult to argue that the means to achieve this aim – which have deeply entrenched discrimination in the political system, and alienated a sizeable proportion of citizens in BiH – were either reasonable or objective.

Regardless of whether the Committee finds that the discriminatory measures were reasonable at the time they were implemented, BiH is now ten years from the end of the war and moving beyond the needs of the post-conflict rehabilitation phase of its development. It can no longer justify the political disenfranchisement of significant portions of the population on racial grounds.<sup>26</sup>

Moreover, the lack of any objective or reasonable justification for restrictions imposed on “constituent peoples” of mixed ethnicity who refuse to choose one identity over another constitutes another most apparent form of discrimination contrary to Articles 1 and 5(c) of CERD, thereby weakening any argument for the legitimacy of the means used to achieve the aim of equitable power-sharing. The same can be said of the denial of access to effective participation experienced by those “constituent people” who do not reside in their prescribed geographic area.

In this regard the Venice Commission has pointed out that ‘If the members of the Presidency elected from an Entity represent all citizens residing in this Entity and not a specific people, it is difficult to justify that they must identify themselves as belonging to a specific people. Such a rule seems to assume that only members of a particular ethnicity can be regarded as fully loyal citizens of the Entity capable of defending its interests.’

Par. 41:

“[T]he BiH Constitutional Court in the Constituent Peoples decision requires, at a minimum, that all three constituent groups and ‘others’ are to be treated equally across the whole of BiH. (...) Disenfranchising national minorities and minority returnees, meaning, Serbs living in the Federation and Bosniacs and Croats living in the RS, does not represent equal treatment of all people across the whole of BiH. (...) The highest court of the land in BiH has recognized that the contested laws are discriminatory on their face.”

Par. 46-49:

“This political arrangement directly thwarts the principle and practice of refugee return also enshrined in the DPA, (...) discouraging individuals from returning to the Entity in which they now form a minority (minority returns) and perpetuates entrenched discrimination in all areas of life, against minority returnees, national minorities, other minority groups, and individuals unable or unwilling to identify with the “constituent people” categories. (...)”

In the absence of a population census since 1991, the current number of inhabitants and their distribution according to ethnic groups remains unclear. Nevertheless, population estimates suggest the number of minority returnees in each Entity is very low. In the case of the RS, approximately 17% of the population is of non-Serb ethnicity whereas in the Federation 8.7% of the population are of Serb ethnicity. (...) Obstacles to minority returns include return-related violence, where the criminal justice system fails to follow up adequately on such crimes, social and economic factors such as realizing rights to education, health, social security and pensions, and above all the right to work. These broad deprivations of minority returnees’ rights are inextricably linked with the lack of political representation of the non-dominant group into the political system.

Effectively, Serbs from the Federation and Bosniacs and Croats from the RS have no representation of their own in the Presidency or the BiH Parliament. This not only raises issues about discriminatory treatment in the right to vote and be elected, but it also has the effect of thwarting the principle of refugee return.

Further, non constituent peoples have even less of an opportunity to have their concerns heard and rights protected. To illustrate concretely, as recounted for the European Roma Rights Center:



"When a Bosniak decided to return to Republika Srpska he can always count on the [pro-Bosniak] SDA to cry foul in the event that for some reason he is not treated well in his place of return. If, on the other hand, a Romani person is denied access to healthcare, prevented from repossessing property or prevented from sending his children to school, no one says anything. And this is just considered normal."

**Bosnia News, 27 March 2008:**

"[The Bosnian Minister of Human Rights and Refugees Safet Halilovic] added that the amendments to the Election law of Bosnia opens possibility, more precisely prescribes obligations that minority communities depending on their percentage must participate in local authorities, municipal assemblies, as well as their participation on all level of government and executive powers in Bosnia."

**See also:**

***"Submission to the Human Rights Committee", ICHR, IDMC, MRG, Benjamin N.Cardozo, 3 July 2006 (see in sources below)***

***"Summary of pressing concerns: Bosnia and Herzegovina, European Roma Rights Centre, 3 July 2006 (see sources below)***

***"Progress on reinforcement of state level institutions halted by rejection of constitutional reform (2006)" in this profile, section Causes and Background***

**Returnees are not adequately represented in public institutions (2005)**

- Public institutions have been subjected to a policy of ethnic homogenization, especially in the Republika Srpska
- Minority returnees have to face hostility from authorities and often prefer to avoid any contact with them
- This is particularly a problem in entity, cantonal and municipal housing offices
- Risks of discrimination are also real from public utility companies, the education system, justice and police officers
- The recruitment of minority police officers remains insufficient
- However, returnees are in the process of establishing themselves in governments and institutions in various municipalities
- High Representative has forced local authorities to guarantee representation to all ethnic groups

**UN CHR, 29 December 2005, par.51:**

"The provocative use of national or religious symbols by some local authorities contributes to creating and maintaining a hostile environment towards minorities. Public institutions are often dominated by nationalist political parties who follow a policy of ethnic homogenization, which leads to favouritism privileging the ethnic majority while neglecting or underrepresenting the interests of vulnerable groups. This discredits public institutions which are perceived by minority returnees as non-transparent and open to corruption."

**ICG 13 December 2002, pp. 16-18:**

"The homogenisation of Bosnia's population in separate national enclaves during the war, the partition sealed by the DPA and the subsequent electoral victories of the nationalist parties have ensured that municipal administrations, courts, police, schools, and public companies are staffed almost exclusively by members of the locally dominant nation. There are partial exceptions to this rule in some cities and professions in the Federation, but the RS as a whole continues to reflect the success of 'ethnic cleansing', particularly in those towns where the SDS initiated its project

through the exemplary execution or expulsion of influential leaders of the Bosniak and Croat communities.

Mono-ethnic institutions inhibit return in two key ways. First, because the private sector accounts for a mere 35 per cent of BiH's GDP, public institutions are the largest employers. More significantly, because of the many appointments of ardent loyalists to public sector jobs made by the nationalist parties during and since the war, the members of new minorities" can still expect to meet with antagonism and discrimination in their contacts with these authorities. In places like Prijedor, Bratunac and Srebrenica, where individuals involved in running concentration camps or leading paramilitary formations are known to work in the courts, schools and police, the natural tendency of returnees to avoid dealings with the authorities is all the greater. As a result, where large-scale return has taken place, returnees have usually formed parallel institutions, led by returnee associations, serviced by token representatives in municipal government and sustained by a largely separate economy. Return has not yet resulted in re-integration.

One sector where the past has an obvious effect on return is in the staffing of entity, cantonal and municipal housing offices, to which potential returnees must apply to repossess their pre-war property. For example, according to figures provided by the RS Ministry for Displaced Persons and Refugees, only 22 out of 520 employees in that ministry are not Serbs. Moreover, a significant number of employees in the RS Housing Offices (OMIs) are themselves displaced persons, with an obvious conflict of interest in assisting returnees to repossess property usually occupied by people like themselves. None of the OMI heads of office in the RS represents returning Bosniaks or Croats.

Returnees can encounter discrimination in many spheres and guises. For example, in some areas, newly built settlements for 'majority' DPs are connected to roads, electricity grids and other utilities before returnee villages, whose infrastructure was destroyed in the war, are reconnected. This reflects the fact that the public utility companies are run by the governing parties throughout the country. Meanwhile, [...], the nationally exclusive curricula and staffing of schools perpetuates divisions and deters returnee parents from sending their children to school. Nor have judges and prosecutors, appointed during the war for their loyalty, proved ready to dispense nationally impartial justice.

Bosnia's police forces are, in fact, the only public institutions that the international community has sought systematically to reintegrate. In restructuring agreements signed with the Federation in 1996 and with Republika Srpska in 1998, the UN mission set quotas for the recruitment of 'minority' officers to the entities' forces. In the Federation, forces were meant to reflect the national composition of the prewar population in a given municipality, as determined by Yugoslavia's last census in 1991. A laxer standard was accepted for the RS, where the profile of the police force in a given municipality was required to conform only to the level of participation by the various national communities in the 1997 elections.

The reintegration of Bosnia's police forces has had two objects. First, it seeks to ensure a more secure environment for returning refugees through the assurance that 'their' nation is represented among those upholding the law. Second, reintegration aims to provide employment for some returnees, thereby offering a stimulus to return. But the experience of UNMIBH in attempting to reintegrate municipal police forces also offers a primer to international organisations that will be endeavouring to ensure the proportional representation of the three 'constituent peoples' and 'others' in all institutions of authority following the April and October 2002 amendments to the entity constitutions.

Not surprisingly, the recruitment of 'minority' police officers has been subject to overt political obstruction by entity and cantonal interior ministries. But it has also fallen foul of prevailing salary and cost of living differentials, the lack of enough places in the police academies and the absence of affordable housing in the receiving locality. Moreover, officers who have taken up employment

in areas where another nation predominates have had to face either intermittent threats to their security or marginalisation. For example, 'minority' officers are sometimes sidelined, not issued with weapons or badges, prevented from participating in investigations and assigned to menial jobs such as doorman or parking attendant. Abuses of this sort are particularly widespread in the RS and in Croat-ruled parts of the Federation.

Although 10 per cent of police ranks across BiH were composed of 'minority' officers by October 2002, recruitment still lags well behind the targets set for both entities. Progress has, however, been made in some municipalities with significant returnee populations. In Drvar, continuous UNMIBH pressure on the recalcitrant Canton 10 authorities in Livno, including the successive removal of three interior ministers, has finally paid off, with Serb returnees now comprising 44 per cent of the force and a Serb chief in place. In neighbouring Bosansko Grahovo, to which Serbs have also returned in significant numbers, returnees comprise 27 per cent of the force.

Returning Serbs have also succeeded in securing political power in Drvar, as well as significant representation in the municipal administration, despite the efforts of the HDZ-dominated cantonal government to frustrate or contain this process. In Bosansko Grahovo and Glamoc, too, Serb (and Bosniak, in the case of Glamoc) returnees are in the process of establishing themselves in the municipal governments and administrations. Yet as returns have overturned the post-war demographic structure in these towns, the canton has cut off revenue payments and transferred competencies up to the cantonal level. The SNSD mayor of Drvar has characterised these policies as an 'economic blockade' of the municipalities, a judgment confirmed to ICG by a number of international organisations working in the canton. As a consequence of the High Representative's imposition of amendments to the Federation constitution on the morrow of the 5 October elections, however, Serbs and Bosniaks will be guaranteed representation in the government of Canton 10 commensurate with their pre-war numbers. The robust implementation of these amendments will both exclude the possibility of mono-ethnic cantonal governments and serve to encourage further return."

***For more information on the constitutional reform, see "Constitutional changes and their significance", Sect. VII in: "The Continuing Challenge of Refugee Return in Bosnia & Herzegovina", International Crisis Group, 13 December 2002***

#### **The Roma Committee within the Council of Ministers assures consultation of Roma in decision-making process (2008)**

**CoE, 20 February 2008:**

94. The establishment of the Roma Committee with the Council of Ministers of BiH as a permanent advisory body made up of Roma representatives and representatives of relevant Ministries in June 2002 was a positive development with regard to the participation of the Roma. The Roma Committee should be further strengthened and its resources increased to enable it to function effectively.

#### **Election Law provides for the right to vote of the displaced but some problems remain (August 2005)**

- In some municipalities, minority returnees are indirectly excluded from voting in elections for lack of information, transportation or documentation
- Displaced households have much lower social or political engagement than domicile households

- A displaced person can vote either in municipality of current residence or of pre-war residence
- The Law also prohibits illegal occupants of properties from voting in the place of current residence and from running elections

**UN CHR, 29 December 2005, par.51:**

"The lack of trust in public institutions is a serious democratic deficit. In some municipalities, minority returnees are indirectly excluded from voting in elections because of the limited information made available to them, or the lack of transportation. (...) Many Roma IDPs are excluded from voting as they lack the required documentation."

**UNDP, 26 June 2006, p.94:**

"Political participation is essential for ensuring that the needs of the displaced are met. However, the survey data show that displaced households have much lower social or political engagement than majority households. Just 13 displaced households surveyed (1 per cent of the total sample) reported having at least one household member who is a member of the local municipal council or assembly, compared to 35 majority households (3 per cent of the total sample).

Limited access to information, which is an important component of social and political participation, might be a contributing factor. The data show that the displaced are far less likely than the majority to have access to various sources of information in their homes."

**OHR 13 September 2001, para. 1:**

"On 23 August [2001] the BiH passed the Election Law, thus ending several years of failed attempts. Both Chambers approved this crucial piece of legislation in the version that had been submitted to them by the CoM as a result of an agreement in principle on its content reached by key party leaders under the auspices of the International Community (apart from my Office, the OSCE and the CoE were also involved). This crucial decision means that BiH now has the legal framework through which to sustain democratic governance as this new Law paves the way for the formation of an Election Commission."

**OSCE 25 July 2002, sect. III-J:**

"Article 19.8 provides special voter registration options and voting options for displaced persons and refugees. A displaced person has three registration options: (1) permanent residence according to the last national Census (1991), (2) permanent residence at the time the person acquired the status of a displaced person, subject to proof of the same, or (3) current residence if established at least six months prior to Election Day, subject to proof of the same. A displaced person, who exercises one of the first two registration options, can vote either (1) in person in the appropriate polling station within the municipality of permanent residence or (2) in the appropriate absentee polling station within the municipality of current residence. Similarly, a refugee has the first two registration options (current residence is obviously not applicable). A refugee can vote by mail from out of country, or return on Election Day and vote a tendered ballot.

Article 19.8 also provides that a 'citizen of Bosnia and Herzegovina who is occupying a house or an apartment for which s/he does not have an ownership or occupancy right, while an enforcement document is issued by a competent court or administrative authority on the restitution of a house or an apartment, or CRPC decision, has no right to vote in the place of current domicile, until s/he abandons real-estate property owned by other, and may register to vote only in the municipality where s/he had the permanent residence in accordance to the last Census in Bosnia and Herzegovina (sic).' [...] Article 3.7 provides that no person shall forfeit any right or entitlement due to the fact that he or she has registered as a voter, or due to his or her registration to vote for a municipality other than the one in which he or she currently resides. This article also provides that no person shall be required to present any document issued relative to registration or voting for any other purpose except as is necessary for the purpose of voter

registration, confirmation of registration, or voting. The purpose of this article is to prevent the conditioning or forfeiture of rights based on the municipality registration option exercised by a voter. This provision is especially applicable to displaced persons and refugees.”

**OSCE 25 July 2002, sect. III-B:**

“Article 19.9 prohibits the candidacy of a person who fails to vacate real estate property or to leave an apartment where the property or apartment is owned by or subject to the occupancy right of a refugee or displaced person, provided this issue has been adjudicated by an administrative, enforcement, or court decision. This same prohibition applies to a person who refuses to vacate or leave within 120 days of the filing with a competent administrative body of a request to enforce a certificate issued by the Commission for Real Property Claims of Displaced Persons and Refugees (CRPC).”

**IDPs have the possibility to participate in elections, but problems persisted in both the 2002 and the 2006 elections (2006)**

- The October 2006 elections were conducted after changes to the election law
- Voters were registered “passively”, i.e. at the same time as they got personal identification cards, instead of “actively”
- Registered IDPs thus were registered where they lived, not where they originally came from, unless they actively changed that
- The election revealed the ethnic shift in the country, as many displaced never actually returned, but instead integrated locally
- The 5 October 2002 general elections were the first to be administered by the BiH authorities since the Dayton Peace agreement
- Most voters cast ballots at “regular” polling stations in their places of permanent residence
- To accommodate displaced persons, there were special polling stations for absentee voters or voters who reside in BiH but chose to have their ballots count for their place of permanent residence according to the 1991 census
- Internally displaced voters displayed a substantially higher abstention rate than those voting in regular polling stations

**OSCE, 1 December 2006:**

This year, too, amendments to the election law introduced some important changes to the way in which elections were conducted. These created a “passive” rather than an “active” system of voter registration, a shorter official campaign period, lower limits on the amount of money permissible to spend on campaigning, and a minimum “threshold” of three percent of the vote necessary for political parties to enter parliament. Passive voter registration, under which voters are registered automatically when they get their identification cards, increased the number of eligible voters by almost fifteen percent and thus helped increase the overall turnout. But this new system did not come without problems.

The war left Bosnia and Herzegovina with almost one million of its citizens within the country displaced from their homes (and roughly an equal number scattered as refugees abroad). In every post-war election, those officially registered as Internally Displaced Persons have had the right to choose where they wished to vote. They could vote either in their pre-war municipality, even if they no longer lived there, or in the municipality where they currently resided. They retained these special voting rights for the general 2006 elections as well. But the passive registration system now automatically placed them on the electoral rolls in their current municipalities unless they still took active steps to change this.

Preceding and, since it fell well behind schedule, ultimately overlapping with the elections was a country-wide exercise in verifying the status of those registered as Internally Displaced Persons. This exercise supposedly had no direct relation to the elections themselves or to the preparation of the lists of eligible voters; its purpose was rather to remove those displaced people from state support who no longer merited or required it. But it had an impact on the outcome of the elections nonetheless. For one thing, it resulted in a large decrease in the number of people eligible to be considered Displaced and thus of those who had the option of voting in a locale different from where they were living. Since the number of people who have actually returned to their pre-war homes is rather small, with most of the displaced having settled down in their places of refuge instead, this change in the ethnic composition of the country manifested itself in these elections more visibly than ever before. Bosniac and Croat representation in the Republika Srpska National Assembly decreased, as did Serb political representation in the various parliaments of the Federation of Bosnia and Herzegovina.

**OSCE 9 January 2003, sects. 1, 3, 14:**

"The 5 October 2002 general elections in Bosnia and Herzegovina (BiH) were the first administered by the BiH authorities since the Dayton Peace Agreement. They were also the first in which all State and entity offices were elected for four-year terms.

The conduct of the elections was **largely in line with international standards** for democratic elections, when considering the country's unique legal and constitutional framework. They mark important progress toward the consolidation of democracy and rule of law under domestic control.

These were essentially **transitional elections**. Although administered by BiH authorities, they took place in a legal context in which ultimate authority still rests with the international community. As in previous elections, the international community took a number of steps affecting key aspects of the elections which, while in line with their mandate and in compliance with UN Security Council resolutions, were in some instances irregular by international standards. Such measures will hopefully be unnecessary in future elections.

A wide range of candidates and political parties provided voters a **genuine choice**. The campaign was largely free of violence and intimidation, with general respect for freedom of movement, association, and expression. Nationalism was a less overt theme than in previous elections, although it remained a significant underlying issue. A notable positive trend was substantially more cross-entity politicking than in previous elections. However, the campaign was negative and often personalized, with little meaningful debate on key issues. An active broadcast and print media provided extensive and diverse election coverage.

[...]

Most voters cast ballots at 'regular' polling stations in their places of permanent residence. In addition, in order to accommodate displaced persons, there were special polling stations for absentee voters, meaning voters who reside in BiH but who chose to have their ballots count for their place of permanent residence according to the 1991 census. A third type of polling station was specifically for tendered ballots, which could be used only by persons who had returned permanently to their pre-war municipalities and not updated their voter registration details before the 20 June cut-off date for voter registration. BiH citizens still residing abroad could register and vote by mail.

[...]

Article 19.8 of the Election Law links the right of displaced persons to return freely to their homes - a key element of the peace process - to the right to vote. Under the Law, persons illegally occupying a residence and subject to a restitution order should have no right to vote in their current municipality of domicile. However, lack of clarity in Article 19.8 and difficulties of enforcement led to the application of the rule to just some 200 people out of the tens of thousands of registered voters who may be illegal occupants, raising concerns about the equitable application of the law.

[...]

The turnout at absentee ballot stations was strikingly low: 30.33% overall. Thus, internally displaced voters displayed a substantially higher abstention rate than those voting in regular polling stations.”

**Returnees, as well as the general population, perceive access to public life difficult, but hampered access to electoral rights is very limited (2006)**

**NADEL, ETH Zurich, Power Point Presentation, August 2006:**

- Almost 30% of respondents think that the freedom of political opinion and activities is limited.
- More than 40% of the respondents hold the opinion that they cannot influence policies on the local level.
- More than 40 % of the respondents think that election processes are not fair and correct.
- All of the above ratios are higher for minorities than non-minorities, and higher in the RS than in the Federation.
- Only very small margins of respondents, between 1% and 2%, explain that they themselves have been hampered in exercising electoral rights and political freedoms.

**Minority returnees emerge as a political force after October 2002 elections (2002)**

- Returnees have impacted on the political life of several municipalities
- They can help marginalize nationalist politicians if they participate in elections,
- Next step will be to reintegrate returnees in the local administrations
- 2002 constitutional amendments will help to strengthen minorities' representation

**ICG 13 December 2002, pp. 5-6:**

“While the sum total of returns recorded thus far has yet to transform the overall pattern of national separation and homogeneity inflicted upon BiH by the war, returnees have significantly altered social and political life in many municipalities and localities (*mjesne zajednice*), thus testing the argument over whether reintegration is politically stabilising or destabilising.

In the Bosniak-majority town of Bugojno in central Bosnia some 8,500 Croats have returned, half the pre-war population of Croats. A lesser, but not insignificant, percentage of Serbs has also returned to Bugojno. In Drvar, where Serbs formed the overwhelming majority until almost all fled the assault of the Croatian Army in 1995, returning Serbs have re-nationalised the town. In the tiny RS municipality of Vukosavlje (near Modrica), about 80 per cent of the mostly Bosniak refugees have returned. Janja (in the Bijeljina municipality) was an almost exclusively Bosniak settlement before the war and an almost entirely Serb one thereafter. It has seen the return of about 6,000 Bosniaks (or 60 per cent of its pre-war Bosniak population). In Sarajevo, Serbs have lately returned in significant numbers. There were 17,891 registered returns to Sarajevo Canton in 2001 and almost double that number is expected in 2002. These are just a few examples of encouraging movements on the local level.

The Bosanska Krajina municipality of Prijedor demonstrates how returnees and potential returnees can help marginalise nationalist politicians if they participate in elections. In the 2000

municipal polls, over 10,000 Bosniaks still living outside the municipality cast absentee ballots, securing nine places on the 32-member municipal council for Bosniaks from the Coalition for a Unified and Democratic Bosnia (CUD, the then coalition of the SDA and the Party for BiH, SBiH). At the same time, large numbers of Prijedor Serbs defected from the SDS to more moderate parties formed after the SDS split in 1997: the Alliance of Independent Social Democrats (SNSD), Serb National Alliance (SNS) and Party of Democratic Progress (PDP). The Bosniak councillors supported the election of SNSD member Nada Sevo as mayor and secured the appointment of one of their number, Muharem Murselovic, as president of the municipal assembly. Large-scale returns since 2000 mean that Bosniaks are likely to become an even stronger political force after the next municipal elections.

As many as 20,000 Bosniaks are estimated to have returned to Prijedor. They thus exercise greater political influence than is possible in most other municipalities to which refugees have returned. But mixed municipal councils are now common throughout BiH. This ensures that returnees have representatives to defend their interests, even if they are still regularly outvoted by members of the dominant group. The 2004 municipal elections will result in even more power sharing, since the returnee population will be more than double that of 2000. The next step will be to reintegrate returnees in the local administrations, school staffs, public companies and police, where their presence is still negligible. The April and October 2002 amendments to the entity constitutions (discussed below) mandate these reforms in the cantons and municipalities, but will remain dead letters without pressure from the international community.

Returnees emerged as recognisable constituencies in both entities in the October 2002 general elections, albeit of widely varying significance in the different legislatures (state, entity and cantonal). Federation-based parties won fourteen seats in the 83-member RSNA and elected two of the fourteen RS deputies to the state parliament. On the other hand, RS-based parties took just one seat in the Federation House of Representatives. Nor did they do well in cantonal races. As is explained below, however, under new constitutional amendments, each of the three 'constituent peoples' will nonetheless have representatives in the governments and legislatures of the entities and cantons.

[...]

The representation of 'minority' returnees to both entities will in any case be amplified this year by the implementation of constitutional amendments guaranteeing at least four seats in the entities' parliaments to each of the three 'constituent peoples'. The amendments also require the newly formed entity governments to include a specified number of ministers from each people, as well as prescribing that certain key offices must be shared out among the different nations. What is effectively second chamber of the RSNA, the Council of Peoples, has been created with the power to block legislation that offends against 'vital national interests'. The pre-existing Federation House of Peoples, meanwhile, has been recast to include an equal number of Serbs. These changes – and others discussed in more detail below – will have the effects of both giving greater voice to returnees and encouraging yet more returns.”

***For more details on constitutional amendments imposed in April and October 2002 on entity constitutions, consult Section VII “Constitutional changes and their significance” in: “The Continuing Challenge of Refugee Return in Bosnia and Herzegovina”, International Crisis Group, 13 December 2002***

### **Lobby groups for the displaced (1996-2003)**

- 1996: Creation of the Coalition for Return, a multi-ethnic movement of displaced persons
- The objective of the organisation is to lobby for the creation of an environment conducive to return of all displaced, regardless of their nationality



- The Coalition for Return has also organized assessment visits and disseminated information on the rights of the displaced
- The BiH Alliance of Associations of Refugees and Displaced Persons (SIRL) is an umbrella organisation that lobbies for the rights of displaced persons

**ICG 30 April 1997, section 1.4.3:**

"A promising development during 1996 was the formation of the Coalition for Return, a multi-ethnic movement of displaced persons from all parts of Bosnia and Herzegovina. Coalition for Return's aim is to lobby for the creation of an environment conducive to the return of all displaced persons - regardless of their nationality - to their homes of origin. The Coalition was established on the initiative of Deputy High Representative Ambassador Michael Steiner in Sarajevo in October 1996. Representatives of displaced persons were urged by Ambassador Steiner to form a forum to counterbalance the nationalist-separatist political agendas of the ruling political parties. Within five months, the Coalition managed to organise a network spanning both Entities, the neighbouring countries, and refugee host-countries in Western Europe, including approximately 70 displaced persons associations representing tens of thousand individuals.

The Coalition for Return has met with local authorities to persuade them to comply with the provisions of Annex 7 of DPA, and to promote the safe and voluntary return of all displaced persons to their homes of origin.

[...]

The Coalition for Return has also focused on bringing displaced persons in contact with other displaced persons currently residing in their homes. The Coalition for Return has organised fact-finding visits to identify areas of the country where return is most feasible. The Coalition for Return is in the process of consolidating relevant information which will serve to bridge the gaps on questions and issues relevant to displaced persons. Such research could be valuable sources of objective and unbiased information for displaced persons, thus enabling them to make informed choices about returning to their homes or remaining in their temporary areas of residence."

**UN GA 11 September 1998:**

"Most minority returns so far have been spontaneous, arranged by displaced persons themselves through local non-governmental organisations. The Coalition for Return (whose representatives the Special Rapporteur met in July 1998) has organized assessment visits, collected and disseminated information, and advocated strongly for returns, thus creating some small progress. The Special Rapporteur believes this is a good way to achieve sustainable returns, and hopes that these associations receive support for their work."

**OHR 27 December 2000:**

**The BiH Alliance of Associations of Refugees and Displaced Persons (SIRL) is a lobby group on behalf of displaced persons and refugees. It has been active in representing the rights of displaced persons in the return process in negotiations with national authorities and humanitarian organizations.**

**ONASA 19 January 2004:**

**In January 2004, the associations of displaced persons and refugees organized a meeting with representatives of authority and humanitarian organizations, agreeing that internally displaced persons from the area of Sarajevo Canton require larger investments in the reconstruction of joint parts of housing buildings.**

See also "[High Representative meets Displaced Persons and Refugee Associations](#)" OHR Press Release 26 January 2000

## **DOCUMENTATION NEEDS AND CITIZENSHIP**

### **Documentation needs and legal status of minorities**

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**Vast majority of returnees have IDs or passports (2006)**

**NADEL, ETH Zurich, Return survey, PP Presentation, August 2006:**

- More than 90% of returnees have an ID-card, and almost 80% hold a passport.

### **Citizenship**

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### **Legal status of minorities**

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**Roma excluded from fundamental political and social rights because of lack of personal documents (2008)**

- Roma are deprived of health care, education, accommodation, and reconstruction and humanitarian assistance because of lack of birth and identity documentation
- Because of lack of documentation, many Roma have been unable to register for “displaced persons” status and some even become stateless
- Initiatives aiming at facilitating registration of Roma are ongoing targeting local authorities and Roma themselves but overall state initiative is needed to address the issue
- The UN CERD Committee urged the Bosnian authorities to facilitate access of Roma to personal documents

**CoE, 20 February 2008:**

91. Lack of personal documents like birth certificates and personal identity documents remains a problem for many, and renders the Roma especially vulnerable. Access to health care services for Roma families is often limited by the lack of health insurance. This is due to a lack of citizenship and/or residency status, as well as from a lack of formal employment. Roma children are often not getting even the most basic vaccinations because of a lack of registration or information, and the percentage of non-immunised Roma is as high as 41 %. Roma women often deliver their children outside of medical institutions due to a lack of funds. These children are consequently left unregistered at birth. Information campaigns with Roma have been carried out to remedy this problem with some success.

92. Most members of the Roma community in BiH do not have any legal title over the land they have resided on for decades or longer, nor can they receive assistance from donors for reconstruction of homes since most donors require proof of ownership. Many Roma settlements were destroyed during the course of the war and Roma regularly face eviction from current settlements. According to OSCE data, 75 % of Roma lack adequate housing and accommodation. The Roma who live in informal settlements are often living in conditions which

threaten their general health. As many of them were living in informal settlements before the war, their return process causes particular challenges.”

**USDoS, 11 March 2008:**

Roma displaced during the war had difficulty repossessing their property as a result of discrimination and because they lacked documents proving ownership or had never registered their property with local authorities. The lack of documentation also prevented them from applying for reconstruction assistance.

**ERRC, 3 July 2006:**

“Many Roma in Bosnia and Herzegovina lack personal documents and, in extreme cases, citizenship. Instances of statelessness have been reported among Roma in Bosnia and Herzegovina. Roma have encountered difficulties in accessing documents including but not limited to birth certificates, personal identification cards, documents related to the provision of health insurance and social aid, and passports. Barriers arising from a lack of documents can be daunting, and the lack of one document can lead to the documents and citizenship threatens the ability of Roma in Bosnia and Herzegovina to gain access to services crucial for the realisation of a number of fundamental rights and freedoms, such as the right to vote, the right to adequate housing, the right to social assistance, the right to education and the right to the highest attainable standards of health. The government should adopt a programme to provide Roma in Bosnia and Herzegovina with all relevant documents necessary for the realisation of fundamental social, economic, civil and political rights.”

**ERRC, 30 March 2006:**

“NGOs and other independent observers today welcomed the concluding observations on Bosnia and Herzegovina of the United Nation's Committee on the Elimination of Racial Discrimination (CERD), made public this week.. (...) The very troubling human rights situation of Roma was a central concern of the Committee. It offered no fewer than seven recommendations devoted specifically to problematic issues of law, policy and/or practice in the area of securing the fundamental human rights of Roma on an equal basis with others in Bosnia. Areas of concern include segregated education, low rates of attendance in primary and secondary education, exclusion from the labour market, lack of legal title for housing, lack of sufficient funding for the official Roma Council, failure to adequately implement the government's Roma Strategy, and a widespread lack of personal documents among Roma. To the latter issue, the Committee urged the Bosnian government “to take immediate steps, e.g. by removing administrative obstacles, to ensure that all Roma have access to personal documents that are necessary for them to enjoy, inter alia, their economic, social and cultural rights, such as employment, housing, health care, social security and education.”

**OHCHR 21 January 2003, p.7:**

“In addressing issues of displacement, the Special Representative[of the Commission on Human Rights to examine the situation of human rights in Bosnia and Herzegovina...] draws attention to the particular situation of Roma displaced persons whose numbers are impossible to estimate, as there are no available data. Lack of birth and identity documentation, discrimination, mistrust, prejudice and lack of awareness mean that many in the Roma community have not been able to register for ‘displaced persons’ status. They are thereby deprived of special entitlements such as health care, education, accommodation, and reconstruction and humanitarian assistance.”

**ERRC, No.3 2003:**

“The lack of personal documents has led to the exclusion of many Roma from fundamental political and social rights such as the right to vote, to have access to health care, etc. The lack of personal documents has also created additional obstruction in the exercise of property rights. The inability to secure documents is related to poverty and low social status in the Romani community and leads to even further exclusion from public life. Both illiteracy and discrimination by public

officials add to the problem. Because of illiteracy, many Roma are unaware of the steps necessary to obtain documents, nor can they fill out the necessary forms. Discrimination by public officials is another serious factor preventing Roma from enjoying fundamental rights. For example, anecdotal evidence indicates that many municipal officials are reluctant to allow Roma to register residence within their municipality. Without a registered residence, one cannot vote nor have access to social benefits.

In some cases, the lack of one document, for instance a birth certificate, can lead to a situation where other documents cannot be secured. When a child is born in BiH it must be registered. This registration allows for the issuance of a birth certificate. Both the parents and hospital authorities where the child is born are obliged to inform the local Birth Registry Office of the fact of the birth. Parents must then go to the Birth Registry Office with their personal ID documents to register the child. There is no fee for registration of the birth - fees are charged only for copies of the birth certificate. If the birth is not registered at the time of birth, it is possible to register the birth at a later date. However, such administrative procedures remain unclear. Many Romani children in BiH are not born in hospital due to the fact that their parents cannot afford to pay the hospital fees. If a birth is not registered, the child cannot receive a birth certificate nor a personal identification number (JMBG). In order to obtain an identification document, an individual must provide a birth certificate with a personal identification number imprinted on it. And an individual must present an identification document in order to register residence. Without a registered residence one cannot vote nor have access to utilities. It may also prevent the registration of children in schools. Lack of residence documents poses particular problems for Roma residing in informal settlements.”

**OSCE, “Overcoming exclusion”, 2004:**

“The [OSCE] Mission [to BiH] is assisting the Roma in civil registration, through a pilot project implemented in Eastern Bosnia, by facilitating dialogue with local authorities to simplify the complex procedures of late registration from one side, and to work on an information campaign to raise awareness of the Roma population about the importance of registration.”

**See also:**

**Concluding observations of the Committee on the Elimination of Racial Discrimination: Bosnia and Herzegovina, CERD/C/BIH/CO/6, 11 April 2006 (see source below)**

**The non-constituents: rights deprivation of Roma in post-genocide Bosnia and Herzegovina, BiH Country report, European Roma Centre, February 2004**

**and Report on Bosnia and Herzegovina, European Commission against Racism and Intolerance, 15 February 2005, par.58-71**

**See also in other sections of this country profile:**

**“Efforts to facilitate the integration of Roma children at schools” in the Education section**  
**“Displacement aggravates the living conditions of Romas” in Subsistence needs section**  
**“Displaced Roma, a particularly vulnerable group” in Pattern of displacement section**  
**“Roma continue to struggle to access property rights” and “Some measures taken to legalise Roma settlements” in Property issues**

**Minority Rights Law recognises minority groups (2008)**

- BiH has three constituent groups (Bosniacs, Serbs and Croats) and 17 national minorities
- BiH is State Party to the Framework Convention for the Protection of National Minorities

- The Law on the Protection of the Rights of the Members of National Minorities was passed by the Parliamentary Assembly of Bosnia and Herzegovina in April 2003
- Article 3 of the Law on the Protection of the Rights of the Members of National Minorities recognizes Roma as a minority group
- The Law covers aspects such as education and culture
- jThe rights introduced in the law can only be implemented through sectoral legislation at the State level or via secondary legislation at Entity level, which has not been fully done yet
- The Law provides for the establishment of the Council of National Minorities, which is not operational yet
- The Advisory Committee of the FCNM considers constituent people as minorities where they live in areas where another constituent people is in majority
- The CoE Commissioner for HR considers it important to adopt an approach from ethnicity to citizenship and from group rights to individual rights
- In its current form, the law is reserved for citizens which raises complex issues given the problem of statelessness among Bosnian Roma

**CoE, 20 February 2008:**

"76. The Constitution of Bosnia and Herzegovina defines Bosniacs, Serbs and Croats as "Constituent Peoples" while the rest are referred to as "the Others". According to the 1991 census, the population of Bosnia and Herzegovina consisted of Bosniacs (43.5%), Serbs (31.2%), Croats (17.4%), Yugoslavs (5.5%) and Others (2.4%). The category of "others" was composed of members of 17 national minorities.

77. Bosnia and Herzegovina is a state party to the Framework Convention for the Protection of National Minorities (FCNM), but it has yet to ratify the European Charter for Regional or Minority Languages. It did not enter any declaration of reservation on the personal scope of application upon accession to the FCNM.

78. The Advisory Committee of FCNM carried out a visit to BiH in February 2004<sup>43</sup>. It provided a detailed analysis of the implementation of the Convention in BiH in its Opinion adopted on May 2004.<sup>44</sup> BiH submitted its second report to the Advisory Committee recently in August 2007. Based on this report, and other information available, the Advisory Committee will again provide a detailed assessment of the implementation of the FCNM in BiH.

79. The adoption of the Law on the Protection of Rights of Persons Belonging to National Minorities in 2003 (hereinafter the Law on National Minorities) was important in improving the legal protection of national minorities in BiH and in raising awareness of the rights of minorities. The Law on National Minorities defines the term "national minority" in Article 3: "A national minority, in the sense of this Law, is a part of the population - citizens of Bosnia and Herzegovina - that does not belong to one of the three constituent peoples of Bosnia and Herzegovina, and it consists of the people of the same or similar ethnic origin, same or similar tradition, customs, religion, culture, and spirituality, and close or related history and other features. Bosnia and Herzegovina shall protect the position and equality of persons belonging to national minorities: Albanians, Montenegrins, Czechs, Italians, Jews, Hungarians, Macedonians, Germans, Poles, Roma, Romanians, Russians, Ruthenians, Slovaks, Slovenians, Turks, Ukrainians, and others who satisfy requirements from paragraph 1 of this Article."

80. The Law covers several important areas of life, such as education, culture, participation and media and provides a good starting point by laying down the overall legal framework. The rights introduced in this law can, however, only be implemented through sectoral legislation at the State level or via secondary legislation at the Entity/Cantonal level. These laws have not yet been fully realised.

81. The Law provides for the establishment of the Council of National Minorities. The Decision on the Establishment of the Council of National Minorities was adopted in May 2006, but the Council has yet to start functioning. Once operational, it could provide an important contribution to the promotion of rights of national minorities by enhancing their participation in matters that concern them.

82. In Bosnia and Herzegovina, the three constituent peoples are not considered as national minorities. However, *de facto* persons belonging to one of the three constituent peoples often find themselves in a minority position in the area where they reside, thus making them vulnerable and subject to various types of discrimination. In view of this fact, the Advisory Committee considered in its Opinion that “Bosniacs and Croats in the Republika Srpska as well as Serbs in the Federation could also be given the possibility - in case they so wish - to rely on the protection provided by the Framework Convention as far as the issues concerned are within the competence of the Entities.” It went on to say that “the same possibility could also be given to the Croats and the Bosniacs living in the Cantons where they constitute a numerical minority”. The Advisory Committee “did not intend to imply a weakening of their status as constituent peoples as provided for by the Constitution, but merely aims at offering an additional tool to respond to a specific need for protection.”

83. The Commissioner finds the view adopted by the Advisory Committee useful and practical and recommends that it should be implemented. The Commissioner firmly believes that an approach “from ethnicity to citizenship” and “from group rights to individual rights” should be adopted by the authorities of Bosnia and Herzegovina.

84. The recent conflict continues to have an affect not only on the socio-economic conditions in BiH, but also on inter-ethnic relations. The Commissioner considers it extremely important to continue efforts towards strengthening intercultural dialogue and mutual understanding among all persons irrespective of their ethnic, religious or cultural identity. The role of religious and political leaders is crucial in this respect, as is the role of the media. Dealing with the past in an objective and factual manner is a crucial element of the process of healing and reconciliation.“

#### **ERRC No.3 2003:**

“The Law on the Protection of the Rights of the Members of National Minorities (Zakon o zaštiti prava pripadnika nacionalnih man-jina), debated by the legislature in Bosnia and Herzegovina for a considerable time, was finally passed by the Parliamentary Assembly of Bosnia and Herzegovina on April 1, 2003 and came into effect in May 2003. Previously, the House of Representatives of Bosnia and Herzegovina adopted the draft Law on Minorities in June 2002. This version was then sent to the House of Peoples for approval, which however refused to debate the bill because the House of Peoples had one year earlier adopted a different version of the Law on Minorities. In accordance with the Rules of Procedure of Parliament, a Joint Commission was formed for the purpose of harmonising the two versions of the Law on Minorities into the version that was adopted.

The new minority rights law brings important changes to the legal status of Roma in Bosnia and Herzegovina. At Article 3, the law officially recognises Roma as a minority group and has thus changed the legal situation with regards to their rights and duties. The law bans discrimination against minority group members and their forced assimilation in Article 4. The law protects the rights of Roma and all other national minorities to preserve and develop their ethnic, cultural, linguistic and religious identity. National minorities have the right to use their language both publicly and privately, according to Article 11. Under Articles 13 and 14, national minorities have the right to set up their own private educational institutions, as well as to receive educational materials and teaching in their own language in public schools, if they so request. They would also have the right to be represented in public authority bodies and in all levels of the civil service, as defined under Article 19.

In its current form, however, the law reserves such rights for citizens of Bosnia and Herzegovina. This is particularly problematic taking into account the widespread problem of statelessness among Bosnian Roma.”

***For more information, see the [European Center for Roma Rights website](#).***

# ISSUES OF FAMILY UNITY, IDENTITY AND CULTURE

## Family unity

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### **Missing persons and disappearances: 16,000 cases have still not been solved (December 2003)**

- Some 16,000 persons remain unaccounted for (2003)
- In 2003, the Working Group on Persons Unaccounted For reconvened for the first time since 1999
- Investigations continue to be hampered by lack of cooperation from local authorities, in particular in the RS
- Exhumations have been implemented under an OHR-mediated Agreement reached in 1996
- The ICRC has received request to trace more than 20,000 missing persons since the war years, of which about 3,143 have been accounted for
- In 2003, the Human Rights Chamber ruled that by failing to disclose information to the relatives of the fate and whereabouts of their loved ones the RS violated their human rights

### **ICRC, 17 October 2003:**

“Eight years after the Dayton Agreement, large numbers of people – some 16,000 according to information collected by the ICRC from close relatives – are still unaccounted for in Bosnia-Herzegovina.”

### **AI 5 March 2003, p.1-2:**

“‘Disappearances’ represent perhaps the largest unresolved human rights issue in Bosnia-Herzegovina. The number of victims and their relatives is huge. Virtually no cases have resulted in those responsible having been brought to justice and the trauma of relatives and dependants left behind has not healed.

[...]

Most ‘disappearances’ took place in the context of armed conflict or related military operations in areas that were bordering on areas of direct fighting. Though many of the ‘disappeared’ were members of one of the armed forces active in the conflict, civilians – including women and children – equally became victims of this violation. The fact that ‘disappearances’ occurred in the context of a devastating and multi-sided war has made it even harder to establish the fate and whereabouts of most of these people. At the end of armed conflict in Bosnia-Herzegovina, an estimated 27,000 people from all sides to the conflict, but predominantly Bosniak (Bosnian Muslims) remained unaccounted for,[...] a number considered to be among the highest in the world.[...]”

### **U.S. DOS 31 March 2003, sect 1b:**

“Under an OHR-mediated agreement reached in 1996, exhumations were carried out by the Bosniak, Bosnian Croat, and Bosnian Serb commissions for missing persons. The commissions were free to carry out exhumations and collect unburied mortal remains in territory under the authority of another majority ethnic group using an established notification system. The International Commission for Missing Persons (ICMP), which operated in all countries of the



former Yugoslavia, reported that the remains of an estimated 750 persons had been recovered in the country as of mid-October, and an additional 60 or more sets of mortal remains were exhumed in the intraentity process. The largest gravesite to be uncovered during the year was found in Kamenica and was believed to contain, along with other gravesites in the area, approximately 1,000 sets of mortal remains of victims from Srebrenica, which were expected to be recovered by the end of the year.

The ICMP continued developing its centralized system of DNA identification, finishing construction of its DNA laboratory in Banja Luka. The ICMP collected 9,729 blood samples by the end of September and was expected to have collected 13,000 samples by the end of the year. During the year, 18,838 DNA blood profiles were obtained. ICMP also received 4,000 bone samples resulting in 2,519 DNA bone profiles during the year. By the end of the year, 1,250 DNA matches had been made that should result in the identification of approximately 750 missing persons.

The Missing Persons Institute (MPI) is a state institution that opened in August 2000 to serve as a working platform for entity-level commissions on missing persons under guidance from the ICMP. During the year, ICMP instigated the separation process of MPI from ICMP, as MPI will eventually take over responsibility for recovering and identifying human remains and supporting families of the missing.

[...]

The International Committee of the Red Cross (ICRC) reported that since 1995 it had received requests from family members to trace 20,845 persons missing from the war years, including 17,330 Muslims, 740 Croats, 2,643 Serbs, and 132 others. A total of 3,143 of these persons had been accounted for (318 of whom were found alive) by year's end. The ICRC reconstituted the Working Group for Tracing Missing Persons, which was created by the Dayton Peace Agreement to serve as a channel for passing tracing requests to local authorities. This group had been suspended in 1999 due to lack of cooperation from local authorities.

RS compliance with the Human Rights Chamber's decisions ordering full investigations into several wartime disappearance cases improved somewhat during the year [...]. For example, the RS fully complied with the 1997 Human Rights Chamber's order to conduct a full investigation into the disappearance of Father Tomislav Matanovic from Prijedor in 1995 [...]. Pressure from the IPTF was a factor in the successful conclusion of this investigation. However, the RS authorities ignored requests for investigations in numerous other cases."

**AI 31 March 2003:**

"On 7 March [2003] the Human Rights Chamber of Bosnia and Herzegovina, a domestic court including international judges, issued its decision in a case brought by 49 relatives of missing men and boys from Srebrenica. The Chamber ruled that by failing to disclose any information to the relatives of the missing of the fate and whereabouts of their loved ones the RS violated their human rights. The RS authorities were ordered to immediately disclose such information as well as the location of mass grave sites and to open a comprehensive investigation into the events in Srebrenica. In addition, the authorities were ordered to pay a total of 4 Million Konvertible Marks (approximately 2 Million Euros) for the collective benefit of all applicants and families of Srebrenica victims to the Foundation of the Srebrenica-Potocari Memorial and Cemetery."

See, *"Bosnia-Herzegovina: Honouring the ghosts – challenging impunity for 'disappearances,'" Amnesty International, 5 March 2003*

## **Households exposed to domestic violence as a result of displacement and return (1999-2003)**

- Roma and refugee children are particularly vulnerable to violence
- Violence against women is not adequately addressed by the authorities

### **UNDP June 2003, p.39:**

"With regards to the rights of the child, instances of violence against children in BiH – or more specifically the disrespect of fundamental rights of the child such as the right to education in the case of Roma children – are striking. One study pointed to violence against children as a sociological phenomenon that has been on the rise after the war, and to refugee and Roma children as particularly vulnerable sub-categories.[1]"

[Footnote 1] See 'Sa one strane tišine', Izvještaj o istraivanju na temu nasilja nad djecom u BiH ["Beyond Silence: A Study of Violence against Children in BiH"], Save the Children, Sarajevo, 2002.

### **OCHA 31 December 2002:**

"Continued abuses of the rights of women and children, often resulting in the break-up of family units and related displacement, as a result of lingering war scars and the lack of a legal protection framework, is also of priority concern."

### **OHR/HRCC September 1999, para. 90:**

"Violence against women is not defined in any domestic law nor have there been any official instructions or policy statements regarding the problem by government at any level. In Bosnia, domestic violence against women has increased due to: difficult transitions when women became heads of households, while men went to war, compounded by tensions when the men returned home, often to underemployment [or] unemployment; forced migration resulting in the loss of community which might otherwise provide a safety-net for the strains on families; and post-traumatic stress not only on those who fought during the war but those who remained behind. Given the lack of legal definition of domestic violence, courts are left to decide what measures to take, if any against perpetrators."

## **Religion**

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### **Continuing violence and vandalism against ethnic-religious minorities (2008)**

- Respect for religious freedom improved slightly, compared to 2006, although the will to investigate and prosecute abuses remained weak, particularly where minority religions were concerned
- Societal abuses and discrimination based on religious belief continued to restrict the ability of adherents of minority religions to worship as they pleased
- Administrative and financial obstacles to rebuilding religious structures impeded the ability of religious minorities to worship freely and delayed the return of minority refugees in many areas
- Local authorities frequently allowed or encouraged an atmosphere in which abuses of religious freedom could take place

### **USDoS, 11 March 2008:**

The law provides for freedom of religion; however, societal abuses and discrimination based on religious belief restricted the ability of adherents of minority religions to worship as they pleased. The Law on Religious Freedom provides for freedom of religion, ensures legal positions of churches and religious communities, and prohibits any form of discrimination against any religious community. The law also provides the basis for the establishment of relations between the state and religious communities. During the year parliament ratified a concordat between the Holy See and BiH. In practice, respect for religious freedom improved slightly during the year, compared to the preelection climate of 2006.

Entity and local governments and police forces frequently allowed or encouraged an atmosphere in which abuses of religious freedom could take place. Compared to 2006, minor attacks on religious objects and religious officials decreased, but a systematic obstruction of religious freedom in several high-profile cases remained. The reluctance of police and prosecutors to aggressively investigate and prosecute crimes against religious minorities remained a major obstacle to safeguarding the rights of religious minorities.

Governments at the local level restricted religious services and ceremonies. In Bratunac in the RS, the Serb majority municipal assembly repeatedly denied a permit for the Islamic community to build a cemetery and memorial on its property surrounding a downtown mosque. Bosniak organizers planned to bury 98 victims of a 1992 massacre in Bratunac in which more than 600 persons, including the local imam, were killed. Organizers planned to hold the burials at the mosque on May 12, the 15th anniversary of the massacre, but Serb veterans' associations and local residents protested the planned burials. The mayor and assembly denied the building permit, claiming that the proposed cemetery and memorial had not been envisioned in the town's urban plan. After more than a year of repeated requests and appeals from Bosniak organizers, the RS government and the international community intervened, and the parties reached an agreement that enabled the burials to take place at a different location.

[...]

The State Law on Religious Freedom guarantees the right of every citizen to religious education. The law calls for an official representative of the various religious communities to teach religious studies in all public and private schools. However, the law was not always fully implemented, particularly in segregated school systems or where there was political resistance from nationalist party officials at the municipal level. Schools often offered religious instruction only in the municipality's majority religion. Authorities sometimes pressured parents to consent to religious instruction for their children. In some cases, children who chose not to attend religion classes were subject to pressure and discrimination from peers and teachers.

[...]

Ethnically-motivated religious violence was reported in many municipalities and was directed at ethnic symbols, clerics, and religious buildings. Civil society representatives noted that members of the BiH Council of Ministers tended to condemn these incidents only in cases where their own ethnic group was the victim.

There were a number of acts of violence, vandalism, and theft against Islamic religious targets during the year.

[...]

There were a number of controversial and highly politicized cases involving the illegal construction of religious buildings or monuments on private or government-owned land. In these cases the buildings or monuments were built to send a political message to minority believers about the dominance of the majority group in that area, creating ethnic tensions and impeding the process of reconciliation.

**U.S. DOS 18 December 2003:**

"The State Constitution of Bosnia and Herzegovina and the entity constitutions of the State's two constituent entities, the Federation of Bosnia and Herzegovina and the Republika Srpska, provide

for freedom of religion, and individuals generally enjoy this right in ethnically mixed areas or in areas where they are adherents of the majority religion; however, adherents of minority religions in non-ethnically mixed areas have had their right to worship restricted, sometimes violently.

There was no change in the status of respect for religious freedom during the period covered by this report. After a significant increase in 2001-2002 in the number of refugees returning to areas in which they constituted a religious minority, the number of returns sharply declined during the first 5 months of 2003. This decline likely resulted from a combination of factors, including the success of nationalist parties in the October 2002 elections, poor economic conditions, an increase in return-related violence, deaths and injuries caused by landmines, and frustration over problems with property restitution.

Religious intolerance in the country directly reflects ethnic intolerance because of the virtually indistinguishable identification of ethnicity with one's religious background. Ethnic Bosnian Muslims (Bosniaks) generally are associated with Islam, ethnic Croats with the Roman Catholic Church, and ethnic Serbs with the Serbian Orthodox Church. Despite the constitutional provisions protecting religious freedom, some discrimination against religious minorities occurs in virtually all parts of the country. In some communities, local religious leaders contributed to intolerance and an increase in nationalist feeling through public statements and on occasion in sermons. Following the October 2002 elections, which returned nationalist political parties to power, the number and severity of violent incidents directed against refugee returns have increased sharply. [...]

Ethnic cleansing during the 1992-1995 war caused internal migration, which almost completely segregated the population into separate ethno-religious areas. Increased levels of returns in 2001-2002 slowed markedly in 2003, leaving the majority of Serbian Orthodox adherents still living in the RS and the majority of Muslims and Catholics still living in the Federation. Within the Federation, distinct Muslim and Catholic majority areas remain. Returns of Serbian Orthodox adherents and Muslims to their prewar homes in Western Bosnia Canton and Muslims to their prewar homes in eastern Bosnia near Srebrenica have shifted notably the ethno-religious composition in both areas. [...]

The weak administrative and judicial systems effectively restrict religious freedom and pose major obstacles to safeguarding the rights of religious minorities. In some cases, the RS Government, local governments, and police forces made some improvements in protecting religious freedoms, although problems remained, including an atmosphere in which abuses of religious freedom may occur.

*For more information, see the International Religious Freedom Report 2007 for BiH, <http://www.state.gov/g/drl/rls/irf/2007/90167.htm>*

## **National Identity**

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### **The specific connotations of the term “national identity” in BiH (2007)**

- In BiH, “nationality” is not the same as citizenship
- Nationality is strongly linked to religion

**UNDP, 7 July 2007, Conclusions p.3:**

Identity measures include both religious affiliation and identity. Though it is associated with religion, identity plays a critical role. The survey questionnaire administered a two-stage question on identity which reveals that more than eight in ten respondents do not have a problem with BiH national identity. Nearly half say they are primarily BiH citizens; most others subscribe to a dual identity. Critically, 14.2% or 504 out of 3,580 respondents reject a BiH citizen's identity and thus ascribe to an exclusive identity ('the 504').

**OSCE, 1 December 2006:**

In a way, the troubles with education have their roots in the recent past. Although we sometimes look upon Josip Broz Tito's Yugoslavia, with its ideal of "brotherhood and unity," as a time of multi-ethnic, if somewhat enforced, harmony, when students of different ethnicity attended classes together, concepts created or at least reinforced in the Socialist Federative Republic of Yugoslavia left a lasting legacy of "national" identities. Dr. Tone Bringa, in her book *Being Muslim the Bosnian Way*, explains it this way: "The concept of 'nationality' in a socialist state differs significantly from that within western European discourse. While in western Europe citizenship and nationality are synonyms and nationality refers to the relation of a person to a particular state, in the multiethnic socialist state national identity was different from and additional to citizenship. Thus for instance, in the former Yugoslavia, everybody held 'Yugoslav' citizenship but no one held Yugoslav nationality." Dr. Bringa then illustrates this abstract concept with the following very personal example:

Through the generations religious affiliation has also become ethnic identity...At the beginning of my stay in rural central Bosnia, when I was not known to people there, I was often asked, 'What *nacije* are you? I thought they were asking about my citizenship and said Norwegian, but I was soon to learn that this was not what I was being asked...The answer which made sense was not Norwegian but Protestant.

The issues at the heart of the fragmentation of the country's educational systems, then, have less to do with problems of pedagogy than with the preservation of this kind of "national" identity – of the "nacije" or "nation." As Maria Todorova points out in an essay called "The Ottoman Legacy in the Balkans," language and religion are the "two central foci around which Balkan ethnicity and nationalism were constructed." These two subjects – along with the related subjects of literature, history, and political geography – are precisely those that remain separate, at variance, and walled off from one another in the three different curricula found in the country's schools.

As a result, in Bosnia and Herzegovina at the moment, education is more reflective of the current divisions in the country's political life and political institutions than it is of the transformation of them that is the goal of our post-conflict rehabilitation efforts. This is precisely where the *raison d'être* for and the importance of this Mission's work in education lies.

## PROPERTY ISSUES

### Overview of restitution process

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**While property repossession is largely completed unresolved cases affect most vulnerable categories (2007)**

- Implementation rate of property repossession is estimated to be between 93 and 99% depending on the source
- The Domestic Commission on Real Property Claims (DCRPC) took over from the CRPC in 2003
- Transfer by DCRPC of thousands of unresolved cases to municipalities at the end of 2004 explains that the implementation rate has improved slowly since 2004
- Former Yugoslav officers who were living in military apartments are still not allowed to repossess their flats
- Female heads of households, widows and Roma face difficulties to repossess their property due to lack of property titles

**For latest [statistics on property](#)**

**OSCE, March 2007, p.9:**

In spite of the high rate of execution of the positive decisions, local authorities still tend to hamper in a variety of ways the execution of decisions on property return.

Although in B-H the deadlines for the restitution of flats expired, there is still a small number of pending cases. In a large number of municipalities all cases were solved. According to some estimates, there are less than 1% of pending cases of the total number of submitted claims. These cases are mainly related to the flats which were subject to exchange or to the so-called "military apartments" in the Federation of Bosnia and Herzegovina. (See section further below on Military Apartments).

**COE, 25 April 2005, par 58:**

"The implementation rate of the property repossession process in BiH, considered as a major achievement in the country, was estimated by UNCHR at 93% by the end of December 2004 (see "Update on Conditions for Return in Bosnia and Herzegovina", UNHCR, January 2005). According to BiH authorities, the implementation rate was much higher by mid-March 2005 and had reached 99.5%. The remaining percentage concerned mainly claims still being processed in the municipality of Banja Luka. In the meantime, Banja Luka has also completed implementation of property law having issued and enforced decisions upon all claims filed before 17 March 2005."

**USDOS, 8 March 2006:**

"The Domestic Commission on Real Property Claims (DCRPC) processed claims for property wrongfully taken during the 1992-95 war that were not adjudicated by the Commission for Real Property Claims (CRPC), whose mandate ended in 2003, or by municipal housing authorities. During the year the DCRPC resolved 98 cases. As of July less than 7 percent of the claims for property seized during the war remained outstanding; most of the settled claims were resolved in favor of the prewar owners/occupants. Because the DCRPC transferred thousands of unresolved cases to municipalities for adjudication at the end of 2004, only 12 of 127 municipalities had

resolved all pending claims by July 30. Banja Luka municipality in the RS and Sarajevo Canton in the Federation had the highest numbers of unresolved claims.

In September 2004 the Constitutional Court upheld a Federation law prohibiting ownership of property in the Federation by anyone who served in the Yugoslav military after May 19, 1992. The ruling affected former Yugoslav officers, mostly Serbs, who claimed four thousand apartments they had abandoned during the war. The court also ruled that the Federation could apply a Yugoslav legal principle that prevents a citizen from claiming tenancy rights to more than one apartment at a time; this adversely affected the officers' claims, since most had apartments elsewhere, primarily in Serbia. Even with the court ruling, the DCRPC must still render official legal decisions in all these cases.

The Constitutional Court received 2,700 new cases during the year. By the end of the year, the court had resolved 1,693 cases, including all but 10 of the cases filed in 2004. The court found constitutional violations in approximately 5 percent of the cases it considered. Authorities enforced the Constitutional Court's orders in all but a few cases."

**UN CHR, 29 December 2005, par 39:**

"Female heads of household, frequently widows of war veterans or of civilian war victims or missing persons, often lack property titles, which prevents them from submitting claims for both repossession and reconstruction of their houses. Some women have lost access to their pre-war property due to divorce or because their husband has abandoned them. Some widows did not formally inherit their late husband's property, making them dependent on the goodwill of parents-in-law to obtain access to their property. A number of war orphans have also not been able to reclaim property, as they are not included in the Property Law Implementation Plan, and institutions with guardianship over these children often failed to claim their rights. The situation of the Roma is particularly problematic."

***For more information on Roma and property see in this section "Roma continue to struggle to access property rights (2006)"***

***For more information on military apartments, see in this section: "Continued restrictions on ability to repossess military apartments in BiH (2006)"***

**War time and early post-war property legislation contributes to ethnic cleansing (2005)**

- During the war, homes left empty by their inhabitants were allocated to displaced persons
- Legal provisions to allocate empty properties aimed at facing housing needs of vulnerable displaced but mostly benefited to the elites
- Immediate post-war legislation attempted to consolidate the rights acquired by temporary occupants
- Local authorities tried to cancel the rights of displaced persons to socially owned apartments
- Socially owned property was a type of strong tenure specific to former Yugoslavia countries
- Authorities who had allocated housing to DPs strongly opposed to any restitution process

**OHR, 15 May 2000:**

"As a result of the armed conflict in Bosnia and Herzegovina, hundreds of thousands people fled their homes in the country's villages and cities. Local authorities, faced with an influx and outflow

of refugees and displaced persons (DPs), introduced a series of laws aimed at declaring these properties abandoned and accommodating the in-coming refugees and displaced persons by providing them with legal authority to occupy these abandoned properties. Simultaneously, some displaced persons moved into vacant property without the involvement or authorization of the local authorities.

In Bosnia and Herzegovina, like the other former Republics of the Socialist Federal Republic of Yugoslavia, there were essentially two types of property. Property was either privately-owned, which is the common method of ownership in the free market economies, or it was socially-owned, a form of property entitlement which is stronger than a rental agreement, but not as strong as private property.

Socially-owned property is different in fundamental respects. First, the property is always an apartment and is usually located in an urban area. Employees of state-owned enterprises or organs, such as the municipalities or government ministries, paid a portion of their salary to a housing fund. The managers of the enterprises or state organs used the housing fund to construct apartments for the employees. Employees who were entitled to an apartment, as set out in the Law on Housing Relations, were allocated apartments and, once they actually moved into the apartment, they became occupancy right holders (ORHs). An ORH exercised almost unlimited rights over the apartment, to include passing the apartment on to his/her children. However, and most importantly, the ORH could not sell the apartment and s/he must occupy the apartment. An occupancy right could be cancelled if the ORH failed to occupy the apartment for six months or more.

Both private property and socially-owned property were declared temporarily abandoned by local authorities, who allocated these properties to refugees and DPs, as well as to politically well connected people. Laws were passed establishing how the owner could return and reclaim possession of his/her property. Local authorities invoked the failure to occupy these apartments by those who fled during the conflict to cancel hundreds of thousands of occupancy rights. The authorities then re-allocated these apartments to others, usually DPs and refugees, but again, also to some members of the political class."

**Marcus Cox, Madeleine Garlick, 2003:**

"During and in the aftermath of the Bosnian war, property laws were used by all three sides as a tool for furthering ethnic cleansing. Within the three separate political entities which emerged at the outset of the conflict, war-time regimes seized control of property "abandoned" through the displacement of other ethnic groups, initially on a temporary basis to meet the humanitarian needs of incoming displaced persons. These emergency measures later created an array of legal and administrative obstacles to displaced persons returning to their homes, and over time developed into a legal basis for the permanent dispossession of other ethnic groups." [...]

**OHR, 15 May 2000:**

"After the signing of the General Framework Agreement on Peace in Bosnia and Herzegovina, the international community, citing Annex VII of the Peace Agreement, which provides that DPs and refugees have the right to have restored to them property of which they were deprived in the course of hostilities since 1991, demanded that the two Entities of Bosnia and Herzegovina implement a claims process that would allow displaced persons and refugees to reclaim their homes."

**Marcus Cox, Madeleine Garlick, 2003, pp.67-69:**

"Not surprisingly, in the aftermath of the war, no political authority was willing to contemplate the eviction of members of its own ethnic group in favor of returning minorities. According to one observer, the view that members of other ethnic groups had forfeited the right to their homes was so widespread that "it pass[ed] as respectable in political society everywhere in Bosnia". [...] The Bosnian authorities, who retained a broad political commitment to a multi-ethnic Bosnia, fought



for the right of Bosniac displaced persons to return to Republika Srpska, but made no effort to support the return of Serbs to Sarajevo and other Bosniac-majority urban centers. The Serb and Croat regimes engaged in aggressive campaigns to encourage their own populations to settle permanently in areas under their control, so as to cement their territorial claims."

**Charles Philpott, Journal of Refugee Studies, February 2005:**

"The immediate post-war period, rather than seeing a reversal of wartime allocations, witnessed their consolidation."[...] In the case of socially-owned property, authorities used the absence of those who had fled or been expelled during the war as a pretext for canceling their occupancy rights under the pre-war legislation (Article 47, Law on Housing Relations, Official gazette of the Socialist Republic of Bosnia and Herzegovina, No 14/84). In other cases, occupancy rights were cancelled *ex lege*. In particular, in the Federation, an amendment to the wartime Law on Abandoned Apartments [...] allowed displaced occupancy right-holders only seven days (15 days for refugees) to return or face permanent cancellation of their occupancy right. [...]. In the meantime, local authorities busied themselves handing out new 'permanent' occupancy rights to the abandoned flats, mainly to members of the ethnic group that dominated the area-post war.[...]Without an effective mechanism by which to repossess their occupied real property, the right to return set out in Annex 7 of Dayton was an empty promise for most IDPs and refugees."

**Dayton's provision on the right to pre-war home face strong obstruction from authorities 1996-1999 (2006)**

- Annex VII of the Dayton Peace Agreement provides that displaced persons and refugees have the right to have restored to them property of which they were deprived since 1991
- Annex 7 calls the Parties to repeal domestic legislation with discriminatory intent or effect
- Following intense pressure from the international community, new property laws were passed by the Federation in April 1998 and by Republika Srpska in December 1998
- The Office of the High Representative (Human Rights/ Rule of Law Department) has been deeply engaged in restructuring the legal regime which governs property rights
- Faced with obstruction from authorities, the Office of the High Representative takes legislative measures in 1999 to harmonise and improve efficiency of property laws passed in 1998
- Property laws provide that claims for repossessions will be processed by the municipality where the property is located.
- Local authorities have to determine in their decision the rights of the claimant and the right to alternative accommodation of the temporary occupant
- Legal requirement to provide alternative accommodation to vulnerable temporary occupants is abused by authorities to obstruct property repossession
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**Catherine Phuong, FMR, April 2000:**

"In Annex 7 of the Dayton Peace Agreement (DPA), Article I states that "all refugees and displaced persons have the right freely to return to their homes of origin. They shall have the right to have restored to them their property of which they were deprived in the course of hostilities since 1991 and to be compensated for any property that cannot be restored to them."For the first time, it was stated that not only should refugees be able to repatriate to their country of origin but also that IDPs should be able to return to their pre-war homes. Such an ambitious explicit commitment to ensure that each refugee or IDP is able to return to pre-war accommodation was made in the aftermath of ethnic cleansing which resulted in the creation of almost entirely homogenous territories in communities which had been ethnically mixed. An implicit objective of

the DPA has been the reversal of ethnic cleansing via promotion of the return of populations forcibly displaced during the war."

**Paul Prettitore, World Bank, June 2004:**

"Annex 7 establishes not only individual rights for refugees and displaced persons, but also includes certain obligations on the Parties to ensure the return of refugees and displaced persons. [...]Article I(3) obliges the Parties to, among other things, take the necessary steps to prevent any activities which would impede safe return of refugees and displaced persons. Most importantly for the right to repossess lost property, this article specifically obliges the Parties to undertake "the repeal of domestic legislation and administrative practices with discriminatory intent or effect." This provision was used as a basis to adopt post-conflict legislation that annulled legislation used to deprive refugees and displaced persons of their property during the conflict. In addition, the right to repossess property or be compensated is elevated to a constitutional right of refugees and displaced persons. "

**OHR/OSCE/UNHCR/UNMIBH/CRPC, October 2000:**

"In 1996, the international community in BiH initiated a sustained campaign to repeal wartime laws on abandoned property, and create a legal framework for property repossession. The campaign met with intense resistance, and required all of the political leverage of the international community over an extended period of time to achieve results. In April 1998, the first legal framework for property repossession was adopted in Federation legislation, followed in December 1998 by like legislation in Republika Srpska. A further intensive campaign, involving the use of the High Representative's Bonn powers, was required in order to strengthen and harmonise the laws. In their current form, the laws have been in place since October 1999."

**Marcus Cox, Madeleine Garlick, 2003:**

"From December 1998 onward, the international mission in Bosnia began a belated but dramatic process of evolution. Originally strong on the military side but weak and disorganized in its civilian functions, it began to develop certain attributes of a protectorate. In particular, the High Representative, nominated as the leading civilian official under the Dayton agreement, was granted the authority to overcome obstacles to the peace process by imposing laws and dismissing domestic officials. These powers allowed for a new strategy on property repossession. Through an extensive legislation reform campaign, the High Representative repealed discriminatory rules, reaffirmed the rights of the pre-war owners and occupants and established an administrative property claims process at municipal level, under close supervision.

**Catherine Phuong, FMR, April 2000:**

"In April 1999, [the High Representative] over-ruled decisions taken during and after the war to permanently reallocate some flats which had the effect of preventing the return of the former occupant. In October 1999, he made a series of major amendments to property legislation"

Key aspects of the property laws as amended in October 1999:

Note: the property laws adopted in 1998 in Federation and RS are called "Laws on Cessation" ( in Federation: Law on cessation of the application of the law on abandoned real property and Law on cessation of the application of the law on abandoned apartments. In RS, Law on cessation of application of the law on use of abandoned property)

"The claims process follows an administrative, rather than a judicial process. A large number of claims for repossession of property would have overwhelmed BiH's judicial system, and claimants would be forced to wait for years for resolution of their cases. In addition, the BiH court system at the end of the conflict was viewed as ethnically biased, in particular as some refugees and displaced persons had been deprived of their property through court proceedings.[...]

First and foremost, the Laws on Cessation cancelled the further application of laws on abandoned property. They also obliged the competent authorities to issue decisions on both the rights of owners to repossess the property, and the rights of temporary occupants. The temporary

occupant is entitled to remain in the property under the applicable legal conditions until a decision has been issued in favor of the claimant. In order to process the claims, Bosnian authorities established housing offices in every municipality in BiH. Claimants could submit claims for private property to either the municipal housing office or CRPC. Claims for socially-owned property were to be made to the municipal housing office, but CRPC would also accept claims if the claimant could demonstrate the municipal housing office did not accept the claim or did not issue a decision within the legally prescribed time period." [...]

**Paul Prettitore, World Bank, June 2004:**

"The rights of the temporary occupants responded to the need to protect vulnerable displaced persons but were often abused by authorities to refuse to implement property legislation and consolidate ethnic cleansing.

"The deadline for the vacation of property subject to a claim for repossession under the Laws on Cessation depends on the housing needs of the temporary occupant. Such a determination was necessary for a number of reasons. Since a number of temporary occupants were not vulnerable persons, there was no reason to provide them with alternative accommodation.[...]

In addition, as a result of damage caused by the conflict and the fact that little new housing was constructed during this period, there was housing shortage in most parts of BiH. This housing shortage was exaggerated in most cases by housing officials as an excuse not to return abandoned property. For these reasons, available housing space had to be prioritized for the most vulnerable persons. Temporary occupants that never received a decision on allocation of the property are considered illegal occupants, and have no rights to alternative accommodation. However, if the current user is a registered refugee or displaced person, they may still be entitled to a form of emergency accommodation under the relevant legislation on refugees and displaced persons. In cases where the housing needs of the temporary occupant are otherwise met, the deadline for vacation of the property in the decision is fifteen days. [...]

If the housing needs of the temporary occupant are not otherwise met, a decision is given with a ninety-day period to vacate the property. In such cases the current user is entitled to alternative accommodation to be provided by housing authorities, but the burden of proof of demonstrating eligibility is on the temporary occupant.[...]

In practice, the rights of temporary occupants became the primary obstruction to implementation of the Laws on Cessation in BiH. In general, housing authorities issued decisions granting the right to alternative accommodation to temporary occupants without any real investigation as to whether their housing needs were otherwise met. At the same time, housing officials did little to secure space to serve as alternative accommodation.[...]

This combination led to an incredible strain on the overall system, such that decisions obliging the temporary occupant to vacate the property within ninety-days were almost never enforced within the ninety-day period. In some cases temporary occupants with decisions to vacate the property within ninety-days remained in the property for several years. Due to these obstructions, it was necessary to amend the provisions of the Laws on Cessation relating to alternative accommodation several times. Most importantly, the right to alternative accommodation was further restricted to ensure space would be available for the most vulnerable individuals. A provision was added that provided for the eviction of the temporary occupant at the end of the ninety-period even if housing authorities fail to secure alternative accommodation."

**Catherine Phuong, FMR, April 2000:**

"Local authorities do not carry out evictions, on the pretext that no alternative accommodation is available for the current occupants. Often, the local police force does not attend evictions or only offers limited support."

***For an overview of the restitution process in Bosnia and Herzegovina see also (in sources below):***

***“Post-conflict restitution and refugee return in Bosnia and Herzegovina: Implications for international standard-setting and practice”, by Rhodri Williams, New York University Journal of International Law and Politics, Vol.37, n.3 6 March 2006 p.441-553.***

**A coordinated attempt to unlock the return process and restore property: the Property Law Implementation Plan (PLIP) 1999 (2006)**

- The High Representative launched the PLIP with the support of OSCE, UNHCR and UNMIBH to show the determination of the international community towards implementation of property laws
- The PLIP is an effort by the international community to support and monitor implementation of property law in a consistent manner throughout the country
- A network of international focal points covering each municipality monitored the progress of local authorities, reported abuses to the PLIP cell in Sarajevo and advised local authorities on legal issues.
- The PLIP cell, coordinating mechanism gathering officials of organizations involved in implementation of property law issues legal clarification and joint letter to respond to problems reported by focal points.
- PLIP also includes capacity-building of local authorities and financial support
- Publication of monthly statistics showing progress of property law creates a sense of competition between municipalities

**OHR/OSCE/UNMiBH/UNHCR/CRPC 11 May 2000:**

"On October 27, 1999 the High Representative, Wolfgang Petritsch, with the full support of OSCE, UNHCR and UNMIBH launched the Property Law Implementation Plan (PLIP) by passing amendments and instructions to harmonize and clarify RS and FBiH legislation on property repossession, in order to create a consistent legal framework and equal rights and remedies for all refugees and displaced persons across Bosnia and Herzegovina. The Property Legislation Implementation Plan (PLIP) - closely coordinated and executed by representatives of OHR, OSCE, UNHCR, UNMIBH and CRPC - is at its heart a political operation to ensure that all citizens of BiH can exercise their individual rights to property, thereby unlocking the return process throughout BiH."

**OHR/OSCE/UNMiBH/UNHCR/CRPC, October 2000:**

"The Property Law Implementation Plan (PLIP) has developed from collaborative relationships between OHR, UNHCR, OSCE, UNMIBH and CRPC. It was conceived in October 1999 as a means of gathering the whole range of property related activities of the different agencies into a coherent, goal-oriented strategy for securing implementation of the new laws.[...] This is the most complex legal component of the implementation of Annex 7, and accordingly requires dedicated resources and thorough management." [...]

At the heart of this approach is the bedrock principle that the same pressures, demands and expectations must be applied to all of the officials and municipalities of BiH. This standardisation in itself will serve to undermine the narrow collectivism and nationalist exclusion that has prevailed in Bosnia and Herzegovina.[...]

The PLIP approach is designed to be applicable throughout Bosnia and Herzegovina. This represents an evolution from earlier return strategies, which focused on selected return locations mainly in rural areas (target areas; destroyed villages, empty space) or modalities of return (political declarations; reciprocal agreements; return quotas). This was necessary at the time in order to initiate the process of return.

The PLIP varies from these earlier policies by promoting the neutral application of the law across the board, rather than the notion of 'minority return' to rural areas. By insisting that no deviation is permitted from the strict requirements of the law, it ensures that equal standards, procedures and international pressure are applied throughout the country.

The PLIP is a mechanism for developing a common stance of the international community towards political problems in the return process. On a number of occasions, the PLIP has co-ordinated joint letters from the Principals in order to place combined pressure on state and entity authorities, and to express the international community's common expectations in the property law implementation process. This has proved to be an effective way of resolving problems, and should be continued. The same policy can be followed down the command structure, at regional and even local level, in responding to problems that occur in the field."

**Paul Prettitore, World Bank, June 2004:**

"This mechanism included: administrative reform; capacity-building of local administrative and judicial bodies; de-politicization of the property issues; and establishment of the rule of law.

**Marcus Cox, Garlick, 2003:**

" There were training programs for local officials in the new laws, and extensive public information campaigns. Field officers at the local level were well placed to identify over obstruction and mobilize various intervention strategies, including letters of protest from international agencies, visits from high-ranking international officials, conditionality on local aid projects and liberal use of the High Representative's dismissal powers"

**Paul Prettitore, World Bank, 2004:**

"To measure implementation, monthly statistics are produced by monitors detailing the number of claims, decisions and implemented decision in each municipality. These statistics have been highly publicized, and for a time the full statistics list was published in local newspapers. One lesson from the PLIP project is that the process became truly effective when it moved from a political process driven by political forces to a rule of law process based on individual rights.

**Charles Philpott, Journal of Refugee Studies, February 2005, pp. 9-10:**

"The main value of PLIP lay in its public relations value. Four years after Dayton, a year and a half into property restitution, and after a succession of failed 'years of return', international enthusiasm was waning and donors looking elsewhere, New packaging for old strategies and aims, a hint of progress, and a catchy new acronym rekindled interest. The principal international organizations publicly affirmed their commitment to full property restitution.

As important, previously ad hoc strategies were regularized and co-ordination was improved. These included the monthly collection and publishing of statistics on property restitution for each municipalities and regions, and the exchange of information about reinstatements. Such 'Information Exchange' sought to prevent IDPs who had had their own property restored to continuing to occupy property in another municipality.

Each municipality in the country was assigned an international 'focal point'. The majority of focal points were UNHCR and OSCE field officers, with RRTF [OHR Return and Reconstruction Task Force) covering a small number of municipalities. A focal point collected statistics and channeled Information Exchange data for the MHO and OMs [Federation and RS local bodies in charge of property implementation] to act upon. A focal point was also responsible for delivering PLIP guidelines and instructions to the authorities and co-ordinating the activities of international field staff-in order to avoid a situation in which the local authorities were spending all their time in meetings with different organizations delivering the same or, worse, a different message."

***See also in sources below: “ Post-conflict property restitution and refugee return in Bosnia and Herzegovina: implications for international standard-setting and practice” by Rhodri Williams, Journal of International Law and Politics, vol.37, n.3, 6 March 2006***

#### **Overview of PLIP progress and legislative amendments: 1999-2004 (2006)**

- At the time the PLIP was launched in 1999 only 15% of claims had been solved
- 2000: progress but wide discrepancies throughout the country with RS and Croat majority areas clearly lagging behind
- Looting of properties and violence against housing officials increase
- 2001: The High Representative imposes an important set of amendments to accelerate property repossession
- 2002: Implementation of claims reaches 64%. A New Strategic Direction is launched emphasizing chronological processing of claims to limit discretion of authorities and corruption
- 2003: 92,5% of claims implemented by year end.
- Publications of guidelines for substantial completion of property laws
- 2004: Property law near completion. Only Banja Luka in RS is still processing claims

#### **1999**

##### **Paul Prettitore, 18 June 2004:**

“At the time the PLIP strategy was developed, the rate of implementation of the property laws was so slow that it was estimated that the full resolution of all claims would have taken at least 30 years, a time period unacceptable for the international community. [At the beginning of PLIP] only fifteen percent of claims for repossession of property had been resolved.”

#### **2000**

##### **OHR, OSCE, UNHCR, UNMIBH, CRPC, 19 February 2001:**

"OHR, UNHCR, OSCE, UNMIBH and CRPC have consolidated the results of the efforts to monitor property law implementation throughout BiH during the year 2000, the first full year of property law implementation. As of 31 December, the rate of implementation (the total number of repossessions versus the number of claims for residential non-destroyed properties) for BiH stands at 21% - with an implementation in the Federation of 29% and in the RS 13%. Of a total of roughly 249,000 claims, 111,500 have received decisions (45%) and 51,500 have been implemented.

From May through December of 2000, the rate of implementation in BiH grew approximately 1% per month. At this continued rate of implementation, it would take roughly six more years to fully implement the property laws. This is not acceptable, especially as some municipalities have shown that it is possible to reach better implementation rates by consistently increasing it by over 3% per month. Given the resources directed at increasing the rate of implementation, we expect a considerable improvement in the monthly implementation rates during 2001.

We remain concerned that the rate of implementation varies widely throughout BiH. As both Entities have the full legal framework to ensure repossession, there is no reason for implementation rates to vary between below 5% and over 50%. In Cantons 4 (Zenica Dobo) and 6 (Central Bosnia) several municipalities are nearing completion of the implementation process - if it can be achieved there, it can be achieved elsewhere.

These results are in direct contrast to areas where progress remains slow. We have not seen adequate progress in the Croat-majority areas in Cantons 7 (Herzegovina Neretva) and 10, nor in

areas of the Eastern RS including Bratunac, Foca/Srbijne, Srpsko Gorazde and Visegrad. In the five municipalities that account for 40% of the claims for repossession in the RS - Banja Luka, Prijedor, Doboj, Bijeljina and Zvornik - the average rate of implementation stands at merely 10%. We expect better progress in each of these areas.

We are also concerned the RS implementation rate continues to lag behind that of the Federation of BiH. Although property law implementation began in the RS after it did in the Federation, the RS has received considerable assistance from the International Community, most notably the over USD 1 million in budget assistance to the Ministry for Refugees and Displaced Persons to hire additional staff and upgrade housing offices. There is no reason for this gap to remain, and we expect the RS to make quick progress towards full implementation.

While progress slowly increased throughout 2000, several obstacles stemming from the failure of local authorities to take full ownership of the implementation process prevented a country-wide breakthrough in repossessions. In many cases, local authorities have still not provided adequate resources for the full functioning of housing offices. We also expect that they will take special measures to employ returnees/minorities in the housing offices. Although the State-level Ministry for Human Rights and Refugees was created, a stronger role in the co-ordination of property issues between the Entities is necessary.

There continue to be many illegal acts encountered in implementation of the property laws, including illegal allocations of private property, looting, violence against housing office employees and illegal revalidations/privatisations, which have not been adequately addressed by local officials. There also remains a considerable problem with public officials occupying claimed space. These shortfalls must be corrected in 2001.

Another important obstacle to increased implementation is the failure of local officials to secure alternative accommodation. Local officials are responsible for ensuring that everyone with the right to alternative accommodation receives it. Inexcusably, these legal obligations remain mostly unmet. Only few municipalities have produced lists of unclaimed socially owned property, and many state owned companies have not provided records on property where occupancy rights changed during the war. Little effort has been made to use other structures as possible alternative accommodation, such as hotels, schools, army barracks and any other adequate structures as permissible under entity property legislation. On this issue, we expect immediate progress. The International Community will not recommend assistance to municipalities unless all steps to secure space have been taken."

## **2001**

### **OHR, OSCE, UNHCR, UNMIBH, CRPC, 11 December 2001:**

"The Agencies involved in the Property Law Implementation Plan (OHR, OSCE, UNHCR, UNMIBH and CRPC) announced today that, as of the end of October, the overall implementation rate of the property laws has risen to 37% in BiH. 46% of cases have been solved in the Federation, 27% in the Republika Srpska and 33% in Brcko. In other words, out of 129.366 households that filed a claim in the Federation, 59.543 have repossessed their property and out of 120.087 claims in the Republika Srpska, 31.896 have been solved. In total, 93.698 out of 256.328 have repossessed their property."

### **December 2001 Amendments**

#### **OHR/OSCE/UNHCR/UNMIBH/CRPC, 5 December 2001:**

"The High Representative, Wolfgang Petritsch, yesterday issued a package of [thirteen decisions](#) comprehensively amending the property laws of both Entities. Changes were urgently needed, as the increase in the pace of property law implementation has stalled over recent months, forcing many people to wait before repossessing property, often in makeshift shelters. Many others are being prevented from privatising their apartments. The amendments will reduce the possibility of

manipulation and delay, allow for the speedier eviction of multiple occupants, and ensure the full right of refugees and displaced persons to "freely return to their homes of origin", as guaranteed by the Dayton Peace Agreement.

The amended laws specifically take account of the fact that many categories of persons may be considered to have had their housing needs met, including those who accept land plots or housing construction assistance and have sufficient time to build, and those who show no interest in filing a claim for their property, or in pursuing enforcement of their claims.

All purchases of apartments where the purchase is based on a revalidated contract to an unclaimed apartment will be frozen, pending establishment of a proper review process. Unclaimed apartments are to be used as alternative accommodation, unless the temporary occupant meets strict criteria for revalidating the occupancy right. Previously, many individuals who did not meet the criteria were able to revalidate and then privatise. Thus a large source of alternative accommodation for vulnerable individuals was lost. The new amendments provide for stricter review of all revalidations and subsequent privatisations.

People who are unable for reasons of their own to repossess their property in person do not have to miss the deadline for repossession but can send a proxy instead.

The deadline for repossession of apartments will be reduced from 90 days to 30 days.

Fines for multiple occupancy will be introduced.

The appeals process has been tightened, with the claimant's case upheld if the appeals body does not respond before expiry of the deadline. This will eliminate the long periods -- in some cases as much as a year or more - which some claimants have had to wait for cases to come back from the second instance body.

The burden of proving that someone meets the criteria for alternative accommodation will be placed upon the current occupants. If they cannot prove they meet all criteria, they will be issued with 15-day decisions. This will also reduce the time previously spent by housing authorities attempting to document occupants' cases.

Problems arising from property exchanges will be regulated. Contracts on exchange will be confirmed in cases where both parties agree the exchange was voluntary. If only one party claims, the other party will be deemed to have claimed even if a deadline has passed. And in cases of exchanges of property outside of BiH the party outside of BiH will have to prove that the property they currently possess can be returned to the pre-war owner/occupant.

Instructions enabling the purchase of apartments in the Federation have been established following the receipt of numerous complaints from citizens who currently face excessive demands for documentation, and are unable to purchase their apartments following repossession. The instructions regulate the documentary requirements for purchase, and the obligations of the competent bodies. The documentary evidence that can be requested by the authorities is defined and limited by the new instruction for the Federation.

**2002**

**OHR/OSCE/UNHCR/UNMIBH/CRPC, 3 December 2002:**



“The overall implementation ratio reached 64 percent in October, which is an increase of two percent from last month throughout the country.

In Brcko District, 70 percent of properties have been repossessed with an increase of four percent in October, while the Federation ratio has risen by two percent to 68 percent, and the RS recorded a one percent increase since September, to 57 percent in October. Out of a total of 254,730 claims in the whole of BiH, around 92,000 claims are still to be resolved.”

***Launch of the New Strategic Direction (see envelope on NSD)***

**OHR/OSCE/UNHCR/UNMIBH/CRPC, 12 September 2002:**

“SDHR Gerhard Enver Schrömbgens, OSCE Head of Mission Robert Beecroft, UNHCR Deputy Chief of Mission Udo Janz, CRPC Executive Officer Steven Segal and UNMIBH Head of Civil Affairs Jaque Grinberg today announced a New Strategic Direction for the full implementation of the property laws by end 2003.”

**2003**

**OHR/OSCE/UNHCR, 11 February 2004:**

“The PLIP agencies (OHR, UNHCR and OSCE) announced today in Sarajevo that the implementation of the property laws in Bosnia and Herzegovina (BiH) is nearing its completion.

The Office of the High Representative, the United Nations High Commissioner for Refugees and the OSCE Mission to BiH, said that the property law implementation ratio in the country at the end of December had reached 92,5 per cent. The three agencies said that local housing authorities had finalized 201,902 of a total of 218,310 property claims registered and issued almost 99 per cent of first instance decisions. A total of 41 municipalities have been verified as having substantially completed the implementation, and 88 municipalities which have completed all pending cases have established concrete timetables to demonstrate their substantial completion of all legal obligations under the property laws, in accordance with the Municipal Guidelines for Substantial Completion of Property Law Implementation.”

***A new serie of amendments to property laws were imposed by the High Representative in May 2003. Guidelines to assess completion of property laws were established to define conditions under which a municipality can consider that the repossession process is completed(see envelopes on these subjects for further details)***

**2004**

**OSCE, 17 February 2005:**

“Property law implementation is nearing completion across BiH. Since November 2004, the OSCE, OHR and UNHCR have verified that a further sixteen municipalities have completed their property work. All told, 120 of 129 municipalities have now finished the property restitution process in their jurisdiction. Of the remaining nine municipalities, eight have finished processing claims and are preparing their final reports. Only the Banja Luka housing authority is still processing claims. Inadequate staffing and resources and a lack of political support have delayed its work. [...]

In the Federation of BiH, local authorities are currently considering legislation that would regulate the final disposition and use of unclaimed apartments. The Mission has been actively engaged with the Ministries of Refugees and Displaced Persons, as well as of Labour and Social Policy, to ensure that housing entitlements are protected and that some of these apartments are set aside for the most vulnerable individuals and families.”

**See also in sources below:**

**“ Post-conflict property restitution and refugee return in Bosnia and Herzegovina: implications for international standard-setting and practice” by Rhodri Williams, *Journal of International Law and Politics*, vol.37, n.3, 6 March 2006**

**And**

**“Though the dog is dead, the pig must be killed: Finishing with property restitution to Bosnia and Herzegovina’s IDPs and refugees, by Charles Philpott, *Journal of Refugee Studies*, Vol.18, n.1, February 2005**

**First phase of PLIP characterised by prioritisation of cases and monitoring of public official's housing situation, 1999-2001 (2006)**

- As PLIP member, UNMIBH decides to monitor the property situation of police officials and condition their certification on regularisation of their housing situation
- Police officers that are double or illegal occupants face removal from the police if they do not vacate the property
- Since August 2000, more than 1500 police officers have legalised their housing status (June 2001)
- The Provisional Election Commission can remove candidates from the candidate lists if they occupy property where a decision is outstanding
- The newly established Independent Judiciary Commission (IJC) will help identify members of the judiciary who are occupying contested space (March 2001)
- The High Representative issued a decision prioritizing the return of properties to returnee police officers (April 2002)
- In 1999, OSCE attempts to prioritise the return of minority councilors but finally renounces
- Provisional Election Commission bar officials from office if they are occupying property
- OSCE monitors housing situation of judges and prosecutor to ensure that officials representing the law are in compliance with it. In 2002, The High Representative decides to prioritise property repossession of minority police to increase sense of confidence among returnees.

**OHR, 18 October 2001:**

**"Local Police:** Under the UNMIBH *Policy on Registration, Provisional Authorisation, and Certification*, police officers who are double or illegal occupants face de-authorisation if they do not vacate property within a specific time period. During the period of 1 April to 30 June 2001, 201 police officials have legalised their housing status, either either by voluntarily vacating the property they occupied or concluding rental agreements with property owners. Since this policy entered into force, around 1500 police officers hav voluntarily vacated property they had illegally occupied. Nevertheless, hundreds more police officers in both Entities continue to use claimed property. IPTF's Housing Action Team is continuing to compile and act on cases of police occupancy throughout the country, and to notify fellow members of the multi-agency Property Legislation Plan (PLIP), which comprises OSCE; OHR, and UNHCR, together with UNMIBH and

CRPC. Additionally, UNMIBH concluded the local police survey project, which consisted of verifying the legality of all police stations in Bosnia and Herzegovina through the CRPC claim. In the course of this project, 11 police stations were identified as illegally occupying somebody's else property for which there was a claim a CRPC claim. At the end of the project, all police stations were regularised, vacating the property or reaching a rental agreement with the rightful owner of the property."

**Charles Philpott, Journal of Refugee studies, February 2005:**

***Elected Officials:***

"The OSCE, pursuant to its elections and election-result implementation mandate, initially sought to prioritize the return of minority councilors to their pre-war homes in the municipalities they represented. This policy was abandoned by early 1999, when the restitution process was bogged down generally, having largely failed to accelerate the restitution of property of many councilors. Even when successful, and after intensive effort, few of the councilors actually returned."

**OHR 18 October 2001, paras. 7-9:**

"PEC Rules 7.16 and 108 bar officials from holding office if they occupy property where an administrative decision, CRPC decision, or Court decision remains outstanding. The PEC regulations have further led to the parties screening their lists to ensure that none of their candidates are in violation of the ruling and, in numerous cases, to the vacation of contested property by candidates/officials in order to avoid removal. Ninety-five elected and appointed officials were appointed officials were removed under the PEC Rule on Illegal Occupants in 2000, and a further 7 in 2001, bringing the total up to 102. On 76 June 2001, the Bihac Minister of Culture and Education, Izolda Osmanagic, was removed by PEC due to her failure to comply with property laws. She was occupying someone's property and did not vacate the property in question by the deadline that she was issued.

***Judges, Prosecutors and Housing:*** Under the auspices of the Property Legislation Implementation Plan (PLIP), OSCE has been systematically gathering information on judges and prosecutors who have failed to bring their housing situation into full compliance with the property law. Through IJC [Independent Judiciary Commission], these cases will be brought to the attention of the competent entity review Commissions and Councils under the Comprehensive Review Process, established to enforce standards of professional behaviour among judges and prosecutors."

**OHR 30 April 2002:**

"The High Representative, Wolfgang Petritsch, today issued a Decision prioritising the return of residential properties to returnee police officers in both Entities. Housing bodies, which under the property laws are obliged to resolve claims on the repossession of private and socially owned properties in the chronological order in which they were received, are now legally requested, as an exception, to treat claims by returning police officers as priorities.

The High Representative has issued this Decision in order to promote the return of so called minority police officers in accordance with the Framework Agreement on Police Restructuring, Reform and Democratisation in Republika Srpska and the Agreement on Restructuring the Police in the Federation, as well as the recent amendments to the Entity Constitutions under which the ethnic composition of the public administration at all levels must reflect the 1991 census. An accelerated return of minority police officers is important for the overall return process as most minority returnees point to the presence of minority police officers on the local police forces as a guarantee of their safety in their pre-war municipalities."

***For an overview of the restitution process in Bosnia and Herzegovina see also (in sources below),***

***“Post-conflict restitution and refugee return in Bosnia and Herzegovina: Implications for international standard-setting and practice”, by Rhodri Williams, New York University Journal of International Law and Politics, Vol.37, n.3 6 March 2006 p.441-553.***

**and,**

***“Though the dog is dead, the pig must be killed: Finishing with property restitution to Bosnia and Herzegovina’s IDPs and refugees”, by Charles Philpott, Journal of Refugee Studies, Vol.18, n.1, February 2005***

### **The New Strategic Direction: emphasise the rule of law approach 2002 (2006)**

- After focusing on cases easy to solve such as double occupants, a more systematic approach is adopted to address all cases in a just and consistent manner
- The New Strategic Direction emphasises the chronological processing of claims
- Chronological processing of claims ensures transparency and protects officials from corruption and political interference.

#### **OHR/OSCE/UNMiBH/UNHCR/CRPC 12 September 2002, sect. 2:**

"In its attempts to guarantee property rights and support return, the IC has proved adept at matching its tactics to changing conditions on the ground. First came the push for adoption of Entity laws on administrative property repossession in 1998, and their initial harmonisation through High Representative amendments in 1999. Early implementation efforts overcame local authorities' initial resistance, at first to taking, and later to deciding, claims.

The current phase of implementation has focused on enforcement by drawing the authorities' attention to cases of 'double' or 'multiple occupancy.' The fact that multiple occupants are defined by their ability to otherwise meet their own housing needs (by dint of income, access to housing elsewhere, etc.) renders them 'easy cases,' whose eviction carries little political cost for the authorities.

As a result, the IC has been able to kick-start real enforcement of the property laws by encouraging the housing authorities to focus their resources on confirming and acting on allegations of multiple occupancy. Very often the IC field presence has been relied on to provide data confirming multiple occupancy status to be acted on by the authorities. In light of the ongoing reduction of IC resources, this pattern is no longer sustainable.

The initial focus on multiple occupancy saw implementation rates rise to 15% in the summer of 2000 and over 30% one year later, reaching an implementation rate of 57% at end July 2002. However, the cost of this strategy has been borne fully by those claimants whose property is occupied by 'hard cases,' i.e. temporary occupants who cannot otherwise meet their own housing needs and are therefore entitled to look to the authorities for alternative accommodation (AA). Where the authorities fail to provide AA within legal deadlines, they are required to evict the temporary occupant, unless, in accordance with the conditions prescribed by the property laws, they have conclusively proven to OHR's satisfaction the non-availability of AA. This requirement for eviction in accordance with the legal deadlines is the most widely breached provision of the property laws leaving the owners of properties occupied by 'hard cases' indefinitely dispossessed. Temporary occupants with the right to AA are effectively given an open-ended right to live in other people's claimed property in open violation of the law.

In effect, the current strategy risks creating the appearance of tacit IC approval of two illegal practices—the failure to provide AA (despite numerous available low-cost options) and the related failure to nevertheless return properties occupied by 'hard cases' to their rightful owners. Compounding this problem, the freedom to pick and choose alleged multiple occupant cases for

prioritised processing has left housing authorities with broad discretion over the order of processing all cases, inviting both bribery and pressure not to act against politically protected groups.

These concerns have given rise to the third phase of the PLIP, described in this paper. The 'New Strategic Direction' (NSD) reflects a new emphasis on chronological processing of all cases, other than the exceptions provided by law. This policy must be supported by the provision of sufficient alternative accommodation to ensure smooth processing of 'hard cases' as they arise within the chronology, and allowing the rightful owners to repossess their property without further delay.

Crucial preliminary steps have already been taken. Most importantly, the amendments imposed on 4 December 2001 to the property laws have made chronological processing an explicit legal obligation binding on housing authorities in both Entities, save for the exceptions defined in subsequent HR decisions. The PLIP agencies have also intensified their campaign of pressuring authorities at all levels to provide sufficient budgetary funds for AA and ensure their efficient use. Chronological processing is now virtually universally understood and accepted in principle and is being applied in practice in an increasing number of municipalities. The time has come for ad hoc efforts to promote chronology based on adequate alternative accommodation to give way to a clear and systematic IC policy in line with recent amendments to the property laws as promulgated by the HR."

**Paul Prettitore, World Bank, June 2004:**

"To further strengthen the PLIP process, the same agencies adopted the New Strategic Direction in September of 2002. The strategy built on that of PLIP, but focused more on the chronological processing of claims rather than the creation of special categories of refugees and displaced persons for prioritization of claims.[...] This amendment was necessary in regards to provide more fair and transparent procedures, as opposed to the old system that left more discretion to local authorities and was open to corruption and political interference. It also protected housing officials from political pressure to address, or not address, certain cases, and provided clearer insight of claimants as to when their specific claims would be resolved."

***For an overview of the restitution process in Bosnia and Herzegovina see also (in sources below),***

***"Post-conflict restitution and refugee return in Bosnia and Herzegovina: Implications for international standard-setting and practice", by Rhodri Williams, New York University Journal of International Law and Politics, Vol.37, n.3 6 March 2006 p.441-553.***

***and***

***"Though the dog is dead, the pig must be killed: Finishing with property restitution to Bosnia and Herzegovina's IDPs and refugees", by Charles Philpott, Journal of Refugee Studies, Vol.18, n.1, February 2005***

**Property law amendments passed by High Representative accelerate resolution of property disputes (2006)**

- High Representative imposed property law amendments with the "Laws on Construction Land" on May 16, 2003 to speed up the final stages of the property implementation process
- The amendments address a number of important issues, including multiple occupants and alternative accommodation availability
- Multiple occupants face heavy fines if they do not leave illegally occupied property
- Measures were taken to facilitate the provision of alternative accommodation to temporary occupants within the RS

- The amendments also transfer valid wartime and postwar property allocations of land back to local authorities
- Administrative proceedings for reclaiming properties have been simplified

**OHR 16 May 2003:**

“High Representative, Paddy Ashdown, [...] imposed 'Law on Construction Land'. This law ensures that all future transfers of land under the domestic legal process will be non-discriminatory, and will provide a framework for resolving disputed land allocations made after the start of the war in Bosnia and Herzegovina on 6 April 1992.

The decision comes three years after High Representative Wolfgang Petritsch first asked the local authorities to provide a framework for resolving disputed land allocations for refugees and displaced persons. It also brings the law into line with a ruling of the Constitutional Court by redefining specific categories of Construction Land, including socially-owned property, into either State owned or Privately owned property, as required by the Constitution of Bosnia and Herzegovina.

The High Representative also enacted corrective technical amendments to the property repossession laws, the need for which was identified during the implementation of those laws, and in the decisions of the Human Rights Chamber. These amendments will help refugees and displaced persons by preventing unnecessary administrative proceedings both when an exchange contract is presented to a housing body, and when enforcing CRPC decisions. This will apply to both private and socially owned property.

[...]

OHR expertise will be available to assist in the training of local authorities to implement these laws quickly and accurately.

Decision follows extensive consultations within the international community, including the UNHCR and OSCE and CRPC, and with the competent Entity and State Ministries.”

**OHR 17 June 2003:**

“The Amendments introduce a number of significant changes on issues such as multiple occupants and alternative accommodation availability in order to speed up the final stage of property law implementation.

[...]

The amendments address the following issues in both entities:

- All multiple occupants now face fines if they fail to vacate within the deadline set out in the original administrative decision against them. When implemented, these provisions will ensure that housing authorities no longer have to waste time and resources carrying out evictions of multiple occupants.
- The authorities will no longer be responsible for damage made to vacated private property where they have taken all legal steps to notify the owner.
- If the municipal housing authorities find that alleged wartime or postwar exchanges or transfers of property meet the formal legal conditions to be found valid, they must suspend the administrative decision-making process, and refer the parties to the competent court for a final decision. If the municipal housing authorities find that the exchange or transfer is not formally valid, they must issue and enforce an administrative decision on repossession of the property.
- Municipal offices of the Republika Srpska Ministry of Refugees and Displaced Persons may now provide alternative accommodation anywhere in Republika Srpska to entitled temporary occupants displaced in the municipalities they are competent for. This harmonizes the RS Law with similar Federation BiH provisions.

- The provisions on applicability of the minimum space requirement for alternative have been harmonized. Specifically, this limitation will only apply in cases where alternative accommodation has been provided by the competent authorities, or where members of the temporary occupant's 1991 family household have accommodation in the entity of displacement or municipality of 1991 residence."

See *Decisions in the Field of Property Laws, Return of Displaced Persons and Refugees and Reconciliation*, Office of the High Representative, May 2003.

See also, "Public land allocation to support resettlement and discourage return", in: *The Wages of Sin: Confronting Bosnia's Republika Srpska*, a report by the International Crisis Group, 8 October 2001, pp. 30-32 .

"Projects to accommodate displaced persons and promote return" in: *Unfinished Business: The Return of Refugees and Displaced Persons to Bijeljina*, Human Rights Watch, 30 May 2000.

"High Representative extends ban on the allocation of state-owned land", press release from the Office of the High Representative, 31 July 2002.

For an overview of the restitution process in Bosnia and Herzegovina see also (in sources below),

"Post-conflict restitution and refugee return in Bosnia and Herzegovina: Implications for international standard-setting and practice", by Rhodri Williams, *New York University Journal of International Law and Politics*, Vol.37, n.3 6 March 2006 p.441-553.

and,

"Though the dog is dead, the pig must be killed: Finishing with property restitution to Bosnia and Herzegovina's IDPs and refugees, by Charles Philpott, *Journal of Refugee Studies*, Vol.18, n.1, February 2005

#### **Uniform criteria established for the completion of the property law implementation process (2003)**

- The Property Law Implementation Plan (PLIP) is a collaborative operation formed in 1999 by OHR, UNHCR, OSCE, UNMIBH and CRPC to address all property related issues in the country
- PLIP Municipal Guidelines for Substantial Completion of Property Law Implementation set out primary requirements on each municipality
- Finalizing property laws implementation is one step towards the full realization of Annex VII of the Dayton Peace Agreement
- One of the criteria includes solving all pending property claims
- Alternative accommodation should also be provided to those who are entitled to it
- Information on solved claims should be shared with the municipalities of displacement and with the CRPC
- International agencies together with the housing bodies assess that all requirements have been met

#### **OHR/OSCE/UNHCR/UNMIBH/CRPC October 2000, p.2:**

"The Property Law Implementation Plan (PLIP) has developed from collaborative relationships between OHR, UNHCR, OSCE, UNMIBH and CRPC.[1] It was conceived in October 1999 as a means of gathering the whole range of property related activities of the different agencies into a coherent, goal-oriented strategy for securing implementation of the new laws. The PLIP is a specialist operation designed to ensure that all citizens of Bosnia and Herzegovina who were dispossessed of their property in the course of the conflict can repossess it. This is the most

complex legal component of the implementation of Annex 7, and accordingly requires dedicated resources and thorough management.”

[Footnote 1]The Office of the High Representative (OHR), United Nations High Commissioner for Refugees (UNHCR), Organisation for Security and Cooperation in Europe (OSCE), United Nations Mission in Bosnia and Herzegovina (UNMIBH) and Commission for Real Property Claims (CRPC) have been the lead organisations in Bosnia and Herzegovina in property and return issues.

**OHR 31 July 2003:**

“The PLIP Municipal Guidelines for Substantial Completion of Property Law Implementation from May 2003 set out the most important requirements that each municipality needs to fulfil in order to have Property Law Implementation substantially completed.”

**OHR 26 May 2003:**

“The [...] guidelines reflect the current expectations of the international community in terms of the minimum criteria for completion. They are based on ongoing consultative field application in some municipalities. Substantial completion of property law implementation is achieved when the competent authorities have resolved all pending property cases in their jurisdiction and have planned for all ongoing and future obligations, such as the processing of future claims and the provision of alternative accommodation to those who remain entitled.”

**OSCE 3 June 2003:**

“Each month new municipalities in BiH join the group of those having completed their outstanding property claims. To date 32 municipalities throughout BiH have done so. To ensure transparency and a standardized approach, the agencies involved in the Property Law Implementation Plan, OHR, OSCE, UNHCR and CRPC, have approved a set of guidelines to verify that municipalities have complied with all the legal obligations under the law.

These guidelines indicate concrete measures that the housing authorities are expected to take in their own municipalities before declaring PLIP substantially completed. The municipalities are required to report all solved claims, to make unused alternative accommodation available to neighboring municipalities, to regularly review the lists of alternative accommodation beneficiaries, and to maintain sufficient administrative capacity to deal with any property claims submitted to their offices in the future.

International agencies working in the field will assess together with the housing bodies that all requirements to declare Property Law Implementation substantially completed have been met. The State Commission for Refugees and Displaced Persons will be kept fully informed on the completion in the respective municipalities as will the media. This will ensure transparency of the process and ensure that it is equally applied throughout BiH.

Finalizing Property Laws Implementation is only one step towards the full realization of Annex VII. Municipalities remain obliged to facilitate the return of refugees and displaced persons by other means to make the returns sustainable.

Municipalities that have completed the Property Law Implementation can now fully dedicate themselves to their economic and social development and progress towards a normal life.”

**OHR 30 October 2003:**

“Municipalities must meet a number of criteria to be verified as having substantially completed property law implementation:

- 1) Municipalities must solve all pending property claims to the effect that all properties were repossessed.



- 2) Municipalities must continue to provide Alternative Accommodation (AA) to those who are entitled to it.
- 3) Municipalities must ensure that sufficient administrative capacity has been allocated to deal with future claims and with cases returned from second instance bodies or the courts.
- 4) Municipalities must ensure that information on solved claims is shared with the municipalities of displacement and with the CRPC.
- 5) Municipalities must archive and protect all records according to the relevant Laws.

Substantial completion *does not* terminate the right of individuals to claim repossession of private property through the competent administrative bodies.

Verification of substantial completion is based on a close review of documentary evidence provided by the relevant housing bodies, providing of that they have fulfilled all their legal obligations related to property law implementation.”

*See also,*

*“PLIP Municipal Guidelines for Substantial Completion of Property Law Implementation”, 28 May 2003, Office of the High Representative.*

*“Verification of PLIP Substantial Completion: quick reference guide”, Office of the High Representative,” 31 July 2003.*

*“PLIP Completion Guidelines Letter”, 26 May 2003, Office of the High Representative.*

## Specific aspects

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### Analysis of the PLIP process: from ‘right to return’ to a rights based approach of property restitution (2006)

- The PLIP process has been a flexible tool which evolved as conditions changed
- Initially focused on return, the repossession process gradually moved to an approach based on the rights of the claimants independently of the return dimension
- The return focus has initially led the international community to accept legal provisions which conditioned right of repossession to the return of the claimant
- A narrow return approach can actually conflict with the repossession rights of the individual
- Rights-based approach to repossession allows the individual to choose freely whether he wants to return or resettle in his place of displacement

#### Charles Philpott, IJRL, March 2006:

“Given the numbers displaced as part of the means and methods of the armed conflict during the war in Bosnia Herzegovina between 1992–95, it is not surprising that the return process has been long and drawn out. Nevertheless, a remarkable process of post-war reconciliation has quietly drawn to completion in Bosnia Herzegovina. In less than a decade after the end of the war, over 90 per cent of the 211,871 claims for the restitution of real property made by internally displaced persons (IDPs ) and refugees have been resolved. (...)

[T]he greatest factor in seeing the process through to the end was the shift from a process that focused primarily upon ethnically-linked ‘return’, sometimes at the expense of individual property rights, to one that was driven primarily by the recognition of property rights and the rule of law. This was possible for a number of reasons. Uniquely, international human rights conventions were incorporated directly into post-war Bosnian domestic law. Influenced by this, legislative

amendments and changes in implementation strategy progressively slanted the process in favour of simple, almost intuitive, rights recognition. Shifting away from the emphasis on 'return' removed a subjective element from implementation and, combined with greater emphasis on the 'rule of law', narrowed the scope for the system to be manipulated and thwarted. This, thereby, de-politicised restitution. (...)

That said, the "right to return" remained an underlying philosophy of the restitution regime. For the most part, "return" and "rights" complemented one another in moving the process forward. Occasionally however, the two seemed to clash. Opting for one or the other, usually in the name of expediency, sometimes advanced the process and at other times retarded it. Those occasional situations in which the two were not reconciled impeded, and in some cases, will likely continue to impede, the final resolution of all property claims arising from the conflict, and the creation of a stable property market in Bosnia and Herzegovina."

**Charles Philpott, Journal of Refugee Studies, February 2005:**

"Unprecedented in itself, the Bosnian 'success' is made all the more remarkable given that expulsions were continuing even after the war ended [...] Domestic political resistance to restitution was strong from the start,. The permanent resettlement of displaced populations by local politicians remained on the local political agenda long after the end of the war. And yet it was these same local authorities who were charged with carrying out the restitution process. While many of the early obstacles to the property restitution regime stem from this fact, arguably the eventually self-sustaining nature and success of the process can also be attributed to such local 'ownership' of the process and, in a strange twist, even to their obstruction of it. An important feature of the process was that the battle to reverse ethnic cleansing had been shaped by what was 'doable' on the ground, rather than by grand repatriation plans, and came to be waged largely on the legal level. In addition to setting the process above political influence or, worse, the use of force, the legal approach shifted the focus of restitution from IDP/refugee 'return' to recognition of property return."

**Marcus Cox, Madeleine Garlick, 2003:**

"Several years after Dayton, it had become clear to all of the major political players that restoring property rights was the essential pre-condition not only to return, but also to the successful resettlement of those who chose not to return. Those who were able to sell their pre-war homes recovered the means to build or buy in a new location.[R]estoring property rights creates freedom of choice."

**Rhodri Williams, FMR, September 2004:**

"Legally, the right to post-conflict property restitution derives from two independent rationales. The most commonly cited rationale is the 'right of return' whereby refugees and IDPs are entitled to return voluntarily not only to their country but to their actual home of origin. A parallel - rights-based - rationale derives from the necessity of providing adequate remedies to the victims of human rights violations. Paulo Sérgio Pinheiro, the UN Special Rapporteur on property restitution, has noted that "restitution as a remedy for actual or de facto forced evictions resulting from forced displacement is itself a free-standing, autonomous right." [...]

While these two rationales are not mutually exclusive, practice in the former Yugoslavia indicates that the relative emphasis placed on the return vis-à-vis the human rights rationale for property restitution can greatly affect implementation. [...]

In both Bosnia-Herzegovina (BiH) and Croatia, private homes will largely have been restored to their owners by the end of 2004. However, restitution of a second category of property - socially-owned apartments - has been far more problematic.

Although such apartments constituted a lower percentage of the housing stock than private homes, their urban location and general high standard made them highly desirable. Most apartments were allocated by public employers to employees on the basis of an 'occupancy right', contingent on a 'use requirement' forbidding prolonged absence of the occupancy right holder. This was rarely enforced but was then revived in wartime regulations allowing empty apartments to be declared abandoned and re-allocated - typically on the basis of ethno-political cronyism - without regard to the wartime conditions that may have necessitated the flight of the previous residents.

In post-war BiH, new domestic property repossession laws again revived the "use requirement" as a "return requirement", forcing apartment claimants to fulfil three conditions:

claim within a set period (initially identical to that triggering cancellation under the pre-war use requirement)

seek enforcement of a positive decision within a set period of receiving it physically reoccupy the apartment within a set period of its becoming available

In the immediate post-war period, many displaced people were fearful of returning. The international community's initial support for measures ostensibly designed to force return waned as it became obvious that they were being applied in a manner meant to permanently cancel pre-war occupancy rights, pre-empting any possibility of return in individual cases. By imposing amendments the Office of the High Representative removed most of the requirements in 2001, clearing the way for completion of a restitution process that has seen the return of almost 100,000 apartments in BiH. However, the original deadlines for claiming remained in force, thus preventing restitution and pre-empting return for as many as 9,000 displaced families. The question remains as to whether, from a human rights law perspective, the continued exclusion of those who failed to meet the claim deadlines represents a permissible limitation on the right to property restitution.

In BiH, the property restitution laws implicitly required claims to be processed in chronological order. International monitors in BiH endorsed chronology in keeping with general attempts to depoliticise return by emphasising the impartial 'rule of law' nature of property restitution. However, international monitors also demanded, as a matter of policy, that certain categories of claimants be 'prioritised' to repossess their homes, based on arguments that this encouraged return. The efficacy of this policy in promoting return was debatable and evidence mounted that the discretion given by the international community to allow policy-based exceptions to chronology was being abused in order to protect politically-connected temporary occupants from eviction. Beginning in 2001, the international community espoused processing in strict accordance with law, clearing one of the last lines of obstruction to completion of the property restitution process. [...]

Practice in BiH and Croatia demonstrates two risks involved in basing post-conflict property restitution on a pure return rationale:

Firstly, it can foster conditionality of restitution on actual return, particularly where pre-war homes were held in conditional or informal tenure forms. In BiH, the resulting choice between immediate return to an uncertain security environment or permanent loss of one's pre-war home posed a risk of actually pre-empting return.

Secondly, the logic of promoting return can result in attempts to identify and prioritise repossession of property for groups deemed likely to return or encourage return. Such policies can undercut the transparency, perceived impartiality and effectiveness of property restitution processes.

On the other hand, it should be emphasised that property restitution justified as a remedy to human rights violations presupposes free choice as to whether or not beneficiaries actually

return. However, given that coerced return would in any case simply subject victims of human rights violations to further harm, property restitution programmes should be based on principles likely to ensure speedy, full and fair restitution of homes.”

***See also (in sources below):***

***“Post-conflict restitution and refugee return in Bosnia and Herzegovina: Implications for international standard-setting and practice”, by Rhodri Williams, New York University Journal of International Law and Politics, Vol.37, n.3 6 March 2006 p.441-553.***

### **Return does not necessarily take place upon property restitution (2002-2003)**

- Many owners did not return to their repossessed property
- While property repossession is an essential pre-condition to return other factors have been obstructing return
- Awareness of the authorities that repossession does not equal return probably contributed to their support to the repossession process at a certain stage
- Obstruction to return was then focusing on other means
- Property repossession has not reversed the demographic effect of ethnic cleansing
- There is concern that repossessions are largely technical, with property owners not actually returning to their pre-war residences
- Large number of refugees or returnees do not go back to their homes, but in various ways handle their repossessed property
- People are not returning due to discrimination in obtaining documentation, finding employment, accessing health care and education for their children

**JRLP, March 2006, pp.443-447:**

“The return of virtually all properties claimed by those dispossessed in the conflict has played a key role in ensuring that the more than 2.2 million Bosnians displaced by the conflict have been given an opportunity to return to live in their pre-war homes and municipalities, meeting one of the major requirements set out in the 1995 *General Framework Agreement on Peace in BiH* (GFAP) that ended the conflict in Bosnia. (...) This achievement is all the more remarkable for having been carried out primarily by local administrative officials answerable to the ethnic-nationalist parties that had fomented the war and displacement in Bosnia.(...) The international community (...) in Bosnia also played a critical role in overcoming the initially fierce political resistance to refugee return, drawing on an unprecedented deployment of legal, political, and financial resources, (...) as well as an unusual level of unity and perseverance.(...) Nevertheless, the success of this process is often considered against the fact that the number of people who have actually permanently returned to live in their pre-war residences in Bosnia has not kept pace with the number of people registered as having simply repossessed their property.(...) In other words, the return of property to people has not always resulted in the return of people to property. While property restitution has been a vital precondition for the actual return of one million of refugees and displaced persons, (...) many others who repossessed their properties have opted to sell or rent them instead. Though the proceeds from such sales and rentals often facilitate durable solutions other than return for those displaced by the conflict, (...) the disparity between results achieved in property restitution and refugee return has nevertheless provoked an ongoing debate about the success of the international peace-building effort in Bosnia. For instance, a November 2002 report by a widely-read research group warned darkly of the consequences of “collaboration” by Bosnian authorities to permit property repossession, leaving them free to “pursue other policies that discourage real return:(...)”

International engagement is still necessary to maintain and sustain the decisions of ordinary people to resist their wartime leaders’ invocations of tribal solidarity. This is not just a question of human rights. It is also the principal test of whether or not the Bosnian state conceived at Dayton can endure and evolve as a viable multinational state.(...)

The tendency in Bosnia to conceive of property restitution in rhetorical opposition to refugee return became increasingly pronounced as complete property law implementation began to look achievable, emphasizing the fact that the simultaneous upswing in actual return, though considerable, would never achieve complete restoration of the prewar demographic composition of Bosnia.”

**OHR 27 February 2003:**

“The Agencies engaged in the Property Law Implementation Plan (OHR, UNHCR, OSCE, CRPC) would like to clarify that completion of Property Law implementation does not equal completion of Annex 7. While property law implementation is the fundamental first step it is only one among many of the elements underpinning sustainable return. Full implementation of Annex VII means that not only can people return to their homes but that they can do so safely with equal expectations of employment, education and social services. Therefore the PLIP agencies call on the local authorities to accelerate the pace of property law implementation and at the same time redouble their efforts to create the conditions conducive to sustainable return.”

**OHCHR 26 March 2003, paras. 25-27:**

“Implementation of property laws has progressed [...]. The Special Representative [Commission on Human Rights to examine the situation of human rights in Bosnia and Herzegovina] observes, however, that repossessions are largely technical, with property owners not actually returning to their pre-war residences. The climate of security has not been assured for returnees; eight years after Dayton, those who choose to return to their pre-war homes face threats or outright violence, as well as discrimination in obtaining documentation, finding employment in a generally depressed economy, accessing health care and access to education for their children. In some areas, separate schools for different nationalities exist, despite efforts by the international community and governments to come up with a joint curriculum for all schools.”

### **Ombudsman of the Federation of Bosnia and Herzegovina March 2003, Introduction:**

“Return of property develops relatively effectively and could be marked as a good one (which particularly applies to apartments), however, true return of people lacks. Close to accurate statistics concerning repossession of property already exist, which is also a part of this Report, however, statistic related to real return of people to their prewar homes is followed through statistics of no authorities. Additionally, according to complaints of the citizens who addressed the Institution of the Ombudsmen of FB&H, large number of refugees or returnees do not go back to their homes, but in various ways handle their repossessed property. Numerous paper advertisements and evidence contained in the book of validation of signatures on concluded contracts on sale or contracts on exchange of real estates are the best witnesses for the latter.

According to results of investigations conducted by the Ombudsmen, main reasons for giving up return are lack of existential conditions and change of ambient, which was during the war and after it imposed and accepted in all three ethnic parts of B&H. Accordingly, due to high level of distrust, guaranteed, true and sincere agreement on general peace and coexistence of different ethnicity, cultures and religions has never run aground. Verbal agreement on the latter exists only partly, yet it is neither sincere nor true.

Consequently, eleven years after the beginning of the war and seven years after its end, peace process suffers serious and chronic consequences, since full political will on implementation of civil part of Dayton Agreement has not been reached on all territory of B&H, since true return of refugees to their prewar homes has been and is main condition for peace and progress in B&H. Although by the end of 2003 intensive repossession of property and apartments is expected, significant return of refugees and displaced persons is not expected.”

***See also on unsustainable returns in the “Return and Resettlement” section.***

***See also in sources below : “Post-conflict restitution and refugee return in Bosnia and Herzegovina: Implications for international standard-setting and practice”, by Rhodri Williams, New York University Journal of International Law and Politics, Vol.37, n.3 6 March 2006 p.544-548.***

***See also, “[Real or Administrative Return in Bosnia-Herzegovina?](#)” South East European Refugee Assistance Network, 14 July 2003***

***For more on issues beyond property restitution facing displaced persons, see paras. 11 – 14 in “[Question of the Violation of Human Rights and Fundamental Freedoms in any Part of the World](#)” Situation of human rights in parts of South-Eastern Europe, Report submitted by José Cutileiro, Special Representative of the Commission on Human Rights.***

### **International agencies urge local authorities to develop social housing to address housing needs of displaced persons (2006)**

- A 2005 law provides to sell apartments occupied by displaced persons which have not been claimed
- International Community was advocating for continued use of those flats to the displaced
- There is currently not adequate social housing mechanisms to address the needs of the most vulnerable categories
- UN Committee on Economic, Social and Cultural Rights calls authorities to allocate sufficient resources for the provision of social housing
- Funding for reconstruction and repair of returnees’ homes is inadequate

- There has been a failure to repair destroyed homes of displaced persons, with most funding being invested in repairs of apartments
- Though formally entitled to temporary accommodation, a number of displaced persons have not been practically able to exercise this right
- Implementation of property law is mainly obstructed by the failure to provide alternative accommodation for persons due to be evicted
- Main international agencies urge the Federation to maintain use of unclaimed apartments as alternative accommodation

**COE, 25 April 2005, par.59:**

“At the end of March 2005, the FBiH Parliament adopted the Law on Return, Allocation and Sale of Apartments. The law foresees the return of apartments for which repossession claims have not been submitted by owners from 1991. If the owner is a currently privatised company, apartments will be returned to municipalities. Some 6,000 apartments are covered by this law, of which 3,000 are in the Sarajevo area. Unclaimed apartments have been mostly used as alternative accommodation for refugees and displaced persons. At the end of last year, the representatives of the international community had stressed the need that the new law should protect the continued use of unclaimed apartments by legal beneficiaries of alternative accommodation and take into account the housing needs of the most vulnerable categories of society (see SG/Inf(2005)2 final, para. 20 and Recommendation B vii). The OSCE Mission to BiH has now expressed its concern that the Law, as adopted, fails to address these issues. The Mission emphasised that a social housing policy is needed to ensure that (i) the re-allocation of unclaimed apartments does not adversely affect the rights of alternative and emergency accommodation beneficiaries, and (ii) responsible local authorities provide durable solutions to the housing situation of other vulnerable social cases currently neglected under the applicable law.”

**UN CESCR, 24 January 2006, par.46:**

“The Committee recommends to the State party to adopt, at the State level, a housing law and a national housing strategy to address the housing needs of the population. The Committee also recommends that the State party allocate sufficient resources for the provision of social housing, especially for the low-income and disadvantaged and marginalized groups.”

**COE, 4 February 2005, par.50**

“On 23 December 2004, the representatives of OSCE, OHR and UNHCR drew the attention of the FBiH Parliament to the fact that the draft Law on Return, Allocation and Sale of Apartments, which the Federation Parliament planned to discuss at the end of December 2004, should consider the continued right to alternative accommodation of the beneficiaries currently using unclaimed apartments, as envisaged by the Law on Cessation of the Application of the Law on Abandoned Apartments. The international community representatives noted that the draft Law did not prioritise the neediest families in the allocation process and underlined that the allocation criteria in the new Law, which would dispose of the last housing stock remaining in public hands, should take into account the housing needs of the most vulnerable categories of society. Vulnerable segments of the IDP population include those whose property has not been restructured and who are unable to access reconstruction assistance.”

**OHR 27 March 2003:**

“The OSCE Mission to Bosnia and Herzegovina, the Office of the High Representative (OHR) and the United Nations High Commissioner for Refugees (UNHCR) have urged Bosnia and Herzegovina's authorities to begin adequate planing for a fully-functioning social welfare system.

A letter has been sent to the Ministers in charge of social welfare, urban planning, displaced persons and refugees issues in both of the country's entities -- the Federation and Republika Srpska. In it, the international agencies highlighted the pressing needs of the country's population with regard to property issues, especially in light of the expected completion of the property law implementation by the end of 2003, in accordance with the New Strategic Direction of the country's Property Law Implementation Plan.

There are several categories of people currently housed in alternative accommodation whose homes were completely destroyed and who have been unable to find reconstruction assistance. Others had never possessed any property or had benefited from the social welfare system before the war. In all cases of people who have no prospect of being able to provide for their own housing needs, alternative accommodation under the property laws is not an appropriate long-term solution.

The international agencies also called upon the competent ministries to provide social support to the growing number of people who are not legally entitled to temporary accommodation under the laws on property and displaced person, but remain without resources to house themselves.

They urged the competent Ministers to anticipate these issues and begin instituting measures that would ensure a seamless transition from provision of alternative accommodation under the property repossession laws to effective long-term social policies. Such measures should include both a review of the current legal framework regarding social welfare and a realistic assessment of the resources necessary to meet anticipated needs."

**See also:** "[\*Alternative accommodation cannot be left out\*](#)", OSCE, 5 April 2005

### **Continued restrictions on ability to repossess military apartments in BiH (2007)**

- In 1998, the Federation army unlawfully took control of 4,000 former Yugoslav military apartments that had been abandoned
- Some cases have been brought before the Commission of Real Property Claims of Displaced Persons and Refugees (CRPC), with at least one positive decision
- The pre-war owners of these apartments continue to be unable to possess them despite rulings by the Human Rights Chamber that the apartments should be returned

#### **OSCE, March 2007, p.9:**

According to some estimates, there are less than 1% of pending cases of the total number of submitted [property] claims. These cases are mainly related to the flats which were subject to exchange or to the so-called "military apartments" in the Federation of Bosnia and Herzegovina.



It is well-known that a certain number of persons from both entities submitted no claims for the restitution of occupancy/tenancy rights within the set time limit. Data on their number vary from one B-H municipality to another. Roughly speaking, we are talking about some 3% of the total number of pre-war occupancy/tenancy right holders. If an occupancy/tenancy right holder failed to submit a claim for return of the apartment within the prescribed deadline, it is considered that his occupancy/tenancy right was terminated *ex lege*, whereby the possibility to repossess the flat permanently ceased.

Amendments to the Law on Revoking the Law on Abandoned Flats (FB-H) and to the Law on Revoking the Law on Abandoned Property Return (RS), applying to the return of military apartments, were adopted in July 2003 in the Federation of Bosnia and Herzegovina (FB-H) and in November 2003 in the Republic of Srpska (RS). The amendments stipulate that the right to repossess a flat will not be applicable to occupancy/tenancy right holders who enjoyed that right in the flats owned by the Defence Ministry and that such persons will not be considered refugees if they remained in the professional military service in any armed forces outside Bosnia and Herzegovina after 14 December 1995. In addition, occupancy/tenancy right holders of the mentioned status will not be considered refugees nor will they have the right to repossess an apartment, if they acquired some new occupancy/tenancy right or a corresponding right from the former JNA housing stock or the newly established housing stocks of the armed forces of the states which emerged in the former SFRY territory.

[...]

**p.21:**

The RLAP network monitored the status of at least three cases related to the restitution of military apartments. In two cases, proceedings for repossession of military apartments in the territory of the Entity of the Federation of Bosnia and Herzegovina are still in progress and not all available legal remedies have been exhausted, nor has a complaint been lodged with the Constitutional Court of Bosnia and Herzegovina. In one case, the parties have a positive decision of the Commission for Real Property Claims of Displaced Persons and Refugees (CRPC) on the restitution of an occupancy/tenancy right to a military flat, and there is also a conclusion on the execution of that decision. The conclusion on the execution was suspended, that is, challenged by the owner of the flat, the Ministry of Defence of Bosnia and Herzegovina. In early 2006, an appeal was lodged with the newly established Commission for Real Property Claims of Displaced Persons and Refugees. In relation to the repossession of military flats, a higher interest of parties in the outcome of filed requests for review of negative decisions of the former CRPC by the newly established CRPC was noticed.

Also monitored were at least three representative cases in which parties sent claims for restitution of occupancy/tenancy rights to the competent body in Banja Luka by mail, but these claims were never registered by the competent body. Proceedings for resolving these cases are still in progress.

**IJRL, March 2006:**

“Another issue that the Human Rights Chamber may have left for the Court in Strasbourg to sort out is that of JNA apartments. Initially, the Chamber took a firm line with the Federation, which had cancelled the purchase of JNA apartments initiated just prior to the outbreak of war. (...)”

After a long stand-off, the Federation negotiated a compromise with OHR. The High Representative inserted article 3a into the Federation Law on the Cessation of the Application of the Law on Abandoned Apartments and articles 39a to 39e into the Federation Law on the Sale of Apartments with Occupancy Right. For the purposes of restitution, article 3a (...) allowed

certain categories of military personnel to be excluded from restitution on the basis that they were not refugees. Articles 39a, b, c, d and e (...) then set out a procedure by which some of the pre-war purchases could be finalised or compensation claimed.

The impasse, however, was not resolved. The Federation Ministry of Defence still refused to allow the return of apartments that passed the article 3a test or to account for former JNA apartments that had been reallocated. In the meantime, article 3a itself was challenged. (...) The Human Rights Chamber, in the decision of *Miholic´ & Others*, (...) whilst holding that the application of the first paragraph of article 3a violated the ECHR, stated that the second paragraph did not. The second paragraph, for the purposes of claiming under the law, stated that '[a] holder of an occupancy right . . . will not be considered a refugee if s/he remained in active military service of any armed forces outside of the territory of Bosnia Herzegovina after 14 December 1995 . . .'. The Chamber found that this was an acceptable limitation on the definition of a refugee and, as such, those caught by the provision could thereby be excluded from the Law on Cessation process. (...)

The Chamber decision, nevertheless, recognized the rights in question as being unperfected private property rights. It stated that the claimants should be allowed to register the purchased apartments in the land title books. Mysteriously, it did not explain why the claimant could not then apply for restitution of the apartment as private property; that is, under the Law on Cessation of the Application of the Law on Temporarily Abandoned Real Property Owned by Citizens. Therein, there is no equivalent to article 3a and, indeed, no requirement that the claimant be an IDP or refugee in order to claim for the return of private property. As such, not only did this decision buck the trend away from return-linked restitution, (...) it extended 'return' conditionality to a category of property rights that had hitherto been beyond its reach.

Despite a clear order from the Chamber that article 3a be brought into compliance with the ECHR, (...) the Federation dragged its heels for almost a year. It then reformulated the provision, (...) rather than addressing the Chamber's main concerns head on. Federation authorities were supported in this, in part, by the aforementioned confusion in the Chamber's decision, (...) the unwillingness of OHR to step in and remedy a provision that it had imposed in the first place, (...) and by CRPC's seemingly political decision to reject claims for JNA apartments."

#### **USDOS, 28 February 2005:**

"During 1998, the Federation army unlawfully took control of approximately 4,000 abandoned apartments owned by the former Yugoslav military (JNA). Federation authorities encouraged post-war illegal occupants of these apartments to purchase them. In the meantime, the prewar owners of the apartments (former JNA officers, mostly Bosnian Serbs) began filing claims to return to their property. After inadequate action by local authorities, several of these cases were brought before the Human Rights Chamber, which decided that apartments owned by JNA officers should be returned. Federation authorities continued to refuse to evict the current residents or to allow pre-war owners to regain possession, in violation of the Dayton rules for property implementation. The Constitutional Court ruled in September that the Federation's legislation that prohibits ownership of property in the Federation by anyone who served in the JNA after May 19, 1992 (effectively disenfranchising all Bosnian Serbs with claims to these

properties) is constitutional. Because most claimants to these apartments have been allocated apartments elsewhere (mostly in Serbia), the Court held that the Federation has the right to uphold the legal principle applied in the former Yugoslavia, which holds that citizens cannot have tenancy rights to more than one apartment at the same time. The MOU authorizing the transfer of responsibilities to the DCRPC specifies that the appeals shall be decided in accordance with international law except where it conflicts with Bosnian law. The Constitutional Court's decision suggests that the DCRPC will have to rule in favor of the current occupants of the JNA apartments, a position inconsistent with international legal principles; however, until the DCRPC rules on these cases, the situation remains unresolved."

See *"Human Rights Chamber Delivers 6 Decisions on Admissibility and Merits"*, *Human Rights Chamber*, 4 April 2003.

*On military apartments see (in sources below) : "Post-conflict restitution and refugee return in Bosnia and Herzegovina: Implications for international standard-setting and practice", by Rhodri Williams, New York University Journal of International Law and Politics, Vol.37, n.3 6 March 2006 p.544-548.*

#### **Some measures taken to legalise Roma settlements, but authorities still need to take action urgently (2008)**

- Roma have been excluded from reconstruction assistance due to lack of documents and formal title on their houses
- Up to 75% of Roma lack adequate housing and live in conditions that are often a threat to their health
- Roma continuously face the threat of eviction due to unclear title to the land they occupy
- OSCE identifies more than 30 informal settlements throughout BiH
- Efforts are undergoing to ensure legal ownership or alternative housing for Romas
- Brcko district authorities pledged to legalise a Roma informal settlement

#### **CoE 20 February 2008:**

"92. Most members of the Roma community in BiH do not have any legal title over the land they have resided on for decades or longer, nor can they receive assistance from donors for reconstruction of homes since most donors require proof of ownership. Many Roma settlements were destroyed during the course of the war and Roma regularly face eviction from current settlements. According to OSCE data, 75 % of Roma lack adequate housing and accommodation. The Roma who live in informal settlements are often living in conditions which threaten their general health. As many of them were living in informal settlements before the war, their return process causes particular challenges.

93. In view of the seriousness of the housing conditions, both the ECRI and the Advisory Committee of FCNM have stressed the urgent need of addressing the informal settlements of the Roma populations with a view to legalising them or providing alternatives to these settlements. The Commissioner shares their views. He is extremely concerned at the level of social exclusion and poverty faced by the Roma in Bosnia and Herzegovina in all areas of life and calls for comprehensive measures to be taken by the Bosnian authorities."

#### **OSCE, "Overcoming exclusion", 2004:**

"The property situation of Roma is particularly problematic. Prior to the war, a large number of the Roma community in BiH lived in settlements built on State-owned land, which were often not recognized by local authorities. As a result there are few records establishing the Roma settlements, and no concrete information on the total number and location of such settlements.

OSCE's preliminary field research identified more than 30 such settlements throughout BiH. Most residents do not have any legal title over the land they have resided on for decades or longer. Nor can they receive assistance from donors for reconstruction of homes, since most donors require proof of ownership. Many Roma settlements were destroyed during the course of the war, and Roma regularly face eviction from current settlements.

OSCE is conducting a survey, funded by the Council of Europe, to gather information on each settlement, in an attempt to ensure legal ownership or alternative housing assistance pursuant to international and domestic law. OSCE has been working and will continue to work with local officials to prevent forcible evictions."

**ECRI, 15 February 2005, par.62**

"At present, between 50 and 70% of the Roma of Bosnia and Herzegovina are estimated to live in informal settlements, where conditions are extremely poor and, in some cases, such that the health and lives of their inhabitants are seriously threatened. Many of these settlements lack basic facilities such as access to drinkable water, electricity, reliable sources of heating, sewage system or garbage disposal. Furthermore, people in settlements are vulnerable to forced evictions, following which, in a number of reported cases, alternative accommodation has not been provided. ECRI strongly urges the authorities of Bosnia and Herzegovina to address without delay the housing situation of the Roma population and to ensure in the short term, that all Roma dwellings meet, at the very least, basic standards of adequate housing. ECRI notes that, in some municipalities, such as in Sarajevo, and in Brcko district the authorities have taken some steps to legalise settlements or to provide alternative accommodation to their inhabitants and strongly recommends to the authorities of Bosnia and Herzegovina to extent these initiatives."

**OSCE, 13 May 2003:**

"The OSCE Mission in Bosnia and Herzegovina (BiH) has welcomed the decision by Brcko district authorities to allocate apartments to 15 Roma families who have been living in an informal settlement in Prutace for many years.

Under current legislation, these families were to be evicted from the apartments this month. Following a meeting with the OSCE Mission, the Brcko district authorities decided to let the families continue to live in the informal settlement in Prutace and pledged to legalise it as a formal settlement of Roma community. This is a positive step by local authorities to resolve the housing issues of the Roma community."

**Council of Roma, October 2004:**

"More than 70 % of Roma do not have a house, while the rate of Roma returnees is very low. [...] During the war in Bosnia and Herzegovina Roma settlements were literally demolished and warehouses of different companies have been built on the locations or the locations have been declared water protection areas or buffer zones or the locations have been usurped by non-Roma or the local authorities have been claiming municipal ownership of the locations or the like. Roma population in Bosnia and Herzegovina has achieved the lowest ratio of housing reconstruction and the commitments for reconstruction by the Ministry of Social Security, Displaced Persons and Refugees have not been honoured yet."

**See also (in sources below):**

***“Report on Roma informal settlements in Bosnia and Herzegovina”, OSCE, 8 April 2005***

***“UNHCR and OSCE Advocate For a Permanent Housing Solution for Roma Families from Butmir Settlement”, UNHCR, 5 September 2006***

**See also in other sections of this country profile:**

***“Efforts to facilitate the integration of Roma children at schools” in the Education section***

***“Roma excluded from fundamental political and social rights because of lack of personal documents, in Documentation needs and citizenship section***

***“BiH and Entity Constitutions link access to many aspects of public life to ethnicity” in self-reliance and public participation section***

***“Displaced Roma, a particularly vulnerable group” in Pattern of displacement section***

***“Roma continue to struggle to access property rights”, in Property rights***

***“Displacement aggravates the living conditions of Romas”, in Subsistence needs section***

### **Roma continue to struggle to access property rights (2008)**

- Several UN human rights committees have urged authorities to address the difficulties faced by Roma people to repossess their property and access adequate housing
- Roma lack legal entitlements to their pre-war residences and are thus unable to recover their rights
- Roma residents of informal settlements are also vulnerable to local government decisions to reallocate the land for more lucrative purposes

#### **USDoS, 11 March 2008:**

“Roma displaced during the war had difficulty repossessing their property as a result of discrimination and because they lacked documents proving ownership or had never registered their property with local authorities. The lack of documentation also prevented them from applying for reconstruction assistance.”

#### **UN CESCR, 24 January 2006, par .47:**

“The Committee urges the State party to ensure the right of the Roma people to repossess their pre-armed-conflict property, to guarantee security of tenure to inhabitants of Romani settlements and to ensure that adequate alternative housing or compensation is provided to the Roma people and to pre-armed-conflict tenants who have been evicted from their settlements and homes, in line with the Committee’s general comment No. 7.”

#### **UN CERD, 11 April 2006, par. 20:**

“The Committee is deeply concerned that many people of different ethnic origin, especially the Roma, are unable to return to their pre-armed conflict homes because of the lack of legal title to their property or because of the authorities’ failure to evict and punish temporary occupants who often vandalise or loot the homes before relinquishing possession of them. The Committee is also concerned about reports that many informal settlements in which Roma lived prior to the armed conflict have been destroyed, and that Roma continue to be evicted from their informal settlements, without adequate alternative accommodation being provided, and in view of the fact that Roma are frequently unable to rent private accommodation because of racial discrimination and/or poverty (Art. 5 (e) (iii)).

**Referring specifically to General Recommendation 27,3 the Committee urges the State party to facilitate the return of all people of different ethnic origin, especially the Roma, to their pre –armed conflict homes, to ensure their ability to occupy and reside in informal Roma settlements legally and safely, and where necessary, to provide adequate alternative**

**housing or compensation for displaced Roma, including to pre-war tenants who have been evicted from their settlements or whose homes have been destroyed.”**

**ERRC, 3 July 2006, par.5:**

“Many Roma have experienced difficulties in exercising their property rights and accessing the right to adequate housing in post-war Bosnia and Herzegovina. Indeed, many Roma are still internally displaced within the country for a myriad of reasons. In some cases, Roma have been unable to return to their pre-war homes due to fear and/or impediments to return. The repossession of personal property by Roma has been left to the discretion of local (generally non-Romani) authorities slow to remove temporary occupants from their property. In many of the cases of repossession of personal property by Roma of which the ERRC is aware, temporary occupants have vandalised or looted property before leaving. Many of the informal settlements in which Roma lived prior to the war have been destroyed and no adequate alternative accommodation has been made available to former inhabitants. Roma who have been able to return to informal settlements often find themselves at the mercy of local authorities eager to allocate their land for industrial or other economic development projects, while at the same time making no plans for the provision of alternative accommodation for Roma displaced through forced evictions. Roma living in informal settlements or who lived in social housing before the war are frequently excluded from the benefits of new property laws and are in many cases ineligible for the aid money that has poured into the country under reconstruction schemes. In such settlements, an adequate standard of living is not available. In extreme cases, very substandard conditions in such settlements have led to the death of vulnerable inhabitants. Further, Roma are frequently unable to rent private accommodation due to racial discrimination or poverty or both. The government should act without delay to ensure that all Roma in Bosnia and Herzegovina enjoy the right to adequate housing in practice.”

**UN CHR, 29 December 2005, par 39:**

“The situation of the Roma is particularly problematic. Before the war, a large number of the Roma community lived in settlements which were built on State-owned land and often not recognized by local authorities. As a result, there are few records of these settlements, and no concrete information about the exact location of houses. Today, an estimated 50-70 per cent of Roma reside in informal settlements in a precarious situation as the land could be reallocated by local authorities at any time.(...) Currently, some two thirds of all Bosnian Roma are not registered at a permanent address, which complicates or bars various administrative procedures such as obtaining official documents. The Representative noted with concern cases of forced eviction of Roma communities, such as that in Biske Polje near Mostar in 2003. A Roma settlement built on State-owned land was reportedly demolished and burnt by the authorities without prior warning and with no alternative accommodation offered.”

**OSCE 7 April 2002:**

“Roma make up the largest of BiH's 17 national minority groups. There are Roma throughout the Federation and RS, with the biggest concentration in Tuzla Canton, where there is large community of displaced people and repatriates. During the war many of Bosnia's Roma, who are mainly Muslim by religious orientation, were expelled from predominantly Serb/Croat held parts of the country and fled to other European countries, such as Germany, Switzerland, Italy, Sweden and the Netherlands, as well as being internally displaced. Post-war they have been returning to BiH, but many still can not return to their pre-war homes because they have been destroyed or occupied. In Bijeljina for example, which used to be home to some very wealthy Roma, Roma have returned to find their houses lived in by local authorities. There have been some cases of Roma living in tents in the garden of their occupied houses. Like all persons displaced during the BiH war, Roma face many obstacles and obstructions as they try to maneuver through the

complicated legal administrative property repossession process. Yet Roma also face the additional hurdle of discrimination on the part of housing authorities."

**ERRC, No.3 2003 :**

"The obstacles to exercising fundamental rights facing Roma stem from a number of causes. Roma displaced from their property during the war have had difficulty repossessing their property because of discrimination and lack of adequate information on the necessary procedures. Most of the Romani individuals who were allocated social housing before the war are currently left without housing. In contrast, most field evidence points to the fact that other ethnicities living in such housing prior to the war have, in fact, been able to reclaim it. Roma living in informal settlements[1] are left in a precarious situation as the land on which they reside can be re-allocated by local authorities. In addition, many Roma are further impaired in exercising their rights because of the lack of personal documents. Lack of ownership documents also hampers repossession of property and the provision of reconstruction assistance in cases where housing was destroyed during the war.

**Exercise of Property Ownership Rights**

The problems regarding Roma and property basically fall into three categories: the inability to repossess private property or socially-owned apartments [2] lost during the conflict; the loss of pre-war social welfare housing;[3] and the lack of security of tenure in informal settlements. The first two categories stem directly from the conflict. Individuals who lost private property can submit claims for repossession of such property pursuant to the property laws in both the Federation of BiH and the Republika Srpska (RS).[4] Individuals residing in social welfare housing who became displaced during the war have no right to repossess their property, as the current legislation governing repossession does not include such property. The primary concern regarding housing of Roma, however, remains informal settlements.

Pre-war, the majority of the Romani community in BiH, estimated at between 50 to 70 percent, lived in settlements built on state-owned or private land, which were often not recognised by local authorities. Such settlements were not recognised because the inhabitants had not secured any legal rights to use the property. Unfortunately, there are few records in either land books or municipal cadastres establishing the Romani settlements. Nor is there concrete information on the total number and location of such settlements. A survey conducted by the Organisation for Security and Cooperation in Europe (OSCE) in 2002 identified roughly one hundred such settlements with a population of over 22,000 persons in over thirty municipalities.[...] This list, however, is not exhaustive. Most residents of informal settlements do not have any legal right to reside on the land, despite in some cases having resided on the property for decades or longer. Nor can they receive assistance from donors for reconstruction of homes, since most donors require proof of ownership. Under these circumstances, hundreds of Roma, whose houses in informal settlements were destroyed during the war, have been left without access to their pre-war housing and with little chance of securing alternative housing.

**ERRC, February 2004, p.117:**

"It is important to note that much of the housing in BiH prior to the war was built without required permits, but nonetheless has been 'formalized' by local officials, except in cases where the property belonged to Roma. There are only several cases where local officials have made attempts to provide some security of tenure to Roma in informal settlements."

**ERRC, No.3 2003:**

Romani residents of informal settlements are also vulnerable to local government decisions to reallocate the land for more lucrative purposes. This can be illustrated by the case of the pre-war Romani settlement in Gorica, in the Sarajevo Canton. Roma had been using the site as a settlement for decades (or longer according to the Romani community) prior to the war. However,

post-war municipal authorities decided to allocate the land for other purposes. Fortunately, the mayor of the municipality was persuaded through constant pressure by members of the international community to allocate the land to the resident Roma. Construction permits were then negotiated and a donor was identified to fund reconstruction of the destroyed housing for roughly fifteen families. The Roma were also permitted to register in the land books, thus attaining legal title to the property. A similar situation also occurred in Doboj in the Republika Srpska, where only after considerable intervention from the international community, particularly the Office of the High Representative (OHR)[...] and the OSCE, did the reconstruction programme take place, benefiting roughly twenty-eight Romani families.”

[Footnote 1] In this case the term informal settlements applies to any settlement where housing has been constructed without the requisite permits or legal title for use of the land.

[Footnote 2] Socially-owned property is a form of property entitlement which is stronger than a rental contract but is not equal to private property. Socially-owned property was allocated to employees of state-owned enterprises or state bodies. Individuals allocated socially-owned property were considered ‘occupancy right holders’. Occupancy right holders exercised broad rights over the property, including passing it to family members resident in the apartment after the death of the occupancy right holder. However, they were not entitled to sell the property.

[Footnote 3] Prior to the war, most employed Roma worked for companies responsible for communal services, with the work being manual in nature. Because these companies did not generate considerable revenue they were unable to build housing for their employees, as was common practice under the prewar Yugoslav system. Thus, many Roma had to be allocated housing by municipal officials under social welfare programs. Many Roma lived in such housing for years or even decades.

For more background information, see

***See also in other sections of this country profile:***

***“Efforts to facilitate the integration of Roma children at schools” in Education section***

***“Roma excluded from fundamental political and social rights because of lack of personal documents, in Documentation needs and citizenship section***

***“Displaced Roma, a particularly vulnerable group” in Pattern of displacement section***

***“Displacement aggravates the living conditions of Romas”, in Subsistence needs section***

***“Some measures taken to legalise Roma settlements”, in Property issues***

### **Commission for Real Property Claims of Displaced Persons and Refugees 1996-2003 (2005)**

- The Commission is responsible for the processing of property claims for displaced persons and refugees under Annex 7 of the Dayton Peace Agreement
- CRPC, an institution created to overcome obstruction of local authorities
- Successful role at the beginning of the process and in sensitive cases
- CRPC’s role was to determine the ownership of the property
- Lack of enforcement mechanism seriously hampered the efficiency of CRPC decisions and led to channel its decision through the general administrative process
- Possessors of CRPC decisions had to go to local authorities to request enforcement and determine the rights to alternative accommodation of current occupants.
- CRPC has collected claim applications for 319,220 properties throughout BiH (December 2003) and issued 302,109 decisions providing incontrovertible proof of property rights have been issued (July 2003))



- 
- CRPC conducted other useful property related activities such as reconstruction checks, maintenance of an information exchange database to monitor double occupancy,
- The CRPC completed its mandate end of 2003
- Transfer of CRPC activities to the authorities are regulated by a special agreement
- The CRPC reconsideration body stopped its activity in December 2004

**Charles Philpott, Journal of Refugee Studies, February 2005:**

"During its mandate, the CRPC received 240,333 claims for 319,220 properties. [...] and decision issuance was slow. Nevertheless, In the absence of an alternative process early on, and at a stage when the courts and authorities were rejecting restitution claims, the CRPC proved a useful repository of claims against the day when restitution might be possible. [...] It had also balanced its own relative powerlessness by conducting useful property-related research and supporting a variety of return and restitution strategies, such as housing checks of elected officials and police, international staff accommodation checks, reconstruction checks, and collating Information Exchange data. Participation in PLIP was pivotal."

**Charles Philpott, Journal of Refugee Studies, February 2005:**

"Since there were concerns as to the ability of local officials to fully implement the right to repossession of property, an international body was created to assist. Chapter II, Article VII of Annex 7 established the Commission for Displaced Persons and Refugees. This Commission was created as the Commission for Real Property Claims (CRPC). The creation of CRPC was an attempt to circumvent Bosnian legal and administrative bodies that were inadequate for the task. Municipal housing bodies were poorly organized and resourced, and many were staffed by political hardliners bent on preventing the return of properties. The judiciary was viewed as biased and ill-equipped to handle a large number of new cases. The original mandate of CRPC under the DPA was to last for five years, but the mandate was extended for an additional three years given the backlog of claims that developed. CRPC ceased operations on 31 December 2003. The mandate of CRPC is to receive and decide claims for real property, whether the claim is for return of the property or for compensation.[...]

CRPC consists of three international and six national commissioners and a number of international and national staff involved in collection of claims and drafting of decisions. Its decisions are final and binding, and only CRPC can alter its decisions upon a request for reconsideration of the decision by either the claimant or the temporary occupant. When issuing decisions CRPC is permitted to disregard any domestic legislation viewed as contrary to the DPA. Through its mobile teams and offices in countries of asylum, CRPC created an easier environment for many refugees and displaced persons to file claims.

CRPC decisions address only the right of the claimant. Decisions make no determination as to the subsequent rights of the current user. Its decisions confirm whether the claimant was the owner or occupancy right holder as of April 1992 – the start of the conflict. CRPC investigates claims primarily through access to official land records, as there are no oral hearings. [...] The basis for the implementation of CRPC decisions is pursuant to both the RS and Federation of BiH Laws on Implementation of the Decisions of the Commission for Real Property Claims of Displaced Persons and Refugees, imposed by the High Representative in October 1999 and amended several times thereafter.[...]

The comparative advantage of an international organization such as CRPC was the its ability to issue mass decisions confirming prewar ownership or possession. [...] However, the primary obstacle in the process of repossession of property in BiH proved not to be the determination of rightful owners and possessors, but determining the rights of temporary occupants. Given that

displacement lasted a relatively short period of time and that property was allocated only on a temporary basis, there were few disputes as to the actual owner of the property. [...]In addition, CRPC could not effectively resolve cases where the legality of wartime property exchanges was in question, especially regarding cases involving duress. For this reason the Laws on Implementation of the Decisions of the Commission for Real Property Claims of Displaced Persons and Refugees were amended to provide judicial proceedings in such cases. [...]

Another weakness of CRPC is that its decisions are not immediately enforceable. In attempt to remedy this situation, the High Representative imposed legislation on implementation of CRPC decisions[in 2000]. An individual who receives a CRPC decision in their favor must submit the decision along with a request for enforcement to the housing office in the municipality where the property is located and file a request for enforcement with BiH authorities, otherwise housing office officials are under no obligation to act under a CRPC decision.[...]

Once the request for enforcement is made, housing officials must make a determination as to the rights of the temporary occupant, and issue the appropriate decision pursuant to the Laws on Cessation. For decisions involving private property there is no deadline for requesting enforcement of a CRPC decision. Therefore the value of a CRPC decision became solely dependent on the functioning of the domestic housing office system. Since most problems in the process stemmed from the rights of the current occupant, CRPC certificates were not viewed as adding considerable benefit to the process.

In practice, officials in housing offices rarely implemented the CRPC decisions, and instead issued their own decisions that were later implemented. In this respect CRPC served as a parallel mechanism to the system of housing offices, especially since many individuals filed claims with both. The end result was that CRPC and domestic housing bodies ended up issuing decisions on the same cases, since many individuals filed claims to both bodies.

However, CRPC was advantageous in issuing decisions in politically sensitive cases, such as those involving elected officials, judges, military officials and police officers, so that local housing office could stand behind the CRPC decision as opposed to issuing one themselves and opening themselves up to threats. CRPC also issued decisions for destroyed property, which was a prerequisite for securing reconstruction assistance from international donors.”

**Paul Pretittore, World Bank, June 2004:**

“CRPC did not process its decisions chronologically and, in fact, many thousands of claims that were difficult to resolve for evidentiary reasons had been placed at the end of the queue. These so-called ‘Black box’ cases (estimated at 3,000 to 30,000) would remain in limbo, with the claimants having no recourse, until the end of CRPC’s mandate on 31 December 2003.”

“The mandate of the Commission for Real Property Claims (CRPC) [...]ended during the year. As part of its transfer process, the CRPC was to transfer all of its claim files (approximately 240,000) and records to the BiH National Archives, and to transfer its computer database to the BiH Ministry of Human Rights and Refugees (MoHRR). CRPC was unable to resolve approximately 50,000 private property claims because they involved conflicting documentary evidence and required a hearing, which was beyond CRPC’s mandate. A public information campaign was designed to inform claimants of their responsibility for pursuing these claims. In addition, 5,000 occupancy rights housing claims were transferred to municipal housing bodies for resolution because these claims faced statute of limitation issues. At year’s end, several memoranda of understanding remained unsigned and laws needed to be enacted to accomplish the handover. Local authorities were slow to take the necessary actions to ensure a smooth transfer.” (USDOS, 25 February 2004

**Rhodri Williams, FMR, September 2004:**

"Because CRPC failed to reach agreement with domestic authorities on the transfer of its remaining necessary operations and finances by the end of its mandate, 31 December 2003, these responsibilities automatically transferred to the government of BiH.

The BiH authorities have chosen to regulate this obligation by means of an agreement with both Entities. This agreement, currently being finalized, will result in a limited "nationalized CRPC"

that will not issue any further decisions, but which will take up the important role of "reconsidering" CRPC decisions challenged by people affected by their enforcement."

#### **Phone conversation and email exchange with OSCE officials in Bosnia and Herzegovina March 2005:**

The transfer of CRPC activities is regulated by the Agreement between BiH, Federation and RS on transfer of competencies and continuation of financing and work of the CRPC signed on 25 May 2004. According to the agreement, 754 reconsideration cases have been transferred to the CRPC reconsideration body, 1399 have been transferred to local authorities. The "Black box" cases are estimated to 20,000 cases on which there is little information. No arrangement is made to process such cases which are currently archived.

According to the agreement, the new commission will decide on cases according to CRPC book of rules unless it differs from national legislation. The main area where CRPC book of rules differs from domestic laws are military apartments. On 16 October 2004, authorities have amended laws relating to purchase apartments including military apartments. In April and May 2004, the Federation Government and both chambers of the Parliament have issued decisions suspending enforcement of CRPC decisions under reconsideration until the second instance commission is functional. The decision also calls for suspension of administrative and judicial procedures for repossession of military apartments until the new Law on sale of apartments with occupancy right is voted. The new Commission started its activities in December.

***See also: " Property restitution in Bosnia and Herzegovina: a remarkable achievement but concerns remain about CRPC claims", Rhodri Williams, ICHR, link below***

#### **The right to reconstruction (2007)**

- There is no time deadline for applying for reconstruction of damaged property
- In June 2004, MHRR issued an appeal inviting refugees and DPs to apply for reconstruction

#### **OSCE, March 2007, p.14:**

Ever since the signature of the Dayton Peace Accords some 260,000 housing units have been reconstructed, out of which over 170,000 through donations.

In Bosnia and Herzegovina the right to reconstruction is regulated by the Law on Refugees from B-H and Displaced Persons in B-H.<sup>45</sup> There are also entity laws confirming and regulating the right to reconstruction. The law does not envisage any deadline by which reconstruction requests should be submitted in B-H.

The cost of reconstruction of the remaining destroyed and damaged housing stock is estimated, according to the degree of damage established in the field, at around 2.5 billion KM or around 1.25 billion euros.

On 25 June 2004, the Ministry for Human Rights and Refugees issued an appeal inviting refugees from B-H, displaced persons in B-H and returnees to apply for reconstruction and return to B-H.

Public announcements [of reconstruction projects in places where potential returnees possess damaged or destroyed real assets] are posted on notice-boards of B-H municipalities and publicized at least in one daily newspaper of each entity.

### **A forgotten aspect of Annex VII, the right to compensation for loss of property: (2005)**

- Annex VII of the Dayton peace agreement provided for compensation for lost properties
- The planned mechanism never functioned as donors feared that compensation would deter return and consolidate ethnic cleansing
- Donors preferred funding reconstruction projects which was more favourable to return.

### **Paul Prettitore, World Bank, June 2004**

“The emphasis which international organizations have put on achieving more minority returns has had the result of diverting attention from discussions of relocation and compensation for loss of property. [...] Operational international agencies looking at property issues as part of their overall strategy to recreate a multi-ethnic country, have emphasized minority returns. Relocation and compensation for loss of property have not been overtly promoted lest they be seen as contrary to the strategy to reverse the consequences of ethnic cleansing.”

Under both the BiH Constitution and Annex 7 of the DPA refugees and displaced persons have the right to be compensated for any property of which they were deprived in the course of hostilities that cannot be restored to them.

Annex 7 does provide mechanisms for compensation. It provides for the establishment of the Refugees and Displaced Persons Fund to settle claims for compensation.[...] This Fund was to be established in the Central Bank of Bosnia and administered by CRPC. Resources for the Fund were to be provided through the purchase, sale, lease and mortgage of real property that had been claimed before CRPC.[...] Funds could also be provided through direct payments by the Parties to Annex 7 or from contributions from international donors.

While both the right to, and a mechanism for, compensation were established under the DPA, in practice compensation did not materialize as envisioned. When submitting a claim to CRPC, a claimant could request compensation in lieu of return of the property. But in practice, preferences for compensation were used only for statistical purposes, and no compensation has ever been paid. The Fund was never established because no resources were made available.[...] This was the case for a number of reasons, the most important being that the political preference was for the return of refugees and displaced persons in order to create a unified, multi-ethnic state. For that reason most international donors, the biggest being the European Commission and the US Government, placed resources in the reconstruction of destroyed housing and other related activities that promoted return.

In addition, immediately following the conflict the security situation remained somewhat tenuous, and there was concern that at that time refugees and displaced persons would chose compensation because of their concerns regarding return. In that sense, international organizations wanted more time to create an atmosphere to promote return.[...]

[I]t could be argued that the right to compensation has been partially fulfilled by allowing refugees and displaced persons to reposess and subsequently sell their property because in general there have been no restrictions on the sale of property<sup>92</sup>. In such cases the property owners probably received a fairer price, and more quickly, than they would through a compensation

scheme. However, individuals whose property was destroyed would be disadvantaged as no consideration would be made for the destruction to their property.”

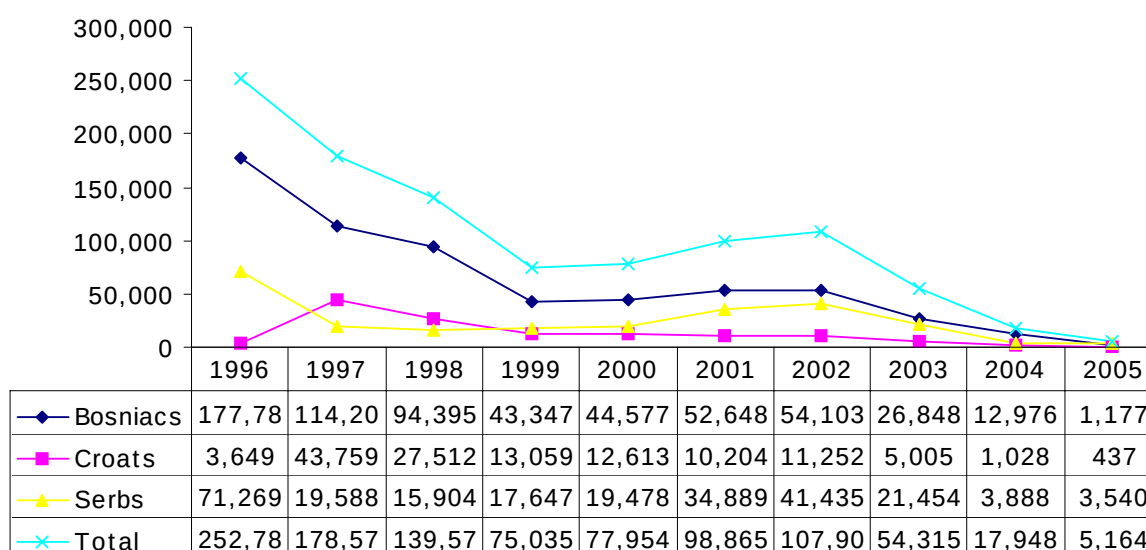
# PATTERNS OF RETURN AND RESETTLEMENT

## General and policy

### Significant decrease of return figures after 2004 (2008)

- Roughly 4,500 persons returned in 2007, most of them minority returns
- Return figures in 2005 is one third less compared to previous year
- Since 2002 which registered the record return figure of 102,000, return has constantly decreased down to 5,100 in 2005
- Over one million persons return to Bosnia and Herzegovina since Dayton
- After three year of increasing return, figures have dropped sharply in 2003 and 2004
- Return are now occurring in areas worst hit by the conflict
- UNHCR will focus its assistance in Eastern Republika Sprska
- Property restitution has significantly contributed to the return process
- Several obstacles to sustainable return remain: economic situation, failure to arrest war criminals, persistence of ethnic debate, access to social and economic rights
- Remaining IDPs are among the most vulnerable who are in particular need of assistance
- Assistance is still needed in particular in reconstruction of houses

**Total Return in BiH**  
- per national structure and years -



Source: [UNHCR, Ministry for Human Rights and Refugees, 2006](#)

**Return figures for 2007:** UNHCR estimates that during 2007, a total of 4,516 persons have returned home, of which 3,899 were minority returns.

1,678 persons returned to the Federation;  
2,137 persons returned to RS  
701 persons returned to Brcko District.

**USDoS, 11 March 2008:**

The return of persons displaced by the 1991-95 wars was almost stagnant during the year, continuing a steady decrease in overall returns. According to the UNHCR, 6,532 persons, of whom 5,879 were minority returnees. Of 1,023,965 total persons who had returned since the end of the war in 1995, 464,695 were returnees to areas where they were an ethnic minority. Government officials and some NGOs, however, believed that the total number of returns was inflated, since the UNHCR determines returns based on property restitution rather than physical presence. According to the BiH Ministry of Human Rights and Refugees, there were 131,634 registered displaced persons in BiH still seeking return.

**“HRW, 18 January 2006:**

“The return figures were particularly discouraging in 2005. Between January and the end of September, UNHCR registered 5,059 minority returns, a twelve-fold drop compared to the same period in 2002. Continuing attacks and harassment targeting returnees, scarce employment opportunities in places of return, insufficient funding for reconstruction of destroyed properties, and obstacles affecting social and economic needs of prospective returnees, frustrated the return process.”

**UNHCR, May 2006:**

“By the end of April 2006, 1,012,970 former refugees and internally displaced persons (DPs) have been recorded as having returned to their pre-war homes and municipalities in BiH, out of an estimated 2.2 million persons forcibly displaced during the war. Recorded returns include some 455,105 so-called minority returns, as opposed to the 557,865 so-called majority returns who returned to municipalities where their own constituent people of BiH are in a numeric majority. Of the total, 442,219 were refugees who had fled Bosnia and Herzegovina, and 570,751 had been forcibly displaced inside the country. Nearly three quarters of the total (735,434) returned to the Federation of Bosnia and Herzegovina (Federation) and one quarter (256,154) to the Republika Srpska (RS). Some 21,400 have also returned to the Brcko District. Broken down by the constituent peoples of BiH, they included around 627,150 Bosniaks, 248,400 Bosnian Serbs and 129,400 Bosnian Croats.

These return figures provide a clear indication that the demography of BiH has been altered in line with Annex VII of the GFAP, which underlined the right to return for all those displaced during the war, although a definite assessment of the demographic composition of the population in BiH will only be possible once a new census has taken place. Following the very high number of recorded returns in 2002, during which some 108,000 refugees and displaced persons returned to their places of origin in BiH, the total number of recorded returns for 2003, 2004 and 2005 was only some 81,100 persons, less than 6,500 of which occurred in 2005.”

**UNHCR, June 2006, UNHCR and DPs in Bosnia:**

“Given the recent decrease in return, the return of the majority of these DPs in the near future is unlikely. While UNHCR, in co-operation with its national partners, continues its efforts to promote return, the current fate of the most vulnerable among these DPs is of its immediate concern.

The number of DPs that re-registered and filed an application for extension”

**UNHCR, September 2005:**

“The return trend, so promising in the first years of the decade, declined drastically in 2003 and 2004. In 2005, it is expected that some 17,500 people will still return from internal displacement or refuge abroad, with likely a similar number in 2006. By the end of 2006, it can be assumed that

the great majority of those who wish to return from situations of refuge or internal displacement will have exercised that right, while others will have identified alternative solutions."

**UNHCR, COP, 2005:**

"Following three successive years of ever increasing numbers of returns, 2003 saw a decrease to less than half the returns recorded in 2002, a trend that continued in 2004 with a further decline by more than half of recorded returns by end July (15,470) as opposed to 32,967 during the same period in 2003."

**Reuters, 17 December 2003:**

"[...]Janz also said that the figure halved in 2003 from the previous year's 107,000 people, an indication that the bulk of the people who wanted to return have done so by now"

**After 2004, remaining returns are residual minority returns (2006)**

- The remaining IDPs are unlikely to return soon, as they are mostly part of vulnerable groups and would be returning as minorities
- Since 2002 which registered the record return figure of 102,000, return has constantly decreased down to 5,100 in 2005

**UNHCR, June 2006, UNHCR and DPs in Bosnia:**

"Given the recent decrease in return, the return of the majority of these DPs in the near future is unlikely. While UNHCR, in co-operation with its national partners, continues its efforts to promote return, the current fate of the most vulnerable among these DPs is of its immediate concern.

**UNHCR, 21 September 2004:**

"UNHCR's Representative in Sarajevo, Udo Janz, said that although the overall rate of returns has fallen sharply over the past two years, he was nevertheless encouraged by the high proportion of people returning to areas where they are in a minority - including many of the places that were worst hit by the conflict and the accompanying large-scale killing and atrocities. "Clearly the situation remains volatile in many parts of the country, so the challenge before us now is to consolidate the returns that have taken place and make them sustainable," said Janz.

"During the first seven months of 2004," he continued, "a total of 15,470 people returned. Of these, 10,589 - or two-thirds - were so-called minority returns, and there have been significant increases in some areas, including for example in the eastern part of Republika Srpska, including in Bratunac, Srebrenica and Zvornik."

"It is vital that the international community, together with the authorities of Bosnia and Herzegovina at all levels, continue to assist those who have returned or have decided to do so in the future," said Janz. "[...] [T]he returnees still need help to rebuild their destroyed houses. They still need help to earn a living. Such support is especially required for minority returnees."

**USDOS, 28 February 2005 :**

Some areas of Croat-controlled Herzegovina and some towns in eastern RS remained resistant to minority returns. This was most often expressed through official obstruction of returnees' access to local services (i.e. municipal power and water, education, and health care). For example, the government-owned RS electric company was obliged to connect residents who live



within 50 meters of an existing power line. Despite repeated requests, they consistently failed to connect many eligible returnee households, especially in the Srebrenica-Bratunac area.. (...)

Ethnic differences remained a powerful political force in the country; however, mixed communities existed peacefully in a growing number of areas. To a limited extent, nationalist Bosnian, Serb and Croat politicians sought to increase the ethnic homogeneity of the population in areas they controlled by discouraging IDPs of their own ethnicity from returning to their prewar homes if they would be in the minority there (see Section 2.d.). The RS Government was increasingly supportive of Bosniak and Croat returns to the RS, and Bosniak returns to the Srebrenica area increased; however, the RS continued to support integration of displaced Bosnian Serbs within the RS using the war veterans' budget and at the municipal level, land allocations.

***Regularly updated information on return statistics can be found on the [website of UNHCR Bosnia and Herzegovina](#).***

***See also “[Legacy of War: Minority Returns in the Balkans](#)”, Bogdan Ivanisevic, Human Rights Watch, 1 January 2004***

### **Sustainability of minority and rural returns is questionable, as ethnic pressures persist in situations of economic hardship (2008)**

- More subtle forms of ethnic cleansing continue
- Nationalists of all side try to increase ethnic homogeneity by discouraging return of IDPs of their own ethnicity
- Difficult economic situation along with employment discrimination against minority returnees remains the most significant obstacle to return
- Lack of funds for reconstruction, inadequate access to social and economic rights (health and pensions) prevents return or makes it difficult to last
- Impunity for war crimes and the presence of land mines in areas of origin prevent return
- The high percentage of property repossession does not translate into an equally high percentage of returns, says MHRR, because many returnees find the economic situation in areas of return unsustainable

#### **USDOS, 11 March 2008:**

Ethnic differences remained a powerful force in the country, although mixed communities existed peacefully in a number of areas. Nationalist Bosniak, Serb, and Croat politicians sought to increase the ethnic homogeneity of the population in areas they controlled by discouraging IDPs of their own ethnicity from returning to their prewar homes if they would be in the minority there. The RS and Federation governments were both supportive of minority returns, but there was a significant decrease in returns nationwide.

[...]

The difficult economic situation in the country remained the most significant factor inhibiting returns, with many rural areas experiencing official unemployment rates above 40 percent. When jobs were available, minority returnees often complained of discrimination in hiring. In returnee areas throughout the country, the percentage of minorities holding municipal employment was neither representative of current populations, nor consistent with legally mandated percentages based on the 1991 census, indicating local government failures to implement and enforce the provisions of the Law on Self Administration.

A hostile return environment remained in some places. During the year there were attacks against symbols of minority groups and away from attacks against individuals. Many returnees cited authorities' failure to apprehend war criminals as a disincentive to return. Many displaced

persons created permanent lives away from their prewar homes, and only individuals with few other options (including a large number of elderly pensioners) tended to return.

Other factors inhibiting returns included a lack of access to social benefits, including healthcare, education and pension benefits. A lack of available housing and high municipal administration taxes on documents that were necessary for return, such as birth or land certificates, also affected the number of returns. Minority returnees often faced intimidation, discrimination, obstructionism in their access to education, health care, and pension benefits, poor infrastructure, and denial of utility services such as electricity, gas, and telephone.

In the RS, the Ministry for Refugees and Displaced Persons provided support to Bosniaks and Croats returning to the RS and to Bosnian Serbs returning to the Federation. The Federation Ministry for Refugees assisted Croats and Serbs returning to the Federation, and Bosniaks and Croats returning to the RS. Both entity-level refugee ministries provided limited reconstruction assistance to returnees and also committed part of their budgets toward joint projects to be determined by the State Commission for Refugees.

A 10-month debate in appointing members to the State Commission of Displaced Persons and Refugees delayed implementation of reconstruction programs during the year. The commission was responsible for managing an estimated \$6.6 million in reconstruction and sustainability projects in 30 municipalities.

**UNHCR, Briefing Note on Annex 7 in Bosnia and Herzegovina, Oct. 2007, pp.1 and 5**

While the return figures suggest that the persons have been able to return to their pre-war place of residence, in line with the goals of Annex 7 of the DPA, in reality the actual return to place of origin may be considerably less than envisaged. There are indications that many returnees did not stay in their place of return permanently, probably due primarily to the lack of economic opportunities there. Those who have returned permanently tend to be older and in rural areas where they depend upon agriculture. Many young IDPs have remained in their place of displacement seeking education, social and economic opportunities that are scarcer in their communities of origin. The trend seems to be that people are remaining in (and moving to) areas where they can live amongst their own ethnic group. However a definite assessment of the demographic composition of the population in BiH will only be possible once a new census has taken place.

[...]

Minority returns continues to be emphasised and remains a major political issue repeatedly raised as not being successful. The international community and UNHCR have described the success of Annex 7 as directly related to minority returns. After the successful work of the property law implementation plan (PLIP) which was substantially completed in 2003, the overwhelming majority of refugees and displaced persons were able to repurchase their property in areas where they are a member of the minority ethnic group. As described above, repossession and reconstruction did not always result in permanent return. In many cases returnees did not stay in the place of origin, but instead opted to relocate permanently in the place of displacement or elsewhere where they were of the majority ethnicity. UNHCR aims to investigate this phenomenon more thoroughly and report its findings in order to refocus Annex 7 activities on the most appropriate and likely durable solutions for those who remain displaced twelve years after the signing of the DPA.

**USDoS, 11 March 2008:**

Ethnic discrimination in employment and education remained key obstacles to minority returns. Widespread firing of ethnic minorities during and after the war was not reversed in most cases, and members of the ethnic majority in a region often were hired over minorities in places where the minorities had been employed. Widespread ethnic discrimination in employment and failure

on the part of state-level and entity-level officials to prevent such discrimination continued. Although the international community supervised the privatization of large state-owned enterprises, many smaller enterprises were sold to politically connected individuals, usually members of the majority group in their communities. These enterprises generally did not employ minorities.

**UN CESCR, 24 January 2006, par.9 and 12:**

“The Committee also takes note of the continued existence of landmines and other explosive remnants of war in the territory of the State party, which in many cases prevents the safe return of returnees to their homes and farming lands. (...)

The Committee expresses its deep concern that returnees, in particular those belonging to ethnic minorities, are often denied access to social protection, health care, school education for their children and other economic, social and cultural rights, thereby impeding their sustainable return to their communities.”

**CoE, 18 July 2006, par.48, 50-54:**

“48. A question concerns the impact of the assessment of the level of co-operation with the ICTY concerning the ongoing negotiations with the EU on SAA. The lack of co-operation with the ICTY certainly plays a role in preventing further return. (...)

50. According to the statistics of the Ministry for Human Rights and Refugees, although almost 100% of the property has been returned, the actual number of refugees and displaced persons that have returned to their homes since the signing of the Dayton Peace Agreement remains at a much lower level (the most optimistic numbers suggests up to 50%). It is usually the elderly members of the families who return, which will have no future impact on the demography of the ethnically-cleansed area. In some other cases, if the returnees do not sell their repossessed property, they use their houses as weekend homes only or, after official registration, live and work elsewhere.

51. A number of problems explain the low level of the sustainable return of refugees and IDPs: the lack of employment opportunities, limited access to social services, including health care, education and public utilities, a combination of inter-Entity politics and labyrinthine constitutional structures hamper Bosnia and Herzegovina's ability to successfully provide the necessary services at minimum levels. In addition to the slow and complicated administrative structures, local politicians also obstruct the exercise of many other fundamental rights of returnees belonging to a minority ethnicity, including access to electricity and water supplies, as well as the construction of roads.

52. Although the FBiH and RS labour law prohibits discrimination in employment, providing compensation to victims of discriminatory dismissals, in reality, legal protection does not apply to all workers who lost their jobs as a result of privatisation operations. Given the scarcity of jobs, preference is given to members of the ethnic majority group.

53. For returnees, there is no law that allows them to resume the job which they had to leave. The majority of them are often without a job in the place that they return. There have not been many major incidents of an ethnic nature in the places where returnees have settled, nor to their private property. However, according to the police records, there have been attacks on religious buildings or cemeteries, although one cannot classify them as being planned and organised. Use of national symbols in State institutions or schools causes feelings of resentment among the returnee population and is also a factor that prevents further return.

54. Nevertheless, there are some positive developments in certain parts of Bosnia and Herzegovina, such as the efforts of the town of Prijedor, which the Secretariat delegation had the occasion to visit. At present, some of the Bosniacs who fled during the war have returned, but not all of them have sufficient access to education or job possibilities.”

### **Difficulty to determine accurate figures on return due to different methodologies and unsustainable minority returns (2008)**

- Various organisations use different methodology
- A substantial number of returnees do not register with UNHCR not to lose their social benefits in their place of displacement.
- Many spontaneous return take place in isolated areas where contact with majority population are limited
- Property repossession does not always result in return and one field study, cited in March 2007, claims that only one third of properties are retained in the long term
- On the other hand, a return survey indicates that over 90% of returnees stay in their regained homes

#### **Helsinki Committee, 17 January 2006, pp.2-3:**

“Having investigated how it was possible to come to the unrealistic figure of million and even more returnees, we found out that in the methodology used for monitoring the process of return, very often a simple summing up of those whose property had been returned and members of their family was done. It is easily to ascertain in the field that most frequently one or two elderly members returned to the repossessed apartment or house, staying there for a limited period of time – until they sell or exchange the property. In a large number of cases, the owners use their reconstructed houses as week-end houses, and there are also many who have certificate of registration at the pre-war addresses, and live and work in another Bosnian-and-Herzegovinian municipality, or abroad. For example, the UNHCR does not have data on how many of the above-mentioned 1,099 returnees from abroad live at their addresses. In addition, there is no any institution which keeps record on how many people from Bosnia and Herzegovina left their homes for the second time during 2005. (...)

On the basis of the reports of its monitors, and on the basis of the results of the “fact-finding missions on the status of human rights” conducted in municipalities throughout BiH, on the basis of the data obtained from the Unions and Associations of Refugees and Displaced Persons, on the basis of the data obtained from the local communities, i.e. from the representatives of the governmental and non-governmental sectors, the Helsinki Committee for Human Rights in Bosnia and Herzegovina cannot confirm the above-mentioned allegations (one million returnees). All collected data speak in favor of the assessment of the Union of Associations of Refugees and Displaced Persons in BiH, the President of which, Mirhunisa Zukic, claims that only one third of the total number of displaced persons and refugees returned to their homes. While assessing the process of return, the Helsinki Committee for Human Rights in BiH, has dealt with the results of real return, respecting the right of each individual to select the place of residence.

It is absolutely impossible to establish the number of returnees. The mission of the Helsinki Committee, for example, could not obtain the total number of the population in Višegrad. The President of the Municipal Council says that there are in between 7,500 and 8,000 people, while the Mayor gave assessment that there are in between 15,000 and 18,000 people living in Višegrad today. (...)

The Federation Ombudsmen in their reports state that no one keeps precise record of the number of exchange or sale of the real estate. However, they give alarming data according to which about 2,500 apartments were sold and about 550 contracts on exchange of the apartments were concluded only in the municipality of Zenica; In the municipality of Kupres, 288 contracts on the sale of apartments were concluded, i.e. about 90% of the total number of housing fund and about 150 contracts on the sale of property; in Mostar, the sale of apartments exceeded the figure of 3,000 housing units, etc. (...)

There is less and less interest for real return, less and less interest of citizens to find an opportunity to go to the environments where they will be the majority, or somewhere outside BiH.

It leads us to horrifying fact that ethnical cleansing is in the final stage in Bosnia and Herzegovina. The non-governmental organization, the "European Movement" from Banja Luka established that only two municipalities in BiH, i.e. Tuzla and Sarajevo Center, have more than ten percent of members of other peoples. Before the war, only 20 percent of the municipalities had a structure of population in which one people was represented by more than 50 percent of the total number of population."

**CoE, 20 February 2008, para 55 and 56:**

55. [...] Return efforts were concentrated on property re-possession and reconstruction of housing and the accompanying infrastructure. Considerable progress in solving property issues and returns were made in 2003 and 2004, although in some parts of the country resistance to returns continued and slowed down minority returns. By the end of 2006, the property repossession process had been completed in all municipalities in BiH. The peak of minority returns was reached in 2002, when over 100,000 minority returns were recorded.

56. However, despite the high number of minority returns, in many cases the returns were not sustainable. Many of the returnees came back only to repossess and sell or exchange their property. In many cases, the families were split up, with the elderly persons returning while the rest of the family stayed in the place of displacement.

**BIRN, 14 March 2007:**

The UN refugee agency, the UNHCR, claims 1.025 million of the 2.2 million refugees registered when the Dayton accords were signed have returned to pre-war homes.□□But the real story is different from the rosy picture painted by the UNHCR figures. Problems linked to access to health care, among other matters, have compelled many of the million or so returnees to sell their homes and go back to the Federation.□□A field analysis conducted by the Bosnia and Herzegovina association of refugees and displaced persons concluded that only one-third of returnees had retained their property over the long term. The rest had given up and gone.

***The return survey by NADEL provides a different picture of returns:***

**NADEL, ETH Zurich, Power Point Presentation, August 2006:**

- More than 90% of the returnees explain that their return was voluntary.
- Only 3% of former IDPs and 7% of former refugees claim that their return was initiated by authorities and did not coincide with their own plans.
- 95% have returned to their pre-war homes, only 5% have since then moved elsewhere.
- 51% of former IDPs and 41% of former refugees explain that they have received assistance after their return. Ratios are higher in rural than urban areas.
- 80% see assistance as "very important", 20% as "fairly important".

***On the same topic, see controversial article "[Bosnian returnees quietly quit regained homes](#)", BIRN, 31 August 2006***

**ICG 31 May 2000, "How Many?":**

"Given the confusion in post-war Bosnia, exact numbers of returnees are difficult to calculate. Information on refugee returns is collected primarily by three different agencies: United Nations High Commission on Refugees (UNHCR), Office of the High Representative's Reconstruction and

Return Task Force (RRTF), and the NATO-led Stabilisation Force (SFOR). In addition, each utilises a different methodology for gathering data on returns, and each readily admits that its numbers are inaccurate. Given the difficulties of accurate statistical collection in Bosnia, none of these numbers should be taken as absolute. Rather, they should be seen as relative indicators of trends. UNHCR figures are based on the number of returnees that actually register with the UNHCR field offices. RRTF figures are based on "previous experience and the fact that substantial numbers of returnees do not register." SFOR figures are based on "reports from SFOR patrols, which cannot cover the whole state, but may be useful as a trend indication." As a result of the different methodologies, UNHCR, RRTF, and SFOR all provide differing estimates. Given the difficulties of accurate statistical collection in Bosnia, none of their numbers should be taken as precisely accurate, but rather as general indicators of trends.

#### **ICG, 13 December 2002**

"Throughout BiH, large numbers of returnees fail to register because they want to maintain their pensions or health benefits in the places from which they have returned, because they have gone home only provisionally or parttime, or because they do not trust the local authorities. The latter phenomenon is particularly marked in the eastern RS municipalities of Srpko Gorazde, Zvornik and Foca, from which UNHCR receives very little data on returns because returnees are reluctant to make their presence known."

#### **The 2006 elections revealed new ethnic composition of BiH – contrary to beliefs of successful returns (2006)**

- UNHCR figures suggest a high return success rate
- The 2006 elections showed that many displaced chose to remain in the place of displacement

#### **UNHCR, May 2006:**

These return figures provide a clear indication that the demography of BiH has been altered in line with Annex VII of the GFAP, which underlined the right to return for all those displaced during the war, although a definite assessment of the demographic composition of the population in BiH will only be possible once a new census has taken place.

#### **OSCE, 1 December 2006:**

Preceding and, since it fell well behind schedule, ultimately overlapping with the elections was a country-wide exercise in verifying the status of those registered as Internally Displaced Persons. This exercise supposedly had no direct relation to the elections themselves or to the preparation of the lists of eligible voters; its purpose was rather to remove those displaced people from state support who no longer merited or required it. But it had an impact on the outcome of the elections nonetheless. For one thing, it resulted in a large decrease in the number of people eligible to be considered Displaced and thus of those who had the option of voting in a locale different from where they were living. Since the number of people who have actually returned to their pre-war homes is rather small, with most of the displaced having settled down in their places of refuge instead, this change in the ethnic composition of the country manifested itself in these elections more visibly than ever before. Bosniac and Croat representation in the Republika Srpska National Assembly decreased, as did Serb political representation in the various parliaments of the Federation of Bosnia and Herzegovina.

**Some reports underline the success of minority returns, while pointing to economic hardship as the weak link in the return process (2007)**

- Doboj (RS), once dominated by Serb nationalists, is now again multi-ethnic
- Bosniaks have returned to the town and to villages in the region
- While there are no inter-ethnic difficulties, the dire economic situation, particularly in rural areas, prevents further returns

**ESI, 19 December 2007, Executive Summary:**

This report investigates conditions in a municipality in Republika Srpska on the former frontline that was once infamous as a hotbed of (Serb) nationalism. Doboj, divided by the war and today split into four parts, has long been a mirror of wider trends. Ten years ago, Doboj was notorious as a centre of hard-line nationalism. The Bosniak and Croat villages in the vicinity had been ruthlessly destroyed. The few remaining non-Serbs were under intense pressure to leave. The SDS (Serb Democratic Party), founded by indicted war criminal Radovan Karadzic, held Doboj firmly in its grip. There was little reason for hope that the multiethnic life of this region could ever be restored.

In fact, in recent years Bosniaks have returned to all the villages in the Doboj region where they had lived before the war. Across the municipality, more than half the pre-war Bosniak population has come back. Bosniak community leaders confirm that there are “no problems whatsoever for Bosniaks to use the RS health system”, that Bosniak children go to local schools “without any problems” and that the local police are “professional.”

As a result of large-scale return, the inter entity boundary line means very little in the daily life of people. A sign of just how much things have changed is the demilitarisation of the region – there are no international troops to be seen. Checkpoints and controls have long been abandoned. In the garrison once occupied by SFOR to control the area the Joint Defence Forces of Bosnia and Herzegovina are stationed today. Return, ethnic reintegration, reconstruction are all local success stories.

However, while most of the problems of the immediate post-war period – ethnically motivated violence, lack of freedom of movement, mass violation of property rights – have been addressed, it is the absence of jobs, particularly in rural areas, that constitutes the largest obstacle to further return. At the same time, the virtual erasure of the inter-entity boundary line has been a precondition for almost every business success in recent years. Wherever one looks in Doboj today it is economic forces that are conquering wartime divisions. Doboj is now on the brink of the largest commercial investment in recent Bosnian history, a new coal-fired power station, which will make it a hub in the regional economy.

**UNDP survey compares the situation and motivations of returnees and non-returnees (2007)**

- The decision to stay in the location or to return are based on different motivations
- Returnees are motivated by emotive factors, non-returnees by rational factors
- Non-returnees appear to have well integrated into the host community
- Returnees tend to be more easily disappointed with the situation they encounter
- Group return is more successful than individual return
- Non-returnees appear more self-reliant; returnees tend to be more dependent on help

**UNDP, 7 July 2007, Section 2 of Conclusions and Lessons Learned, p.8, 9:**

## **2.2 Returnees and Non-Returnees**

The first major difference between returnees and non-returnees lies in the motivations for return or staying in the host community. Returnees base their decision on emotive factors like nostalgia and 'going home' while non-returnees appear more self-directed and are guided by rational considerations such as income, opportunities and education. Not all the decisions to return are entirely voluntary; some discussants say that eviction and a lack of funds left them with no alternative but return. Others sought to lose the stigma of being a displaced person in return. It is also the case that the duration of displacement is related to the decision to stay. An interesting finding is that the lure of potential assistance played no significant part in the decision to return; most people were simply not aware of help. On the whole, discussants do not make a distinction between push and pull factors and the gains and losses of return or staying.

While integration did not present itself as a problem for either group the way it was accomplished discriminated between returnees and non-returnees. In short, the non-returnees appear to have solved one central problem of all displaced persons that of integrating into, and being accepted by, the host community. Some say that they were actually accepted in the host community from the early stages of displacement.

Many returnees - especially older cohorts - on the other hand, attempt to reclaim the lives they once had, and the failure to do so is a cause of disappointment. At the same time the economic preconditions and especially the lack of work opportunities inhibit the search for a durable solution. This suggests that a significant number of returnees are finding it difficult to abandon whatever certainties they found in their previous arrangements until such time that the uncertainties of the present and the foreseeable future are confronted.

An important finding from this research is that group return is more successful than individual return. This is so because it maximises the chances of more or less immediate reintegration since it implies that a level of cohesion already exists in the returning group. Indeed the wish to return is often arrived at after group discussion and mutual support in the decision to return.

The overall picture is one in which returnees acknowledge that they received adequate assistance to restart their lives, however, the conditions necessary to achieve an acceptable livelihood have yet to materialise. They expect continued support particularly in securing employment and/or help by way of capital equipment, which would enable them to earn a living. Discussants from rural areas seek assistance in the form of farm machinery, livestock and the creation of markets for their output.

Whilst generally happy with the quantity of assistance they received returnees are critical of the inequity they perceived in its distribution and the quality of the materials and workmanship. Many hold local authorities responsible for the unfair and corrupt administration of assistance. International organisations however, are not associated with corruption. Inequity in the distribution of assistance not only challenges conceptions of social justice but, in addition, atomises recipients and undermines cohesion in the community. There was also some dissatisfaction with the delays in the assistance process but these did not appear critical to outcomes.

In fact, delays also illustrate that some discussants would wait for months if not years for institutional assistance rather than solve pressing problems with their own initiative. External support appears to create or continue dependency on institutional assistance. It appears that institutional support for returnees presents itself as a post-script to the provider mentality; a hallmark of the administrative-centralist days of Yugoslavia. Dependency was a consistent underlying theme in returnee groups, and on a few occasions dependency and the resultant lack of motivation were openly discussed.



Non-returnees appear more self-reliant and self-directed than returnees. With the exception of food parcels, they neither asked for nor received assistance and have little history of external support. They would welcome assistance in training and retraining and are more likely to support initiatives which would enhance their labour market participation. In other words, non-returnees would prefer an enhancement of their marketable skills to capital equipment and the creation of markets for produce.

There are no reports of active or systematic obstruction to return and this can be clearly seen as one important aspect of the successful implementation of the return process in BiH, and, at this level, a beneficial outcome of the Dayton Peace Accord.

### **Return policies since Dayton: From pure focus on return to a more varied approach including residual displacement (2008)**

- The revision process of the Annex VII implementation strategy officially still focuses on return but opens possibilities for alternative solutions
- In 2008, the Return Fund has received unprecedented amounts of money from the state to implement return
- Residual displacement is tackled by MHRR in its Action Plan to Revise the Annex VII Strategy
- In the Action Plan, durable solutions are sought for the displaced and returnees, addressing the specific problems they face 12 years after having been displaced
- Return is linked to repossession or reconstruction of homes
- Return to property was very slow until 2001 due to political obstruction
- Return linked to reconstruction was linked to available funding and took place mainly in rural areas
- The Return and Reconstruction Task Force was a mechanism created by the international community to coordinate return activities
- In 1997, return projects would focus on prioritised or cluster areas
- In 1998, conditionality of assistance was introduced for authorities supporting minority return
- Open city initiative: an example of conditionality
- 1999 RRTF Action Plan sets an integrated approach to return including monitoring of property repossession process and coordination of assistance

### **OHR report to UNSC, 15 May 2008: XI Refugee and Displaced-Person Return**

44. The BiH Ministry for Refugees and Human Rights has completed its consultations on a revision of the current strategy for the implementation of Annex VII of the DPA, the annex that guarantees to refugees and displaced persons the right to return home.

45. According to the latest figures from that ministry, there are still 130,000 displaced persons in BiH who aim to return to their pre-war homes. This does not mean that all these people will indeed be able to return, as there are likely to be several objective reasons that rule this option out for many people, including the absence of employment opportunities, inadequate funds for rebuilding, and difficulties in accessing health and social services in their former places of residence.

46. Although the current draft strategy, to be finalised and adopted later in the year by the Council of Ministers, still focuses on facilitating people's return to their original homes, it will also emphasise the need to sustain those people who have already returned and to pay more attention than in the past to vulnerable groups who have not been able to take advantage of any return-assistance projects. Unable to return, such persons often still remain living in deplorable circumstances in collective centres. The strategy will make it a priority to offer them dignified and long-term living conditions. The UNHCR, my office, and other international and domestic stakeholders have been actively involved in the drafting of the new strategy.

**Oslobodjenje, 15 April 2008:**

"Signed agreement for supporting refugees: KM 38.8 millions for return in this year. For the first time since 1995, there is a serious approach towards returnees and displaced persons in BiH, said Safet Halilovic

The Agreement on Pooling Resources and on the Method for Their Implementation to Support the Return Process in BiH for 2008, in the amount of KM 38.8 millions, was signed in Sarajevo yesterday.

The Ministry of Human Rights and Refugees, Federation Ministry of Displaced Persons and Refugees, RS Ministry of Refugees and Displaced Persons and BiH Brcko District signed the Agreement to implement, through the Return Fund, various reconstruction projects approved by the Commission for Refugees and Displaced Persons.

"For the first time since 1995, there is a serious approach towards returnees and displaced persons in BiH. The State allocates around KM 32 millions, of which 10 millions has been ensured for Srebrenica only. As opposed to previous years, when only 1-3 millions were allocated, this time the State has shown its responsibility for the first time", says Safet Halilovic, Minister for Human Rights and Refugees.

The Chairman of the State Commission for Refugees and Displaced Persons, Slavko Marin, said that those funds would cover reconstruction of housing units, maintenance of collective centers and sustainable return.

Despite significant amount of funds which have been allocated, they are still insufficient, because currently 40 thousands families in BiH wish to return to their pre-war homes. In order to ensure their return, more than KM one milliard is needed. We have to ensure those funds in the forthcoming years in order to fully implement Annex 7 of the Dayton Peace Agreement", warned Halilovic.

Participants of the meeting discussed their activities on return in 2007 and exchanged information on the current situation of refugees and displaced persons."

**MHRR, October 2007:**

There remains a significant number of displaced persons, refugees and other conflict-affected persons of concern who are in need of durable solutions, among them, 135,000 displaced persons' whose status was confirmed in the 2005 re-registration. Many of these people are extremely vulnerable and traumatized, living in inhumane conditions in displacement. Others are unable to return because their pre-war property is destroyed and is still on the list of 42,000 housing units of returnees waiting for their reconstruction or landmines have not been cleared from their pre-war villages. Unfortunately, around 2,500 families still live in collective accommodations in BiH.

Today, there exists a huge disproportion between the level of real investments and the need for the implementation of the strategic goals set in the BiH Strategy for the Implementation of the Annex VII of the DPA.

Many persons who never owned property before the war have not had the opportunity to benefit from any project to lead towards a durable solution for them and for their families.

At the same time many people who have already returned face conditions that threaten their ability to remain in the place of return. Economic opportunities are scarce, infrastructure, including electricity, is often lacking and their access to rights and services such as health care, social welfare, education and pensions is limited. In many cases discrimination lies at the root of these limitations, contrary to the principles set out in Annex VII. In other cases the primary obstacle is the changed social environment with many persons, particularly younger persons, seeking higher education and employment opportunities in larger towns instead of rural communities.

The BiH Constitution guarantees that displaced persons and returnees are entitled to the same rights as all other BiH citizens. However, today, 12 years after signing the Dayton Peace Agreement, many challenges remain to be overcome to ensure access to human rights for many displaced persons and returnees, particularly the most vulnerable persons who need additional physical and social support.

Therefore it is evidently necessary to review and strengthen efforts to implement Annex VII. Towards this end, MHRR and UNHCR, in close consultation with other key actors, are initiating the revision of the 2003 *Annex VII (GFAP) Strategy*

**UNDP, 7 July 2007, p.3:**

“In twelve years since the signing of the GFAP, there have been substantial achievements in the implementation of Annex VII. Nearly all occupied property has been repossessed by its pre-war owners, thousands of destroyed homes have been reconstructed, minority representation in the public sector has increased, freedom of movement is now enjoyed by all and security of returnees has been increased.

However, despite these successes, considerable work remains to be done before all of the people of BiH have full and unimpeded access to the rights set out in Annex VII.

Almost half of the total number of 2.2 millions of refugees and displaced persons has not returned to their homes yet.

There remains a significant number of displaced persons, refugees and other conflict-affected persons of concern who are in need of durable solutions, among them, 135,000 displaced persons' whose status was confirmed in the 2005 re-registration. Many of these people are extremely vulnerable and traumatized, living in inhumane conditions in displacement. Others are unable to return because their pre-war property is destroyed and is still on the list of 42,000 housing units of returnees waiting for their reconstruction or landmines have not been cleared from their pre-war villages. Unfortunately, around 2,500 families still live in collective accommodations in BiH.

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**Paul Prettitore, World Bank, June 2004:**

“The return of refugees and displaced persons in BiH has taken two forms: return to reconstructed housing and return to occupied housing. Return in Bosnia began mostly with refugees and displaced persons returning to destroyed housing that had been reconstructed by the international community. The pace of return was in many ways dictated by the amount of available funding. This property was located primarily in rural areas or the outskirts of urban areas. However, return to occupied property was initially slow due primarily to the fact that the rights of temporary occupants had not yet been addressed. In general, cases of occupied property tended to be located in urban centers. Return to contested space was wholly dependent on implementation of legislation enacted to allow for the repossession of property by refugees and displaced persons.[...] Throughout the return process a number of mechanisms and programs were introduced by the International community with varying levels of success. Most of these were coordinated by the Reconstruction and Return Task Force (RRTF). The conclusions of the London Peace Implementation Conference established the RRTF with the mandate of coordinating an integrated approach to the return of refugees and displaced persons. It was expected that in 1997 roughly 200,000 refugees and displaced persons would return. The Office of the High Representative took chairmanship of the RRTF, and the other participating institutions included UNHCR, the European Commission, the World Bank, the International Management Group and the Commission for Real Property Claims. OHR reported that in 1996 roughly ninety-percent of returns were spontaneous in nature and followed no organized process. [...] It was also pointed out that in order for safe and orderly return to take root it was necessary for the establishment of the rule of law and certain political conditions, including positive conditionality for the return of minorities.

The basis for the 1997 RRTF plan was for the return to “cluster areas”, selected by the following criteria: (i) projected numbers of returns; (ii) present and pre-war population; (iii) level of damage; (iv) political climate; (v) potential impact of investment upon return; (vi) the grouping of target areas into regional clusters and hubs. [...] The RRTF report of July 1997 highlighted the fact that many refugees and displaced persons were returning to areas near the prewar homes, but were prevented from returning to their actual homes. In this respect, the RRTF called for the need for break-through on minority returns. In order to make its recommendations more effective on the ground, the RRTF established four Regional RRTFs covering the whole of BiH. The RRTF Report

of December 1997 reiterated support of the “cluster areas”, while introducing two more tracks to this three-track approach: (i) the need to broker minority returns to strategically important areas and (ii) the provision of flexible funding to support spontaneous returns.

The RRTF plan for 1998 focused on four pillars: political environment and security; economic revival and employment; housing; and local infrastructure. [...] Mechanisms for progress on these pillars included conditioning donor assistance on the acceptance of minority returns and matching reconstruction assistance to areas of spontaneous returns.

During this time, UNHCR launched the first return program in BiH – the “Open Cities” Initiative. The aim of this initiative was to encourage municipalities to publicly declare their willingness to support the return of minorities. If a municipality requested recognition as an Open City UNHCR and other international organizations would make an assessment based on a set of criteria, which focused on a demonstrated willingness to support the return and reintegration of minorities, particularly in the exercise of basic human rights and access to employment and education. [...] This program was originally backed by five million dollars from the U.S. Department of State, which was followed by funding from other international donors.

However, the “Open Cities” Initiative met with little success. [...] Monitoring of municipalities declared open cities was weak, and no set criteria was maintained to ensure progress beyond the designation of “open” status. Another problem was that most donors had their own funding priorities. Many European countries preferred to allocate funding to areas that were the prewar homes of refugees that they were currently hosting. Other donors chose locations for political reasons. For instance, much assistance of the US Government was focused on Brcko and Central Bosnia at the start of the returns process. Often times the priorities of donors were areas not declared as open cities. This was the case not only in relation to the “Open Cities” Initiative, but also affected RRTF attempts to coordinate reconstruction projects.

The RRTF 1999 Action Plan was a major step forward in the return process, in that it adopted a fully comprehensive and integrative approach to the return of refugees and displaced persons. While explicitly stating the responsibility for the slow rate of return thus far rested with BiH officials, it also outlined the tools available to the International Community to overcome these obstructions by forcing a breakthrough in minority returns. Up until this time only a small number of returnees were minorities. The primary obstacles to minority return were political, including: obstruction in the adoption of adequate property laws; failure to provide security to returnees; and lack of access to employment, healthcare, pensions and education. Recognizing that political interventions and economic conditionality could achieve results, what the 1999 Action Plan asked of the International Community was the following: greater political will and acceptance of minority return as the key activity; more focused and coordinated activities; a redirection of donor assistance to support returns; and acceptance that the Plan would have to be driven, and financial resources and management authority necessary would be provided.

The 1999 Action Plan focused on three factors necessary for a breakthrough in minority returns: space, security and sustainability. The problem of space was due mainly to the fact most housing belonging to refugees and displaced persons was either destroyed or occupied, and in order for return to take place space would have to be generated. Space could be generated in a number of ways. One of the easiest, at least politically, was the reconstruction of destroyed housing by international donors focusing on RRTF’s priority axis. However, the amount of space that could be generated in this way was dependent on the amount of funding available. It also became dependent on the willingness of local officials to ensure beneficiaries of housing reconstruction in turn vacated any property they were occupying. Another mechanism for generating space was the elimination of illegal and multiple occupancy through improved mechanisms for housing management. In this multiple occupancy refers to individuals that came to occupy more than one property during the course of the war. This mechanism was wholly dependent on the willingness of BiH officials to develop and implement adequate property laws, and the willingness of the International Community to strictly monitor this process. [...]

Security was a key factor in the decision-making process of potential returnees. In order to ensure adequate security, a number of measures were recommended and implemented. These included the recruitment of minority police officers, working with receiving communities on prevention measures and ensuring adequate patrolling by SFOR. Sustainability concerns were also frequently cited by potential returnees. The most key factors affecting sustainability are employment, education, and access to health and social services. To this end RRTF recommended a number of measures, including assessments and the establishment of working groups to make further recommendations on certain issues.”

### **Domination of ethnic issues in the public debate makes return difficult (2006)**

- More subtle forms of ethnic cleansing continue
- Nationalists of all side try to increase ethnic homogeneity by discouraging return of IDPs of their own ethnicity
- Lack of integration opportunity lead many to sell or exchange their repossessed properties to remain abroad or in their own ethnic communities elsewhere in Bosnia and Herzegovina
- Most returnees have no social or health insurance, face discrimination in their search for work and have limited access to services such as utilities
- Local authorities failed to secure and support the return of minority members and to take efficient measures to facilitate the return of refugees and internally displaced persons
- In spite of significant return, municipalities remain largely mono-ethnic
- Ethnic debate still dominates public life

#### **USDOS, 8 March 2006:**

“Ethnic differences remained a powerful force in the country, although mixed communities existed peacefully in a number of areas. Nationalist Bosnian, Serb, and Croat politicians sought to increase the ethnic homogeneity of the population in areas they controlled by discouraging IDPs of their own ethnicity from returning to their prewar homes if they would be in the minority there (see section 2.d.). However, the RS government was supportive of Bosniak and Croat returns to the RS, and Bosniak returns to the Srebrenica area increased; however, the RS continued to support integration of displaced Bosnian Serbs within the RS using the war veterans' budget and at the municipal level, land allocations.”

#### **IHF 6-7 October 2003, p.64:**

“The return of refugees and IDPs to **Bosnia and Herzegovina**[...] remains problematic..  
[...]

In most parts of Bosnia and Herzegovina, property and apartments have been returned to their original owners in about 80-90 percent of cases of lost property, but this has happened only due to pressure by the international community on the local authorities -- not because of commitment on the side of Bosnian political parties to do so.

To date, more subtle forms of ethnic cleansing still continue. Many of those who have recovered their property end up selling it or exchanging it because they either prefer to remain abroad or in their own ethnic communities elsewhere in Bosnia and Herzegovina. As a result, a large number of refugees have either become foreign citizens or IDPs.

Most returnees have no social or health insurance and they have become targets of local authorities when trying to claim their rights. Local authorities have done virtually nothing to secure and support the return of minority members. It is almost impossible for the returnees representing an ethnicity other than the majority population to find a job. For instance, only one hundred of

several thousand Serb returnees have found a job in the city of Drvar, and it took eight years for nine Bosnian teachers be able to start working in Bijeljina. There are still tensions between Bosniaks belonging to different party fractions in the Unsko-sanski canton.

Minority returnees are discriminated against in almost all sectors of life, including the supply of basic infrastructure such as water supply, electricity and telecommunications, and courts still resort to judging on ethnic grounds.

The failure of the three main nationalist parties -- the Bosniak Party of Democratic Action (SDA), the Croat Democratic Union (HDZ), and the Serb Democratic Party (SDS) -- to take efficient measures to facilitate the return of refugees and IDPs implies that they tacitly support or at least tolerate this situation. Efforts by international organizations have also decreased. The goal of the international peace mission appears to be to wrap up the returnee question as soon as possible, an attitude that may be highly dangerous. The Commission for Property Claims (CRPC), sponsored by the international community, will wind down its operation this year, sending a message that for the international community the issue is no longer of importance. Unless there are major changes, the returnees will continue to be targeted while ethnically cleansed territories will be a dominant characteristic of Bosnia and Herzegovina. "

"The implementation of the property laws which has enabled claimants to establish their property claims and repossess their property has been central to the return process. [...] Although projects are underway to determine, through the municipalities, the number of persons who came back to live permanently in their pre-war homes, no exact figures are available at present on this. However, ECRI notes reports according to which most of those to whom property has been returned keep such property empty use it occasionally, sell it, or exchange it with property elsewhere generally in an area predominantly inhabited by people of their same ethnic origin. For instance, non-governmental organizations estimate that, in Republika Srpska, only between 20 and 30% of those to whom property has been returned actually live there. It would also appear that persons who have repossessed property located in rural areas are more likely to go back and live there than persons who have repossessed property located in urban areas, where non-governmental organizations estimate that around 75% of repossessed property is sold. In Mostar, a city where Bosniaks and Croats live since the war in two separate neighbourhoods returnees whose repossessed property is located in the neighbourhood inhabited by the other ethnic group are for the most part reported to sell their flats or exchange them with flats located in the other neighbourhood. More generally, although it is reported that there are at present no areas where no minority returns have taken place, many municipalities in Bosnia and Herzegovina are still to a large extent mono-ethnic.

While ECRI welcomes the attention devoted to property repossession and the successful results of this process. It stresses that priority attention should now urgently be devoted to ensuring the sustainability of returns in order to put people who are enabled to return in a position where they are also enabled to stay. In ECRI's view, sustainability of returns includes thorough protection of the human rights of the returnees and their economic and social integration. This includes ensuring that returnees are guaranteed personal security and that they are not discriminated against directly or indirectly in access to jobs and social security that their continuing needs for reconstruction assistance for destroyed property are met and that their children have access to unbiased education in a non-segregated manner. [...] ECRI is seriously concerned that these conditions are at present far from being met. ECRI is pleased to note that both domestic and international attention is increasingly focused on how to ensure sustainable returns. It strongly encourages the authorities of Bosnia and Herzegovina to devote to these aspects absolute priority."

## **EU Feasibility Study identifies conditions conducive to return among key requirements for European integration (2005)**

- Preparation for the integration into the European Union is made conditional upon a stronger engagement of Bosnia and Herzegovina for the creation of conditions for sustainable returns
- This includes the adoption and implementation of any outstanding legislation supporting refugee returns, in particular legislation on the BiH Refugee Return Fund
- Compliance with the European Human Rights Convention, cooperation with the ICTY, adoption and implementation of property laws, and a non-discriminatory education system are also required

### **EC 18 November 2003:**

"The Feasibility Study is the latest stage of the EU's Stabilisation and Association Process (SAP), designed to integrate BiH gradually into EU structures. BiH's first step in this process came in early 2000 when work began on a "Road Map" of 18 priority reform steps. The Road Map was "substantially completed" in September 2002, and at that stage the Commission initiated work on the Feasibility Study. In March 2003 a questionnaire covering all sectors relevant to a future SAA was given to the BiH Directorate for European Integration. BiH's answers were discussed with the Commission in a series of working groups between May and September 2003. The findings of the Study are thus based on BiH responses to the questionnaire and on the findings of the working groups, complemented by further Commission research. Success in the reforms outlined in the Feasibility Study would open the way to SAA negotiations. An SAA helps to prepare the countries of the Western Balkans in the same way as the Europe Agreements helped prepare the countries of Central and Eastern Europe for accession."

### **EC, 18 November 2003:**

"The European Commission has approved a Feasibility Study assessing the readiness of Bosnia and Herzegovina (BiH) to take its next steps towards European Integration, by opening negotiations for a Stabilisation and Association Agreement (SAA). The Commission concludes that it hopes to be able to recommend the opening of SAA negotiations next year - on the condition that BiH makes significant progress in a number of areas identified as priorities for action: compliance with existing conditionality and international obligations; more effective governance; more effective public administration; European integration; effective human rights provisions; effective judiciary; tackling crime, especially organised crime; managing asylum and migration; customs and taxation reform; budget legislation; budget practice; reliable statistics; consistent trade policy; integrated energy market; BiH single economic space and public broadcasting.

[...]

Among the above listed priorities, of direct significance to displaced persons and refugees, the European Commission recommends BiH should take action in 2004 to:

#### **Comply with existing conditionality by:**

BiH and particularly RS, fully co-operating with the International Criminal Tribunal for the former Yugoslavia, notably in bringing war criminals to justice before the Tribunal.

Taking steps to meet BiH's Council of Europe post-accession criteria, especially in the area of democracy and human rights.

Complete outstanding Road Map steps.

[...]

#### **Strengthen institutional capacity by:**



Ensuring effective human rights provision by adopting and bring into force any outstanding legislation supporting refugee returns, in particular by introducing, adopting and implementing legislation on the BiH Refugee Return Fund. Complete the transfer of the human rights bodies to BiH control. Ensure that unresolved cases of the Human Rights Chamber are dealt with and that the Chamber's responsibilities are transferred to the Constitutional Court. Provide adequate funding for the Court. Assume full national responsibility for the State Ombudsman and make progress in the merger of State and Entity Ombudsmen."

### **Background**

#### **OHR HRCC 15 May 2000, paras. 101-102:**

"EU Consultative Task Force: The European Union has identified a number of steps which should be taken by BiH in order to prepare for the launch of a feasibility study which would lay the groundwork towards eventual integration into the European Union. The steps identified include tasks within the political realm, economic developments and steps in the field of 'Democracy, Human Rights, and Rule of Law.' Within the latter, the EU has prioritized: implementation of property laws; stronger engagement for the creation of conditions for sustainable returns; implementation of decisions and reports of the human rights institutions; adoption and implementation of laws on judicial and prosecutorial service in both entities; and cooperation with OHR regarding implementation of public broadcasting at both the state and entity levels.

Progress towards meeting CoE Accession Requirements: In May 1999 the Council of Europe identified 13 requirements for BiH to be admitted into the Council of Europe, of which 7 accession requirements pertain to human rights (totaling 40 separate tasks). These include tasks pertaining to domestic human rights institutions, judicial reform, compliance with the European Convention on Human Rights, cooperation with the ICTY, adoption and implementation of property laws, and the establishment of a non-discriminatory education system. The HRCC has been monitoring progress on these criteria in each entity as well as at the state level, and has found that progress is very slow. Of the 40 tasks specifically related to human rights, as of today, only 10 tasks have been achieved, six of these through imposition of legislation by the High Representative. During the reporting period and after the issuance of the last HRCC report on accession of BiH to CoE, two additional tasks were fulfilled: the passage of the Law on Courts and Court Service and the Law on Public Prosecutors Office in the RS, and the imposition by the High representative, of the Law on Judicial and Prosecutorial Service. Other completed tasks include adoption of various property laws (through imposition by the High Representative), adoption of the revised Law on Citizenship, and adoption of the Law on Immigration and Asylum."

#### **MHRR, December 2004:**

"In 2004, the Return Fund has been fully established as an independent administrative financial-type organization within the Council of Ministers of BiH. The Return Fund performs financial execution of the SCRDP [State Commission for Refugees and DPs] decisions. Funds for the functioning of the Return Fund and implementation of the SCRDP conclusions in the field of reconstruction of housing units for the needs of return have been secured as a part of budget resources for 2004 of competent Entity Ministries, Ministry for Human Rights and Refugees and District Brcko Government."

#### **USDOS, 28 February 2005:**

"Both entity-level Ministries for Refugees provided limited reconstruction assistance to returnees and also committed part of their budgets to be implemented through joint projects to be determined by the BiH State Commission for Refugees (SCR). In October, the SCR agreed that 30 priority municipalities should receive reconstruction assistance through the newly established Joint Reconstruction Fund (JRF). By year's end, the State Government, the RS Ministry for Refugees and Displaced Persons and Brcko District had paid into the JRF. However, the Federation Ministry of Refugees and Displaced Persons did not make its contribution by the December 31 deadline."

***On 25 November 2005 negotiations for a Stabilisation and Association Agreement were officially opened in Sarajevo.***

***See "Report from the Commission to the Council on the preparedness of Bosnia and Herzegovina to negotiate a Stabilisation and Association Agreement with the European Union", European Commission (EC), 18 November 2003.***

***See also, the website of the European Commission's Delegation to Bosnia and Herzegovina.***

***For a critical review of BiH and European integration,, see, "Thessaloniki and After II: The EU and Bosnia", the International Crisis Group, 20 June 2003.***

### **Promotion of minority returns through political agreements: the Sarajevo declaration and the Banja Luka Conference (2005)**

- Conference hosted by the OHR, the US Government and the European commission to facilitate more significant returns to the Sarajevo Canton
- The Conference agreed on concrete steps to be taken by the authorities and the international community
- The target of 20,000 minority returns to Sarajevo during 1998 was not met until February 2000
- A similar initiative took place in Banja Luka
- Both initiatives had little success in terms of return
- For the first time assistance is conditioned to progress on minority return
- Contrary to a rule of law approach, political agreements can subject return to political will

#### **ICG 14 May 1998, section 3.D.1:**

"The December 1997 Bonn Peace Implementation Conference called for a highly visible return conference in Sarajevo to promote minority returns. On 3 February 1998, the OHR, the US Government and the European commission hosted a high-level conference which conditioned future economic aid to the Sarajevo Canton on the return of at least 20,000 minorities in 1998. Although there have been more minority returns to the Sarajevo Canton than anywhere else in Bosnia and Herzegovina, it was agreed that the Canton had nevertheless failed to do enough to facilitate more significant minority returns. The Sarajevo Conference was a highly-publicised attempt to exert pressure on the Sarajevo authorities to take the lead in welcoming minorities. A Sarajevo Declaration, drafted under the leadership of the OHR, outlined the most grievous problems and set deadlines for solutions."

#### **OHR 9 April 1998, para. 64:**

"The Conference agreed on concrete steps to be taken by the authorities and the international community to make Sarajevo a model canton for minority return and multinational coexistence."

#### **OHR/RRTF 12 December 1998, "Executive Summary":**

"Implementation of the Sarajevo Declaration has been marked by continual problems. It is vital that the limited momentum which built up during the Summer should be reinstated, and in particular that no changes be made which might reduce the efficiency of the Cantonal Housing Department. Positive steps in some areas, including public security, have been overshadowed - and in some cases canceled out by - failings by the authorities in other areas, notably housing and return to own homes of minorities. The number of registered minority returns to Sarajevo is around 4,000 - although it would have been closer to 6,000 if whole families had returned in all cases. It is estimated that there may have been 5000 unregistered returns. The recent set-back in

education, where the Sarajevo Canton government has reneged upon its previous position of support for the Education Working Group yet again raises doubt about its good faith commitment to implement the Sarajevo Declaration and its fundamental aim of making Sarajevo a model for reconciliation, multi-ethnicity, freedom of movement and the unconditional right to return throughout Bosnia and Herzegovina. These failures could have an impact on international assistance to the Sarajevo Canton in 1999."

**Paul Prettitore, World bank, 18 June 2004:**

"The first attempt at political support for return came in the form of the Sarajevo Declaration.[...]"

As the capital of BiH and a model of co-existence, Sarajevo was expected to set the pace for the return of refugees and displaced persons. To lead by example, officials of Sarajevo Canton and the Federation of BiH agreed to enable the return of at least 20,000 minorities residents during the course of 1998. To achieve this, a number of issues needed to be addressed: legislative; housing; education; employment; and security. Legislative issues included implementation of property legislation and the Federation of BiH Amnesty Law, and ensuring access to documents necessary for reintegration. Sarajevo authorities agreed to improve management of available housing to support returns. It also established the Sarajevo Housing Committee, which monitored housing issues. On the education front steps were to be taken to reintegrate minority students including the reform of text books and curricula. Authorities also agreed to adopt and implement fair labor standards and provide a secure environment for returnees.

The Banja Luka Conference, attended by officials of BiH, Croatia and Yugoslavia, covered many of the same issues.[See Chairmen's Concluding Statement, the Banja Luka Regional Return Conference, 28 April 1998, available at [www.ohr.int](http://www.ohr.int)] Recommendations were made that BiH officials would adopt and implement legislation consist with Annex 7. Other steps were to be taken to promote return and reintegration, including the hiring of minority police officers and promotion of the freedom of movement.

In general, neither the Sarajevo Declaration nor the Banja Luka Conference resulted in considerable returns. This was due primarily to the lack of political will. Implementation of the Sarajevo Declaration was severely undermined by the lack of an adequate legal framework to support repossession of property. What legislation did exist was implemented in a discriminatory manner. In particular, Sarajevo officials were reluctant to address the issue of double occupants. On the practical side, Sarajevo also encountered problems creating space for returns because it hosted many displaced persons from the eastern Republika Srpska, an area where very few returns were taking place.

Implementation of the recommendations from the Banja Luka Conference also remained inadequate, primarily due to political obstruction. However, a number of lessons were learned from these political exercises. In regards to the Sarajevo Declaration, the International Community for the first time adopted the policy of conditionality. When necessary due to the poor performance of Sarajevo and Federation of BiH Officials, the International Community would place sanctions on assistance, such as reconstruction of housing and infrastructure, in Sarajevo Canton. This proved an effective measure to further implementation. These political exercise also demonstrated that due to the nature of displacement, return would have to take place throughout the region at the same time and under the same conditions if there were truly to be a breakthrough on minority returns.

In many cases obstruction to return in certain areas would create a logjam to overall return initiatives. Lastly, it became apparent that political agreements on their own would not lead to considerable returns. Such agreements left the ability to return subject to political whims and objectives. Not only was this an inefficient way to support returns, but it also ran contradictory to

the individual rights of refugees and displaced persons enshrined in the DPA and the BiH Constitution.”

***For the full text of the "[Sarajevo Declaration](#)", see website of the Office of the High Representative.***

***For a critical review of the Sarajevo Return Conference, see International Crisis Group (ICG), [Minority Return or Mass Relocation?](#), (Sarajevo), 14 May 1998.***

### **War-induced movements: typology (1998)**

- The conflict has caused new movements, which would not have happened in a peaceful situation, such as the expulsion of ethnic minorities from areas with strong economic potential
- The conflict has also accelerated pre-war urbanization- and transition-related population movements, which will not be reversible

#### **OHR/RRTF March 1998, paras. 13-15:**

"Even prior to the start of hostilities in the former Yugoslavia, significant population movements had taken place. The effect of the conflict has been two-fold: (i) it has caused new movements, which would not have happened in a peaceful situation; and (ii) it has accelerated pre-war migration trends.

Population movements can be classified in four categories:

Movements which would not have happened in peace time. These include: expulsions of ethnic minorities from areas with strong economic potential, abandonment of housing units located close to frontlines or heavily damaged, etc.

Movements resulting from pre-war housing shortages. Before the war, a relatively large number of families shared their houses with relatives. With the departure of ethnic minorities, many households have split up and currently occupy several housing units (and they are reluctant to return to the pre-war situation).

Urbanization (see Box 2). Urbanization began prior to the war, in patterns similar to those of other Central European countries. The war caused a large number of rural people to move to cities, and many of them have become accustomed to urban standards of living. Many former rural dwellers may prefer to remain in town rather than to return to remote areas. This is likely to be particularly true for younger people.

Transition-related movements. Bosnia and Herzegovina is undergoing a substantial economic reform process. A number of pre-war large enterprises are likely to be restructured (e.g., Zenica steel plant), and new businesses are already emerging in many places (e.g., Tuzla). The distribution of employment opportunities throughout the country is rapidly changing - which has generated and will continue to generate significant labor force migration (although ethnic factors are likely to constrain such movements for at least a few years).

#### **Box 2: Urbanization**

Before the war, about 40 percent of Bosnia and Herzegovina's active population was employed in agriculture. However, only 16 percent of the 570,000 farms had more than 5 ha (and 35 percent had less than 1 ha) of cultivable land. Agricultural output in many mountainous areas was very poor and primarily limited to subsistence needs. Household incomes were often completed by a salary earned by one family member working abroad or in a neighboring factory. Social

infrastructure of villages was heavily subsidized (to a large extent by the Northern republics in the former Yugoslavia). During the period 1986 - 1991, a large number of people moved from the countryside to the cities. Similar trends can be observed in other Central European countries: as an example, since 1989, rural employment has declined by 40 percent in the Czech Republic.

The four types of movement have different potentials for reversal: ...

Movements which would not have happened if the war had not occurred can, in principle, be reversed. If adequate encouragement is given to local authorities, combined with significant financial assistance, people who were expelled or had to abandon their homes, in particular ethnic minorities, may be in a position to return. ... Movements which were accelerated by the war are less likely to be reversible. Urbanization trends and transition-related movements are unlikely to differ from patterns observed in other Central European countries. And governmental authorities are no longer able to subsidize the social infrastructure of villages, while extensive repairs have to be carried out in many places. In many instances, sustainable return to rural areas which relied on subsistence farming prior to the war will not be possible.

Regardless of their preferences, and even if the political situation improves substantially, a significant number of refugees and displaced persons will have to relocate for economic reasons, particularly those originating from rural areas which suffered heavy destruction. However, to foster sustained peace in the region, the decision to relocate should be made with a sense of free will (in view of economic opportunities for example, rather than as a result of political pressure), which requires effective implementation of the 'right to return'."

## **Specific aspects**

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### **Regional dimension of displacement and return in BiH (2006)**

- There are still around 21,000 Croatian Serbs with refugee status residing in BiH, mainly in the Republic of Srpska (November 2003)
- The citizenship and legal status of Croatians Serbs in the RS lacks clarity and affects the ability to assess local integration versus repatriation prospects for the Croatian Serbs
- There is no bilateral agreement on dual citizenship between Croatia and BiH (May 2003)
- Many homes belonging to Bosnian internally displaced persons are being occupied by Serbian refugees who have not been able to repossess their own homes in Croatia
- Obstacles in property implementation and return in RS are largely connected to the situation faced by the Croatian Serb refugees presently residing in RS
- There are also around 6,000 refugees from Serbia and Montenegro (2003)
- In January 2005, Ministers responsible for refugees and IDPs of BiH, Croatia and Serbia and Montenegro meet in Sarajevo committing to end population displacement by the end of 2006

### **European Commission 18 November 2003, p.11:**

"An indication of connection, inter-dependence and regional dynamics can be seen in the fact that some 21,000 Croatian Serbs with refugee status still reside in BiH, occupying property in RS. The return of these refugees to Croatia would facilitate a resolution of the problems of remaining internally displaced people within BiH."

**OHR 13 October 2003 para. 48-49:**

“There remains some 21 000 Croatian Serbs who occupy the homes of others and who still seek to either repossess their homes in the Republic of Croatia and/or return. Increasingly, these families face eviction under BiH’s laws without their own long term housing solutions because the recent amendments to the property laws in Croatia have not gone far enough and have yielded little real results. Similarly, pre-war residents of other neighboring countries in the Region (Slovenia) have approached my Office similarly concern about their own eviction and similarly unable to repossess property and return to their own prewar homes in the region. Solutions within Croatia and other former Yugoslav states must be identified for these individuals and this requires compatible property law throughout former Yugoslavia.”

**UNHCR May 2003, Executive Summary:**

“The central issue of what citizenship and therefore legal status the Croatian Serbs in the RS possess or should possess highlights the complex and varied nature of the population at hand. It is important to note that 75 percent of the Croatian Serb heads of households registered in BiH stated that they were currently possessing BiH citizenship. There are several difficulties related to the legal status of Croatian Serbs in the RS, a number of these specifically relate to the manner in which persons acquired RS/BiH citizenship.

Further, given the current lack of a bilateral agreement with the Republic of Croatia on dual citizenship, it is not certain that many who registered citizenship under the 1992 RS citizenship legislation and /or who obtained BiH passports actually wished to give up their Croatian citizenship in favour of BiH citizenship. Based on information available from Croatian Serbs approaching UNHCR, many simply wished to acquire viable documents which would permit travel to Croatia.

At the same time, despite continuing obstacles that Croatian Serb returnees have to overcome in order to return and regularise their status in the Republic of Croatia, property law implementation in BiH has fostered an increased interest in the return option. While initially, emphasis in promoting return had been placed on the organised procedure as it allowed for additional guarantees, more recently all persons with valid travel documents have been encouraged to return spontaneously, without undergoing the time consuming housing verifications and other procedural checks of the Return Programme.

A significant number of these individuals receive their pension from Croatia today and all have rights to health care, education and employment depending on their status. A number of the Croatian Serb population in the RS, however, have encountered problems because of invalid refugee cards. Depending on the actual number of Croatian Serbs with verified BiH citizenship, this group of individuals may wish to integrate locally in the RS. As the situation stands today, most Croatian Serbs do not have the means to start a life as well-integrated citizens of BiH. The lack of clarity regarding citizenship issues directly affects the ability to accurately assess local integration versus repatriation prospects for the Croatian Serbs.”

**UNHCR 1 September 2003 p.2:**

“BiH continues to host a number of refugees from SCG [Serbia and Montenegro], many of whom arrived in 1998 and 1999. While the majority has repatriated by the end of 1999, a re-registration exercise carried out in mid-2002 indicated that some 6,000 remain in BiH. Many originate from

Kosovo and had obtained Temporary Admission (TA) status in BiH. It is expected that BiH authorities will review the TA regime again in 2004 and may not extend the TA arrangement beyond the middle of 2004."

**UNHCR, May 2006:**

"Recognizing the remaining number of persons displaced throughout the region and the need to find durable solutions for them, three international actors (OSCE, the EC and UNHCR) came together to encourage the three Governments of BiH, SCG and Croatia to formulate a policy to find durable solutions for refugees in the region within a reasonable timeframe. This "3x3 Initiative" led to the January 2005 Regional Ministerial Conference on Refugee Returns which resulted in a Ministerial Declaration in January 2005. In the Declaration, the Governments pledge to ensure just and durable solutions for refugees in the region, whether by return or local integration. The Declaration further commits the Governments to formally acknowledge all remaining obstacles to durable solutions in country-specific "Roadmaps", which contain suggested ways forward. These Roadmaps are to be unified into one regional "Joint Matrix". A 3x3 ministerial meeting at the end of March 2006 was hoped to have accelerated the process and led to the finalization of the Roadmaps by the three Governments but, unfortunately, it seems not to have managed that. Lack of agreement on substantial issues, such as a resolution to the issue of former tenancy rights holders in Croatia, continues to hamper real progress."

**MHRR, 31 January 2005:**

"We, the ministers responsible for refugees and internally displaced persons in Bosnia and Herzegovina, Croatia, and Serbia and Montenegro, met today in Sarajevo to identify our individual and joint activities that should be undertaken in the forthcoming period with the assistance of the international community in order to ensure a just and durable solution to refugee and IDP situation in our countries."

**OHR, OSCE, UNHCR, 1er February 2005:**

"The principals of the European Commission (EC), OSCE and UNHCR from Bosnia and Herzegovina reiterated their support for the governments of Bosnia and Herzegovina, Croatia and Serbia and Montenegro in their efforts to enable refugee return in the region, and thus fulfil their responsibilities to the Dayton Peace Accord, at a conference held in Sarajevo yesterday. Participating in the Regional Ministerial Conference, hosted by BiH Prime Minister Adnan Terzic, international community representatives were encouraged by the willingness of the three governments to openly discuss achievements and the outstanding challenges to conclusively tackle the remaining population displacement between these three countries."

*For more information on the 3x3 initiative see ["OSCE, UNHCR and EC reiterate support for implementation of Sarajevo Declaration on refugees"](#), UNHCR/OSCE/EC, 27 March 2006*

*For further information see ["The Status of the Croatian Serb Population in Bosnia and Herzegovina: Refugees or Citizens?"](#) UNHCR, May 2003*

**Current returnees are among the most vulnerable and require adequate assistance (2005)**

**UNHCR, September 2005:**

"While the number of returns is expected to be modest when compared with those of the earlier years of the decade, among those who do choose to return inevitably will be some of the most socially disadvantaged of the displaced population. Single female-headed-households, the war-

traumatised and those languishing in sub-standard collective facilities, including the handicapped and elderly, will require legal advice and basic assistance in their search for durable solutions. As the number of agencies prepared to provide such assistance to the vulnerable returnee population is ever dwindling, UNHCR's continued attention, albeit with reduced human and financial resources, to these populations will remain critical. Additionally, geographic focus for such assistance will be placed on those areas where minority returns began only in recent years, and where returnees did not receive assistance that was more readily available in the earlier years of the return (e.g. in Eastern Republika Srpska). Apart from providing assistance to the most vulnerable of the returning population, UNHCR staff will continue to be active in the field, monitoring the overall return and reintegration process and intervening, where appropriate, in protection related matters. (...)"

### **Rejected asylum-seekers returned to Bosnia and Herzegovina risk internal displacement (2006)**

#### **UN CHR, 9 December 2005, par. 53:**

"Specific problems are encountered by some rejected asylum-seekers, persons whose temporary protection status in host States has ceased and other persons returned from countries of asylum in Western and Northern Europe. The Representative was concerned that those who, upon return, do not have the means to sustain themselves and do not have access to durable solutions are at an increased risk of becoming displaced themselves. An increasing number of countries of asylum, mostly in Western Europe, have started applying the "internal flight alternative" to asylum-seekers from Bosnia and Herzegovina, arguing that the latter are not in need of international protection as they can find refuge elsewhere in their country of origin. In view of the conditions described above, however, this ostensible alternative may not be a viable option for many individuals. Given the small size of the country and the continuing impunity, some persons, in particular victims or witnesses of war crimes, may be exposed to a serious risk to their safety even in an area of relocation if returned to Bosnia and Herzegovina. Concerns also include severely traumatized individuals, who are not likely to be able to live anywhere in the country without being constantly reminded of their suffering and past violations and who, in practical terms, would not be in a position to receive the assistance they need, such as specific social services and psychological support, given the poor state of the health system and the absence of sufficient psychosocial counselling.<sup>35</sup> Apart from these problems affecting specific groups, many interlocutors shared with the Representative their concern that the country's reintegration and absorption capacities would be overburdened should mass returns from abroad take place; indeed, renewed displacement might be the consequence."

### **Review of returns to Srebrenica: case study (2005)**

- Minority returns to Srebrenica started only in 2000
- Since the last two years the Eastern RS has been the largest return area in BiH
- Most return occur from Tuzla, Sarajevo and Zenica cantons
- Some 27,500 Bosniaks lived in Srebrenica before the war compared to 4000 in 2005
- The Srebrenica Return Commission compiles applications for return and assists returnees



- UNDP launched the Srebrenica regional recovery Programme (SRRP) to promote socio-economic recovery while strengthening local government structures
- Assistance in Srebrenica consists of activities ranging from rehabilitation of houses and, infrastructure to legal aid

#### **UNHCR, 1 June 2005:**

"Returns to Srebrenica have been slow to begin with, and many families remain in displacement, primarily in collective centres and settlements in the Federation of Bosnia and Herzegovina (FBiH). Minority returns to Srebrenica and most areas in Eastern Republika Srpska (RS) started in earliest only in 2000, approximately three years after most other areas in BiH had experienced significant return movements. Today, the Mayor of Srebrenica, Abdurahman Malkic, is proactive in supporting return. There are 57 Bosniak minority returnees who have found employment in the municipality. Srebrenica has thus raised the highest rate of employment of minority returnees in the Eastern RS. Over the last two years, the Eastern RS has seen the largest returns of any area in BiH. Most returns occur from Tuzla, Sarajevo and Zenica-Doboj Cantons in the Federation of BiH.

Minority returns (Bosniak) have taken place primarily to isolated hilly rural areas away from the town centre. The infrastructure in these areas remains in ruins, and some areas face additional problems with unexploded ordinance and land mines.

#### **Bosniak Returns to Srebrenica**

| YEAR | RETURNS |
|------|---------|
| 2000 | 60      |
| 2001 | 127     |
| 2002 | 462     |
| 2003 | 1,455   |
| 2004 | 780     |
| 2005 | 180     |

During the last official national Census in 1991, the Srebrenica pre-war population stood at 36,666, with the following ethnic breakdown: 27,572 Bosniaks; 8,315 Serbs; 38 Croats; 380 Yugoslavs; and 361 others. Population estimates today assume that approximately 4,000 Bosniaks and 6,000 Serbs reside in the municipality. At the same time, preliminary results of the 2004-2005 displaced persons (DP) registration show that 1,308 DPs (391 families) remain in Srebrenica today. In December 2002, the Srebrenica Municipal Assembly established the Srebrenica Return Commission. It has five voting members who are municipal councillors and it is ethnically balanced and politically mixed. The Commission also has two professional staff and maintains an Office in the municipality, accessible to the public on a daily basis. The Commission has three tasks: first, to register and collect data on families interested in returning or leaving the municipality; second, to assist with project beneficiary selection (making field assessments) with NGOs and donors; and third, to draft and forward project proposals. (...)

#### **Houses**

Approximately 6,600 houses were destroyed during and just after the war. Some 1,530 will have been reconstructed by the end of 2005. The primary international donors in Srebrenica have been the governments of the Germany, the Netherlands, Sweden, and U.S.A.. There are also a number of private donors providing housing assistance. These donors have made substantial contributions, primarily assisting those returnees that are able to rebuild their homes under a self-help policy. There are more than 2,600 families currently registered who are still awaiting housing and income generating assistance. UNHCR invested some \$680,000 in Srebrenica since 1996, which focused on reconstruction of homes, income generation activities and the provision of legal

aid to all who need it, implemented by several NGOs. UNDP has been working in Srebrenica since 2002 to revitalise the municipality and surrounding villages. Their core task is in five areas: Economic Development, Local Government, Civil Society, Gender Mainstreaming and Infrastructure. The overall goal of the Srebrenica regional recovery Programme (SRRP) is to promote the socio-economic recovery while strengthening local government structures. The lack of economic opportunities, the high rate of unemployment, lack of modern technology, the loss of traditional markets linkages from before the war, coupled with the fact that qualified and skilled labour has fled, are major obstacles to getting the economy re-started.

UNDP included housing assistance as part of their Srebrenica Regional Recovery Programme (SRRP) for the first time in 2005, as there remains a substantial reconstruction funding gap. The SRRP has committed \$12.3 million and expects to have spent \$11 million by the end of 2005 in the wider Srebrenica region. In 2004 the RS authorities, contributed KM 1,565,000, and the FBiH Government contributed KM 750,000 to the SRRP. In 2005, KM 612,000 for reconstruction of 34 housing units will be provided by the Return Fund established under the aegis of the State Commission on Refugees and Displaced Persons (SCRDP).

#### **Infrastructure**

Some of Srebrenica's villages are as far as 45 kilometers from the town by dirt roads, often inaccessible during the winter months.

Returnees emphasize that return cannot be sustainable unless the pre-war infrastructure is re-established (e.g. regular bus lines to connect them with Srebrenica), since public services for residents in rural areas is almost non-existent."

***Additional information on property, education, economic situation in: "Review of return to Srebrenica", UNHCR, 1 June 2005 (see sources below)***

#### **Gender aspect of return is neglected (2003)**

- Female-headed displaced and refugee families face more difficulties in exercising the right to return and the right to ownership
- Annex 7 fails to address the issues of women refugees and displaced persons

#### **UNDP June 2003, 36:**

"The gender aspect of return has been very much neglected. UNHCR has assessed three specific obstacles to return that have an impact on families headed by women – single mothers, single women, extremely vulnerable women, as well as women without husbands, widows (civilian and military) and abandoned women, victims of sexual violence or torture, and severely traumatised women. These obstacles are the absence of a family or of support by the community, an expressed fear for personal safety, and the presence of traumas.

[...]

Ownership issues are also coloured by gender problems. More women than men face problems when it comes to exercising the right to ownership, especially after a divorce or death of the spouse, or his disappearance during the war. Private ownership titles and occupancy rights are usually to the husband's name, or the name of the father-in-law. Implementation of ownership rights is additionally slowed down by long court proceedings, and the access to pre-war property is an impediment for the return of families headed by women."

#### **UNDAW 5 November 2003, p.5:**

##### **"The rights of refugees**

Annex 7 especially fails to address the issues of women refugees, who, without doubt, together with children and the elderly, represent a vast majority of all refugees and displaced persons. The provision on the right to return, for instance, does not mention women, now often widowed or

alone; it reads only as follows: “permitted to return in safety irrespective of ethnic origin, religious belief, or political opinion” (annex 7, Chapter One, Article 1(2)).

[...]

#### **Property and return**

The return of property is another issue that should have a gender-differentiated focus. Albeit there is an increasing number of single women returnees or widows, Bosnia and Herzegovina still, especially in rural areas, retain traditional ownership over land and other assets.

There is also an ineffective legislation and judiciary for the protection of ownership rights which demands close and sex differentiated approaches to the issue of and the return of property. Although Article XV of Annex 7 stipulates that domestic laws on property rights should be considered in developing of rules and regulations regarding the agreement, it does not specify who and what laws it targets. Generally domestic laws, which reflect traditional practices and customary norms whereby men are primary owners of land, are unfavourable to women in way that probably would not have been accepted if it had concerned an ethnic group."

#### **Special protection needs of vulnerable categories of returnees (especially women) (2000-2003)**

- Most dependents of disappeared persons are women and children
- A major factor in the decision of women who have missing family members not to return is the fear they will lose benefits associated with having missing family members
- A UN study (April 2000) highlights the particular problems faced by vulnerable women in minority returns

#### **AI 5 March 2003, p.52-55:**

"Quite apart from the emotional impact of the 'disappearance' of a family member, concerns have been repeatedly voiced by organizations involved in the issue that, given that the majority of those left behind in the wake of this violation are women and children,[1] there are severe and enduring adverse effects both on their economic and social circumstances as well as their personal security.[2] In particular, in cases where the dependants of the 'disappeared' are still internally displaced – such as with the majority of the Bosniak female population from Srebrenica of non-Serb origin – they face mounting financial problems and social exclusion." (AI 5 March 2003, p.52)

[...]

**There is** “an additional and overwhelming need to incorporate the issue into the overall process of enabling access to social and economic justice for relatives and victims of human rights violations committed during the armed conflict. The overarching need for reparation must be addressed by taking into consideration the particular situation of those directly affected by ‘disappearances’, which will require a gender-sensitive and longterm approach. There is a current drive by the international community to close down programs of assistance and terminate funding of local organizations, while applying a “tick-list” strategy to addressing unresolved issues forming the legacy of the war.[...]

Despite the increased rate of implementation of property legislation and the ever higher numbers of registered minority returns, many of the women and dependants of the ‘disappeared’ are unlikely to return to their pre-war communities for a variety of reasons. Such factors range from fear for their personal security, compounded by the absence of a family or community network in the place of return. A major concern is the lack of financial means to rebuild destroyed housing. [...] Although Annex 7 to the Dayton Peace Agreement states that ‘[a]ll refugees and displaced persons have the right ... to have restored to them property of which they were deprived in the course of hostilities since 1991 and to be compensated for any property that cannot be restored

to them.’ (Chapter 1, Article 1).[...] However no functioning compensation mechanism was ever set up. Reconstruction of destroyed housing was funded by and large through donations and investments by the international community, which has drastically decreased this funding over the past years. In the case of the displaced population – which numbered over two million at the end of the war – the argument could have been made that this category of people should have in fact been made the primary beneficiaries of the privatization process. [...] This process as such, however, has been of concern to human rights monitors in the international community, as it reinforced discriminatory practices and undermined ethnic reintegration and minority returns.[...]

Furthermore, many of these women continue to have little trust in the unbiased functioning of the police, the judiciary, health services and the education system – most of which remain to a large degree mono-ethnic despite attempts by the international community to increase the recruitment of minority returnees to the public sector.[...]

A major factor in the decision not to return is the expectation of many women that they will face a drastic cut in income as they will lose the benefits associated with having missing family members, as the systems and criteria for such benefits (*invalidnine*) are tied to the ethnicity of the victim and benefits do not appear to be easily or at all transferable across entity borders. For some displaced women with missing relatives this assistance is in fact their only source of income. [3] In addition, even though the *invalidnine* are reportedly higher than other social allowances and pensions, displaced women in this category increasingly have to resort to renting private accommodation after being evicted from housing they previously occupied.[4]

Moreover, in both entities, legislation regarding pensions and allowances awarded to the relatives of the missing or dead who were civilians appears to be inadequate. Concern has been expressed that many women who are in need of support are falling through the cracks of the system. [...]

Whether these women choose to return to their pre-war municipalities or remain in the places where they have settled since, there is a clear and overwhelming need to develop comprehensive and long-term strategies to integrate them and their families fully and permanently in society and enable them to have unimpeded access to employment, education, health care and social welfare. [5] [...].”

[Footnote 1] According to the ICRC, out of 20,786 tracing requests for persons unaccounted for after the war in Bosnia-Herzegovina, on 30 June 2002, 17,087 cases were still pending. There are no current statistics for the on the gender breakdown for Bosnia-Herzegovina solely, however out of the total of 31,541 tracing requests still unresolved in former Yugoslavia (Croatia, Bosnia-Herzegovina and the Federal Republic of Yugoslavia including Kosovo) 27776 cases or 88.1% concern missing men and boys. (from *Unknown Fate, Untold Grief*, ICRC Special Report, August 2002). The special report by UNHCR/UNHCHR estimated that 92% of the missing persons in Bosnia-Herzegovina are men (see: *Daunting Prospects – Minority Women: Obstacles to their Return and Integration*).

[Footnote 2] See: UN Study on Women, Peace and Security, United Nations 2002, Paragraphs 109-110. The International Helsinki Federation for Human Rights (IHF), for example, has also noted that displaced women in Bosnia-Herzegovina “are particularly vulnerable to prostitution and organized prostitution, both of which involve a significant risk of health problems and violence that should not be underestimated.”

[Footnote 3] For example, this is the case for displaced women from Srebrenica still living in collective accommodation or in pre-fab housing units constructed in 1993-5, in Tuzla Canton, and for whom the loss of such benefits (at around a monthly 400KM) presented insurmountable

difficulties, given their already dire economic situation (Amnesty International interviews with displaced women in the Ježevo and Grab potok settlements, Banovici municipality, August 2002). Feedback from organizations working with displaced women implies that in practice they encounter difficulties in transferring these benefits from the location of displacement to their pre-war municipality. Given the current differences in legislation and claims procedures in the Federation (where each Canton has its own implementing legislation) and the RS, it would be difficult to see how such transfers would happen without further agreements between the relevant entity ministries regulating the process.

[Footnote 4] According to BOSFAM, a local non-government organization working with displaced persons in Tuzla Canton, the average amount of rent for private accommodation in that Canton as a rule claims the larger part of the *invalidnina* displaced women from Srebrenica are receiving on grounds of their missing or dead relatives.

[Footnote 5] For example, both minority returnee women and displaced women have reported that they are discriminated against in offers of employment [...]. They are in particular concerned about the problems they face in ensuring proper education for their children: for example displaced women remaining in collective centres in remote areas, who lack the financial means to pay for transportation to the nearest school, reportedly in some cases decided to send their male children to school only. Both categories of women also lack adequate and affordable health care for themselves and their families, including psycho-social counselling services which may help them overcome severe trauma experienced during the war.

**OHR HRCC 15 May 2000, paras. 32-35:**

"Gender study: 'Daunting Prospects - Minority Women: Obstacles to their Return and Integration': In April, UNHCR (assisted by the OHCHR) issued a report on the current situation and specific obstacles to return and integration faced by displaced and returnee women. The study focuses on female-headed families, single women and extremely vulnerable women, from all ethnic backgrounds.

The study identified three specific obstacles to return for the categories of women examined: (1) lack of familial or community support, (2) personal security and (3) psychological trauma. It was generally found that their fear of returning (whether or not justified) was compounded by the lack of familial or community support, or by psychological trauma. Regarding access to the reconstruction assistance, it was found that there is no common (BiH wide) criteria for beneficiaries of reconstruction assistance. In many cases, it was not clear whether women were prioritised or sidelined for such assistance, or indeed if such aid was evenly distributed. Specific concerns were raised with the principle of 'funding follows return,' which may disadvantage those who require child care assistance, are alone or are elderly and/or immobile. Regarding the repossession of property, the report recommends serious efforts be made to ensure that vulnerable women are not forgotten, whether with respect to monitoring evictions, the allocation of alternative accommodation, or the re-allocation of unclaimed apartments.

Other issues, such as the prosecution of alleged war criminals, satisfactory gender and ethnic composition of local police forces, access and quality of health care, employment opportunities and access to education and vocational training, were also reviewed as factors affecting return and/or integration potential. Without improvements, the report found, women will continue to be marginalized, and their return and/or integration potential compromised."

See *Daunting Prospects. Minority Women: Obstacles to their Return and Reintegration*, UNHCR/UNHCHR, April 2000

See also *Extremely Vulnerable Individuals: the Need for Continuing International Support in Light of the Difficulties to Reintegration upon Return*, UNHCR, November 2000

## Resettlement and local integration

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**Many of the most vulnerable IDPs will need to be assisted in finding a solution other than return (2008)**

- So far, the main effort has been on facilitating return in order not to legitimise “ethnic cleansing”, with less focus on the needs of those unable to return
- The Council of Europe considers local integration as maybe the only possible solution for some of the most vulnerable IDPs
- UNHCR calls for greater efforts in assisting the most vulnerable IDPs who are not able to return

**CoE, 20 February 2008:**

65. As almost all the inhabitants [of Collective Centres] belong to particularly vulnerable groups and have been living for a long time in displacement, their return is unlikely for various reasons. Many have suffered great trauma. This is especially prevalent in households headed by females with missing family members. There are also an estimated 200,000 camp survivors and an unknown number of victims of sexual violence (mainly women) in BiH who are in need of specific services, which are still lacking in BiH. There is no law at the State level which would grant them specific rights.

66. Facilitating returns by reconstructing damaged houses and rehabilitating the infrastructure of return areas has been the main focus of efforts. Less attention has been paid to the needs of those displaced persons who are not able to return, either for protection or humanitarian reasons. These are some of the most vulnerable persons and groups in Bosnian society.

67. Continued efforts to facilitate returns are essential, but the particular needs of those who are not able to return due to past trauma or other special protection concerns need to be addressed as well. Local integration as a durable solution may well be the best - or the only option - for some of the vulnerable displaced persons. Resources need to be directed towards assisting them in their integration. This is also in line with the UN Guiding Principles on Internal Displacement (the UN Guiding Principles) 38, according to which the internally displaced persons have the right to choose between return and integration.

68. According to the UN Guiding Principles, return should be voluntary and conducted in safety and dignity. Returnees are entitled to recover their property and be protected against discrimination. In Bosnia and Herzegovina, the option of return has clearly been prioritised by the international community, as well as some of the Bosnian authorities, in order not to legitimise “ethnic cleansing”. It is generally acknowledged that for return to be successful, the following conditions must be fulfilled: safety, return of property, and adequate economic, social and political conditions. It is the latter conditions that remain the biggest challenge to sustainable returns in BiH today.

**UNHCR, Briefing Note on Annex 7 in Bosnia and Herzegovina, October 2007, p.2**

While international as well as local assistance projects have so far mainly focused on facilitating return by reconstructing damaged houses and rehabilitating the infrastructure of main return areas, the needs of those who are not able to return either for protection or humanitarian reasons, including those who have suffered from severe human rights abuses, have remained essentially unaddressed. The social protection system currently in place is insufficient in many parts of BiH

and not functioning at all in many areas due to a lack of effective legislation, adequate government institutions and mechanisms or necessary funding. More emphasis should be placed on efforts designed to assist the most vulnerable individuals who are not able to return due to past trauma or other special protection concerns.

## **Return prospects**

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## HUMANITARIAN ACCESS

### General

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# NATIONAL AND INTERNATIONAL RESPONSES

## Background

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### Overview of national and international response

After years of supporting return through property restitution and reconstruction, a new focus of national and international response is needed if returns are to become sustainable and the needs of the remaining displaced population are to be addressed.

The response to internal displacement is based on Annex VII of the Dayton Peace Agreement (DPA), which focuses overwhelmingly on sustainable return and related rights such as property restitution or compensation. As for the international response, the DPA designates UNHCR as lead agency for the return of refugees and displaced people. At the national level, the Ministry for Human Rights and Refugees is responsible for coordinating return activities. Each entity has its own IDP-related ministry responsible for return and reintegration, while each of the ten cantons in the Federation and most of BiH's 164 municipalities have departments responsible for return.

A strategy to implement Annex VII was developed in 2003, focusing mainly on return and reconstruction, and the national and entity authorities officially took over the responsibility for return in 2004. As part of the strategy, a national return fund was established and the BiH State Commission for Refugees and Displaced Persons mandated to select return projects in municipalities, which the entities and the national government could finance.

By 2006 it became clear that the return process, although successful for a large majority of IDPs, was far from over. At the end of 2007 the MHRR, in collaboration with UNHCR and supported by the OHR, started to revise and update the strategy in a bid to end the outstanding problems of displacement. The new strategy, which is still being defined as of August 2008, aims to improve the situation of people still in displacement as well as the situation in return areas. Working groups considered for the first time the possibility of offering compensation for destroyed dwellings and resolving the housing situation, including through social housing, for vulnerable IDPs in collective centres who are unable or unwilling to return.

The mechanisms for compensation claims, while provided for in the Dayton Agreement, have never been functional because of the tremendous resources required and the fear of bringing a premature end to returns, thus consolidating the ethnic separation created by the war. For the same reasons, local integration is a very sensitive topic which explains why the various initiatives supporting solutions in the place of displacement for vulnerable groups are not given a high profile. In contrast, some nationalist political parties, particularly in RS and in the Croat part of FBiH, have supported the local integration of displaced people to limit their return and maintain their local ethnic majority. Large numbers of people have thus received land and construction assistance, particularly in Serb and Croat majority areas..

The strategy's revision process acknowledges that solutions other than return will need to be sought, in particular for vulnerable IDPs residing in collective centres, while returnees need more sustained support than they have thus far received. The working groups have covered the main obstacles to return or alternative solutions, including reconstruction of housing for return, restitution, infrastructure in return areas, health, social protection, education, security and economic opportunities. The reports are to be incorporated into a draft strategy to be presented,

by Summer 2008, to the Council of Ministers, the Presidency and the Parliamentary Assembly of BiH for consideration and adoption (MHRR, October 2007; UNHCR, correspondence 2 May 2008).

In practice, the bulk of resources allocated to IDPs goes to support return (and reconstruction) to the detriment of other durable solutions. In 2008 the MHRR received \$25 million from the national government (its largest budget to date) and while a large proportion of these funds has been allocated for housing reconstruction, for the first time, funds have also been allocated to projects aiming at supporting sustainable return (MHRR, October 2007; Osblodenje, 15 April 2008).

In view of the obstacles to return faced by many IDPs, the difficult living conditions of those still displaced and the limited desire of many to return, the overwhelming focus on reconstruction is increasingly recognised as an incomplete approach to return, which requires a broader range of sustainability measures, as well as to securing solutions for those who cannot or do not want to return. More than 12 years after the war, it has become evident that the ethnic repartition resulting from the war cannot be completely undone. Many IDPs cannot or do not want to return and they should be able to make a free choice between returning, integrating locally or building new lives elsewhere, and receive support whatever their choice is. Such support is particularly needed in the case of IDPs living in collective centres, since they are the most vulnerable group for whom return is more difficult to envisage. Those people need tailored assistance to facilitate durable solutions.

Parallel to the revision of the Annex VII implementation, BiH authorities made a greater effort to improve the living conditions of the Roma population, which is still discriminated against on several levels, and which is assumed to constitute part of the remaining displaced population. Within the political system, several Roma focal points now exist, such as the Council for National Minorities within the Parliamentary Assembly of BiH, the Roma Council, and the Board for Roma within the Council of Ministers of BiH. In addition, there is a Roma NGO network, consisting of more than 40 NGOs. These organisations make different assessments of the number of Roma in BiH. Depending on the source, the Roma population varies between 40,000 and 80,000 (UNDP, 26 June 2006). In 2007, MHRR, in cooperation with the Roma Council and international organisations, developed action plans for employment, health and housing. Action plans were adopted by the BiH Council of Ministers in June 2008, which could pave the way for BiH's application to the "Decade of Roma Programme 2005-2015", aiming at improving the socio-economic status and social inclusion of Central and South-Eastern Europe's Roma populations, and facilitate access to EU pre-association funds for Roma issues (OSCE, 8 April 2008, [www.romadecade.org](http://www.romadecade.org)).

Despite the increasing financial engagement of EU institutions, international interest in BiH has generally been declining since 2000, and a certain "Balkan fatigue" appears to manifest itself among key states (Security Council Monitor, May 2008 update). But although the security in BiH has improved, the country is not yet stable, nor are all the needs of the returnees and displaced persons met. Ethnic radicalisation has not abated and is increasing in some areas, and the fact that it still stands in the way of necessary reforms indicates that international disengagement may still be premature (Security Council Monitor, May 2008 update).

As the Representative of the UN Secretary-General on the Human Rights of IDPs underlined during his visit to BiH in June 2008, there is a need for donors and international organisations to "address the persistent humanitarian needs of the displaced population, and the challenges of making return sustainable" (UN, press release, 20 June 2008). This supposes that targeted assistance is provided to the most vulnerable individuals who cannot or do not want to return and that reconstruction assistance for return is combined with projects supporting self-reliance of returnees.

Without this, indirect and low-lying discrimination and difficulties in accessing economic and social rights will continue to limit the sustainability of return. For the remaining displaced people, it could mean continued displacement and increased marginalisation. Therefore a broader analysis and understanding of the existing ethnic divide in BiH, including a review of the Annex VII goals, is necessary. A continuing focus on return as the only solution for the remaining vulnerable IDP population will only delay the moment when they can resume a life in dignity.

## Legal framework

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### IDP legislation at State and Entity Level and reconstruction instructions

At the State level, the [Law on Refugees from Bosnia and Herzegovina and Displaced Persons in Bosnia and Herzegovina](#) (1999, amended in 2003) sets out the general principles regulating the acquisition and cessation of the status of refugee or displaced person as well as these persons' rights, including the right to recover their property. The State establishes a framework requiring the entities to pass their own laws, which need to be consistent with State law and each other. This coordination task is taken over by the State Ministry for Human Rights and Refugees (MHRR), created in 2000 in accordance with this law.

The law is accompanied by the [Instruction on the Return of Bosnian Refugees and Displaced Persons to/within the Territory of Bosnia and Herzegovina](#) (1999).

***See also the [Instruction on the Method of Conducting Revision of the Status of a Displaced Person](#) and the [Guidelines for the bodies responsible for revising and recognition of the status of a displaced person in Bosnia and Herzegovina](#), July 2005***

At the Entity level, the following laws apply for regulating the IDP status and the entitlements of the persons holding this status:

[The Law on Displaced Persons and Returnees in the Federation of Bosnia and Herzegovina and Refugees from Bosnia and Herzegovina](#), (2005)

[The Law on Displaced Expelled Persons and Refugee Repatriates in the Sarajevo Canton](#) (2005)

[The Law on Displaced Persons, Returnees and Refugees in the Republika Srpska](#) (2005)

#### **Instructions related to access to reconstruction assistance:**

[Instruction on the Manner and Procedures for Selection of Beneficiaries of the Return Projects and Housing Units Reconstruction](#), MHRR, June 2006

[Instruction on the Manner and Procedures for Identification of the Beneficiaries of Assistance from the Sub-Fund for Intervention Assistance in Sustainable Return in Bosnia and Herzegovina](#), MHRR, October 2006

#### **USDoS, 8 March 2006:**

The State Ministry for Human Rights and Refugees (MHRR) is responsible for the coordination of inter-entity return activities. Each entity has its own IDP-related ministry: the Ministry for Refugees and Displaced Persons in the Republika Srpska and the Ministry for Refugees and Displaced Persons in the Federation. Each of the 10 cantons in the Federation of Bosnia and Herzegovina has a ministry responsible for return. The role of cantonal ministries in both the reconstruction of housing and the implementation of sustainability measures is largely an administrative one, limited to the procurement and delivery of materials for repairs and reconstruction carried out by

returnees themselves (UN CHR, 29 December 2006). The Entity Ministries provide limited reconstruction assistance to returnees and commit part of their budgets to be implemented through joint projects with the State Commission for Refugees and Displaced Persons, which, in 2004, decided to focus reconstruction assistance on 30 priority municipalities.

**UN CHR, 29 December 2006:**

Most of the 164 municipalities of Bosnia and Herzegovina have departments for refugees and IDPs. Since 2003, municipalities have had the main responsibility for beneficiary selection and technical implementation of reconstruction projects. They are supervised by four Regional Centres for the return process, located in Sarajevo, Banja Luka, Tuzla and Mostar under MHRR.

To encourage dialogue between State and entity ministries, the Commission for Displaced Persons and Refugees was created in February 2000, in accordance with Chapter 2 of the GFA's Annex VII. Its mandate is to receive and decide claims for real property in cases where the property has not voluntarily been sold or otherwise transferred since 1 April 1992, and where the claimant does not now enjoy possession of that property. According to Annex VII, claims may be "for return or just compensation in lieu of return". But mechanisms for compensation have not been set up as donors feared that compensation in lieu of return would consolidate "ethnic cleansing."

The main task of the State Commission for Displaced Persons and Refugees is the examination and approval of return and reconstruction projects prepared by the entities and their sub-units (municipalities as well as cantons in the Federation of Bosnia and Herzegovina) and collected by the State Ministry for Human Rights and Refugees. The Commission also authorizes and supervises the financial support of approved reconstruction and return projects through the Return Fund. The Return Fund (see GFA Annex VII) was established in 2000 with the aim of supporting the sustainability of return. It ensures that both domestic and external financial aid allocated to the return process are concentrated in one single institution. It became operational in late 2004 after the State, the entities and the Brcko District made their financial contributions.

**Lack of harmonised legislation on social issues at state level (2006)**

**UN CHR, 29 December 2006:**

Not all issues pertaining to the rights of war victims and of IDPs are regulated on a state level, leaving room for interpretation and difference at Entity level. This situation is often detrimental to the rights of the displaced and other war victims. For example, laws on property restitution only exist at the entity level.

**Section 20**

Furthermore, there is no instance empowered to enforce the Entities to live up to their obligations. For example, while the Federation Law contains a wide array of entitlements of IDPs, in practice, usually only accommodation and basic health care are provided.

In the absence of a state law on the protection of victims of war crimes and crimes against humanity, the victims' rights differ between entities. For example the Federation's Law on the Basis of Social Welfare Protection of Civilian Victims of War and Victims of War and Protection of Families with Children does not include women who were raped in the category of victims of war crimes. The Republika Srpska Law on the Protection of Civilian Victims of War grants wider protection to civilian victims of war, i.e. persons who suffered bodily harm as a result of ill-treatment, rape, deprivation of freedom and forced labour and who suffered harm over at least 60 per cent of their bodies. However, the deadline to apply for victim status was set for 2000 when returns were still comparatively low.

## Recognition and cessation of displaced person status

### UNHCR and Displaced Persons, June 2006:

"In 2004, UNHCR, MHRR and the two Entities signed a protocol to regulate the revision of IDP numbers and the granting of IDP status. The protocol was followed in 2005 by a set of Guidelines for the bodies responsible for the revision and recognition of the IDP status to address problems of inadequate interpretation of the Entities IDP definitions. The reason for those problems lies in the connection between DP status and property:

The two 2005 Entity laws on Internal Displacement contain the same or very similar provisions for the acquisition and cessation of the DP status and access to rights. The definition of a Displaced Person (DP) is harmonised between the Entities and with State law: "A displaced person is a citizen of BiH residing within BiH who has been expelled from his habitual residence as the consequence of the conflict or left his habitual residence after 30 April 1991, owing to a well-founded fear of being persecuted for reasons of race, religion, nationality, membership to a social group or political opinion, and who is neither able to return in safety and dignity to his former habitual residence nor has voluntarily decided to take up permanent residence elsewhere."

*According to both Entity laws, the DP status including its entitlements ceases upon return to a person's pre-war place of residence. According to UNHCR, a bureaucratic approach to the DP definitions in both Entity laws has in some cases led to the cessation of DP status of displaced people who were still in need of protection: where the wording "habitual residence" was interpreted as a property over which the displaced person has ownership right, any displaced person without such property lost lose their status solely on that basis. As a result, there was a new group of vulnerable displaced people without property and without a status granting them protection.*

*The Protocol and Guidelines signed by BiH and Entity Ministries and UNHCR should ensure the application of relevant DP legislation in line with international standards. The Guidelines provide a broader interpretation of the cessation clauses contained in the relevant DP laws explaining how and in what cases protection and humanitarian concerns should be taken into account. Although the Guidelines are not yet applied in all of BiH, they have prompted a number of positive DP status decisions based on humanitarian grounds.*

*See also the [Instruction on the Method of Conducting Revision of the Status of a Displaced Person](#) and the [Guidelines for the bodies responsible for revising and recognition of the status of a displaced person in Bosnia and Herzegovina](#).*

*For a comprehensive overview of all national and regional Laws and Policies on Internal Displacement, visit the Brookings Institutions's Bosnia website at <http://www.brookings.edu/projects/idp/Laws-and-Policies/bosnia.aspx>*

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